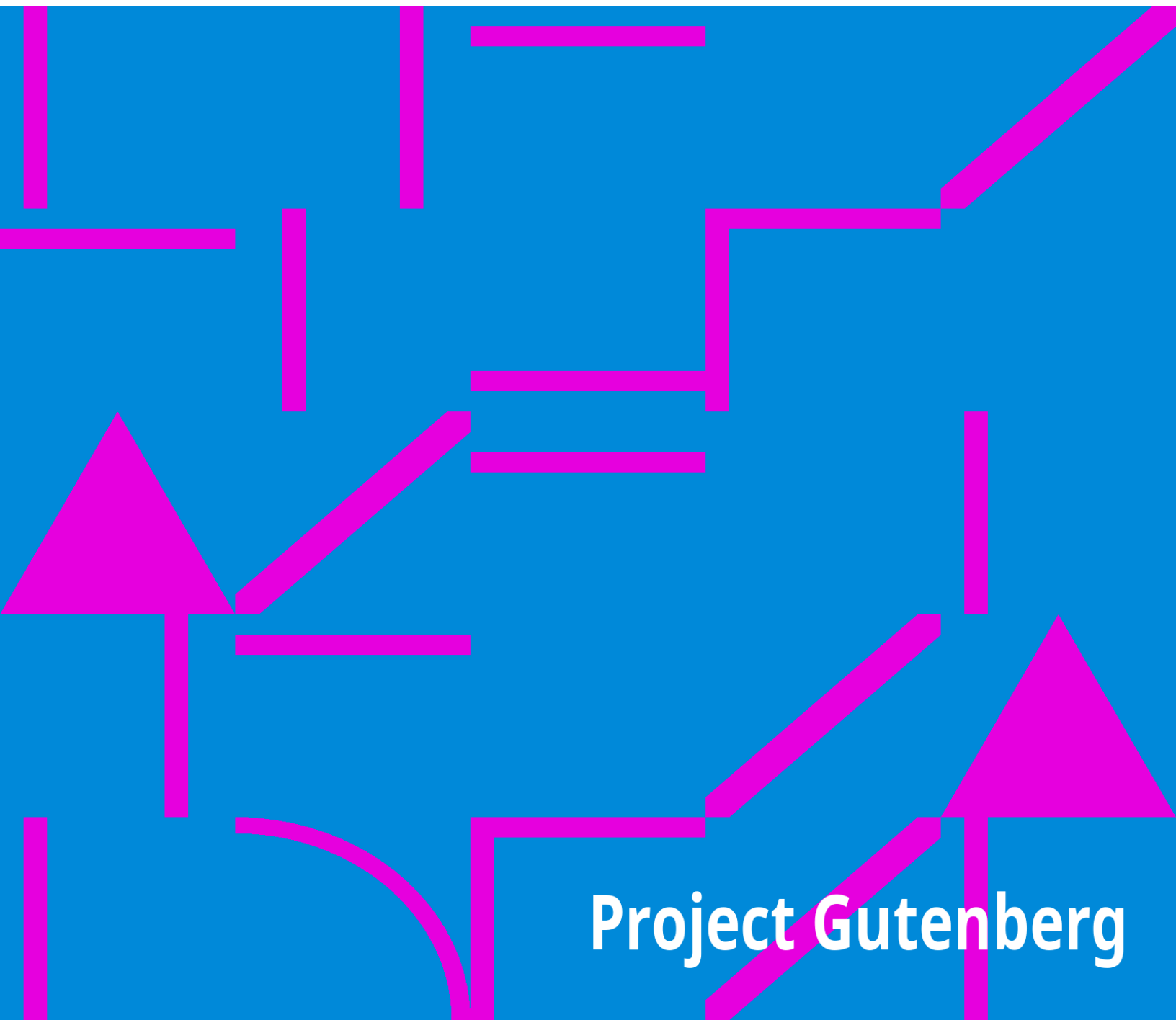


The Negro and the Nation

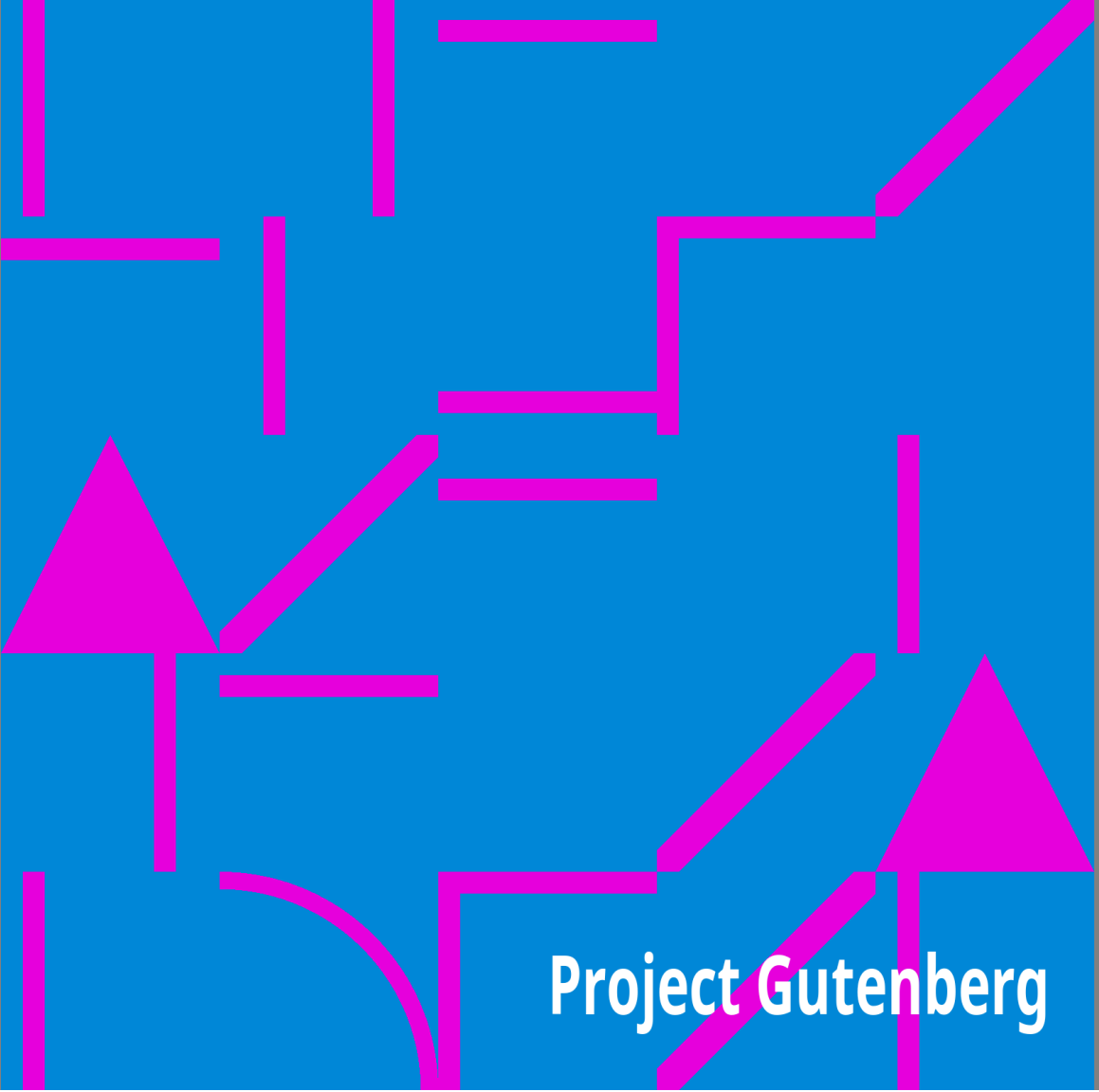
George Spring Merriam

The background of the lower half of the image is a solid blue color. Overlaid on this are various magenta geometric shapes and lines. These include several horizontal and vertical lines of varying lengths, some that are part of larger stepped or zigzag patterns. There are also two solid magenta triangles, one on the left and one on the right. A curved magenta line is visible in the bottom left corner. The overall effect is a modern, abstract design.

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The Negro and the Nation

George Spring Merriam



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AND THE NATION ***

THE NEGRO AND THE NATION

*A History of American Slavery
and Enfranchisement*

BY

GEORGE S. MERRIAM

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THE NEGRO AND THE NATION

CHAPTER I

HOW SLAVERY GREW IN AMERICA

An English traveler, riding along the banks of the Potomac in mid-July, 1798, saw ahead of him on the road an old-fashioned chaise, its driver urging forward his slow horse with the whip, until a sharp cut made the beast swerve, and the chaise toppled over the bank, throwing out the driver and the young lady who was with him. The traveler—it was John Bernard, an actor and a man of culture and accomplishments, spurred forward to the rescue. As he did so he saw another horseman put his horse from a trot to a gallop, and together they reached the scene of action, extricated the woman and revived her from her swoon with water from a brook; then righted the horse and chaise, helped to restore the half-ton of baggage to its place; learned the story of the couple—a New Englander returning home with his Southern bride—and saw them safely started again. Then the two rescuers, after their half-hour of perspiring toil in a broiling sun, addressed themselves courteously to each other; the Virginian dusted the coat of the Englishman, and as Mr. Bernard returned the favor he noticed him well,—“a tall, erect, well-made man, evidently advanced in years, but who appeared to have retained all the vigor and elasticity resulting from a life of temperance and exercise. His dress was a blue coat, buttoned to the chin, and buckskin breeches.” The two men eyed each other, half recognizing, half perplexed, till with a smile the Virginian exclaimed, “Mr. Bernard, I believe?” and, claiming acquaintance from having seen him on the stage and heard of him from friends, invited him to come and rest at his house near by, to which he pointed. That familiar front, the now wholly familiar face and form,—“Mount Vernon! Have I the honor of addressing General Washington?” With a charming smile Washington offered his hand, replying, “An odd sort of introduction, Mr. Bernard; but I am pleased to find you can play so active a part in private and without a prompter.” There followed a long and leisurely call at Mount Vernon, and Bernard, in his volume of travels which did not see the light for nearly a century, has given a most graphic and winning picture of Washington in his every-day aspect

and familiar conversation. To the actor's keen eye, acquainted with the best society of his time, the near approach showed no derogation from the greatness which the story of his deeds conveyed. "Whether you surveyed his face, open yet well defined, dignified but not arrogant, thoughtful but benign; his frame, towering and muscular, but alert from its good proportions—every feature suggested a resemblance to the spirit it encased, and showed simplicity in alliance with the sublime. The impression, therefore, was that of a most perfect whole."

The talk ran a various course. Washington incidentally praised the New Englanders, "the stamina of the Union and its greatest benefactors." The Englishman acknowledged a tribute to his own country, but Washington with great good humor responded, "Yes, yes, Mr. Bernard, but I consider your country the cradle of free principles, not their arm-chair." He had proceeded a little way in a eulogy of American liberty, when a black servant entered the room with a jug of spring water. Bernard smiled, and Washington quickly caught his look and answered it: "This may seem a contradiction, but I think you must perceive that it is neither a crime nor an absurdity. When we profess, as our fundamental principle, that liberty is the inalienable right of every man, we do not include madmen or idiots; liberty in their hands would become a scourge. Till the mind of the slave has been educated to perceive what are the obligations of a state of freedom, and not confound a man's with a brute's, the gift would insure its abuse. We might as well be asked to pull down our old warehouses before trade has increased to demand enlarged new ones. Both houses and slaves were bequeathed to us by Europeans, and time alone can change them; an event which, you may believe me, no man desires more heartily than I do. Not only do I pray for it on the score of human dignity, but I can clearly foresee that nothing but the rooting out of slavery can perpetuate the existence of our Union, by consolidating it in a common bond of principle."

These words of Washington, with the incident that supplies their background, are an epitome of the view and attitude of that great man toward slavery. Before measuring their full significance, and the general situation in which this was an element, we may glance at the preliminary questions; how came slaves in Virginia and America; whence came slavery; what was it?

Primitive man killed his enemy and ate him. Later, the sequel of battle was the slaying of all the vanquished and the appropriation of their goods, including women and other live stock. Then it was found more profitable to spare the conquered warrior's life and set him to do the victor's disagreeable work; more profitable, and incidentally more merciful. Civilization advanced; wars became less general; but in the established social order that grew up there was a definite place for a great class of slaves. It was part of Nature's early law, the strong raising themselves upon the weak. Morality and religion by degrees established certain limited rights for the slave. But the general state of slavery was defended by philosophers like Aristotle; was recognized by the legislation of Judea, Greece, and Rome; was accepted as part of the established order by Jesus and the early church. It is beyond our limits here to measure either its service, as the foundation on which rested ancient society; or the mischief that came from the supplanting of a free peasantry, as in Italy. We can but glance at the influence of Christianity, first in ameliorating its rigor, by teaching the master that the slave was his brother in Christ, and then by working together with economic forces for its abolition. By complex and partly obscure causes, personal slavery—the outright ownership of man—was abolished throughout Christendom. Less inhuman in theory, less heartless in practice, though inhuman and harsh enough, was the serfdom which succeeded slavery and rested on Europe for a thousand years; till by slow evolution, by occasional bloody revolt, by steady advance in the intelligence and power of the laborer, compelling for him a higher status, the serf became a hired laborer and thence a citizen throughout Europe.

The recrudescence of slavery came when the expanding energies of European society, in the seventeenth and eighteenth centuries, dashed against the weak barbarians of Africa and America. The old story was retold,—the stronger man, half-savage still under the veneer of civilization and Christianity, trampled the weaker man under foot. In Europe there was little need or room for slaves—the labor supply was sufficient, but on the new continent, in the words of Weeden (*Economic and Social History of New England*): "The seventeenth century organized the new western countries, and created an immense opportunity for labor. The eighteenth coolly and deliberately set Europe at the task of depopulating whole districts of western Africa, and of transporting the captives, by a necessarily

brutal, vicious and horrible traffic, to the new civilization of America." The European was impartial between African and Indian; he was equally ready to enslave either; but the Indian was not made for captivity,—he rebelled or ran away or died; the more docile negro was the chief victim. The stream of slavery moved mainly according to economic conditions. Soil and climate in the Northern States made the labor of the indolent and unthrifty slave unprofitable, but in the warm and fertile South, developing plantations of tobacco, rice, and indigo, the negro toiler supplied the needed element for great profits. The church's part in the business was mainly to find excuse; through slavery the heathen were being made Christians. But when they had become Christians the church forgot to bid that they be made brothers and freemen. Some real mitigation of their lot no doubt there was, through teaching of religion and from other conditions. Professor Du Bois says that slavery brought the African three advantages: it taught him to labor, gave him the English language and—after a sort—the Christian religion. But it ruined such family life as had existed under a kind of regulated polygamy. Again we must decline to measure the good and the evil of the system. Probably the negro was in better condition in America than he had been in Africa, as he certainly was in far worse condition than he was entitled to be—and was in future to be.

The traffic was maintained chiefly by trading companies in England,—at first a great monopoly headed by the Duke of York, then rival companies. The colonists made some attempts to check the traffic,—growing alarmed at the great infusion of a servile and barbaric population. Virginia long tried to discourage it by putting a heavy import tax on slaves, which was constantly overruled by the English government under the influence of the trading companies. At a later day every one tried to put the responsibility of slavery on some one else,—the North on the South, the South on England. But in truth the responsibility was on all. The colonists did not hesitate to refuse to receive tea which England taxed; equally well they could have refused to buy slaves imported by trading companies if they had not wanted them; but they did want them. The commercial demand overrode humanity. The social conscience was not awake,—strange as its slumber now seems. Stranger still, as we shall see, after it had once been thoroughly roused, it was deliberately drugged to sleep. But this belongs to a later chapter.

New England had little use for slaves at home, but for slave ships she had abundant use. With a sterile soil, and with the sea at her doors swarming with edible fish and beckoning to her sails, her hardy industry found its best field on the ocean. The fisheries were the foundation of her commerce. The thrifty Yankee sold the best of his catch in Europe (here again we follow Weeden); the medium quality he ate himself; and the worst he sent to the West Indies to be sold as food for slaves. With the proceeds the skipper bought molasses and carried it home, where it was turned into rum; the rum went to Africa and was exchanged for slaves, and the slaves were carried to the West Indies, Virginia, and the Carolinas. Rum and slaves, two chief staples of New England trade and sources of its wealth; slave labor the foundation on which was planted the aristocracy of Virginia and the Carolinas,—alas for our great-grandfathers! But what may our great-grandchildren find to say of us?

The social conscience was not developed along this line; men were unconscious of the essential wrong of slavery, or, uneasily conscious of something wrong, saw not what could be done, and kept still. Here and there a voice was raised in protest. There was fine old Samuel Sewall, Chief Justice of Massachusetts; sincere, faithful man; dry and narrow, because in a dry and narrow place and time; but with the capacity for growth which distinguishes the live root from the dead. He presided over the court that adjudged witches to death; then, when the community had recovered from its frenzy, he took on himself deepest blame; he stood up in his pew, a public penitent, while the minister read aloud his humble confession, and on a stated day in each year he shut himself up in solitude to mourn and expiate the wrong he had unwittingly done, and, almost alone among his people, he spoke out clear and strong against human slavery.

A little later, in the generation before the Revolution, came the Quaker, John Woolman,—a gentle and lovely soul, known among his people as a kind of lay evangelist, traveling among their communities to utter sweet persuasive words of holiness and uplifting; known in our day by his *Journal*, a book of saintly meditations. Sensitive and shrinking, he yet had the moral insight to see and the courage to speak against the wrong of slavery. The Quakers, rich in the virtues of peace and kindness, were by no means unpractical in the ways of worldly gain, or inaccessible to its temptations; they had held slaves like their neighbors, though we should

probably have preferred a Quaker master. But the seed Woolman sowed fell on good ground; slavery came into disfavor among the Quakers, and when sentiment against it began to grow they lent strength to the leadership of the public conscience.

CHAPTER II

THE ACTS OF THE FATHERS

The revolt of the colonists from British rule was not inspired originally by abstract enthusiasm for the rights of man. It was rather a demand for the chartered rights of British subjects, according to the liberal principles set forth by Locke and Chatham and Burke and Fox; a demand pushed on by the self-asserting strength of communities become too vigorous to endure control from a remote seat of empire, especially when that control was exercised in a harsh and arbitrary spirit. The revolutionary tide was swelled from various sources: by the mob eager to worry a red-coated sentry or to join in a raid under Indian disguise; by men who embodied the common sense and rough energy of the plain people, like Samuel Adams and Thomas Paine; by men of practical statesmanship, like Franklin and Washington, who saw that the time had come when the colonists could best manage their own affairs; and by generous enthusiasts for humanity, like Jefferson and Patrick Henry.

With the minds of thoughtful men thoroughly awakened on the subject of human rights, it was impossible not to reflect on the wrongs of the slaves, incomparably worse than those against which their masters had taken up arms. As the political institutions of the young Federation were remolded, so grave a matter as slavery could not be ignored. Virginia in 1772 voted an address to the King remonstrating against the continuance of the African slave trade. The address was ignored, and Jefferson in the first draft of the Declaration alleged this as one of the wrongs suffered at the hands of the British government, but his colleagues suppressed the clause. In 1778 Virginia forbade the importation of slaves into her ports. The next year Jefferson proposed to the Legislature an elaborate plan for gradual emancipation, but it failed of consideration. Maryland followed Virginia in forbidding the importation of slaves from Africa. Virginia in 1782 passed a law by which manumission of slaves, which before had required special legislative permission, might be given at the will of the master. For the next ten years manumission went on at the rate of 8000 a year. Afterward the law

was made more restrictive. Massachusetts adopted in 1780 a constitution and bill of rights, asserting, as the Declaration had done, that all men are born free and have an equal and inalienable right to defend their lives and liberties, to acquire property and to seek and obtain freedom and happiness. A test case was made up to decide the status of a slave, and the Supreme Court ruled that under this clause slavery no longer existed in Massachusetts. Its 6000 negroes were now entitled to the suffrage on the same terms as the whites. The same held good of the free blacks in four other States. In all the States but Massachusetts slavery retained a legal existence, the number ranging in 1790 from 158 in New Hampshire to nearly 4000 in Pennsylvania, over 21,000 in New York, 100,000 in each of the Carolinas, and about 300,000 in Virginia. Ships of Massachusetts, Rhode Island, and the Middle States were still busy in bringing negroes from Africa to the South, though there were brave men like Dr. Hopkins at Newport who denounced the traffic in its strongholds.

Jefferson planned nobly for the exclusion of slavery from the whole as yet unorganized domain of the nation, a measure which would have belted the slave States with free territory, and so worked toward universal freedom. The sentiment of the time gave success to half his plan. His proposal in the ordinance of 1784 missed success in the Continental Congress by the vote of a single State. The principle was embodied in the ordinance of 1787 (when Jefferson was abroad as Minister to France), but with its operations limited to the Northwestern territory, the country south of the Ohio being left under the influence of the slave States from which it had been settled.

The young nation crystalized into form in the constitutional convention of 1787, and the ratification of its act by the people. It was indeed, as John Fiske's admirable book names it, "the critical period of American history." To human eyes it was the parting of the ways between disintegration toward anarchy, and the birth of a nation with fairer opportunities and higher ideals than any that had gone before. The work of those forty men in half a year has hardly a parallel. Individually they were the pick and flower of their communities. The circumstances compelled them to keep in such touch with the people of those communities that their action would be ratified. They included men of the broadest theoretical statesmanship, like Madison and Hamilton; men of great practical sense and magnanimity, like Washington and Franklin; and they also included and needed to include the

representatives of various local and national interests. They had been schooled by the training of many momentous years, and the emergency brought out the strongest traits of the men and of the people behind them.

A prime necessity was willingness to make mutual concessions, together with good judgment as to where those concessions must stop. Large States against small States, seaport against farm, North against South and East against West, slave society against free society—each must be willing to give as well as to take, or the common cause was lost. The theorists, too, must make their sacrifices; the believers in centralization, the believers in diffusion of power; Madisonians, Hamiltonians, Jeffersonians—all must concede something, or there could be no nation. And between principles of moral right and wrong,—here, too, can there be compromise? Easy to give a sweeping No; but when honest men's ideas of right and wrong fundamentally differ, when personal ideals and social utilities are in seeming contradiction, the answer may be no easy one.

The great difficulty at the outset, as to the relative power in Congress of the large and small States, was settled at last by the happy compromise of making the Senate representative of the States in equality, and the House representative of the whole people alike. But then came the question, Should the representation be based on numbers or on wealth? The decision to count men and not dollars was a momentous one; it told for democracy even more than the framers knew. But now again, Shall this count of men include slaves? Slaves, who have no voice in the government, and are as much the property of their owners as horses and oxen? Yes, the slaves should be counted as men, in the distribution of political power,—so said South Carolina and Georgia. In that demand there disclosed itself what proved to be the most determined and aggressive interest in the convention,—the slavery interest in the two most southern States. Virginia, inspired and led by Washington, Madison, and Mason, was unfriendly to the strengthening of the slave power, and the border and central as well as the eastern States were inclined the same way. But South Carolina and Georgia, united and determined, had this powerful leverage; from the first dispute, their representatives habitually declared that unless their demands were granted their States would not join the Union. Now it had been agreed that the Constitution should only become operative on the assent by popular vote of nine of the thirteen States, and it was plain that at the best there

would be great difficulty in getting that number. With two lost in advance the case looked almost hopeless. South Carolina and Georgia saw their advantage, and pushed it with equal resolution and dexterity. The question of representation was settled by a singular compromise: To the free population was to be added in the count three-fifths of the slave population. The slave was, for political purposes, three-fifths a man and two-fifths a chattel. Illogical to grotesqueness, this arrangement—in effect a concession to the most objectionable species of property of a political advantage denied to all other property—yet seemed to the wisest leaders of the convention not too heavy a price for the establishment of the Union. The provision that fugitive slaves should be returned had already been made, apparently with little opposition.

But the price was by no means all paid. When the powers of Congress came to be defined, the extreme South demanded that it be not allowed to forbid the importation of African slaves. With the example of Virginia and Maryland in view, it was clear that the tide was running so strongly against the traffic that Congress was sure to prohibit it unless restrained from doing so. Against such restraint there was strong protest from Virginia and the middle States. "The traffic is infernal," said Mason of Virginia. "To permit it is against every principle of honor and safety," said Dickinson of Delaware. But the two Pinckneys and their colleague said, "Leave us the traffic, or South Carolina and Georgia will not join your Union." The leading members from the northern and New England States actually favored the provision, to conciliate the extreme South. The matter went to a committee of one from each State. There it was discussed along with another question: It had been proposed to restrict Congress from legislating on navigation and kindred subjects except by a two-thirds vote of each House. This went sorely against the commercial North, which was eager to wield the whole power of the government in favor of its shipping interests. Of this power the South was afraid, and how well grounded was the importance each section attached to it was made plain when a generation later the North used its dearly-bought privilege to fashion such tariff laws as drove South Carolina to the verge of revolt. Now in the committee a bargain was struck: The slave trade should be extended till 1800, and in compensation Congress should be allowed to legislate on navigation as on other subjects. The report coming into the convention, South Carolina was still unsatisfied. "Eight

more years for the African trade, until 1808," said Pinckney, and Gorham of Massachusetts supported him. Vainly did Madison protest, and Virginia, Delaware, Pennsylvania and New Jersey vote against the whole scheme. The alliance of New England commerce and Carolina slavery triumphed, and the African slave trade was sanctioned for twenty years.

For the compromise on representation it might be pleaded, that by it no license was given to wrong; there was only a concession of disproportionate power to one section, fairly outweighed in the scale of the public good by the establishment of a great political order. But the action on the slave trade was the deliberate sanction for twenty years of man-stealing of the most flagitious sort. It was aimed at the strengthening and perpetuation of an institution which even its champions at that time only defended as a necessary evil. And this action was taken, not after all other means to secure the Union had been exhausted, but as the price which New England was willing to pay for an advantage to her commercial interests.

At a later day, there were those who made it a reproach to the convention, and a condemnation of their whole work, that they imposed no prohibition on slavery as it existed in the States. But if such prohibition was to be attempted, the convention might as well never have met. The whole theory of the occasion was that the States, as individual communities, were to be left substantially as they were; self-governing, except as they intrusted certain definite functions to the general government. When only a single State, and that almost without cost, had abolished slavery within itself, it was out of the question that all of the States should through their common agents decree an act of social virtue wholly beyond what they had individually achieved. Any human State exists only by tolerating in its individual citizens a wide freedom of action, even in matters of ethical quality; and a federated nation must allow its local communities largely to fix their own standard of social conduct. At the point which the American people had reached, the next imperative step of evolution was that they unite themselves in a social organism, such as must allow free play to many divergencies. For the convention to take direct action for the abolition of slavery was beyond the possibilities of the case. It was in making provision for the extension of the evil that it was untrue to its ideal, sacrificed its possibilities, and opened the door for the long domination of a mischievous element.

But the main work of the convention was well and wisely done. Not less fine was the self-control and sagacity with which the people and their leaders debated and finally adopted the new order. Advocates of a stronger government, like Hamilton, and champions of a more popular system, like Samuel Adams and Jefferson, sank their preferences and successfully urged their constituents to accept this as the best available settlement. Slavery played very little part in the popular discussions, and only a few keen observers like Madison read the portents in that quarter. The young nation was swept at once into difficulties and struggles in other directions.

A word, before we follow the history, as to the sentiments of the great leaders in this period. Broadly, they all viewed slavery as a wrong and evil; they looked hopefully for its early extinction; they recognized great difficulties in adapting the negro to conditions of freedom; and they were in general too much absorbed in other and pressing problems to direct much practical effort toward emancipation. Washington's view is nowhere better given than in the casual talk so graphically reported by Bernard. He desired universal liberty, but believed it would only come when the negroes were fit for it; at present they were as unqualified to live without a master's control as children or idiots. Washington's way was to look at facts and to deal with a situation as he found it, and not to try to order the world by general and abstract ideals. He was intensely practical, responsive to each present call of duty, and in his conception of duty taking wider and wider views as he was trained by years and experience. The incident which brought him and Bernard together was characteristic; if any chaise was upset in his neighborhood, trust Washington to have a hand in righting it! The natural reply to his talk about the negroes might have been: "Since you desire their freedom, but think them not fit for it, why not make a business—you and the country—of making them fit?" And the answer fairly might have been: "The country and I have as yet had too much else to do." Besides his public services, he was a planter on the largest scale; thousands of acres and hundreds of slaves had come to him by inheritance and by marriage. He was most thorough and successful in his private affairs; through all his cares in the Revolution, scarcely ever visiting his home, he kept in close touch with his steward and regulated the plantation's management by constant correspondence. He had the reputation of a just but strict master. His slaves were well fed and clothed; they were supported in infancy and old age; they

were trained in work according to their capacity, and taught something of morals and religion; in point of physical comfort and security, and of industrial and moral development, they were by no means at the bottom of the scale of humanity. The slave-holder's position, however unjust by an absolute standard, and with great possibilities of abuse, was, in the case of the rightly-disposed man—and such were common—a position which had its grave duties and often onerous burdens to be conscientiously borne.

Hardly was the war ended when the country's needs summoned Washington again to long and arduous service. Retired from the Presidency, his successor called him, not in vain, to head the army which the threatened French war would call into action. Who can blame him that he did not undertake in addition a complete reorganization of the labor system of his own farms and of Virginia? Inconsistent perhaps it was,—a very human inconsistency,—that his slaves, who, he told Bernard, were unfit for freedom, were given their freedom by his will, though not until his wife's death. That we may take as an imperfect essay of conscience to deal with a situation so complicated that no ideal solution was apparent. But we may fairly read as his unspoken legacy to his countrymen of the next generation: "My associates and I have won national independence, social order, and equal rights for our own race; deal you as courageously and strongly with the problems which remain."

Jefferson was an enthusiast for moral ideals, and a warm believer in the merit and trustworthiness of average humanity. He ennobled the struggle of the colonies against England by writing on the flag the universal and undying ideas that the authority of governments rests solely on their justice and public utility, and that every man has an inalienable right to life, liberty, and the pursuit of happiness. And Jefferson did not flinch, as did many of his associates, from giving that right a full and general application to blacks as well as whites. Nor was he a mere doctrinaire. As he revolted from the abstract injustice of slavery, so its concrete abuses as he saw them, filled him with horror. He wrote: "I tremble for my country when I reflect that God is just." He described what he had seen. "The whole commerce between master and slave is a perpetual exercise of the most boisterous passions,—the most unremitting despotism on the one part and degrading submission on the other. Our children see this, and learn to imitate it, for man is an imitative animal.... The parent storms, the child looks on, catches

the lineaments of wrath, puts on the same airs in the circle of smaller slaves, gives a loose rein to the worst of passions; and thus nursed, educated, and daily exercised in tyranny, cannot but be stamped by it with odious peculiarities."

But Jefferson shared a common belief of his time, that it was futile to hope to "retain and incorporate the blacks into the State." He wrote: "Deep-rooted prejudices of the whites, ten thousand recollections of blacks of injuries sustained, new provocations, the real distinction Nature has made, and many other circumstances, will divide us into parties and produce convulsions which will probably never end but in the extermination of one or the other race." So he looked for a remedy to emancipation followed by deportation. But he hesitated to affirm any essential inferiority in the negro race. He wrote: "The opinion that they are inferior in the faculties of reason and imagination must be hazarded with great diffidence." Later he wrote that "they were gaining daily in the opinions of nations, and hopeful advances are making toward their re-establishment on an equal footing with other colors of the human family."

Jefferson was more than a theorist; he was skillful to persuade men, and to organize and lead a party. His general tendency was "along the line of least resistance,"—the summoning of men to free themselves from oppressive restraint; and he was highly successful until he called on them for severe self-sacrifice, when his supporters were apt suddenly to fail him. Virginia gladly followed his lead in abolishing primogeniture and entail, and overthrowing the Established Church. She even consented, in 1778, to abolish the African slave-trade, being then in little need of more slaves than she possessed. In 1779 he planned a far more radical and costly project—a general emancipation. All slaves born after the passage of the act were to be free; they were to dwell with their parents till a certain age, then to be educated at the public expense in "tillage, arts, or sciences," until the males were twenty-one years old and the females eighteen; then they were to be colonized in some suitable region, furnished with arms, implements, seeds and cattle; declared a free and independent people, under American protection until strong enough to stand alone; and meanwhile their place as laborers was to be filled by whites sent for by vessels to other parts of the world. It is hardly strange that the Legislature did not even take the measure into consideration, and it does not appear that Jefferson ever returned to it.

Practical legislation was not his forte. But his influence told nobly, as has been related, in barring slavery from the Northwestern territory, and, had just a little more support been found in 1784, would have saved the Southwest also to freedom, with almost certain promise of result in early freeing of the whole country. Just two or three votes in the Continental Congress,—on such small hinges does the destiny of nations seem to turn.

The inertia which holds men even exceptionally high-minded from breaking strong ties of custom and convenience is shown by a letter of Patrick Henry to a Quaker in 1773, in which he declared slavery "as repugnant to humanity as it is inconsistent with the Bible and destructive of liberty. Every thinking, honest man rejects it as speculation, but how few in practice from conscientious motives! Would any one believe that I am a master of slaves of my own purchase? I am drawn along by the general inconvenience of living without them."

There is no need to dwell further on the anti-slavery sentiments of the group of great leaders who were the glory of the nation. It is to be noted that Franklin took a characteristically active part in aiding to establish an anti-slavery society in Philadelphia in 1782. Shrewd as he was high-minded and benevolent, Franklin was always a special master in organizing men in societies for effective and progressive action. His tact won France to the American alliance, and decisively turned the scale in the Revolutionary war; and his conciliatory yet resolute spirit was a main factor in the constitutional convention. This Pennsylvania anti-slavery society led the way to the early adoption by the State of gradual emancipation. Franklin, an optimist by temperament and by his large faith in mankind, looked confidently for the early end of slavery; as fast as men ripened into honesty and sense, he thought, they would recognize the folly and wrong of it.

Looking from the leaders to the mass of the community, in this early period, we see these broad facts. Slavery was regarded by all as an evil, and by most as a wrong. Even its champions in the convention claimed no more for it than that it was a necessary evil; one of the Pinckneys expressed the hope of its extinction at an early day, and the other Pinckney dissented only in thinking this too sanguine. Further, there was a distinct wave of anti-slavery sentiment, sympathetic with the lofty temper of the Revolution and the genesis of a free nation. That wave was strong enough to wipe out slavery

where its economic hold was slight; it was plainly destined to sweep at least through all the Northern and Middle States, and hope was high that it might go farther. But this moral enthusiasm broke helpless against the institution wherever a strong property interest was involved with it. Manumission in the South went no further than a few individuals. Virginia and Maryland, needing no more slaves, ceased importing them; but South Carolina and Georgia bargained successfully for a twenty years' supply. Massachusetts, having almost inadvertently freed her few slaves, was willing that the stream of misery should still flow on from Africa to the South. In a word, so far as the negroes were concerned, the supposed material interest of the whites remained the dominating factor throughout the country.

CHAPTER III

CONFLICT AND COMPROMISE

For thirty years after the Constitution was established, slavery falls into the background of the national history. Other and absorbing interests were to the front. First, the strife of Federalist and Democrat: Should the central government be strengthened, or should the common people be more fully trusted? Twelve years of conservative ascendancy under Washington and Adams; then a complete and lasting triumph for the popular party led by Jefferson. Mixed with and succeeding this came an exasperating and perplexing struggle for commercial rights, invaded equally by England and France in their gigantic grapple; an ineffectual defense by Jefferson, who in executive office proved an unskillful pilot; a half-hearted war under Madison, a closet statesman out of place in the Presidential chair; a temporary alienation of New England, exasperated by the loss of her commerce and suspicious of the Jeffersonian influence; a participation in the general peace which followed 1815, and a revival of industry. Under this surface tide of events went on a steady, quiet advance of the democratic movement. With Jefferson's administration disappeared the Federal party and the old distrust of the common people. State after State gave up the property qualification—almost universal in the first period—and adopted manhood suffrage. Slavery disappeared from the North; in New Hampshire it was abolished by judicial decision, as in Massachusetts; Connecticut, Rhode Island and Pennsylvania passed gradual emancipation laws, and a little later New York and New Jersey did the same. In Kentucky, settled by hardy pioneers from Virginia, there had been a vigorous campaign to establish a free State; the Baptist preachers, strong leaders in morals and religion, had championed the cause of freedom; the victory seemed decisively won, by three to one it was said, in the election of May, 1798; but a torrent of excitement over the alien and sedition laws submerged other issues, and the convention sanctioned slavery as it existed. The African slave trade was made piracy by act of Congress in 1808, though the extreme penalty was not inflicted for sixty years, and a considerable traffic still went

on. In furtherance of emancipation, a colonization society was started in Pennsylvania, and in a few years it had transported 20,000 freed negroes to Africa, and established the feeble colony of Liberia. Meanwhile the first French republic had freed half a million slaves in the West Indies; and Chili, Buenos Ayres, Columbia, and Mexico, as they gained their independence from Spain, had abolished slavery. The European reaction against the French republic and empire had largely spent itself; the English tradition of constitutional freedom had survived and promised to spread; the Spanish colonies in America had won their independence.

The stiller and deeper current of industrial progress had moved on apace in the United States. A new New England was being swiftly built in the Northwest. The Southwest, too, was growing fast. The acquisition of the Louisiana territory,—through an exigency of Napoleon's politics, and the wise inconsistency of Jefferson—had opened another vast domain. At the North, commerce, set free again, spread rapidly, and a new era of manufactures was opening. The South—more diffusely settled, with less social activity, with a debased labor class—caught less of the spirit of advance. But on one line it gained. Following the English inventions in spinning and weaving, and the utilization of the stationary steam-engine, a Connecticut man, Eli Whitney, had invented a cotton-gin, for separating the seed from the fibre, and the cotton plant came to the front of the scene. The crop rose in value in twenty years from \$6,000,000 to \$20,000,000. The value of slaves was trebled, and the border States began to do a thriving trade in exporting them to the cotton States—it was said a little later the yearly export reached 50,000.

As new States were organized and admitted, those from the Northwest came in without slavery, which had been kept out by the ordinance of 1787, and those from the Southwest, where slaves had been carried by the emigrants from the seaboard, were allowed without question to retain the institution. Of the old thirteen, New Hampshire, Massachusetts, Connecticut, Rhode Island, New York New Jersey, Pennsylvania (spite of a few slaves lingering in the last three) were counted as free States—seven in all; Virginia, Maryland, Delaware, the two Carolinas, Georgia, were claimed as slave States—six. Speedily were added Vermont to the one column, and Kentucky and Tennessee to the other, making the numbers equal. The following acquisitions were free and slave States alternately: Ohio and

Louisiana, Indiana and Mississippi, Illinois and Alabama, a total, so far, of eleven free and eleven slave. Of the new Southwestern domain, Arkansas had been organized as a territory, early in 1819, and a motion that slavery be excluded had been defeated in the House by the casting vote of the speaker, Henry Clay.

But in all these thirty years the subject of slavery had little prominence in public discussion. Now it suddenly came to the front. A bill was brought into Congress to permit Missouri to organize as a State. It was part of the Louisiana purchase, of which the Southern portion had inherited and retained slavery; but Missouri was geographically an extension of the region of the Ohio States, in which free labor had made an established and congenial home. It was moved in Congress that slavery should be excluded from the new State, and on this instantly sprang up a fiery debate. On one side it was urged that slavery was a wrong and an evil, and that Congress had full power to exclude it from a State as a condition of admittance to the Union. On the other side slavery was defended not only as an industrial advantage, but as morally right and a benefit to both blacks and whites. It was strenuously declared that the people of each incoming State had a right to determine their own institutions; and it was also urged that to keep the balance of power between the two sections, it was necessary that slave States should be admitted equally with free. It was disclosed with startling suddenness that two systems of labor and society stood face to face, with different ideals, different interests, and in a mutual opposition to which no limits could be foreseen. It was plain that with the increase of profit from slavery all idea of its abolition had been quietly dropping from the minds of the great mass of the Southern community. It was equally plain that the sentiment against slavery in the North had increased greatly in distinctness and intensity. There was apparent, too, a divergence of material interests, and a keen rivalry of political interests. The South had been losing ground in comparison. From an equality in population, the North had gained a majority of 600,000 in a total of 10,000,000. The approaching census of 1820 would give the North a preponderance of thirty in the House. In wealth, too, the North had been obviously drawing ahead. Only in the Senate did the South retain an equality of power, and, to maintain at least this, by the accession of new slave States, was an avowed object of Southern politicians.

The debate was so hot, the underlying causes of opposition were so obvious, and the avowed determination of the contestants was so resolute, that the unity and continuance of the nation was unmistakably threatened. State Legislatures passed resolutions for one side or the other, according to their geographical location; only the Delaware Legislature was superior to the sectional consideration, and voted unanimously in favor of holding Missouri for freedom. The alarm as to the continuance of the Union was general and great. No one felt it more keenly than Jefferson, startled in his scholarly and peaceful retirement at Monticello, as he said, as by "a fire-bell in the night." He wrote: "In the gloomiest movements of the Revolutionary war, I never had an apprehension equal to that I feel from this source." It was a grave omen that Jefferson's sympathies were with his section rather than with freedom; he joined in the opposition to the exclusion of slavery from Missouri. He had no love for slavery, but he was jealous for the right of each State to choose its own way, for good or evil; a political theory outweighed in him the sentiment of humanity.

A compromise was proposed. Let Missouri have slavery if she will, but for the Northwest let it be "thus far and no farther"; let it be fixed that there shall be no more slave States north of the line which marks Missouri's southern boundary, the line of 36 degrees 30 minutes north latitude. Present advantage to the South, future security to the North; and meantime let Maine be admitted, which keeps the balance equal. This was the solution accepted by both sides after a discussion lasting through the Congressional session of 1819-20 until March. But the smothered flame broke out again. Missouri in 1820 adopted a constitution, and asked for admission according to promise; and one clause in her constitution forbade the entrance of free blacks into the State. This was too much for the North, already half disgusted with the concession it had made, and when Congress met for the session of 1820-21 the whole question was reopened, and the dispute was hotter and more obstinate than ever. The issue was wholly uncertain, and disunion seemed to hover near and dark, when Henry Clay, who in the first debate had taken no very important part, but had supported the Southern claim, now threw his whole power, which was great, in favor of conciliation and agreement on the original basis. Clay was a politician, and ambitious for the Presidency, but he was a patriot and a lover of humanity. As to slavery he was a waverer, disliking it at heart and sometimes speaking

manfully against it, but at other times respectful toward it as an established and mighty fact, and even lending himself to its eulogy. In the first debate he had advocated the Southern side, had extolled slavery, and declared the black slaves of the South to be better off than the white slaves of the North. Now he gave all his persuasive and commanding eloquence, all the influence of his genial nature and winning arts, to rally the lovers of the Union to the mutual concessions by which alone it could be preserved. He justified the objection to the exclusion of free negroes, he divested himself of sectional partisanship, and pleaded with equal skill and fervor for the compromise. He did not forget that he was a Presidential aspirant, but he was a true lover of his country, and seldom have the traits of politician and patriot worked together more effectively. Though the mass of the Northern members, strengthened doubtless by the influence of their constituents at home during the recess, were now opposed to the whole compromise, and a few Southern extremists were against it, yet the majority of both House and Senate were won to its support, and on the last day of February, 1821, Missouri was admitted as a slave State, on condition that she expunge her exclusion of free blacks, which she promptly did. Maine had already been admitted. The excitement ended almost as suddenly as it had begun.

CHAPTER IV

THE WIDENING RIFT

For the next twelve years, slavery was in the background of the national stage. But during this period, various influences were converging to a common result, until in 1832-3 the issue was defined with new clearness and thenceforth grew as the central feature in the public life of America.

From the time of the Missouri debate, the slavery interest was consolidated and alert, even while other subjects seemed to fill the public mind. To the North, slavery was habitually a remote matter, but it was perpetually brought home to the business and bosoms of the South. The whole industrial system, a social aristocracy, and political ambition, blended their forces. An instance of the subtle power of the institution was given in a little-marked incident of Adams's generally creditable administration. By three men as high-minded as President Adams, Secretary Clay, and Minister Gallatin, overtures were made to England for a treaty by which the surrender of deserters from her army and navy should be her compensation for surrendering our fugitive slaves! The British government would not listen to the proposal.

The national politics of this period, 1820-32, centred in a group of strong and picturesque personalities,—Clay, Adams, Calhoun, Jackson, and Webster. John Quincy Adams was a sort of exaggeration of the typical New Englander,—upright, austere, highly educated, devoted to the public service, ambitious, yet not to the sacrifice of conscience, but cold, angular, repellant. Says Carl Schurz in his *Henry Clay*—a book which gives an admirable resumé of a half-century of politics: "He possessed in the highest degree that uprightness which leans backward. He had a horror of demagoguery, and lest he should render himself guilty of anything akin to it, he would but rarely condescend to those innocent amenities by which the good-will of others may be conciliated. His virtue was freezing cold of touch, and forbidding in its look." When the Presidential election went into the House in 1824, the influence of Clay—himself a defeated candidate—

was decisively thrown for Adams against Jackson, and Clay served as President Adams's Secretary of State. The two men supplemented each other well; Clay less austere, but far more lovable; his personal ideals less exacting, but his sympathies wider. The co-operation between them was honorable to both and serviceable to the country; but partisan bitterness stigmatized it as a corrupt alliance; the air was full of suspicion and jealousy toward the cultivated and prosperous class that had hitherto supplied the chiefs of the government, and the rising democratic sentiment found a most congenial hero in Andrew Jackson.

He was a rough backwoodsman; a fighter by nature and a passable soldier; a staunch friend and a patriot at heart; ignorant, wholly unversed in statesmanship, arbitrary in temper, and inclined to judge all subjects from a personal standpoint. He easily defeated Adams for the Presidency in 1828. His election marked the ascendancy, long to continue, of a more ignoble element in the nation's political life. His administration began the employment of the spoils system; and it "handled intricate financial problems as a monkey might handle the works of a watch." Jackson had small regard for the rights of those who got in the way of himself, his party, or his country; he had trampled recklessly on the Indian; and his triumph fell as a heavy discouragement on the quiet but widespread movement to elevate the negro. He treated all questions in a personal way; and the first great battle of his administration was to compel social recognition in Washington for the wife of one of his cabinet members whose reputation scandal had breathed upon, unjustly as Jackson believed. In the revolt against her recognition a leader was the Vice-President, John C. Calhoun, himself a man of blameless morals and an advocate of the highest social standards. He thereby lost at once the favor of Jackson, which was transferred to Martin Van Buren, a wily New York politician, quite ready to call on any lady or support any policy that his chief might approve. The breach between Jackson and Calhoun was widened by the disclosure of an old political secret, probably by Crawford of Georgia, a disappointed Presidential aspirant. Jackson's administration naturally fell more and more into the hands of mediocre men.

Calhoun had already had a long term of distinguished public service; he had been one of the group of young men who came to the front in urging on the war of 1812; he had served with success in the cabinet and twice been

chosen to the Vice-Presidency. He was of high personal character; a keen logician and debater; a leader who impressed himself by the strength of his character and depth of his convictions. Adams wrote of him in 1821: "He is above all sectional and factious prejudices, more than any other statesman of this Union with whom I have ever acted." He was ambitious of the Presidency, an ambition which saw itself defeated when Van Buren became the heir-apparent of the Jackson dynasty. A true lover of his country, his predominant devotion came to be given to his own section, and that temper fell in with events to make him the foremost champion of the South.

The prominence of the personal element in public affairs was connected with the absence of any clear and deep division upon large questions of policy. There emerged a group of ideas constituting what was called the "American system," of which Clay was the foremost advocate, and which became the basis of the Whig party, as it was organized in the early '30's. Its general principle was the free use of the Federal government's resources for the industrial and commercial betterment of the people; and its prominent applications were a national bank, a system of national highroads and waterways, and a liberal use of the protective principle in tariff laws. "Protection to American industry" was the great cry by which Clay now rallied his followers. The special direction of this protection was in favor of American manufacturers. By very high taxes levied on imported goods, the price of those was necessarily raised to the consumer, and the American maker of clothes, cutlery, and so on, was enabled to raise his own prices correspondingly. Naturally, this result was most gratifying to the manufacturer and his dependents and allies. No less naturally, it was highly objectionable to the consumer. But to the consumer it was pointed out that by thus fostering the "infant industries" of his country they would be strengthened to the point where they could and would supply him with his goods far more cheaply than would otherwise be possible. But this pleasing promise, held out now for some seventy-five years, somehow failed to quite satisfy the consumer; and where whole classes and sections were consumers only, from the tariff standpoint, and saw themselves mulcted for the benefit of classes and sections already richer than they, they grumbled loudly, and did not always stop with grumbling. So when in 1828 a tariff was enacted imposing very high duties on most manufactured articles, and which delighted the hearts of New England and Middle States manufacturers, it

was so obnoxious to others that the name was fastened to it of "the tariff of abominations," and history has never changed that name.

There were hopes of relief under Jackson, but in the confusion of party issues, and with the tariff supported by the consolidated strength of the manufacturers—a consolidation powerful enough to make Webster its spokesman in Congress; a consolidation as definite and resolute as that of the slave-holders, and destined to be far longer-lived,—no change in legislation came till 1832, and then the change was immaterial; the "tariff of abominations" was substantially re-enacted. The South had been chafing bitterly, and now South Carolina broke into open revolt. The whole South felt itself aggrieved by the tariff. Its industrial system was not suited to develop manufactures; it lacked the material for skilled labor; it lacked the artisan class who create a demand. Its staple industry was agriculture, the growth of tobacco, rice, sugar, and above all, cotton, and it went to the North and to Europe for its manufactured goods. A system of taxation which doubled the price of its imports without helping its exports, was resented as unjust, and as hostile to the spirit if not the letter of the Constitution.

South Carolina took the lead, and indeed stood alone, in applying a remedy more drastic than the disease—nullification. Calhoun's logic welded and sharpened the weapon which had behind it almost the entire weight of the State. The precise relation of the States to the Union, left indeterminate in the Constitution, and debated in every crisis which had strained the bonds, was now asserted by Calhoun to involve the right of any State to declare null and void any action of the Federal Congress which impaired its rights. South Carolina now put the theory into action. She held near the close of 1832 a convention, which declared the tariff law unconstitutional and void; asserted that the State would no longer pay duties under it, and if coercion was attempted would secede outright.

Congress discussed the matter; and in the most memorable and classic of Senate debates, Hayne of South Carolina vindicated the State's position with logic, passion, and eloquence; while Webster replied with an equal logic, a broader and higher ideal of nationality, a vindication of New England which thrilled all hearts, and a patriotism which gave the keynote to the ultimate triumph of the Union. Hitherto, Massachusetts and South

Carolina had each stood stiffly at times for her own way, even at peril of the national bond; but in that hour the individuality of South Carolina was merged in the slave-holding States, and that of Massachusetts in a Union, one and indivisible.

The challenge of South Carolina was promptly answered by Jackson, just re-elected President. He issued a proclamation, proclaiming nullification as political heresy, and threatening to treat its practical exercise as treason. But the situation was not destined to settlement by the high hand. Webster favored such a settlement; he was for no concession. As well make the issue now as ever, he said. The President's friends introduced a bill giving him authority, if nullification were insisted on, to close ports of entry, collect duties by military force, and the like; "the force bill," it was called. But the "tariff of abominations" was not the most satisfactory or promising ground on which to assert the national sovereignty. And Jackson was hardly a desirable man to intrust with indefinite military power. So urged the timid or the moderate, and Clay was again the spokesman of compromise. He brought in a tariff bill, by which all duties above 20 per cent. were to be gradually reduced until in 10 years they reached that figure, at which they were to remain. This bill and the force bill were passed together, and signed the same day. Confronted by the government with the sword in one hand and the olive branch in the other, South Carolina retracted—it was not a capitulation—and repealed the ordinance. Nullification as a theory passed out of sight. But the willingness of the extreme South to push to all lengths its resistance to a hostile policy remained, and was felt in all that followed.

It was a distinct tradition among Calhoun's followers after his death—and they followed him till Appomattox—that he privately gave as a reason for making the first battle on the tariff question rather than on slavery, that on the first the world's sympathies would be with them, and on slavery against them. The same tradition ascribed to Calhoun the prediction that the Northern influence would become predominant in the Union about 1860. Whether or not Calhoun said these things, the tariff issue certainly was brought on by the North; and the "compromise" on it was a substantial victory gained by South Carolina for the South. The final verdict of history may be that it was a just victory, won by unjust means. Calhoun now stood forth the recognized leader of his section, while it soon became apparent

that of that section slavery was the special bond, and was to be its avowed creed.

Almost unobserved for a time amid these exciting events, the debate over slavery had been going on, transferred mainly from the political field to the minds and consciences of individuals. Once in State politics it came to an issue. Illinois, a free State without question at its admission in 1818, had a majority of its early immigrants from the South, and a determined effort was made to introduce slavery by law. It met a still more vigorous resistance, in which the Methodist and Baptist clergy, mainly Southern men, took a leading part. The opposition was led by a Southerner, Gov. Edward Coles, one of the forgotten heroes. Inheriting in Virginia some hundreds of slaves, and hindered by the State laws from emancipating them, he took them all to Illinois, gave them their freedom, supplied them with land, cabins, stock, and tools, and watched and befriended them till they became self-supporting. In each deed of emancipation he gave his testimony: "Whereas, I do not believe a man can have a right of property in his fellow men ... I do therefore ... restore to the said ——— that inalienable liberty of which they have been deprived." He led the fight against the introduction of slavery into Illinois to a decisive victory in 1824. A few more such men throughout the South, and history would have been different.

A quiet advocacy of anti-slavery went on throughout the country, except the extreme South. It was in sympathy with the general revival of religious activity which began about 1815—a form of the new national life, disentangled from European complications, and free for home conquests and widening achievements. Three great evils aroused the spirit of reform—intemperance, slavery, and war. The general assembly of the Presbyterian church, representing the whole country, in 1818, by a unanimous vote, condemned slavery as "a gross violation of the most sacred and precious rights of human nature, and utterly inconsistent with the law of God, which requires us to love our neighbor as ourselves." In 1824-7 the Legislatures of Pennsylvania, Ohio, and New Jersey passed resolutions calling on Congress to provide for compensated emancipation, and expressing willingness that their States should pay their share of the burden. This last sentiment was a rare one; the self-sacrifice it demanded from the non-slave-holding States was very little in evidence during the long contest that followed; men would speak and vote for freedom; when angry enough they would fight—to

defeat the master and incidentally to free the slave—but to pay, in cold blood, and in heavy measure, for the ransom of the slaves, was a different matter; and few were they who, like Lincoln, favored that way out. The action of those three Legislatures marked the height of the early anti-slavery tide, and prompted a hope which was never fulfilled.

In the decade 1820-30, more than 100 anti-slavery societies were established in slave States (see *James G. Birney and His Times*, an admirable exposition of the conservative anti-slavery movement). The Manumission Society of North Carolina in 1825 took a kind of census of the State, and concluded that of its people 60 in 100 favored emancipation in some form. In the same year a pamphlet published in Charleston, S. C., on "The Critical Situation and Future Prospects of the Slave-Holding States," bitterly declared that the whole book and newspaper press of the North and East teemed with articles on slavery. In Maryland, an anti-slavery party in 1826 elected two members to the House of Delegates; but this movement disappeared on the election of Jackson two years later. In Alabama, Birney, a man of a fine type, and growing toward leadership, secured in 1827 the passage of a law forbidding the importation of slaves as merchandise; but this was repealed two years later. So the wave flowed and ebbed, but on the whole it seemed to advance.

Among local societies in the Northern States, one may be instanced in New Haven, Ct., in which, in 1825, five young men associated themselves; among them were Edward Beecher, Leonard Bacon, and Theodore D. Woolsey. They were highly practical; their immediate aims were: First to elevate the black population of New Haven; secondly, to influence public sentiment in the city and State; and thirdly, to influence the theological students in Yale college. So faithful were their labors in their own city for its black population—described as in most wretched condition, which seems to have been the case with most of the blacks at the North in this period—that six years later Garrison pronounced them more comfortable and less injured by prejudice than in any other place in the Union. The young men of the New Haven and Andover seminaries united in a project of a college for the blacks; strong support was obtained; but the fierce wave of reaction following Nat Turner's revolt swept it away. Lane seminary at Cincinnati, a Presbyterian stronghold, became a center of enthusiastic anti-slavery effort, with the brilliant young Theodore D. Weld as its foremost

apostle; he was welcomed and heard in the border slave States. The authorities of the college, alarmed by the audacity of their pupils, tried to restrain the movement, and the result was a great secession of students.

The seceders proposed to form a theological department at Oberlin College (established two years before) if they could have Charles G. Finney, the famous revivalist, as their teacher. But Finney declined to take the place until the conservative trustees consented to admit colored youths to the College; and thus Oberlin became an anti-slavery stronghold.

As the anti-slavery movement developed, the call for immediate liberation became more insistent and imperative. The colonization method lost credit. Slavery was coming to be regarded by its opponents not merely as a social evil to be eradicated, but as a personal sin of the slave-holder, to be renounced as promptly as any other sin. John Wesley's words were a keynote: "Instantly, at any price, were it the half of your goods, deliver thyself from blood-guiltiness!" A Virginia minister, Rev. George Bourne, published in 1816 *Slavery and the Book Irreconcilable*, in which he said: "The system is so entirely corrupt that it admits of no cure but by a total and immediate abolition." Two other Southern ministers, James Duncan and John Rankin, wrote to the same effect. In England, the abolition of slavery in the West India colonies was being persistently urged; the impulse was a part of the philanthropic movement that went along with the evangelical revival, and Wilberforce was its leader. These English abolitionists were coming to "immediatism" from 1824, and their influence told in America.

Among the most unselfish and devoted laborers for the slave was Benjamin Lundy. He was a Quaker by birth and training; he overtaxed his strength and permanently impaired his hearing by prematurely trying to do a man's work on his father's farm in New Jersey, and settled at the saddler's trade in Wheeling, Va., in 1808. With the outlawing of the African slave trade, there was beginning the sale of slaves from Virginia to the Southern cotton-fields, and the sight of the sorrowful exiles moved Lundy's heart to a lifelong devotion of himself to pleading the cause of the slave. Infirm, deaf, unimpressive in speech and bearing, trudging on long journeys, and accepting a decent poverty, he gave all the resources of a strong and sweet nature to the service of the friendless and unhappy. He supported himself by his trade, while he lectured and wrote. He established in 1821 a weekly

Genius of Universal Emancipation, at Mt. Pleasant, O., starting without a dollar of capital and only six subscribers; and at first walking twenty miles every week to the printing press, and returning with his edition on his back. Four years later he moved his paper to Baltimore. Anti-slavery agitation was still tolerated in the border States, though once Lundy was attacked by a bully who almost murdered him. When the impending election of Jackson in 1828 came as a chill to the anti-slavery cause, the waning fortunes of his paper sent Lundy to Boston to seek aid. There he found sympathy in a number of the clergy, though fear of arousing the hostility of the South kept them cautious. Dr. Channing wrote to Daniel Webster, expressing the fullest sympathy with Lundy's devotion to freedom, but also the gravest apprehension that unless the slaveholders were approached in a spirit of friendliness rather than denunciation, there would result a sectional strife fraught with the greatest danger. We should say to the South, wrote Channing, "Slavery is your calamity and not your crime"; and the whole nation should assume the burden of emancipation, meeting the expense by the revenue from the sale of public lands. In this brief letter of Channing's there is more of true statesmanship than in all the utterances of the politicians of his day.

But Lundy (himself not given to denunciation) made one convert of a very different temper from Channing's or his own—William Lloyd Garrison, a young man educated in a printing-office, fearless, enthusiastic, and energetic in the highest degree. Quickly won to the emancipation idea, and passing soon to full belief in immediate and uncompensated liberation, he allied himself with Lundy as the active editor of the *Genius*, while the older man devoted himself to traveling and lecturing. The *Genius* at once became militant and aggressive. The incidents which constantly fell under Garrison's eye—slave auctions and whippings—fanned the fire within him. One day, for example, a slave came into the office, told his story, and showed the proofs. His master had lately died, leaving him his freedom, which was to be legally effected in a few weeks; but in the meantime the overseer under whom he worked, displeased at his way of loading a wagon, flogged him with a cowhide so severely that his back showed twenty-seven terrible gashes. Garrison appealed to the master's heirs for redress, but was repelled with contumely. Presently he assailed an old fellow-townsmen in Newburyport, Mass., because a ship he owned had been employed to

transport a cargo of slaves from Baltimore to New Orleans. The denunciation was unmeasured; the ship-owner brought suit, and as some points in the article were not sustained by the evidence, Garrison was fined \$100. Unable to pay he went to jail, bearing his captivity with courage and high cheer, till Arthur Tappan, a New York merchant and a leader in the anti-slavery cause, paid his fine and released him. The *Genius* being ruined, Garrison transferred his field of labor to Boston, where, at the beginning of 1831, he started the weekly *Liberator*. He and his partner, Isaac Knapp, did all the work of every kind, living principally on bread and water, and with only six hours a week, and those at midnight, for Garrison to write his articles. The paper's motto was: "Our country is the world, our countrymen are all mankind." In his salutatory Garrison wrote: "I will be as harsh as truth and as uncompromising as justice. On this subject I do not wish to think or speak or write with moderation. No! No! Tell a man whose house is on fire to give a moderate alarm; tell him to moderately rescue his wife from the hands of the ravisher; tell the mother to gradually extricate her babe from the fire into which it has fallen,—but urge me not to use moderation in a cause like the present. I am in earnest—I will not equivocate—I will not excuse—I will not retract a single inch—and I will be heard!"

While Garrison's language was constantly such as to arouse passion to the boiling point, he was always in theory a supporter of peace, opposed to war under any conditions, and even to resistance of force by force. But in 1829 there appeared a pamphlet of a different tenor; an *Appeal*, by Walker, a Boston negro, addressed directly to the slaves. It was a fiery recital of their wrongs and an incitement to forcible redress. Its appearance in the South caused great excitement. The Governors of Virginia and Georgia sent special messages to their Legislatures about it. Garrison wrote of it, in the *Genius*: "It breathes the most impassioned and determined spirit. We deprecate its publication, though we cannot but wonder at the bravery and intelligence of its author." Garrison's biographers—his sons—speak of Walker as "a sort of John the Baptist to the new anti-slavery dispensation." It was well for the Baptist that his head was out of Herod's reach. The Georgia Legislature passed in a single day a bill forbidding the entry of free negroes into the State, and making "the circulation of pamphlets of evil tendency among our domestics" a capital offense.

Large as these events loom in the retrospect, they were comparatively little noticed in their time. Virginia held in 1830 a convention for the revision of her constitution; among its members were Madison, Monroe, and Randolph; and emancipation was not even mentioned. Jefferson was dead, and the spirit of Jefferson seemed dead. Then the unexpected happened. There was a negro preacher, a slave named Nat Turner. He was a man of slight figure, reputed among his people a sort of prophet, addicted to visions and rhapsodies. He planned in 1831 an uprising of the slaves. He circulated among them a document written in blood, with cabalistic figures, and pictures of the sun and a crucifix. One night he and a group of companions set out on their revolt. Others joined them voluntarily or by impressment till they numbered forty. They began by killing Turner's master and his family; then they killed a lady and her ten children; they attacked a girls' boarding-school and killed all the inmates. Houses stood open and unguarded, and most of the white men were away at a camp-meeting. From Sunday night till Monday noon the band went on its way unchecked, and killed sixty persons. Then the neighborhood rallied and overcame them; slew several on the spot; but held the rest for trial, which was held regularly and fairly, and thirteen were executed. The origin of the outbreak remained mysterious. Turner said on his trial that he had not been unkindly treated, and there was no evidence of provocation by special abuse. There was no trace of any instigation from the North in any form. It seemed not a stroke for freedom by men worthy to be free; not even a desperate revolt against intolerable wrong; but more like an outbreak of savagery, the uprising of the brute in man, thirsty for blood. The fear at first prevailed that there existed a widespread conspiracy, and various legislation for protection and repression was enacted or discussed.

But the larger mind of Virginia was moved toward a radical treatment of the disease itself, instead of its symptoms. In the next session of the Legislature, 1831-2, proposals for a general emancipation were brought forward, and the whole subject was canvassed in a long and earnest debate. For slavery on its merits hardly a word of defense was spoken. The moral condemnation was not frequent or strong, but the economic mischief was conceded by almost all. It was recognized that labor was debased; manufactures and immigration were discouraged; the yeomanry were leaving the State. One bold speaker declared that the masters were not

entitled to compensation, since property condemned by the State as a nuisance brings no award of damages to the owner. But the general agreement was that emancipation should be compensated and gradual, and that the blacks must be removed from the State. One plan was that they should be deported in a body to Africa; another, that the increase—about 6000 a year—should be so deported; while Thomas Jefferson Randolph urged a plan which recalled that framed by his uncle, Thomas Jefferson, half a century before. He proposed that the owner should maintain the slave-child till the age of eighteen or twenty-one, his labor for the last six or eight years being regarded as compensation for the expense of infancy; and that the slave should then be hired out till he had earned his passage to Africa. But, whatever the method, let decisive action be taken, and taken now! The Legislature, it is said, was largely made up of young and inexperienced men. Would not the courage and hopefulness of Virginia youth essay this great deliverance? Older voices bade them to the task. Said the Richmond *Enquirer* (edited by the elder Ritchie), January 7, 1832: "Means, sure but gradual, systematic but discreet, ought to be adopted for reducing the mass of evil which is pressing upon the South, and will still more press upon her the longer it is put off. We say, now, in the utmost sincerity of our hearts, that our wisest men cannot give too much of their attention to this subject, nor can they give it too soon." It was one of the decisive hours of history:

Once to every man and nation comes the moment to decide,
In the strife of truth with falsehood, for the good or evil side.

But the task was too great, or the life-long habit of the slave-owner had been too enervating. The apparent expense, the collision of different plans, the difficulty in revolutionizing the whole industrial system, the hold of an aristocracy affording to its upper class a fascinating leisure and luxury—these, and the absence of any high moral inspiration in the movement, brought it to naught. Instead of decreeing emancipation, the Legislature fell back on the policy of stricter repression. It enacted that the advocacy of rebellion by writing or printing should be a penitentiary offense, and to express the opinion that masters had no rights to their slaves was made punishable by a fine of \$500 and one year in jail. To advise conspiracy was treason and its punishment death. It had been enacted a year before that no white man be allowed to assemble slaves to instruct them in reading and

writing; and to this it was now added that neither slaves nor free negroes be allowed to preach.

And so Virginia abdicated her old-time leadership in the cause of human rights, and the primacy of the South passed to South Carolina and to Calhoun, the champion of slavery.

In the meantime the organization of the radical anti-slavery force went on at the North. In 1832 Garrison, Oliver Johnson and ten others constituted themselves the New England Anti-slavery Society. Almost its first attack was directed against the Colonization Society, Garrison being always as fierce against half-way friends as against pronounced foes. In 1833 a little group of more moderate but resolute men organized a local association in New York city, and under their call the American Anti-slavery Society held its first meeting in Philadelphia, in December. Among the New York leaders were Arthur and Lewis Tappan, merchants of high standing and men of well-balanced and admirable character; with them were associated Joshua Leavitt and Elizur Wright. Among the Massachusetts recruits was Whittier. The sixty-four members were largely made up of merchants, preachers, and theological students. Almost all were church members; twenty-one Presbyterians or Congregationalists, nineteen Quakers, and one Unitarian, —Samuel J. May. There was a noticeable absence of men versed in public affairs. The constitution was carefully drawn to safeguard the society against the imputation of unconstitutional or anarchic tendencies. It declared that the right to legislate for the abolition of slavery existed only in the Legislature of each State; that the society would appeal to Congress to prohibit the interstate slave trade, to abolish slavery in the District of Columbia and the territories, and to admit no more slave States; and that the society would not countenance the insurrection of slaves. Garrison, who had been visiting the Abolitionists in England, was not among the signers of the call to the convention, and the constitution was hardly in the line of his views; but he wrote a declaration of principles which after some debate was adopted. It was impassioned and unsparing; pictured the woes of the slaves and the essential wickedness of the system; denounced compensation and colonization; declared that "all laws admitting the right of slavery are before God utterly null and void" and "ought instantly to be abrogated"; and called for a universal and unrelenting agitation.

CHAPTER V

CALHOUN AND GARRISON

Thus, with the beginning of the second third of the nineteenth century, the issue as to American slavery was distinctly drawn, and the leading parties to it had taken their positions. Let us try to understand the motive and spirit of each.

In the new phase of affairs, the chief feature was the changed attitude of the South. In the sentiment of its leading and representative men, there had been three stages: first, "slavery is an evil, and we will soon get rid of it"; next, "slavery is an evil, but we do not know how to get rid of it"; now it became "slavery is good and right, and we will maintain it." To this ground the South came with surprising suddenness in the years immediately following 1833. What caused the change? The favorite Southern explanation has been that the violence of the Abolitionists exasperated the South, checked its drift toward emancipation, and provoked it in self-defense to justify and extend its system. This may be effective as a criticism of the extreme Abolitionists, but as regards the South it is rather a confession than a defense. On a subject involving its whole prosperity, its essential character, its relation to the world's civilization, did it reverse its course at the bitter words of a few critics? If that were true, it would bespeak passionate irritability, an incapacity for the healthy give-and-take of practical life, in keeping with the worst that could be said of the effect of slavery on the master. In truth the violence of Garrison and his few followers was but a minor element in the case. Slavery had become immensely profitable; it was the corner-stone of a social fabric in which the upper class had an extremely comfortable place; it was involved with the whole social and political life of the section. It was too important to be dealt with half-heartedly: it must be accepted, justified, believed in,—or it must be abandoned. John Randolph of Roanoke had said of slavery: "We are holding a wolf by the ears; it is perilous alike to hold on or to let go." But one or the other must be done, and the South elected to keep on holding the wolf.

The better to understand the developments of the following years, it will be well to consider a group of representative men,—Calhoun, Garrison, Birney, Channing, and Webster.

Calhoun had many of the elements of high statesmanship—clear views, strong convictions, forcible speech. He was ambitious, but in no ignoble fashion; he often served his country well, as in his efficient administration of the war department under Munroe, his protest against the spoils system and the personal government of Jackson, and his influence in averting war with England over the Oregon boundary in 1845-46. After the Presidency was clearly out of his reach—from 1832—he was growingly identified with and devoted to the interests of his own section, yet always with a patriotic regard for the Union as a whole. He had that fondness for theories and abstractions which was characteristic of the Southern statesmen, fostered perhaps by the isolated life of the plantation. With this went a kind of provincialism of thought, bred from the wide difference which slavery made from the life of the world at large. When Calhoun, in one of his Senate orations was magnifying the advantage of slave over free labor, Wade of Ohio, who sat listening intently, turned to a neighbor and exclaimed: "That man lives off of all traveled roads!" He had neither the arts nor the magnetism of the popular politician; he won no such personal following as Clay and Jackson; but the South more and more accepted him as the most logical and far-seeing champion of its peculiar interests.

His personality had much in common with Jonathan Edwards. There was in both the same inflexible logic and devotion to ideas, the same personal purity and austerity. The place of the mystic's fire which burned in Edwards was taken in Calhoun by a passionate devotion to the commonwealth. In both there was a certain moral callousness which made the one view with complacency a universe including a perpetual hell of unspeakable torments; while the other accepted as the ideal society a system in which the lowest class was permanently debased. Each was the champion of a cause destined to defeat because condemned by the moral sentiment of the world,—Edwards the advocate of Calvinism, and Calhoun of slavery.

Calhoun is to be regarded as a typical slave-holder of the better class. He owned and cultivated a plantation with several hundred slaves; spent much time upon it; made it profitable, and dispensed a generous hospitality. Such

a plantation was a little community, organized and administered with no small labor and skill; with house servants, often holding a friendly and intimate relation with the family; with a few trained mechanics and a multitude of field hands. As to physical comfort the slaves were probably as well or better provided than the bulk of European peasantry,—this on the testimony of witnesses as unfriendly to slavery as Fanny Kemble and Dr. Channing. Order and some degree of morality were enforced, and religion, largely of the emotional type, prevailed widely. So much may be said, perhaps, for the average plantation, certainly for the better class, and a very large class. Joseph Le Conte, the eminent scientist, a writer of the highest credit, in his pleasing autobiography describes his boyhood on a Georgia plantation, and characterizes his father as a man of rare excellence to whom he owed the best of his mental inheritance. He writes of him: "The best qualities of character were constantly exercised in the just, wise, and kindly management of his 200 slaves. The negroes were strongly attached to him, and proud of calling him master.... There never was a more orderly, nor apparently a happier working class than the negroes of Liberty county as I knew them in my boyhood."

Against this description are to be set such statements as this made by Frederick Law Olmsted, after many months of travel in the South: "The field hand negro is on an average a very poor and a very bad creature, much worse than I had supposed before I had seen him and grown familiar with his stupidity, indolence, duplicity, and sensuality. He seems to be but an imperfect man, incapable of taking care of himself in a civilized manner, and his presence in large numbers must be considered a dangerous circumstance to a civilized people." Olmsted saw no resource but gradual emancipation with suitable training. A resident of this same Liberty county, Rev. C. C. Jones, himself a staunch supporter of slavery, but urgent for giving better religious instruction to the slaves, wrote in 1842; "That the negroes are in a degraded state is a fact, so far as my knowledge extends, universally conceded.... Negro marriages are neither recognized nor protected by law. Uncleanliness—this sin may be considered as universal.... They are proverbial thieves." But how could "religious instruction" produce chastity in those for whom the law did not recognize marriage, or honesty in those who themselves were stolen?

But the bright side of the medal, which had so dark an obverse, was the interpretation on which Calhoun and the slave-holding class took their stand. They resolutely ignored the frequent abuses and the essential degradation of manhood. They fashioned the theory—it was the old familiar theory of past ages, but had fallen out of sight in the enthusiasm of the revolutionary period—that society rightly and properly is constituted with a servile class as its base. Calhoun declared: "I hold that there never has yet existed a wealthy and civilized society in which one portion of the community did not, in point of fact, live on the labor of the other." And generally, he adds, the condition of the laborer has been worse than it now is in the South. In advance of civilization, he declares, there always comes a conflict between capital and labor; and this conflict the South avoids by unflinchingly holding the laborer in his subject condition.

Calhoun is dead, and slavery is dead, but the ideas he then avowed are still powerfully, if more latently, asserting themselves in our social order.

For these theories the slave-holders now found justification from the ministers of religion. The South held more tenaciously than any other section to the old-fashioned type of Christianity. In earlier days, religious teachers—as in the unanimous vote of the Presbyterian General Assembly in 1818—had held slavery to be "utterly inconsistent with the law of God, which requires us to love our neighbor as ourselves." But now the Southern ministers of all denominations appealed for ample justification to slavery as it was permitted under the Jewish law, and as it existed in the time of Christ and the Apostles, and was unrebuked by them. They went further back, and in the curse pronounced by Noah upon the unfilial Ham and his posterity, they found warrant for holding the African in perpetual bondage. So the South closed up its ranks, in Church and State, and answered its critics with self-justification, and with counterattack on what it declared to be their unconstitutional, anarchic, and infidel teachings.

The agitation against slavery took on a new phase with the appearance of Garrison and his founding of the *Liberator* and the New England Anti-slavery Society in 1831. Garrison was filled and possessed with one idea—the wrongs of the slave, and the instant, pressing, universal duty of giving him freedom. It was in him an unselfish and heroic passion. For it he cheerfully accepted hardship, obloquy, peril. He saw no difficulties except

in the sin of wrongdoers and their allies; the only course he admitted was immediate emancipation by the master of his human property, and the instant coöperation and urgency of all others to this end. His words were charged with passion; they kindled sympathetic souls with their own flame; they roused to a like heat those whom they assailed; and they sent thrills of alarm, wonder, and wrath, through the community. Wherever the *Liberator* went, or the lecturers of the new anti-slavery societies were heard, there could be no indifference or forgetfulness as to slavery. Hitherto, to the immense mass of people throughout the North, it had been a far-away and unimportant matter. Now it was sent home to the business and bosoms of all men.

The anti-slavery movement changed its character. Garrison entered on a very active campaign, lecturing and establishing local societies. Prominent among his assistants was George Thompson, one of the English Abolitionists, who, after the emancipation of the West India slaves by the British government at a cost of £20,000,000, came to this country and acted as Garrison's ally, winning some converts by his eloquence, but heightening the unpopularity of the movement through the general hostility to foreign interference. The early societies had been largely in the border States, and their efforts had an immediate object in the political action of their own communities. Now, the resentment and fear of the slave-holding interest soon drove them out of those communities. They spread faster than ever,—in a few years it was said that they were 1300,—but were confined to the free States. What immediate and practical aim could they pursue? It was the question of practical action that brought Garrison's views to a sharp test, and soon divided him from the great body of anti-slavery people.

In Garrison's mind there was room for only one idea at a time. Slavery was a crime, a sin, an abomination,—that to him was the first, the last, the whole truth of the matter. He had little education, and he had not in the least a judicial or an open mind. It was to him clear and certain that the blacks were in every way the equal of the whites. Of the complexity of human society; of the vital necessity of a political bond uniting communities, and of the inevitable imperfections and compromises which are the price of an established social order; of the process of evolution by which humanity slowly grows from one stage into another; of the fact that the negro was in some ways better as a slave in America than as a savage in Africa, and that

there must be other intermediate stages in his development; of the consideration due to honest differences of opinion and to deeply-rooted habits—of all this Garrison was as ignorant as a six-years-old child. When facts came in his way, he denied them; when institutions stood across his path, he denounced them; when men differed from him, he assailed them.

As to a practical course of action by Northern people, he was absolutely without resource. How were they to free the slaves? Not by force—force was to Garrison as wicked as slavery itself. By their votes? That was only possible under the government as ordained by the Constitution; and the Constitution allowed no action against slavery except by each State for itself. The worse then for the Constitution! Ere many years Garrison declared, and put as a standing heading to the *Liberator*: "The United States Constitution Is a Covenant with Death and an Agreement with Hell." He went further; for a time at least he held that all human governments, as resting on force, were sinful, and to be ignored, or passively submitted to, without taking active part. He declared the Union, as a compact with slave-holders, was worthy only to be dissolved. But how even dissolve it, since he counselled his followers not to vote? And if it were dissolved, how would the slaves be any nearer freedom? Was there any possible good outcome to non-voting and dissolution of the Union, except that there would then be no complicity with slave-holders? And would such escape from complicity be any help to the slave, any service to humanity, anything more than an egotistic separation from political society, a mere refined selfishness?

Such questions never troubled Garrison. Instead of answering them, he found something else to denounce. The churches he thought were derelict, in that they did not bear testimony against slavery. True, most of the great religious bodies of the country were soon rent asunder on the question: Methodists, Baptists, Presbyterians, were divided between North and South, because neither side could tolerate the other's position on slavery. But nothing satisfied Mr. Garrison. To him the churches were "cages of unclean birds and synagogues of Satan."

But if the gun was ill-aimed, at least the recoil was prodigious. It is unreasonable to attribute principally to the violence of the *Liberator* the new and determined rally of the South in defense of slavery,—Calhoun and his followers had far wider grounds for their action than that,—but

undoubtedly that violence helped to consolidate and intensify the Southern resistance. The Abolitionist papers were at first sent all over the South. The Southerners saw little difference between such papers as the *Liberator* and such direct incitements to insurrection as Walker's *Appeal*; and the horrors of Nat Turner's rising were fresh in mind. They put all Abolitionist teaching under a common ban. At the North, the anti-slavery cause became associated in the popular mind with hostility to the government, to the churches, to the established usages of society. It was Charles Sumner who said: "An omnibus load of Boston Abolitionists had done more harm to the anti-slavery cause than all its enemies."

Garrison's own following was soon divided, and a large part drew away from him. The most important division came on the question of political action, when, in the Presidential election of 1840, the practical wing entered into the political field, as the inevitable and only arena for effective action; nominated a candidate, and laid the foundation for the election of Lincoln twenty years later. In the American Anti-slavery Society there came a contest; Garrison triumphed by a narrow vote, but a secession followed. Of his immediate and permanent allies the most important was Wendell Phillips. He threw himself heart and soul into the cause; he gave to it an educated and brilliant mind, and a fascinating oratory; he was as uncompromising and censorious as Garrison.

Garrison always held a place of honor and friendship among the Abolitionists, even those who refused to follow his leadership. In private life his genial and winning traits were as marked as was his fierceness on the platform. The term "Abolitionist" is somewhat indefinite, but it may best be defined as denoting a person to whom the supreme interest in public affairs was the extinction of slavery. It included not only those who shared Garrison's ideas of non-voting and peaceable disunion, but those, too, like Birney and Whittier, who respected the Constitution and worked for their cause through a political party. The term also applied to the few who, like John Brown, would attack slavery by force of arms. On the other hand, the name Abolitionist did not properly belong to those who were opposed to slavery, but held that opposition along with other political tenets and not as a supreme article of faith. These were best included under the general term of "anti-slavery men," a designation accepted by many of the Free Soil, Whig and Democratic parties, and later by the Republican party. The

classification cannot be made exact, but the word "Abolitionists" generally designated the men and women to whom the extinction of slavery was a primary interest, and who gave to it their habitual and earnest attention, through the anti-slavery societies and otherwise. In this broader sense, the Abolitionists were a notable company. They were bound together by a disinterested and noble sentiment, and by sacrifices to the cause. The hostility aroused by Garrison, Phillips, Pillsbury, and a few like-minded associates, extended to many who went to no such extremes. The anti-slavery speakers were sometimes mobbed: once in Boston a rope was round Garrison's neck and his life was in peril; meetings were broken up; and the respectable part of the community sometimes encouraged or tolerated these assaults. Actual physical injury was very rare, but a hostile social atmosphere was the frequent price of fidelity to conscience.

Among the most notable of the leaders was Gerritt Smith. He took active part in politics, and was for a time in Congress. He is finely characterized by Andrew D. White:

"Of all tribunes of the people I have ever known he dwells in my memory as possessing the greatest variety of gifts. He had the prestige given by great wealth, by lavish generosity, by transparent honesty, by earnestness of purpose, by advocacy of every good cause, by a superb presence, and by natural eloquence of a very high order. He was very tall and large, with a noble head, an earnest yet kindly face, and of all human voices I have ever heard his was the most remarkable for its richness, depth, and strength."

Women took a prominent and honorable part; the venerable and beautiful Lucretia Mott gave her benign presence to the gatherings; Lydia Maria Child made heavy sacrifices in the good cause. In the common ardor, and with a Quaker precedent, women took part as speakers. Women's rights was closely united with anti-slavery; and hence came a fresh odium from conservative quarters, while the admirable bearing of the leading women won growing favor for both lines of emancipation. The makers of the new American literature were friends of the anti-slavery cause. Emerson gave to it his words of serene inspiration. Whittier was among its ardent apostles, shared in its political activity, and sang lyrics of freedom. Bryant was its strong advocate in journalism. Lowell, drawn by his noble wife, came as a

strong ally, and the Biglow Papers gave what had been greatly lacking,—the salt of humor.

The Abolitionists might be compared to a comet,—a body with a bright head and a nebulous tail. Like all radicals and reformers they had a fringe of unbalanced and crotchety folk. It must be said, too, that absorption in a topic remote from the concerns of one's daily life is apt to be somewhat distracting and demoralizing. Dr. Joseph Henry Allen—an admirable and too little known writer—has in an eloquent and beautiful passage described the Abolitionists (though he was not one of them) as the devotees of a genuine and heroic religion. But any adequate religion must find its main application in the duties and services of the immediate present; and the men and women who were possessed day and night by the wrongs of those to whom they could render little service, were apt to be thrown out of touch with near and homely relations, and become what are now called "cranks."

But to appreciate the service of the Abolitionists we must remember that up to the birth of the Republican party in 1854 almost all of the political leaders and men of public affairs, as well as most of the churches, colleges, and professional educators, held aloof from the anti-slavery cause. With a few exceptions, they left the work of educating public sentiment, and shaping some policy on the supreme question, to be done by this little company,—of lecturers, ministers, literary men and women. These did loyally and bravely according to their lights; and they had their reward, outwardly in unpopularity and sometimes persecution, but inwardly in a social atmosphere within their own body, warm, joyful, and religious; and the sense of alliance with the Divine Force in the universe. Said Wendell Phillips: "One man with God is a majority."

CHAPTER VI

BIRNEY, CHANNING, AND WEBSTER

Of the moderate wing of the anti-slavery men, a good representative was James G. Birney. With the fine physical presence and genial manhood of the typical Kentuckian, he had a well-balanced mind and a thorough loyalty to the sense of duty, which broadened as he grew. Removing to Alabama, he became anti-slavery in his sentiments, and he was a friend not only of the negro, but of all who were oppressed. As the legal representative of the Cherokee nation he stood for years between the Indians and those who would wrong them. He identified himself for a time with the colonization cause; and, finding himself growing powerless in Southern communities, he removed to Ohio, where there was a strong and vigorous anti-slavery propaganda. One incident of his life in Cincinnati illustrates the concrete form which slavery sometimes took. A Missourian owned a slave girl who was his own daughter, a cultivated and refined woman. He took her to the East for a visit, treated her habitually as one of his own family, but refused her prayers for freedom. Dreading the possibilities of her lot, she made her escape in Cincinnati; and, concealing her identity and history, she got a situation as a servant in Mr. Birney's family. One day when he was absent from the city she came home in terror; she had been recognized on the street by two professional slave-catchers; now she told her story and implored protection. In vain,—the officers of the law dragged her from the house; a judge gave speedy sentence that she was a slave; she was taken sobbing to jail; and the next day she was carried down the river to New Orleans, where she was sold on the auction block,—and never heard of again.

Birney took part in the work of the new anti-slavery societies, but he did not follow Garrison's no-government theories. He favored for a while the policy of throwing the anti-slavery strength for such congressional nominees of the regular parties as favored their views, and several candidates were chosen in this way. But when Clay became pronounced against the Abolitionists, and even John Quincy Adams, after championing the right of petition, voted

against the abolition of slavery in the District of Columbia, Birney and his sympathizers gave up hope of help from existing parties, and organized their own party for the election of 1840. Its principles were resistance to slavery extension, and opposition to slavery so far as was practicable under the Constitution,—the principles later of the Republican party. Birney was nominated for President, and this handful of voters was the seed of the harvest twenty years later. He was again the candidate in 1844, with an increased support, and the party now was named "The Liberty Party."

A leader and type of the moderate anti-slavery sentiment was William Ellery Channing. In Channing was a blending of high moral ideals, intelligent views of human nature and society, an apostle's earnestness wedded with "sweet reasonableness," and a personal character of rare symmetry and beauty. He was an evolutionist and not a revolutionist. Foremost among the group of New England ministers who broadened and ripened out of the orthodoxy of their day, and were ostracized by their former brethren, he was forced into the position of leader of a new sect, but his utterances and spirit were always those of a minister of the church universal. He was the early advocate of most of the religious and social reforms which have since come to the front. By preference, he always used the methods of peace and persuasion. He had made early acquaintance with slavery in a two-years' residence in Richmond while a young man. He was always opposed to it, but his attention was long absorbed by the immediate needs of his own people. He spent half a year in Santa Cruz, for his health, in 1830-1,—just when Garrison was starting the *Liberator*,—and slavery came home to him with new force. The plantation on which he lived was one of the best in the West Indies. The proprietor had taken a pride in the character and condition of his slaves. But he had fallen into bankruptcy, his estate had been sold, and the new proprietor left it in charge of an overseer who was a passionate and licentious man, under whom the slaves suffered a very different treatment. Most pathetic incidents came under Dr. Channing's notice. But from all he saw about him he concluded that the physical sufferings of the slaves had been exaggerated by report; that, with occasional cruelties, they were better off as to physical comfort than most of the European peasantry. He writes to an English correspondent, "I suspect that a gang of negroes receive fewer stripes than a company of soldiers of the same number in your army"; that they are under a less iron

discipline and suffer incomparably less than soldiers in a campaign. But he adds, and always insists, that their condition degrades them intellectually and morally, lowers them toward the brutes, and in this respect the misery of slavery cannot be expressed too strongly. Marriage is almost unknown; family life, with its mutual dependence and the resulting tenderness, scarcely exists; and thus "the poor negro is excluded from Nature's primary school for the affections and the whole character." "The like causes are fatal to energy, foresight, self-control."

The inspiration of Channing's creed, the soul of the new movement in religion, was the potential nobility of human nature—a nobility to be made real by utmost effort of the individual, and by all wisest appliances of society. It was from this standpoint that he judged slavery, and in this spirit that while still in Santa Cruz he began to write his treatise upon it.

Returning to Boston, he spoke with clearness and weight to his congregation: "I think no power of conception can do justice to the evils of slavery. They are chiefly moral, they act on the mind, and through the mind bring intense suffering to the body. As far as the human soul can be destroyed, slavery is that destroyer." Having borne his testimony, he devoted himself to the general work of his ministry. The violence of the men who had come to the front in Abolitionism was not only against his taste and feeling, but against his deep convictions; as he had written years before to Webster, he saw in these denunciations of the slave-holder seeds of a harvest of sectional hate and national disaster.

A characteristic conversation with him is recorded by Rev. Samuel J. May, himself in full alliance with the Abolitionists, but a man of great sweetness and sanity, never diverted from his religious ministry or losing his mental balance. Dr. Channing dwelt on the excesses of the Abolitionists until Mr. May was aroused, and broke out: "Dr. Channing, I am tired of these complaints! The cause of suffering humanity, the cause of our oppressed, crushed, colored countrymen, has called as loudly upon others as upon us, who are known as the Abolitionists. But the others have done nothing. The wise and prudent saw the wrong, but did nothing to remove it. The priest and Levite passed by on the other side; the children of Abraham held their peace, until 'the very stones have cried out' against this tremendous wickedness. The people who have taken up the cause may lack the

calmness and discretion of scholars, clergy, and statesmen,—but the scholars, clergy, and statesmen, have done nothing. We Abolitionists are just what we are,—babes and sucklings, obscure men, silly women, publicans, sinners; and we shall manage the matter we have taken in hand just as might be expected of such persons as we are. It is unbecoming in able men, who stood by and would do nothing, to complain of us because we manage this matter no better."

And so the torrent of words dashed upon the silent listener, until the speaker suddenly bethought himself and stopped in abashment,—this man he was rebuking had been to him as a father in God, his kind friend from childhood, and first among the great and good. Almost overwhelmed by his own temerity, he watched the agitated face of his hearer and waited in painful suspense for the reply. At last, in a very subdued manner and in his kindest tones of voice, he said, "Brother May, I acknowledge the justice of your reproof; I have been silent too long."

May's appeal had only quickened a little the sure work of Channing's conscience. A few months later, in December, 1835, he published his short treatise on *Slavery*. No weightier word on the subject was ever spoken. If mankind were moved by their higher reason the North would not have waited twenty years to be converted to anti-slavery by *Uncle Tom's Cabin*. And if the South had been wise in her day, she would have listened to this noble and persuasive utterance. No passion sullied its temper; slave and slave-holder were held in equal regard; the case was pleaded on irresistible grounds—of facts beyond question and rooted in the very constitution of human nature. The needed, the righteous, the inevitable reform, was shown as part of the upward movement of humanity, and as appealing to every consideration of practical wisdom and of justice. The little book of 150 pages deserves to be held as a classic in American history.

Channing never lost the sense of proportion in his own work. He went on giving inspiration and leadership to religious thought and to social advance. It was neither necessary nor possible for him to be in close sympathy or habitual alliance with the extreme Abolitionists. But he vindicated the right of free speech when it was denied them, and he was recognized by the best of their number as a friend of the cause. Mrs. Lydia Maria Child,—like Mr. May, one of the finest spirits among the Abolitionists—wrote: "He

constantly grew upon my respect, until I came to regard him as the wisest as well as the gentlest apostle of humanity. I owe him thanks for preserving me from the one-sidedness to which zealous reformers are so apt to run. He never sought to undervalue the importance of anti-slavery, but he said many things to prevent me from looking upon it as the only question interesting to humanity."

Side by side with the anti-slavery sentiment was growing another sentiment—distinct from it, at first often in practical hostility to it, but at last blending with it for a common triumph. It was the sentiment of American nationality—the love of the Union. The separate colonies were brought together in the Revolution by a common peril and a common struggle. Then their tendency to fall apart was counteracted by the strong bond of the Constitution and the Federal government. Diverse interests and mutual distrust still tended to draw them asunder. With the continuance of the Union, the strengthening of the tie by use, the hallowing of old associations under the glamour of memory, and the growth of the new bonds of commerce and travel, the sense of a common country and destiny began to take root in the hearts of men, and on occasion disclosed itself with the strength and nobility of a heroic passion. True, a new rift was appearing, in the doctrine of nullification and the question of slavery, but this evoked at times a more militant and again a more appealing aspect in the sentiment of union. Jackson seemed to rise from the rough frontiersman to the guardian of the nation when he gave the word, "The Federal Union—it must be preserved!" Clay found the noblest exercise of his eloquence and his diplomacy in evoking the national spirit and in harmonizing the differences which threatened it. But the most stirring voice and effective leadership was that of Daniel Webster.

As Webster is judged in the retrospect, we see that he was not so much a statesman, still less a moral idealist, as an advocate. His lucidity of statement and emotional power were not matched by constructive ability. His name is associated with no great measure of administration, no large and definite policy. He was luminous in statement rather than sagacious in judgment, an advocate rather than a judge. On the platform or in the Senate he was still pre-eminently the lawyer, in that, like a lawyer, he was the representative and exponent of established interests,—not the projector of new social adjustments. Civil law represents a vast accumulated experience

and tradition of mankind; it has been slowly wrought out, as a regulation and adjustment of existing interests; with an effort toward equity, as understood by the best intelligence of each period, but always with immense regard for precedent and previous usage. It was in this spirit, highly conservative of what has already been secured, and extremely cautious toward radical change, that Webster habitually dealt with political institutions. It was characteristic of him that in the Massachusetts constitutional convention in 1820 he pleaded strongly for the retention of the property qualification of voters for State senators. But when the tide moved irresistibly toward manhood suffrage, he acquiesced.

But conservative as he was by nature, he was in profound sympathy with a sentiment which while rooted in the past was yet in the '20s and '30s a young, plastic, growing idea,—the idea of American Union, indissoluble, perpetual. No voice was so powerful as Webster's to fill the minds and hearts of man with this lofty passion. His orations at Plymouth Rock, at Bunker Hill, and upon the simultaneous deaths of Adams and Jefferson, his vindication of the national idea against the localism of Hayne and Calhoun,—were organ-voices of patriotism. They thrilled the souls of those who listened; they went over the country and printed themselves on the minds of men; school-boys declaimed passages from them; they became part of the gospel of the American people.

We may quote a single passage from the address inspired by that dramatic circumstance, the death at once of John Adams and Thomas Jefferson, on the fiftieth anniversary of the Declaration of Independence: "It cannot be denied, but by those who would dispute against the sun, that with America and in America a new era commences in human affairs. This era is distinguished by free representative governments, by entire religious liberty, by improved systems of national intercourse, by a newly awakened and an unconquerable spirit of free inquiry, and by a diffusion of knowledge through the community, such as has been before altogether unknown and unheard of. America, America, our country, fellow-countrymen, our own dear and native land, is inseparably connected, fast bound up, in fortune and by fate, with these great interests. If they fall, we fall with them; if they stand, it will be because we have maintained them.... If we cherish the virtues and the principles of our fathers, heaven will assist us to carry on the work of human liberty and human happiness. Auspicious omens cheer us.

Great examples are before us. Our own firmament now shines brightly upon our paths. Washington is in the upper sky. These other stars have now joined the American constellation; they circle round their center, and the heavens beam with new light. Beneath this illumination let us walk the course of life, and at its close devoutly commend our beloved country, the common parent of us all, to the Divine Benignity."

CHAPTER VII

THE UNDERLYING FORCES

Two master passions strove for leadership in the mind and heart of America. One was love of the united nation and ardor to maintain its union. The other was the aspiration to purify the nation, by removing the wrong of slavery. Unionist and Abolitionist stood face to face. After many years they were to stand shoulder to shoulder, in a common cause. In a larger sense than he gave the words, Webster's utterance became the final watchword: "Liberty and Union, now and forever, one and inseparable."

In the retrospect of history, our attention naturally fastens on the conspicuous and heroic figures. But we must not forget the underlying and often determining forces,—the interests, beliefs, and passions, of the mass of the community. And, while listening intently to the articulate voices, the impressive utterances, we are to remember that the life of the community as of the individual is shaped oftenest by the inarticulate, unavowed, half-unconscious sentiments:

Below the surface stream, shallow and light,
Of what we say we feel,—below the stream,
As light, of what we think we feel, there flows
With noiseless current, strong, obscure and deep,
The central stream of what we feel indeed.

The underlying human force in the slavery question was the primitive instinct in man to keep all he has got; the instinct of the man who lives at another's expense to keep on doing so. That underlay all the fine theories about differences of race, all the theological deductions from Noah's curse upon Canaan. Another great and constant factor was the absorption of men and communities, not personally concerned in a social wrong, in pursuits and interests of their own which shut out all outlook beyond. In our day we hear much about the crowding rush of material interests, but that crowd and rush was felt almost as much in the earlier generations, when hardly less

than the most strident tones of the agitator could pierce the absorption of the street and market-place. There was the inertia of custom; there were the commercial interests closely interwoven of the Southern planter and the Northern manufacturer; there was the prejudice of color and race; and all these influences, open or latent, told powerfully for keeping slavery as it was.

The great default, the fatal failure, was the omission of the Southern whites, especially their leaders by education and by popular recognition, to take deliberate and systematic measures for the removal of slavery. Difficult? Yes, very. Impossible? Why, almost every other country of North and South America,—including the Spanish-Americans on whom the English-Americans look down with such superiority,—these all got rid of slavery without violence or revolution. Whatever the case required,—of preparation, compensation, new industrial arrangement,—the Southern whites had the whole business in their hands, to deal with as they pleased. Whatever cries might be raised by a few for instant and unconditional emancipation, there never was a day when the vast mass of the American people, of all sections, were not avowedly and unmistakably committed to letting the Southern States treat slavery as their own matter, and deal with it as they pleased, provided only they kept it at home. Excuses for non-action there were, of course,—the perplexities of the situation, the irritation of criticism from without,—but Nature has no use for excuses. If there is a cancer in the system it is useless to plead the expense of the surgery or the pain of the knife. The alternative is simple—removal or death.

It is always impossible to distinguish closely in the causes of events between the action of human will and the wider forces which we call Nature or Providence. But in some eras we distinguish more clearly than in others the effect of human personalities. For example, in the making of the Constitution we see a difficult situation taken wisely and resolutely in hand by a group of strong men; they made themselves a part of Fate. But in the fluctuating history of slavery, with its final catastrophe, we seem to be looking at elemental movements; masses of men drifting under impulses, with no leadership adequate to the occasion. The men who seemingly might have mastered the situation, and brought it to a peaceful and right solution, either could not or would not do it.

What happened was, that two opposite social systems, existing within the same political body, came into rivalry, into hostility, and at last into direct conflict. In the early stages, slavery had on its side the advantage of an established place under the law, the support of its local communities becoming more and more determined, the long-time indifference and inertia of the free States, custom, conservatism, timidity, race prejudice. But against all this were operating steadily two tremendous forces. In the race for industrial advantage which is at last the decisive test, free society was superior to slave society by as much as the freeman is superior to the slave. The advantage of the Northern farmer or mechanic over the negro slave was the measure of the advantage of the North over the South. In increase of wealth; in variety, intensity, and productiveness of social life; in immigration; in intellectual progress, the free States outstripped the slave States by leaps and bounds. And, again, in the conscience of humanity,—in mankind's sense of right and wrong, which grows ever a more potent factor in the world's affairs,—the tide was setting steadily and swiftly against slavery. To impatient reformers who, as Horace Mann said, were always in a hurry, while God never is,—the tide might seem motionless or reflux, as to him who looks hastily from the ocean shore; but as the sea follows the moon, the hearts of men were following the new risen luminary of humanity's God-given rights.

And so, under each special phase of the conflict, slavery had against it that dominant force which acts on one side in the material progress of society, and on the other side in the human conscience; that force—"some call it Evolution, and others call it God."

CHAPTER VIII

THE MEXICAN WAR

We have seen that about 1832-3 a new distinctness and prominence was given to the slavery question by various events,—the substantial victory of the South Carolina nullifiers, and the leadership thenceforth of the South by Calhoun; Nat Turner's rising, and the rejection by Virginia of the emancipation policy; the compensated liberation of the West India slaves by the British Government; and the birth of aggressive Abolitionism under the lead of Garrison. We have now to glance at the main course of history for the next twenty years. Party politics had for a time no direct relation to slavery. The new organizations of Whigs and Democrats disputed on questions of a national bank, internal improvements, and the tariff. The Presidency was easily won in 1836 by Jackson's lieutenant, Van Buren; but the commercial crash of 1837 produced a revulsion of feeling which enabled the Whigs to elect Benjamin Harrison in 1840. His early death gave the Presidency to John Tyler of Virginia, who soon alienated his party, and who was thoroughly Southern in his sympathies and policy.

The newly aroused anti-slavery enthusiasm in the North found expression in petitions for the abolition of slavery in the District of Columbia. It was not intrinsically a great matter, but it was the one point where the national authority seemed clearly to have a chance to act—questions of new territory being for the time in abeyance. Petitions poured in on Congress with thousands of signatures—then with tens, then hundreds of thousands. There was a hot struggle as to whether the petitions should be received at all by the Senate and House. John Quincy Adams, willing after his Presidency to serve in the humbler capacity of congressman, was the champion of the right of petition. Calhoun had entered the Senate in 1832 and remained there with a brief intermission until his death in 1850. He stood independent of the two great parties, with his own State always solidly behind him, and with growing influence over the whole South. He was the leader in opposing the admission of the petitions. He maintained that any discussion in Congress of such a topic was injurious and incendiary; he voiced the new

sentiment of the South that all agitation of slavery was an invasion of its rights. "Hands off!" was the cry. The question was settled in 1836, after long debates, by another compromise, proposed by James Buchanan of Pennsylvania; the petitions were given a formal reception, but instantly rejected without debate.

Another burning question was the circulation of anti-slavery documents through the Southern mails. In 1835 a mob in Charleston broke open the post-office, and made a bonfire of all such matter they could find. The social leaders and the clergy of the city applauded. The postmaster-general under Jackson, Amos Kendall, wrote to the local postmaster who had connived at the act: "I cannot sanction and will not condemn the step you have taken." Jackson asked Congress to pass a law excluding anti-slavery literature from the mails. Even this was not enough for Calhoun; he claimed that every State had a right to pass such legislation for itself, with paramount authority over any act of Congress. But the South would not support him in this claim; and indeed he was habitually in advance of his section, which followed him generally at an interval of a few years. Congress refused to pass any law on the subject. But the end was reached without law; Southern postmasters systematically refused to transmit anti-slavery documents—even of so moderate character as the *New York Tribune*—and this was their practice until the Civil War. "A gross infraction of law and right!" said the North. "But," said the South, "would you allow papers to circulate in your postoffices tending directly to breed revolt and civil war? If the mails cannot be used in the service of gambling and lotteries, with far more reason may we shut out incitements to insurrection like Nat Turner's."

On a similar plea all freedom of speech in Southern communities on the question of slavery was practically denied. Anti-slavery men were driven from their homes. In Kentucky, one man stood out defiantly and successfully. Cassius M. Clay opposed slavery, advocated its compensated abolition, and was as ready to defend himself with pistols as with arguments. He stood his ground to the end, and in 1853 he settled Rev. John G. Fee at Berea, who established a group of anti-slavery churches and schools, which was broken up after John Brown's raid, but after the war was revived as Berea College. But as a rule free speech in the South was at an end before 1840. No man dared use language like that of Patrick Henry and

Madison; and Jefferson's *Notes on Virginia*, if newly published, would have been excluded from the mails and its author exiled.

South Carolina passed a law under which negro seamen on ships entering her ports were put in jail while their vessel remained, and if the jail fees were not paid, they were sold into slavery. When Massachusetts seamen suffered under this law, the State government in 1844 dispatched an eminent citizen, Samuel Hoar, to try to secure a modification of the enactment. Arriving in Charleston, accompanied by his daughter, Mr. Hoar was promptly visited in his hotel by a committee of prominent men and obliged to leave the city and State at once.

The North had its share of violence. In Connecticut a school for negro children, kept by two white women, was forcibly broken up. In Illinois in 1837 an anti-slavery newspaper office was destroyed by a mob, and its proprietor, Elijah P. Lovejoy, was murdered.

In the Presidential election of 1840 slavery was almost forgotten. The Whigs were bent on overthrowing the Democratic administration, to which they attributed the hard times following 1837; and they raised a popular hurrah for the candidate of the "plain people," William Henry Harrison of Indiana, who had won a victory over the Indians at Tippecanoe. In a canvass where "log-cabins" and "hard cider" gave the watchwords and emblems, national politics played little part. But now first those resolute anti-slavery men who were determined to bring their cause before the people as a political issue, and fight it out in that arena, with solid ranks be their forces ever so small,—came together and nominated for the Presidency James G. Birney. They could give him but a handful of votes, but it was the raising of a flag which twenty years was to carry to victory. Birney, never an extremist, had grown to a full recognition of all that was at stake. He wrote in 1835: "The contest is becoming—has become—not one alone of freedom for the blacks, but of freedom for the whites.... There will be no cessation of the strife until slavery shall be exterminated or liberty destroyed."

For a dozen years there had been only skirmishing. Now came on a battle royal, or rather a campaign, from 1844 to 1850,—the annexation of Texas, the war with Mexico, and the last great compromise. Texas, a province of

Mexico after Mexico became free from Spain, received a steady immigration from the American Southwestern States. These immigrants became restive under Mexican control, declared their independence in 1835, and practically secured it after sharp fighting. Slavery, abolished under Mexico, was re-established by the republic of Texas. From the character of its population, it seemed to gravitate toward the United States. The keen eyes of the Southern leaders were early fixed upon it. Annex Texas, and a great field of expansion for slavery was open. Its votes in the Senate and House would be added to the Southern column, and from its immense domain future States might be carved. As early as 1829 Lundy's and Garrison's *Genius* had protested against this scheme. The time was now ripe for carrying it out. Calhoun was again the leader. He claimed to be "the author of annexation," and with good reason. He exchanged the Senate for Tyler's cabinet as Secretary of War in 1844, the change being engineered by Henry A. Wise, one of the rising men in Virginia,—for the express purpose of bringing in Texas. A treaty of annexation was negotiated with Texas, and sent to the Senate. There were difficulties; the Texans had cooled in their zeal for annexation; and the American Senate was not over-favorable. To give the necessary impetus, Calhoun,—so says Van Holst, in his excellent and not unfriendly biography,—fell below his habitual sincerity, and misrepresented a dispatch of the English Foreign Secretary, Lord Aberdeen, as showing a disposition on England's part to get hold of Texas for herself. It was a Presidential year; the Democratic convention nominated James K. Polk of Tennessee, and passed a resolution favoring annexation. But Calhoun had now shown his motive so plainly that the country took alarm, and the Senate rejected the treaty. The Whigs nominated Clay. He was believed to be opposed to the annexation scheme, but his hunger for the great prize betrayed him into an equivocal expression, which lost him the confidence of the strong anti-slavery men. Again they nominated Birney,—taking now the name of the Liberty party—and gave him so many votes that the result was to lose New York and Michigan for Clay, and Polk was elected. The administration now claimed—though in truth the combined Whig and Liberty vote put it in a minority—that it had received a plebiscite of popular support on its annexation policy. Thus emboldened, its friends,—knowing that they could not yet count on the two-thirds vote necessary for a senatorial confirmation,—dropped the treaty altogether, and brought into Congress a joint resolution affirming the annexation of Texas to the Union.

This won the necessary majority in both houses, and as the last act of Tyler's administration Texas was declared a State.

Calhoun now returned to the Senate,—his temporary substitute promptly vacating at his word. Thus far he had triumphed. But his associates in their elation were eager for another conquest. Texas is ours, now let us have California and the Pacific! But to that end, Mexico, reluctant to yield Texas, and wholly unwilling to cede more territory, must be attacked and despoiled. At that proposal Calhoun drew back. It does not appear that he had any scruples about Mexico. But, keener-sighted than his followers, he knew that any further acquisitions to the West would be stoutly and hopefully claimed by the North. His warning was in vain; he had lighted a fire and now could not check it. The next step was to force Mexico into a war. She claimed the river Nueces as her boundary with Texas, while Texas claimed the Rio Grande. Instructions were quietly given to General Taylor, in January, 1846, to throw his small force into the disputed territory, so near the Rio Grande as to invite a Mexican attack. The Mexican force did attack him, and President Polk instantly declared that "war existed by the act of Mexico"—thus allowing Congress no chance to pass on it. As is the way of nations, fighting once begun, every consideration of justice was ignored and the only word was "our country, right or wrong." Congressmen of both parties voted whatever supplies were needed for the war; and the Whigs, trying to throw the blame on the President, put no obstacles in the way of his conquest of Mexico. Only one man in Congress spoke out for justice as higher than party or country. Thomas Corwin of Ohio, in a powerful speech, denounced the whole iniquitous business, and declared that were he a Mexican facing the American invaders of his home, "I would welcome them with hospitable hands to bloody graves!"

The war called out another voice that went home to the heart of the people,—the voice of James Russell Lowell in the "Biglow Papers." In the homely Yankee vernacular he spoke for the highest conscience of New England. The righteous wrath was winged with stinging wit and lightened with broad humor. He spoke for that sentiment of the new and nobler America which abhorred slavery and detested war, and saw in a war for the extension of slavery a crime against God and man. The politician's sophistries, the respectable conventionalities current in church and state, found no mercy at his hands:

Ez fer war, I call it murder,—
There you hev it plain and flat:
I don't want to go no furder
Than my Testyment fer that:
God hez sed so plump an' fairly,
It's ez long ez it is broad,
An' you've got to git up airly
Ef you want to take in God.

'Tain't your eppyletts an' feathers
Make the thing a grain more right;
'Tain't a follerin' your bell-wethers
Will excuse ye in his sight;
Ef you take a sword and draw it,
An' go stick a feller thru,
Guv'ment ain't to answer for it,
God'll send the bill to you.

Massachusetts, God forgive her,
She's a kneelin' with the rest,
She, that ought to hav' clung forever
In her grand old eagle-nest.

Let our dear old Bay State proudly
Put the trumpet to her mouth,
Let her ring this messidge loudly
In the ears of all the South:

"I'll return ye good fer evil
Much ez we frail mortals can,
But I won't go help the Devil
Makin' man the cus o' man;
Call me coward, call me traitor,
Jest ez suits your mean idees,

Here I stand a tyrant-hater,
An' the friend o' God and Peace."

CHAPTER IX

HOW DEAL WITH THE TERRITORIES?

Meanwhile, the American army,—accepting as its sole part to obey orders, not questioning why,—though such officers as Grant and Lee had no liking for the task set them,—and reinforced by volunteer regiments from the Southwest,—was steadily fighting its way to the Mexican capital; Taylor's force advancing from Texas, while Scott moved from Vera Cruz. The Mexicans resisted bravely, but were beaten again and again, and upon the capture of the city of Mexico they gave up the contest.

Spite of the *éclat* of victories, the war had been so little popular in the North that the congressional election of 1846 displaced the administration majority in the House and gave the Whigs a preponderance. But, with the excitement of the complete victory over Mexico in the next year, came a fresh wave of the aggressive temper. It was freely advocated that Mexico should be annexed bodily. Against this madness Henry Clay spoke out with his old-time power. Clearly the country would tolerate no such extreme, and the annexationists contented themselves with mulcting Mexico, upon the payment of \$6,000,000, of the vast territory known as California.

Then set in with full vigor the controversy over the new territory which Calhoun had foreseen. Calhoun had been left in a sort of isolation by his defection from the administration upon the war, but he did not break with President Polk; for the reason, says Von Holst, that he wanted to save his influence to oppose the tendency to a war with England. Oregon had been held in joint occupancy by the two nations for many years; now a line of demarcation was to be drawn, and there was a loud popular demand for maintaining at any cost the extreme northern line of latitude—it was "Fifty-four-forty or fight." But the sense of the country was against coming to extremities, and Calhoun—a statesman when slavery was not concerned—threw his influence with the moderate sentiment which secured the acceptance of the line of 49 degrees. But he looked with foreboding eyes on the deepening conflict of the sections and the advantage which gravitated

toward the North;—from political causes, he declared, unwilling or unable to recognize that the industrial superiority lay inevitably with free labor. He met the danger with a bolder and more advanced claim. The South, he declared, had had enough of compromise over territory; it must now fall back on its ultimate right under the Constitution; and that right was that slaves, being lawful property, might be taken into any territory of the United States, and Congress had no right to forbid their introduction; neither had Congress a right to refuse admission of any State whose people desired to retain slavery. This was a claim for the nationalization of slavery; and it was not until after Calhoun's death that the South came to this position, staked its cause upon it, and when it was rejected by the popular vote broke with the Union.

But Calhoun's logic and passion had not yet brought his section up to his own position, and over the division of the newly acquired territory North and South disputed as before. While the war was still waging, President Polk asked for an appropriation to be expended as compensation for new territory; and David Wilmot, a Democratic member from Pennsylvania, moved that a proviso be added, stipulating that from any new territory acquired by purchase slavery should be excluded. This was passed by the House, but rejected by the Senate. The Senate was long the stronghold of the South, the States having an equal representation, while in the House the greater increase of free State population gave them a fresh advantage at each new census and apportionment. The "Wilmot proviso" was for some years the watchword of the anti-extensionists. To the typical Northerner, it seemed monstrous that slavery should be introduced by law in territory where it had no previous existence. To the typical Southerner it seemed no less unjust that his peculiar institutions and usages should be excluded from the common domain, for which his section had paid its share of money and more than its share of blood.

While the question of the new territory had scarcely taken definite form, there came the Presidential election of 1848. In the Whig convention Clay's ambition received its final disappointment; Webster had hardly a chance; all the statesmen of the party were set aside in favor of General Zachary Taylor of Louisiana, an upright, soldierly man, a slaveholder, entirely unversed in civil affairs, and his claim resting solely on successful generalship in the war. The Democrats nominated Lewis Cass of Michigan, a mediocre

politician, regarded by the South as a trustworthy servant. The third party displayed new strength, and exchanged the name of "Liberty" for "Free Soil." Under the stimulus of recent events recruits of power and promise came to its standard. In Massachusetts it gained such men as Samuel Hoar, Charles Sumner, Charles Francis Adams, and Henry Wilson from the Whigs; and from the Democrats, Robert Rantoul and N. P. Banks. Wilson and Charles Allen, delegates to the Whig convention, declared,—when that body in its resolutions absolutely ignored the question of slavery extension, and sank all principles in a hurrah for "Old Rough and Ready,"—that they would no longer support the party. They went home to work with their old friends, the "Conscience Whigs," for the success of the Free Soil party, whose convention was to meet at Buffalo. To that convention came strong allies from Ohio. There were Joshua Giddings, for years one of the few congressmen classed distinctly as anti-slavery, and Salmon P. Chase. New York State offered a reinforcement strong in numbers, but in some respects questionable. The anti-slavery Democrats in the State, nicknamed "Barnburners"—because "they would burn the barn to get rid of the rats"—were ready to break with their party, but their quarrel was partly a personal one. They were welcomed, however, and from their ranks was selected the Presidential candidate—of all men, ex-President Martin Van Buren, known of old as "the Northern man with Southern principles," but willing now to Northernize his principles with the Presidency in view. Such a nomination went far to take the heart out of the genuine anti-slavery men; and the strong name of Charles Francis Adams for vice-president could not make good the weakness of the head of the ticket. Should a real Free Soiler vote for Van Buren,—the probable effect being to improve Cass's chances over Taylor, just as the Birney vote four years earlier had beaten Clay and brought in Polk and all his consequences—or vote for Taylor, trusting to his personal character and the influences surrounding him for a practical advantage to the side of freedom? The latter alternative was the choice of many, including Horace Greeley and his associates, Thurlow Weed and William H. Seward. With such help, and mainly on his strength as a military hero, Taylor was elected. In the result there was considerable hope for the anti-slavery cause. For Seward, who had been chosen to the Senate from New York, was very influential with the new President, and Seward was one of the coming men, clearly destined to be a leader among those who were to succeed the great triumvirate of Clay, Calhoun, and Webster. He

was high-minded, cultivated, and united lofty ideals with practical wisdom. A thorough constitutionalist, he believed there were legitimate ways of advancing freedom under the Constitution; and in a speech at Cleveland he had declared: "Slavery can be limited to its present bounds; it can be ameliorated; it can be abolished; and you and I must do it." Ohio sent to the Senate another of the coming men, Salmon P. Chase, resembling Seward in his broad and philosophical views and his firm but constitutional opposition to slavery.

CHAPTER X

THE COMPROMISE OF 1850

To win California as slave territory the Southern leaders had forced the war on Mexico. The territory was won, and no political force had developed strong enough to halt their progress. But now came a check from the realm which could not be cajoled or brow-beaten,—the world of natural and industrial forces. Gold was discovered in California. There was a rush of immigrants, and a swift opening and settlement of the country. The pioneers—hardy, enterprising and democratic—had no use nor room for slaves. They held a convention, with the encouragement of President Taylor; framed a Constitution in which slavery was excluded from the future State—this by unanimous vote, including the 15 delegates who had come from slave States; and the popular vote ratified the proposed Constitution by 10 to 1. Then they asked for admission to the Union.

The Southern faction was wrathful. The extremists were for excluding the new State unless slavery was permitted. But it was clear that slavery could not be forced on a State against the wish of its entire people. Then compensation was sought in concessions to be made by the North. The remainder of the new domain, Utah and New Mexico, was not ripe for Statehood; but let slavery, it was urged, be established as a territorial condition. Then came up another grievance of the South. Its fugitive slaves, escaping over the border line, were systematically helped, either to make their way to Canada and the protection of the British flag, or to safe homes in the Northern States. Naturally the slaves who dared the perils of escape were either the most energetic or the most wronged, and sympathy for them at the North was active and resourceful. Along their most frequented routes of flight were systematic provisions of shelter and help, known as "the underground railroad." The Federal Constitution required their return, but this task had been left to State laws and courts, and was performed slackly, if at all. The total number of fugitives was not large nor the pecuniary loss heavy, but the South was exasperated by what it considered a petty and

contemptible depredation. So there was a demand that the Federal government should undertake and enforce the return of fugitive slaves.

Congress opened the session of 1849-50 amid great excitement and confusion. Once more Clay came forward to reconcile the disputants. Clay in these last days was at his best. He was no longer swayed by Presidential aspirations. When in 1849 the Kentucky Constitution was to be revised, he wrote a letter strongly favoring a gradual emancipation and colonization. This had no effect, but Clay's unshaken hold on his State was shown by his unanimous re-election to the Senate. There he at once entered upon his last great effort at national reconciliation. He introduced a bill providing for a series of concessions on both sides. California was to be admitted as a free State; and New Mexico and Utah were to be organized as territories, leaving the question of slavery for future settlement. Slavery was to continue in the District of Columbia, but the slave trade was to be forbidden there. Texas was to cede to New Mexico a disputed strip of territory, which presumably would ultimately become free; and was to be compensated by a large grant from the Federal territory. A law was to be passed for the return of fugitive slaves by Federal authority.

Over these measures the debate was long and hot. Clay pleaded that by his scheme the advantages were fairly balanced between North and South. He urged that the rising spirit of disunion at the South should be disarmed by reasonable concessions. He appealed to the North for concessions and to the South for peace. When Jefferson Davis, Senator from Mississippi, declared that the plan conceded nothing to the South, and demanded that the Missouri compromise line be extended to the Pacific (bisecting California), with the express establishment of slavery south of that line, Clay declared that no earthly power should make him vote for the establishment of slavery anywhere where it had had no previous existence. To do so, he said, would be to incur from future inhabitants of New Mexico the reproach which Americans justly applied to their British ancestors for fastening the institution on them. But he would spare Southern sensibilities by withholding an explicit exclusion of slavery from New Mexico; Nature and the future would attend to that. Against any right of secession, against any possibility of peaceful secession, he declared with strongest emphasis: "War and dissolution of the Union are identical; they are convertible terms; and

such a war!" Fighting for the extension of slavery, the sympathies of all mankind would be against the South.

The venerable old man, speaking with all the sincerity and warmth of his heart and with all the powers of his mind, was heard, says Schurz, by a great and brilliant audience. His first faltering words were followed by regained power; the old elevation of sentiment, the sonorous flow of words, the lofty energy of action, were enhanced by the pathetic sense that this was the final effort.

More pathetic, tragic even, was the last speech of Calhoun, read for him while he sat in his senatorial chair; the tall form bowed by age and weakness, the gaunt, impressive face furrowed by the long strife for a doomed cause, but the old fire still alight in the dark eyes and in the resolute spirit. He recognized that the strife of the sections was radical, and that the proposed compromises and palliatives were weak and temporary. He declared that the South had been thwarted in its rights from the ordinance of 1787 until now; that the equilibrium would be destroyed past hope if California and New Mexico were to become free States; and that the only effective resource lay in some constitutional amendment to safeguard the rights of the South. What amendment could effect this, he did not say. But it transpired later that he had in mind the election of two Presidents, one from each section,—a fantastic and impossible scheme. In truth, Calhoun in this last utterance was less a statesman aiming to guide events than a prophet predicting an inevitable woe. He was too wise to share the elation with which hot-heads talked of an independent South, and it was with sad forebodings that he sank to his grave.

When on the 7th of March Webster rose to speak, the Senate and the country hung on his words. He too was drawing toward the end, but his powers were unabated. Hope was strong that in him would be found the champion of freedom. But the key of his speech was a view of the situation, not as a contest between freedom and slavery, but as an opposition of geographical sections, inflamed by extremists on both sides. The mischief, he declared, was due to Southern disunionists and Northern Abolitionists. The remedy was a calm, patriotic temper; the rebuke of fanaticism of both kinds, and the acceptance of reasonable accommodations and adjustments. He approved substantially the scheme proposed by Clay. The formal

exclusion of slavery from New Mexico was an unnecessary affront to the South; natural conditions would prevent slavery there. A fugitive slave law was fairly required by the Constitution and the South had a right to claim it. He, like Clay, declared peaceable secession an impossibility, and his speech, impressive throughout by the power of a lucid and massive intellect, rose at its close to lofty eloquence in a plea for the maintenance of the Union and a warning of the catastrophe which secession would precipitate.

The defect of the speech was its complete failure to recognize the wrong and mischief of slavery. Webster had rarely shown himself a moral idealist, except as to the sentiment of patriotism. He was identified with the prosperous and "respectable" classes, and the sufferings of the poor and oppressed woke little sympathy in him. These limitations had always been apparent, and while Clay seemed to grow finer and gentler with advance of years, Webster's course was the other way. That imperial and commanding presence, with its imposing stature and Jove-like visage, was the tenement of a richly dowered nature. He had not only great powers of intellect, but warm affections, generous sentiments, and wholesome tastes for humanity and the outdoor world, but his moral fiber, never of the stanchest grain, had been sapped by prosperity. He was self-indulgent in his personal habits and heedless of homely obligations. His ambition was strong, and as the favor of the South had come to be the almost necessary condition of the Presidency, he could not escape the suspicion of courting that favor. He was in substantial agreement with Clay as to the compromise measures, but the Kentuckian rose higher than his section and his look was forward; while Webster was distinctly below the characteristic temper of New England, and his movement was retrograde. The anti-slavery men mourned his 7th of March speech as a great apostasy, and Whittier branded it in his poem of "Ichabod," which fell with Judgment-day weight. Yet it was not an apostasy, but the natural culmination of his course; and in spite of its error, he still was true to the characteristic sentiment of his best period, the love of the Union. His voice like Clay's gave inspiration—it may well have been a decisive inspiration—to the cause which triumphed at Gettysburg and Appomattox. Whittier himself, in a later poem, recognized the patriotic service of the man whom, in the heat of conflict, he had so scathingly denounced.

Congress, and especially the Senate, was at this time full of brilliant men. Among the leaders of the extreme South were Mason of Virginia, Butler of South Carolina, Davis of Mississippi, and Soule of Louisiana. From this element came plentiful threats of disunion. But these threats were met with stern answers. When President Taylor heard of them the stout old soldier answered that such language was treasonable, and if necessary he would himself take command of the army that should put down rebellion. Disunion, he said, is treason; and to one questioning him, he answered with a soldier's oath that if anyone really attempted to carry it out, they should be dealt with by law as they deserved, and executed. Clay's language was no less explicit. When Senator Rhett in Charleston proposed to raise the flag of secession, and his colleague, Barnwell in the Senate, half indorsed his words, Clay said, with a lightning flash that thrilled the audience, that if Senator Rhett followed up that declaration by overt acts "he will be a traitor, and I hope he will meet the fate of a traitor!" Clay went on to say that if Kentucky should ever unfurl the banner of resistance unjustly against the Union, "never, never will I engage with her in such a cause!"

There was in Congress a new element, of the smallest in numbers, but with the promise and potency of a great future. Four days after Webster, Seward spoke in the Senate. He advocated the admission of California as a free State, with no additions or compromises. No equilibrium between freedom and slavery was possible; if established to-day it would be destroyed tomorrow. The moral sentiment of the age would never permit the enforcement of a law requiring Northern freemen to return slaves to bondage. The entire public domain was by the Constitution devoted to union, justice, defense, welfare, and liberty; and it was devoted to the same noble ends by "a higher law than the Constitution." The extension of slavery ought to be barred by all legal means. Threats of disunion had no terrors for him. The question was "whether the Union shall stand, and slavery, under the steady, peaceful action of moral, social, and political causes, be removed by gradual voluntary effort and with compensation; or whether the Union shall be dissolved and civil war ensue, bringing on violent but complete and immediate emancipation."

Salmon P. Chase of Ohio spoke to similar effect. If, he said, the claims of freedom are sacrificed here by forms of legislation, "the people will unsettle

your settlement." "It may be that you will succeed in burying the ordinance of freedom. But the people will write upon its tomb, 'I shall rise again.'"

The disunionists found that they had little popular support behind them. A convention at Nashville, held to promote the interests of the South, refused to countenance any extreme measures. General Taylor steadily favored the admission of California as a free State, with no qualifications or accompaniments. Then, while the result in Congress hung doubtful, in the summer of 1850, President Taylor died. His successor, Vice-President Millard Fillmore of New York, was a man of fair ability and cautious or timid disposition; an opponent of Seward in the politics of their State. He favored the compromise, and called Webster to his cabinet. The administration's influence seemed to turn the scale, and Clay's series of measures were adopted one by one. There was dissatisfaction at the South and indignation at the North. The territorial settlement was substantially in the North's favor. But the exasperating fact, and pregnant with consequences, was the Fugitive Slave law. Its provisions were intolerable to the popular conscience. All citizens were liable to be called to aid in the pursuit and arrest of a fugitive. He was to be tried before a United States commissioner, whose decision was final. A man accused of a crime punishable by a small fine or a brief imprisonment was entitled to a verdict from an impartial jury of twelve; but a man whose freedom for life was at stake was at the mercy of a single official.

Most of the Northern States sooner or later passed "Personal Liberty laws," which, without directly assuming to nullify the Federal statute, aimed to defeat its enforcement. They contained such provisions as the exemption of State officials and State buildings from service in the rendition of fugitives, and the right of alleged fugitives to be taken by *habeas corpus* before a State tribunal. So against the charge of inhumanity in the Fugitive Slave law, the South brought the counter-charge of evasion bordering on defiance of a Federal statute. Few renditions were attempted. Sometimes they were met by forcible resistance. An alleged fugitive, Jerry, was rescued by the populace in Syracuse. A negro, Shadrach, arrested as a fugitive in Boston in 1851, was set free and carried off by a mob. There was a spasm of excitement in Congress, but it was brief and resultless. Later, in 1854, when the anti-slavery tide was swiftly rising, came the rendition of Anthony Burns, who was taken through the streets of Boston under a strong guard of

Federal troops and State militia, while the popular wrath and grief at the sight swelled the wave which the repeal of the Missouri compromise had started on its inevitable way.

CHAPTER XI

A LULL AND A RETROSPECT

After the half-year's debate over the compromise of 1850 came a time of political quiet. "The tumult and the shouting died." It seemed more than a temporary lull. In a great tide of material prosperity, the country easily forgot the slaves; if out of sight, they were, to most, out of mind. Webster's speech had a deep significance. He was identified in Massachusetts with the classes representing commercial prosperity, social prominence, and academic culture. In these classes, throughout the North, there was a general apathy as to slavery. The temper of the time was materialistic. There was indeed enough anti-slavery sentiment, stirred by the 7th of March speech and the Fugitive Slave law, to change the balance of power in Massachusetts politics. The Democrats and the Free Soilers made a coalition, and it triumphed over the Whigs. The Democrats took the State offices, with George S. Boutwell as Governor; and Charles Sumner—a scholar, an idealist, an impressive orator, and a pronounced anti-slavery man, though never an Abolitionist,—was sent to the Senate to reinforce Seward and Chase.

The Presidential election of 1852 came on. In the Whig convention Fillmore had some support, especially from the South; Webster had most of the Massachusetts votes and scarce any others; and choice was made of General Winfield Scott, in the hope of repeating the victory of 1848 with another hero of the Mexican war. It was to Webster a blow past retrieval; in bitterness of spirit he turned his face to the wall, in his old home at Marshfield, and died. The Democratic convention hesitated between several Northern politicians of trustworthy subserviency to the South,—Cass, Douglas, and Buchanan—and its choice fell upon Franklin Pierce of New Hampshire, an amiable man, of fair ability, but easy to manage; he, too, the winner of a trifle of military glory in the Mexican conquest. Both conventions professed entire content with the settlements of the compromise. The Free Soilers nominated John P. Hale of New Hampshire, and made their familiar declaration of principles. But they had lost their

Democratic allies of four years earlier, and threw only 150,000 votes—less by 100,000 than at the previous election. The Whig party proved to be on the verge of dissolution. It had lost its hold on the "conscience vote" of the North, and was less trusted than its rival by the South. Pierce was chosen by a great majority; he carried every State except Vermont, Massachusetts, Kentucky, and Tennessee.

Party politics were dull; commercial and material interests seemed wholly in the ascendant, and the anti-slavery cause was at a low ebb. But many things had happened in two decades, below the surface current of public events, and, just on the threshold of a new era, we may glance back over these twenty years. All the European world had been full of movement. France had passed through three revolutions. Germany, Austria, and Italy had undergone a political upheaval and subsidence; and the liberal reverses of 1848 were the precursors of national unity and constitutional freedom in the near future.

England had gone steadily on in the path of conservative progress; had widened its suffrage by the Reform Act of 1832; had relieved distress and disarmed discontent by the free trade policy of Sir Robert Peel; her factory legislation had met a crying need of the new industrial epoch, and she had pacified and energized Canada by giving her self-government. Meanwhile American progress had been along lines of its own. The country had grown at a tremendous rate, and mainly at the North and West. Immigration had poured in from Europe, and the stream of native stock from the seaboard States to the West had hardly slackened. It was the epoch of the railroad and the telegraph. Manufactures had increased and multiplied; acres fell under cultivation by the million. In this industrial growth the North had far outstripped the South. Calhoun had urged the construction of railroads to link the eastern and western parts of the South, but the political motive could not supply the want of industrial force. The figures of the census of 1850 were more eloquent than any orator as to the relative effects of free and slave labor. Intellectually the period had been prolific. Emerson had risen, the bright morning star of American literature. Bryant, Hawthorne, Longfellow, Lowell, Whittier, were telling their stories or singing their songs. Theology was fruitful of debate and change. The Unitarian movement had defined itself. Presbyterians and Congregationalists were discussing the tenets of old school and new. For "women's rights" a strong

and promising advance had been made, in the face of unpopularity and derision. Religious revivals, foreign missions, social reforms, were making active way. From all this intellectual and social movement, unless we except the emotional revivals of religion, the South stood apart. Literature it had virtually none; its theology was only conservative and defensive; at most so-called reforms it looked askance.

In two respects the South had an advantage. Its social system was aristocratic; above the slaves came the non-slave-holding whites, including a great mass of the ignorant and degraded; but at the summit the slave-holding class had a social life in many ways attractive and delightful. The slave-holders, all told, numbered some 350,000. The controlling element consisted of the large planters, with the affiliated members of the liberal professions. Plantation life at its best had a great deal of beauty and charm. A degree of improvidence and "shiftlessness," by Northern standards, was not inconsistent with free hospitality, a generous outdoor life, an old-time culture with an atmosphere of leisure and courtesy, superior in its way to what the busy and bustling North could show. The charming and chivalrous "Colonel Carter of Cartersville" had many a prototype in real life. A higher type was sometimes bred in Southern society; it was not without some reason that Virginians claimed that the mold which produced Washington was not broken when it could yield a Robert Lee. There was a somber side; plantation life was often a rank soil for passions of tyranny and license. But its better fruitage added an element to the composite American type which could not and cannot be spared.

The other advantage the South possessed was the devotion of its strongest men to political life. The loss of commerce and literature was the gain of politics. The typical Southern leader was apt to be both a planter and a lawyer, with a strong and active interest in public affairs. Political oratory was a favorite resource in the sparsely-settled districts. The personal force which in the North was scattered among twenty fields was here centered mainly in one. This feature of Southern society worked together with the fact that the section had in slavery a common interest and bond. That interest of the entire section, led by its ablest men, came naturally to be the dominant factor in American public life. When it could not rule through its own men, it found agents in subservient Northern politicians. And so it came about that in the early '50s the South, while outstripped altogether in

population, wealth, industrial and intellectual achievement, was yet in substantial control of the governmental power. In the North, by the very magnitude of the commercial and industrial development the moral sentiment in public affairs seemed submerged or at least eclipsed.

It was during such a period of apathy that there was held an anti-slavery meeting at which two negroes were present, Sojourner Truth, an old woman whose shrewdness matched her fervor, and Frederick Douglass. Douglass was the son of a white father and a slave mother; he taught himself to read and write, made his escape into freedom, gained an education, and became an effective speaker for the anti-slavery cause. On this occasion he spoke with power and passion of the gloomy prospects of their people; government, wealth, social advantage, all were on the side of their oppressors; good people seemed indifferent to their wrongs; was there indeed any help or hope? Then rose Sojourner Truth, and looking at him said only, "Frederick! Is God dead?"

CHAPTER XII

SLAVERY AS IT WAS

And now, in the year 1852, there befell an event perhaps as momentous in American history as any between the establishment of the Constitution and the Civil War. A frail little woman, the wife of an obscure theological professor in a Maine village, wrote a story, and that story captured the heart of the world. It is scarcely an exaggeration to say that *Uncle Tom's Cabin* converted the North to the cause of the slave. The typical Union volunteer of 1861 carried the book in his memory. It brought home to the heart of the North, and of the world, that the slave was a man,—one with mankind by that deepest tie, of human love and aspiration and anguish,—but denied the rights of a man.

The book was a birth of genius and love. It is absolutely sweet-spirited. Its intense and irresistible plea is not against a class or a section, but against a system. It portrays among the Southern slave-holders characters noble and attractive,—Mrs Shelby, the faithful mistress, and the fascinating St. Clare. The worst villain in the story is a renegade Northerner. Its typical Yankee, Miss Ophelia, provokes kindly laughter. The book mixes humor with its tragedy; the sorrows of Uncle Tom and the dark story of Cassy are relieved by the pranks of Black Sam and the antics of Topsy. With all its woes, the story somehow does not leave a depressing effect; it abounds in courage and action; the fugitives win their way to freedom; the final impulse is to hopeful effort against the wrong. Its basal motive was the same as that of the Abolitionists, but its spirit and method were so different from Garrison's that it won response and sympathy where he had roused antagonism. Against pharisaical religion it uses effective satire,—which was intensified in its successor, *Dred*,—but the Christianity of faith and life is its animating spirit. No book is richer in the gospel of love to man and trust in God. Its rank is high in the new literature which has stimulated and led the great modern movement for the uplifting of the poor and oppressed. Its place is with Victor Hugo's *Les Misérables* and Tolstoi's *War and Peace*.

The motive of *Uncle Tom's Cabin* was an appeal to the heart of the American people. There was no reference to political action, far less any suggestion of servile insurrection, and there was no discussion of methods of emancipation. The book set forth an organized, monstrous wrong, which it was in the power of the American nation, and above all, of the Southern people, to remove. The effect at the North was immeasurably to widen and deepen the conviction of the wrong of slavery, and the desire to remove it. But the way to practical action did not open; and strangely enough there was at first no visible effect on politics. The political logic of the situation led straight, as a first step, to the support of the Free Soil party. But though *Uncle Tom's Cabin* appeared (as a book) in April, 1852, and its popularity was instant, the Presidential election seven months later showed a Free Soil vote less by 100,000 than four years before. The political effect of the book was to appear only when public events two years later gave a sudden spur to the hesitating North.

The South turned a deaf ear to the appeal. It shut the book out from its borders as far as it could, and one who inquired for it in a Southern bookstore would probably be offered *Aunt Phillis's Cabin* or some other mild literary anti-toxin. The South protested that the book's picture of slavery was untrue and unjust. It was monstrous, so they said, that their labor system should be shown as having its natural result in the whipping to death of a saintly negro for his virtuous conduct. Another reply was: "If the book is true, it is really a eulogy of slavery, for it depicts slavery as producing in Uncle Tom a perfect character."

To the objections to the fidelity of her portraiture Mrs. Stowe replied with *A Key to Uncle Tom's Cabin*,—a formidable array of proved facts, as to the laws of the slave States, and specific incidents which paralleled or exceeded all she had told. As now judged, the novel has some serious imperfections as a picture of slavery. Probably the most important of these was expressed by Judge Tourgee, para-phrasing the proverb about the Russian and the Tartar: "Scratch one of Mrs. Stowe's negroes, and you will find a white man." She failed adequately to differentiate the two races, and described the negro too much from such specimens as Uncle Tom and George and Eliza Harris. She had never lived in the South, and her knowledge was obtained from observation in the border town of Cincinnati, from acquaintance with fugitives, and from the reports of Northern travelers—all interpreted with

the insight of genius and the impulse of philanthropy. Her avowed purpose was not to make a literal or merely artistic picture, but to show the actual wrongs and legalized possibilities of wrong which called for redress. It did not lessen the justice of her plea, that the mass of negroes were more degraded than she knew, or that their average treatment was kinder than her portrayal showed.

But a true historical judgment of slavery must rest on a comparison of documents. The story told from the master's standpoint should be heard. Among the faithful and graphic narrations of this sort may be named Mrs. Burton Harrison's *Flower de Hundred*,—a volume of personal reminiscences of Virginia before the war. It is a charming story, without motive other than the pleasure of recalling happy memories, and it describes a society of various and vivid charm. The mention of the slaves is occasional and incidental; but the description of the plantation hands, and especially the household servants, trusted and beloved, gives a sunny and doubtless a real side of slavery. Another book is fuller and more impressive in its treatment. It might be said that every American ought to read *Uncle Tom's Cabin* as a part of his education, and to follow it with two other books of real life. One of these is *A Southern Planter*,—a biography of Thomas Dabney, of Virginia and later of Mississippi, written by his daughter. It is a story amply worth reading for its human interest, and for its presentation of a man of noble and beautiful character. One is enriched by the acquaintance, even through a book, of a man like Thomas Dabney. And it is most desirable for the Northerner to vivify his impression of the South by the knowledge of men like him. We are misled by general and geographical terms: "an Englishman" is a vague and perhaps unattractive term to an American until he knows, in books or in flesh and blood, a few Britons of the right stamp. And so South and North need mutual interpretation not alone through their historic heroes, but through the best of their everyday people. And of those best, surely Thomas Dabney was one,—a strong, tender, noble man, fulfilling each relation in family and society with loyal conscience and sympathetic heart.

From the book we can give but a few instances of plantation life as such a man made it. When he was to move from Virginia to Mississippi he called together all his slaves,—some hundreds—and told them he wanted to take none of them against their will, and especially he would not break up any

families. If any of them had wives or husbands on other plantations, he would sell or buy, just as they wished, so that every family should stay or go together. Every one of them elected to go with their old master. Settled in Mississippi, his cotton plantation became the admiration and envy of the neighbors, for the size of the crops as well as the condition of the workers. Their comfort was amply secured. The general rule was three hours' rest at midday and a Saturday half-holiday. At the height of the season hours were longer, but there was a system of prizes, for four or five months in the year, from \$1 a week to a picayune; with an extra prize of a \$5 gold piece for anyone picking 600 pounds a day; and these prizes roused such interest and excitement that some of the ambitious ones had to be compelled to leave the field at night, wishing to sleep at the end of their row. The inefficient were gently tolerated; severe punishment was held to be alike cruel and useless; an incompetent servant was carried as a burden from which there was no escape. Such endurance was the way of all good masters and mistresses at the South,—“and I have known very few who were not good,” adds the writer. The plantation trained and kept its own mechanics; two each of carpenters, blacksmiths, millers, with five seamstresses in the house. In the house, under the mistress's eye, were cut and made the clothes of all the negroes, two woolen and two cotton suits a year, with a gay calico Sunday dress for each woman. The women were taught sewing in the house. When their babies were born a nurse was provided, and all the mother's work done for her for a month, and for a year she was allowed ample leisure for the care of the baby. The sons of the family taught reading to those who wished to learn. Some of the house servants were very fine characters; the sketch of “Mammy Maria” one would gladly reproduce. When secession came on, Thomas Dabney altogether disapproved, and foresaw the ruin of the South. He proposed to his wife that they close up their affairs, and go to live in England. Her reply was: “What will you do with Abby? and with Maria and Harriet, and their husbands and children, and the rest of our people?” That was unanswerable. So he stayed, and with his family shared the fighting,—for, the war begun, Dabney gave his hearty support to the Southern cause, and his sons went to the field,—shared the hardships of a devastated country, the social chaos that followed, and the slow reconstruction,—a more intrepid and lovable figure in adversity than before.

His daughter writes: "In the family of Thomas Dabney the first feeling when the war ended was of joy that one dreadful responsibility at least was removed. Gradual emancipation had been a hope and a dream not to be realized." "A hope and a dream,"—it does not appear that it had ever been seriously considered as a purpose or a duty. "Not an intelligent white man or woman in the South," says the writer, "would now wish slavery restored." But why,—it is impossible not to return to the question,—why had the South done nothing to rid itself of the evil? Why had it centered its political energies in maintaining and extending it? Why had it revolted from the Union and invited war and ruin, for a system which when once removed it recognized as a burden and a curse? No right minded man can ponder that question without taking a step further, and asking whether the evils in our present industrial system shall be allowed to go on till they bring down the temple on our heads, or be met with deliberate and resolute cure. And the good and conscientious man who does his best under the existing system—as Thomas Dabney did under slavery—is yet derelict unless he gives his thought and effort to such radical amendment as the system may need.

There is yet another book in illustration of slavery which ought to be read by every American. It is Fanny Kemble Butler's *A Residence on a Georgia Plantation*. She was a woman of unusual genius, character, and sensibility; the inheritor of a great dramatic talent, and a brilliant actress until she married Mr. Butler of Georgia, and left the stage to live with him on the plantation owned by himself and his brother. After no long period she left her husband, not taking the world into her confidence as to her domestic affairs, but returning to the stage as a dramatic reader, and passing into honored private life. After the outbreak of the Civil War she published, with some reserves and some additions, the journal she had kept during her life on the plantation. As to her personal relations, except as touching the slaves, the book is entirely reticent, but it is plain that slavery as she saw it made life under those conditions literally intolerable. Below all special cruelties, she writes, she felt the ever-present, vivid wrong of living on the unpaid labor of servants. The special wrongs were constant. Thus she describes the parting of a family of slaves, and the husband's awful distress. She tells of the head-driver, Frank, an every way superior man, left at some seasons in sole charge of the plantation; but his wife was taken from him and made the mistress of the overseer. There was Engineer Ned, intelligent and capable,

and himself not badly treated, but with a wife broken down by being driven to field work too soon after the birth of a child. Half the women on the plantation were diseased from the same cause. One woman brought to her mistress a pitiful tale of such suffering. A little later the mistress learned that the woman, on the ground that this visit had caused her day's labor to come short, had received a flogging. She appealed to her husband, but he refused to interfere. "To Mr. ——'s assertion of the justice of poor Theresa's punishment, I retorted the manifest injustice of unpaid and enforced labor; the brutal inhumanity of allowing a man to strip and lash a woman, the mother of ten children; to exact from her toil which was to maintain in luxury two idle young men, the owners of the plantation. I said I thought female labor of the sort exacted from these slaves, and corporal chastisement such as they endure, must be abhorrent to any manly or humane man. Mr. —— said he thought it was disagreeable, and left me to my reflections with that concession." Presently he refused to listen to any more such petitions from her. She writes: "A wild wish rose in my heart that the river and the sea would swallow up and melt in their salt waves the whole of this accursed property of ours."

The principal physical hardships, she writes, fell to the women. The children and the old people are idle and neglected; the middle-aged men do not seem over-worked, and lead a mere animal existence, in itself not peculiarly cruel or distressing, but with a constant element of fear and uncertainty, "and the trifling evils of unrequited labor, ignorance the most profound (to which they are condemned by law), and the unutterable injustice which precludes them from all the merits and all the benefits of voluntary exertion, and the progress that results from it."

Her eye notes closely the faces about her. When she gathers the slaves to read prayers to them, she observes "their sable faces, so many of them so uncouth in their outlines and proportions, and yet all of them so pathetic, and some so sublime in their expression of patient suffering and religious fervor." She says: "Just in proportion as I have found the slaves on this plantation intelligent and advanced, I have observed this pathetic expression of countenance in them, a mixture of sadness and fear." The plantation, she writes, was well reputed, and its management was considered above the average.

Her analysis of the master class in the South is keen and striking. "The shop is not their element, and the eager spirit of speculation and the sordid spirit of gain do not infect their whole existence, even to their very demeanor and appearance, as they too manifestly do those of a large proportion of the inhabitants of the Northern States. The Southerners are infinitely better bred men, according to English notions, than the men of the Northern States. The habit of command gives them a certain self-possession, the enjoyment of leisure a certain ease. Their temperament is impulsive and enthusiastic, and their manners have the grace and spirit which seldom belong to the development of a Northern people; but upon more familiar acquaintance the vices of the social system to which they belong will be found to have infected them with their own peculiar taint; and haughty, over-bearing irritability, effeminate indolence, reckless extravagance, and a union of profligacy and cruelty which is the immediate result of their irresponsible power over their dependents, are some of the less pleasing traits."

She gives another and darker picture of the planter class. It goes without saying that it is only a part of the class to which it fairly applies: "A nation, for as such they should be spoken of, of men whose organization and temperament is that of the southern European, living under the influence of a climate at once enervating and exciting, scattered over trackless wildernesses of arid sand and pestilential swamp, intrenched within their own boundaries, surrounded by creatures absolutely subject to their despotic will; delivered over by hard necessity to the lowest excitements of drinking, gambling, and debauchery for sole recreation; independent of all opinion; ignorant of all progress; isolated from all society—it is impossible to conceive a more savage existence within the border of any modern civilization." The picture of the poor whites is graphic and somber, but space must limit these quotations.

She gives credit for the habits of courage and command, which are bred in the upper class, as when she tells of a heroic rescue from a shipwreck: "The devil must have his due, and men brought up in habits of peremptory command over their fellowmen, and under the constant apprehension of danger and awful necessity of immediate readiness to meet it, acquire qualities precious to themselves and others in hours of supreme peril."

She touches repeatedly on the social restrictions on free speech; thus, speaking of two gentlemen, one a clergyman: "They seem good and kind and amiable men, and I have no doubt are conscientious in their capacity of slave holders; but to one who has lived outside this dreadful atmosphere, the whole tone of their discourse has a morally muffled sound which one must hear to be able to conceive." She observes that whenever she discusses slavery with people she meets, they waive the abstract right or wrong of the system. Now and then she gets a bit of entire frankness, as when a very distinguished South Carolinian says to her, "I'll tell you why abolition is impossible; because every healthy negro can fetch \$1000 in Charleston market at this moment."

She generalizes as to the effects of emancipation in a way which later events completely justified. Unlike the West Indies, she says, the South is not tropical, and will not yield food without labor, and necessity would compel the liberated blacks to work. That they would not work, and the ground would lie idle, was, as we know, the boggy which was held up to scare away from emancipation—just as in our own day the danger of race mixture is made a boggy to scare away from social justice. But the event proved that Fanny Kemble was right in her predictions, in which indeed she was at one with other candid observers at the time. As to gradual emancipation, she believed it unwise—the system, she writes, is too absolutely bad for slow measures. Had she owned her husband's plantation, she would at once have freed the slaves, and hired them, if only as a means of financial salvation.

She pronounces *Uncle Tom's Cabin* to be no exaggeration. Her own story of facts gives a darker impression than Mrs. Stowe's novel. It may be asked, why, at this distance, revive the tragic tale? The answer is, that the truth of history is precious, and our present problems cannot be understood if we shut our eyes to their antecedents. Just now there is a fashion, among many Southern writers on the negro question, of beginning their story with the wrongs and sufferings of the reconstruction period. Now, it was indeed deplorable, and a thing not to be forgotten, that ignorant negroes sat in the Senate chambers of South Carolina and Mississippi, that taxes were excessive, and the public business mismanaged. But, in the broad view, it is well to remember that a few years earlier very much worse things than these

were happening, and that a system which made cattle of men and women might be expected to avenge itself.

Another work may be merely mentioned as illuminating the facts of slavery. It is Frederic Law Olmsted's three volumes of travels in the slave States. He studied them with the eyes of a farmer and a practical man; a well-equipped, fair, and keen observer. His testimony, already touched on in these chapters, is very strong as to the economic mischief of the system, its frequent cruelties, its demoralization of both master and slave, and the absolute need of its ultimate extinction. From his pages we can borrow but one or two passages. The contrasts of slavery are epitomized in two plantations he found side by side in Mississippi. On one the slaves had good food and clothes, were not driven hard, were given three stops in the day for meals, and had the time from Friday night till Monday morning for themselves. In this time the men cultivated gardens and the women washed and sewed. They were smartly dressed, and seemed very contented; many could read and write; on Sundays there was a church service and a Sabbath school taught by their mistress, both of which they could attend or not as they pleased. On the other plantation, owned by a religious woman, the working hours were from 3.30 A. M. to 9 P. M. The slaves had only Sunday free from labor, and on that day there were three services which they had to attend under penalty of a whipping. They were never allowed off the plantation, and were whipped if they talked with slaves from other plantations. Said a neighbor, "They can all repeat the catechism, but they are the dullest, laziest, and most sorrowful negroes I ever saw."

As to the possibilities of gradual emancipation, which he favored, Olmsted wrote that in Cuba every slave has the right of buying his own freedom, at a price which does not depend on the selfish exaction of his master, but is either a fixed price or is determined in each case by disinterested appraisers. "The consequence is that emancipations are continually going on, and the free people of color are becoming enlightened, cultivated, and wealthy. In no part of the United States do they occupy the high position which they enjoy in Cuba." So much for the despised Spanish-American.

From a still different standpoint—that of the non-slaveholding Southern white—the system was reviewed and scathingly judged in Helper's *The Impending Crisis*. But that, like *Uncle Tom's Cabin*, was not merely a book,

but an event, and as such is to be mentioned in its place among events. The general survey of the slave system in itself need not here be carried further. As to its essential character and basal principle, no truer word was ever spoken than that which Mrs. Stowe puts in the mouth of the slaveholder St. Clare:

"The short of the matter is, cousin, on this abstract question of slavery there can, as I think, be but one opinion. Planters, who have money to make by it,—clergymen, who have planters to please,—politicians, who want to rule by it,—may warp and bend language and ethics to a degree that shall astonish the world at their ingenuity; they can press Nature and the Bible, and nobody knows what else, into the service; but, after all, neither they nor the world believe in it one particle the more. It comes from the devil, that's the short of it,—and to my mind, it's a pretty respectable specimen of what he can do in his own line. You seem to wonder; but if you will get me fairly at it, I'll make a clean breast of it. This cursed business, accursed of God and man, what is it? Strip it of all its ornament, run it down to the root and nucleus of the whole, and what is it? Why, because my brother Quashy is ignorant and weak, and I am intelligent and strong,—because I know how, and can do it,—therefore I may steal all he has, keep it, and give him only such and so much as suits my fancy. Whatever is too hard, too dirty, too disagreeable, for me, I may set Quashy to doing. Because I don't like work, Quashy shall work. Because the sun burns me, Quashy shall stay in the sun. Quashy shall earn the money, and I will spend it. Quashy shall lie down in every puddle, that I may walk over dry-shod. Quashy shall do my will, and not his, all the days of his mortal life, and have such chance of getting to heaven, at last, as I find convenient. This I take to be about what slavery is."

St. Clare goes on to say that "for pity's sake, for shame's sake, because we are men born of women and not savage beasts, many of us do not and dare not—we would scorn to—use the full power which our savage laws put into our hands." In truth, a compilation of the slave laws was one of the most convincing arguments against the whole system.

This book is characterized by Charles G. Ames,—whose long life of noble service to humanity included earnest work among the anti-slavery pioneers: "To my mind, the heaviest blow, though probably not the most telling one, ever struck against our slave system as a system was the compilation and

publication of Stroud's *Slave Laws*—a codification from the statute-books of the Southern States of their own barbarous methods of legislation, made necessary for the protection of the peculiar institution. All the recent sentimental defenses of it, as gentle, humane, and patriarchal, seem utterly to ignore the rugged facts, which Lawyer Stroud's book made as plain as the stratification of the rocks to the eye of the geologist."

In its actual administration, the system was in a measure softened and humanized. It was more humane in the border than in the cotton and sugar States, and it was generally better when a plantation was managed by its owner than when left to an overseer,—as the plantation of Fanny Kemble's husband had been left. But in one respect its disastrous effect was everywhere felt. By associating manual labor with the stigma of servitude, it bred, in free men, a strong disrelish for work,—a most demoralizing and ruinous influence. Inefficiency and degradation were the marks of the non-slaveholding whites. The master class missed the wholesome regimen of toil. Nature is never more beneficent than when she lays on man the imperative command "Thou shalt work." Of all ways of evading it the worst is to shift the burden to another man. In being driven to do other men's work as well as his own the negro found some compensation, but his enslaver paid a constant and heavy penalty.

CHAPTER XIII

THE STRUGGLE FOR KANSAS

The foremost politician of the Northwest, in the early '50s, was Stephen A. Douglas, United States senator from Illinois. He was a native of Vermont, and had early gone West and pushed his fortunes with energy, audacity, and shrewdness. He was an effective, popular speaker; and his short and stout frame and large head had won for him the nickname of "The Little Giant." He was a leader in the Democratic party, and a prominent Presidential candidate, but never identified with any great political principle or broad policy. He was chairman of the Senate committee on Territories, and early in the session of 1853-4 he introduced a bill for the organization of a vast section hitherto known as "the Platte country," a part of the Louisiana purchase, lying next to the western tier of States, and stretching from Indian Territory to Canada; all of which was now to constitute the Territory of Nebraska, or, as it was soon divided, the two Territories of Nebraska and Kansas. This region had as yet been scarcely touched by permanent settlers, but it was the next step in the great onward march toward the Pacific. It lay north of the line of 36 degrees 30 minutes, above which it had been declared by the compromise act of 1820 slavery should never be extended. Douglas incorporated in his "Kansas-Nebraska" bill, a clause declaring that the prohibition of slavery north of 36 degrees 30 minutes, by the act of 1820, had been "superseded by the principles of the legislation of 1850," and was "inoperative and void." Later he added the explanatory clause: "It being the true intent and meaning of this act, not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States." On its face, this was a proposal to withdraw the congressional prohibition of slavery in the Northwestern territory, and remand the question to the territorial population. But the latent purpose to distinctly favor slavery was proved when Senator Chase moved an additional clause: "Under which (the Constitution) the people of the Territory, through their appropriate

representatives, may, if they see fit, prohibit the existence of slavery therein"; and Douglas and his followers, in defiance of consistency, instantly threw this out. The meaning of the whole business was unmistakable; under the pretext of "popular sovereignty,"—Douglas's favorite watchword—the bars were thrown down and slavery was invited to enter.

The proposal took the country completely by surprise. The South was not asking for any such advantage as was offered, but was prompt to accept it. This of course Douglas had expected, and in this lay his personal gain as a Presidential candidate. But he had utterly misjudged the temper of the North. The general acquiescence in the compromise of 1850 might seem to indicate a weariness or indifference as to the slavery question. But just as in 1820 and in 1850, again there sprung up a wide and deep hostility to any extension of slavery, and now the old restraints on that hostility were gone, and its sources were newly filled. For now Clay and Webster were dead, and the case itself offered no room for compromise; no offset was possible. And the anti-slavery feeling had strengthened immensely throughout the North. Under the stimulus of *Uncle Tom's Cabin*, the inhumanity of the system had made the deepest impression on the popular imagination and conscience. To this system it was now proposed to throw open all the fair and fertile Northwest, in effect from the Mississippi to the Pacific. The North awoke like a giant from sleep. The old party organizations went down in the shock; a new party came instantly to birth; and the last triumph of slavery in Congress gave the signal for a six-years' campaign, ending in the triumph of the Republicans and the appeal of the South to revolution.

The debate in Congress was hot through the winter and spring of 1854. In the Senate, Seward and Sumner and Chase had been reinforced by such allies as Benjamin Wade of Ohio, Hamilton Fish of New York, Solomon Foot of Vermont, and William P. Fessenden of Maine. The supporters of the bill, with such leaders as Douglas and Cass from the North and Mason and Benjamin from the South, proved finally to number three-fourths of the Senate. In the House, party lines were completely broken, and the division was almost equal,—the bill passed by 113 to 110. Its supporters included all the Southern and just half of the Northern Democrats, and two-thirds of the few Southern Whigs. Its opponents were all the Northern and a third of the

Southern Whigs, with half of the Northern Democrats and the four Free-Soilers in the House.

The bill finally passed on the 25th of May, 1854, and there instantly began a hot battle for the congressional election. On the very next morning,—so Henry Wilson relates,—a meeting of about twenty members of the House was held; among their leaders were Israel Washburn, Jr., of Maine, and Edward Dickinson and Thomas D. Eliot of Massachusetts; and it was agreed that the best hope lay not in the Whig organization, but in a new party, for which the name "Republican" was chosen; and of which this occasion might now be considered the birth and christening. It came to its earliest maturity in Michigan, where the Whigs and Free Soilers united in the new party and carried the autumn election. But in most Northern States there was political confusion, heightened by the sudden appearance of the "American" party. This was the political development of the "Know-nothing" secret society, which came into existence the year before, on the basis of the exclusion of recent immigrants from political power. Its special animus was hostility to the Irish Catholics, and in various parts of the country it had for a year or two a mushroom growth. In Massachusetts, where the Whigs clung obstinately to their tradition and their social prestige, and the Republican party was at first only a continuance of the Free Soil, the Know-nothings won in 1854 a sweeping victory, carrying the State by almost two to one and electing all the members of Congress. That shrewd politician, Henry Wilson, contributed to the result; was elected to the United States Senate; and led the anti-slavery element which controlled the American party in Massachusetts and a year or two later divided its national organization. In other States, the term "anti-Nebraska" was the basis of a temporary union, such as in Ohio had a majority of 70,000. In New York the influence of Greeley, Seward, and Weed prolonged the Whig organization as an anti-Nebraska party. The roster of the new Congress was a jumble of Democrats, Whigs, Republicans, Americans, and anti-Nebraskans. But the general result was clear; Douglas's bill had turned an overwhelming administration majority into a minority of the popular vote; and the political revolution had carried the House in the first engagement. The result crystallized a year later, when an obstinate battle of many weeks for the House speakership ended in the election of Nathaniel P. Banks of Massachusetts.

The immediate practical effect of the Kansas-Nebraska Act was to throw the political destiny of those Territories into the hands of the future settlers. There were men at the North who were prompt to see and seize the opportunity. In February, 1854, three months before the bill became law, the New England Emigrant Aid Society was incorporated in Massachusetts. Its originator was Eli Thayer of Worcester, and among its active promoters was Edward Everett Hale. In the following July it sent to Kansas a colony of twenty-four, speedily followed by another of seventy, which founded the town of Lawrence. Other colonies followed from various Northern States, and other settlements were made. The natural westward movement of an active population seeking new homes and personal betterment was augmented and stimulated by a propaganda of freedom. Whittier gave the colonists a marching song:

We cross the prairies as of old
Our fathers crossed the sea,
To make the West as they the East
The home of liberty.

A counter movement was started from the South. Missouri was its natural base. But Missouri furnished the material and leadership for another kind of crusade. The rough and lawless element of a border community was brought out in its worst character by the appeal to champion the cause of slavery. Men high in political life were ready to utilize such forces. The first settlers of Lawrence, before they had time to raise their houses, were visited by a ruffianly mob from Missouri, who tried by threats and show of force to drive them from the Territory, but failed. When in November the first election was held for Territorial delegate to Congress, there was a systematic invasion by bands of Missourians, who captured the polling-places and elected their candidate by 3000 votes; though it was afterward proved that there were only half that number of voters resident in Kansas.

In 1855 the first Territorial Legislature was elected by a similar invasion of armed men, which chose the entire body. A foremost leader in these operations was United States Senator Atchison of Missouri. President Pierce's administration recognized the usurping faction. It sent a succession of governors—Reeder, Shannon, Geary, Walker (the last was sent by President Buchanan)—who, with the exception of the incompetent and

worthless Shannon, were by the inexorable facts of the situation won to the side of the Free-State men, and accordingly lost favor and their office. Meantime the usurping Legislature had enacted an extraordinary code of laws. By these statutes, decoying a slave from his master was punishable by death or hard labor for ten years; the circulation of writings inciting to revolt was made a capital offense; and the assertion by speech, writing, or the circulation of any book or paper, that slavery was not lawful in the Territory, was punishable by two years' hard labor.

It was not in the blood of free men to submit to such usurpation and tyranny. In the autumn of 1855 the Free State party held a convention, adopted a State constitution, and petitioned for admission to the Union. They elected State officers with Charles S. Robinson as Governor. This organization had really no legal standing; in form it was revolutionary. But the Free State party were not only resolute, but adroit. They had no mind to actively rebel against the United States Government, or come into collision with its forces. Governor Robinson, their foremost leader, was a man of New England birth, who had served a profitable apprenticeship in the settlement of California, and learned a lesson amid the complications of Federal authority and pioneer exigencies. Counseled by him and men of like mind, the Free State party, while maintaining the form of a State government, and disavowing the Territorial Legislature as fraudulent, always deferred to any express mandate of Federal authority. The Federal troops in the Territory were commanded by Colonel Sumner, afterward a distinguished commander in the Union army, and Governor Robinson (*The Kansas Conflict*), credits him with a loyal and generally successful purpose to preserve order and peace. In the mixed population there was much bad blood, many threats, and occasional violence, but no general conflict. The "border ruffians" were often insulting, and some murders were committed, but the Free State men kept steadily on the defensive, though there was among them a faction which favored more aggressive measures.

At last, a Free-State man was wantonly murdered; then an eye-witness of the murder was got away on an apparently trumped-up charge; this was followed by a bloodless rescue and the witness was carried off to Lawrence. Then a sheriff with his posse went to Lawrence to arrest one of the rescuers. In the night the sheriff was fired at and wounded. He retreated; and immediately afterward a formidable demonstration was made against the

town of Lawrence. The situation was peculiar. Many of the Free-State men were armed; contributions had been openly taken in the North for this purpose, and "Sharpe's rifles" was one of the familiar words of the day. But this policy was fixed—to disown and disobey the authority of the Territorial Legislature, but never to oppose or resist a United States official. In this way, says Robinson, the entire odium of all oppressive proceedings was fixed on the Federal administration; "the more outrages the people could get the government to perpetrate upon them the more victories they would gain, and this simply because the field of battle embraced the entire country, and the chief victories at this stage were to be moral, political, and national."

The Territorial authorities were bent on breaking down, if possible, the passive resistance of the Free-State men. Indictments were found, by a Federal grand jury, against a number of members of the Free-State government for "constructive treason," and they were put under arrest. Indictments were also found against two printing offices in Lawrence, and the principal hotel in the town. A large force of Missourians, led by a United States marshal, advanced on the town. The inhabitants protested, but agreed to respect the United States authority. The hotel and the two printing offices were accordingly destroyed. A considerable amount of lawless pillaging was done, and Governor Robinson's house was burned. Then the force was withdrawn.

The Free-State leaders, as Robinson states, were in no wise cast down by the course of events. Their actual losses had not been great; the temporary confinement of a few of their men did not seriously disturb them; and they considered that by their self-restraint and non-resistance they had put their enemies thoroughly in the wrong, and gained a most valuable vantage-ground for the ensuing Presidential and congressional elections—an estimate which the result fully justified.

But in their party were some spirits to whom these peaceful tactics were distasteful. Chief in this number was John Brown—little known to the world at large till a later time. He and his family of sons had made their homes in Kansas, impelled partly by the hostility to slavery which in him was a master passion. He was a man personally upright and kindly, of only moderate interest and capacity for the ordinary practical affairs of life, given to brooding on public events and ideal causes, and viewing them with

a fanatic's narrowness and a fanatic's absorption. He was a belated Puritan, and his natural place would have been with Cromwell's Ironsides. His ideas were largely influenced by his reading of the Bible, especially of the Old Testament. Of the modern State and the duties of the modern citizen he had no rational idea. Following the Old Testament analogy, he conceived of the slaveholders as the enemies of God—like the Canaanites; and he came to imagine for himself a mission like one of the Hebrew leaders. His favorite hero seems to have been Gideon, and to assail and overcome the Midianites, a handful against a host, became his dream.

How the peaceful tactics of the Free-State party suited his temper may be easily guessed, and four days after the attack on Lawrence (which was May 20, 1856), he acted on a plan of his own. At the head of a small group of men, including two of his sons and a son-in-law, he went at night down Pottawatomie creek, stopping at three houses. The men who lived in them were well-known pro-slavery men; they seem to have been rough characters; their most specific offense (according to Mr. Sanborn, Brown's biographer and eulogist), was the driving from his home by violent threats an inoffensive old man. John Brown and his party went down the creek, called at one after the other of three houses; took five men away from their wives and children; and deliberately shot one and hacked the others to death with swords.

Mr. Sanborn's defense of this act is: "Brown long foresaw the deadly conflict with the slave power which culminated in the Civil War, and was eager to begin it, that it might be the sooner over." He begins his chapter on "The Pottawatomie Executions": "The story of John Brown will mean little to those who do not believe that God governs the world, and that he makes his will known in advance to certain chosen men and women, who perform it consciously or unconsciously. Of such prophetic heaven-appointed men, John Brown was the most conspicuous in our time, and his life must be construed in the light of that fact." He also declares that the "execution" of these five men was an offset to the killing of five Free-State men by various persons during the preceding twelve-month, and that it was calculated to strike wholesome terror into evil-doers. The ethics, theology, and statesmanship of this defense are possible only to one bent on making Brown a hero at any cost.

The natural result of the Pottawatomie "executions,"—in which John Brown's complicity was for a time concealed—was a series of retaliations on both sides, and a state of affairs far more anarchic than Kansas had known before. This lasted through the summer of 1856. The general impression on the country was to strengthen the opposition to the usurpation of the Territorial Legislature, and to the administration which sustained it. In September there came a crisis. Another and graver attack on Lawrence was threatened, and this time a vigorous resistance was probable. But a new and able governor, John W. Geary of Pennsylvania, had been dispatched by President Pierce, with imperative instructions to pacify the Territory, as a pressing political necessity. Geary met Robinson—the treason prisoners had already been released—and as the two men had been near each other in the California troubles and thus had the advantage of a mutual acquaintance, an understanding was soon reached; Geary called off the dogs of war, and a time of quiet followed.

CHAPTER XIV

"FREMONT AND FREEDOM"

The Congress of 1855-6, divided between an administration Senate and an opposition House, accomplished little but talk. One chapter of this talk had a notable sequel. Charles Sumner, in an elaborate and powerful oration in the Senate, denounced slavery, "the sum of all villainies," and bitterly satirized one of its prominent defenders, Senator Butler of South Carolina. He compared Butler to Don Quixote, enamored of slavery as was the knight of his Dulcinea, and unconscious that instead of a peerless lady she was but a wanton. The response to the speech was made by a nephew of Senator Butler and member of the House, Preston S. Brooks of South Carolina. He entered the Senate chamber during a recess, accompanied and guarded by a friend and fellow member, Lawrence Keitt; approached Sumner as he sat writing at his desk, and without words felled him to the ground with a heavy cane, and beat him about the head till he was insensible. Sumner, a man of fine physique, was for a long time an invalid from the assault, and was unable for years to resume his place in the Senate.

It was not so much the individual act of Brooks as its treatment by his party and section that gave the deepest significance to the deed and produced the most lasting effect. A friendly magistrate sentenced Brooks to a nominal fine and so forestalled further prosecution. His party friends in Congress left all public rebuke of the deed to Republicans. A motion to expel Brooks and Keitt from the House failed of the necessary two-thirds vote. They resigned, and were promptly and triumphantly re-elected. Noisy applause of the attack came from all parts of the South, with a stack of canes marked "Hit him again." That better class of Southerners by whom the assault was felt, as one of them expressed it long afterward, "like a blow in the face," made no demonstration. So far from losing caste, as a gentleman or a public man, Brooks not only kept his place in society, but was honored a few months later with a public banquet, at which such men as Butler and Toombs and Mason joined in the laudations, and gave a background to the scene by free threats of disunion if the Republicans elected their President.

This treatment of Brooks made an impression at the North far beyond the first hot indignation at his brutal outrage. The condonation and applause of that outrage was taken as sure evidence of a barbaric state of opinion, the natural accompaniment of slavery. What made the matter worse was that the assault had a technical justification under the code of honor which it was Brooks's pride as a Southern gentleman to observe. The code called on a man who had given offense by his words to meet the offended man in a duel, and if he refused, he was fairly subject to public disgrace or even physical chastisement. Such a theory and practice, and the sentiments associated with it, stamped slavery with a heavier condemnation than orator or novelist could frame.

This one week in May, 1856, was dark with omens of impending catastrophe. On May 20 Lawrence was devastated; on the 22d, Sumner was assaulted; and on the 24th took place the Pottawatomie massacre. A shadow as of impending doom was reflected in Mrs. Stowe's second anti-slavery novel, *Dred*, which appeared about this time. While lacking the inspiration and power of *Uncle Tom's Cabin*, it had in the main a similar tone of humanity, sympathy and fairness. Again the better element of the Southern whites was portrayed, in the benevolent slave-holder Clayton; the brave Methodist preacher, Father Dickson; and the book's heroine, Nina Gordon. There were realistic and graphic pictures of the negro at his best, in Old Tiff and Milly. The sophistries and time-serving of ecclesiastics were fairly pictured. The fundamental attitude of the law in regarding the slave as the creature of his master's convenience was shown with historic fidelity. But the book took its name from a negro, half-prophetic, half-crazed, who maintained in the Dismal Swamp a refuge for slaves, and purposed an uprising to conquer their freedom. To Southern imaginations it might well recall Nat Turner and the horrors of his revolt. Mrs. Stowe inevitably idealized everything she touched; and to idealize the leader of a servile insurrection might well be regarded as carrying fire into a powder magazine. The moving expostulation of the Christian slave Milly with Dred, the death of Dred, the frustration of his plans, and the pitiful wrongs he sought to redress, veiled from the Northern reader the suggestion of other dangers and tragedies to which the Southern reader was keenly alive. As we read the book now, the glimpses of coming terror and disaster in

Dred's visions seem like a presage of the war which in truth was only four years away.

But the prevailing temper of the time was as yet little clouded by any such forebodings. It was a great wave of popular enthusiasm, sane, resolute, and hopeful, which moved forward in the first Presidential campaign of the Republican party in 1856. The convention met at Philadelphia in June. Its temper was well described in a letter from Samuel Bowles to his paper, the *Springfield Republican*,—which which from moderate anti-slavery Whig had become ardently Republican when the Missouri compromise was repealed.^[1]

"Certainly we never saw a political convention in which there was so much soul as in that at Philadelphia. It was politics with a heart and a conscience in it. Cincinnati (the Democratic convention) gathered the remains of a once powerful national party and contributed to its further sectionalization and destruction. Philadelphia called together the heart, the independence, and the brains of all parties, to establish a broader and juster nationality. Such a fusion of contradictory elements was never witnessed in this country before since the times of the Revolution. Nor could it happen now save under a great emergency, and from a controlling necessity. Such a combination of the material and mental forces of the republic as was represented in the Philadelphia convention, and united in its enthusiastic and harmonious results, has more power than any political combination ever formed before in this country, and cannot in the nature of things be long kept in the background. There is no law more certain than that which will throw such a union of the moral strength, intellectual activity, and youthful energy of the nation into supremacy, and that right speedily. It may be delayed for a season, but its course is onward and its victory is certain."

The declaration of principles dealt wholly with the slavery issue. It asserted that under the Constitution, as interpreted by the Declaration and the ordinance of 1787, slavery had no right to exist in any of the national Territories. It called on Congress to prohibit in the Territories "the twin relics of barbarism, slavery and polygamy." It dwelt with great emphasis on the wrongs of the Kansas settlers; the establishment of a Territorial Legislature by a fraudulent vote; its outrageous statute-book; the sustaining of the usurpation by the Federal government; the resulting disorder and

violence. Congress was asked to admit Kansas to the Union under its Free State organization. Nothing was said as to the fugitive slave law. There was an express disclaimer of any interference with slavery in the States. The doctrine of the party was embodied in a phrase which became one of its mottoes: "Freedom national, slavery sectional."

For its Presidential candidate the convention passed by all the well-known political leaders, and chose Col. John C. Fremont of California. Fremont, after a scientific and military education, had distinguished himself by a series of brilliant exploring expeditions in the farthest Northwest, marked by scientific achievement and stirring adventure. Arriving in California at the outbreak of hostilities with Mexico, he rallied and led the American settlers and drove the Mexicans from the territory. He took a leading part in organizing the State, and establishing freedom in its Constitution; and was elected to the United States Senate as a Free-Soil Democrat. His term as Senator was too brief to win eminence, but his career as a whole had been singularly various and distinguished. He was young; he had manly beauty, and a rare personal fascination. His brilliant and charming wife won favor for him. Even his name gave aid to the cause, and "Fremont and freedom" became the rallying cry of the campaign.

But Fremont's personality was an altogether minor element in the strength with which the Republican party first took the field, and won, not yet the country, but the strongholds of the North. The new party gave expression and effect to the anti-slavery sentiment which had become so deep and wide. It was wholly dissociated from the extremists who had shocked and alarmed the conservatism of the country; and Garrison and Phillips had only impatience and scorn for its principles and measures. Its leadership included many men experienced in congressional and administrative life, men like Seward and Sumner and Chase and Wade and Fessenden and Banks, who had matched themselves against the best leaders of the South and the South's Northern allies. It brought together the best of the old Whig, Democratic, and Free Soil parties. In its rank and file it gathered on the whole the best conscience and intelligence of the North. After the election the *Springfield Republican* pointed out that the party's success had been exactly along the geographical lines of an efficient free-school system, and it had been defeated where public schools were deficient, as in Pennsylvania, New Jersey, Indiana, and the solid South.

The immediate and burning issue of the campaign was Kansas. Whatever the exact right and wrong of its local broils, there was no question of the broad facts—the fraudulent election of the Legislature, the character of its statute-book, and its support by President Pierce's administration. It was the wrongs of the Kansas settlers far more than the wrongs of the Southern slaves on which the Republican speakers and newspapers dwelt. In truth the animus of the party was quite as much the resentment by the North of Southern political aggression as it was regard for the slaves or thought of their future condition. The policy of excluding slavery from the Territories, and thus naturally from the new States, tended ultimately to its discouragement and probable extinction where it already existed. But any such result appeared very remote.

The opposition to the Republican party was weighty in numbers, but inharmonious and with no definite creed. The Democratic platform was an equivocation. It declared for "non-interference by Congress with slavery in State or Territory." But this left it an open question whether any one could "interfere." Could the people of a Territory exclude slavery if they wished? Or did the Constitution protect it there, as Calhoun and his followers claimed? An ambiguity was left which permitted Calhoun men and Douglas men to act together against the common foe.

The Democratic candidate was James Buchanan of Pennsylvania. He was one of those men, decent and respectable, who go through a life of office-seeking and office-holding without a particle of real leadership, and are forgotten the moment they leave the stage unless circumstance throws them into a place so responsible as to reveal their glaring incompetence. He had escaped the odium which Pierce and Douglas had incurred, through his absence as Minister to England. There he had distinguished himself chiefly by his part in a conference at Ostend, in 1854,—incited by President Pierce and his Secretary of State, William L. Marcy of New York,—where he had met Mason of Virginia and Soule of Louisiana, ministers respectively to France and Spain; and they had issued a joint manifesto, declaring that the possession of Cuba was necessary to the peace and security of the United States, and the island should be obtained from Spain, with her consent if possible but without it if necessary. This became a recognized article in the Democratic and Southern policy. The Republican platform of 1856 denounced the Ostend manifesto, as the doctrine that "might makes right,"

"the highwayman's plea." It was left for a latter-day Republican to give to the same doctrine the politer name of "international eminent domain."

The American or Know-nothing party nominated ex-President Fillmore and adopted a platform inclining toward the Southern position. There was a secession of a Northern element, which nominated Banks, but he declined and supported Fremont. All the opponents of the Republican party laid stress on its sectional character. Both its candidates (for vice-president, William L. Dayton of New Jersey), were from the North; its creed aimed solely at the restriction of the South's peculiar institution; south of Mason and Dixon's line, it had an electoral ticket in four States only—Virginia, Maryland, Delaware, and Kentucky—and cast hardly 1000 votes. But the South itself had so completely ostracized even the most moderate anti-slavery sentiment that free political action was impossible. Thus, Professor Hedrick of the University of North Carolina said in reply to a question that he favored Fremont for President; and being denounced for this by a newspaper, he wrote to it a letter, saying in a modest and straightforward way that he had made no attempt to propagate his views, but he did desire to see the slaves free. The students burned him in effigy; the college authorities forced him to resign; a mob attacked him and he was driven from the State. It was in the same State that a college professor's right to free speech on a burning social question was vindicated by his students, his colleagues, and the community, in 1903, and that Trinity College became a leader in courageous and progressive sentiment on the questions of the hour. Few were the men bold enough even to try the question of personal independence in 1856. The suppression of free speech was in itself one of the strongest possible arguments for the Republican cause. The liberty of white men was at stake.

Conservatism, apprehension, timidity, in various phases, told against the new party and its candidate. Northern commerce was largely bound up with Southern interests. The threat of disunion weighed with some; Grant, in his memoirs, says it was this that led him to vote for Buchanan. Others shrank from trusting the helm in a tempest to hands as untried as Fremont's. The mob who hated "niggers" swelled the opposition vote. Taking advantage of the Know-nothing feeling, the fiction was persistently circulated that Fremont was a Catholic. The disorder in Kansas was pacified by the dispatch of a new Governor, Geary, to reassure the North. Finally, money

was spent on a scale unknown before to defeat the Republican party,—itself in the stage of poverty and virtue,—and spent probably with decisive effect in the critical October election in Pennsylvania.

Against these disadvantages the young party made head gallantly. It fired the youth of the North with an ardor unknown since the early days of the republic. It inspired the poets of the people. Great crowds sang the strains of the Marseillaise, with the refrain:

Free speech, free press, free soil, free men, Fremont and victory!

The older heads were satisfied by the moderation and wisdom of the party's principles. The reasonable element among the Abolitionists hailed this first great popular advance, and allied themselves with it. Whittier was the chief minstrel of the campaign. Of those to whom "the Union" had been the talismanic word, that part which cared for nothing better than the Union as it was, with slavery and freedom mixed, supported Buchanan or Fillmore. The part that loved the Union as a means to justice and freedom were for Fremont.

The October elections in Pennsylvania and Indiana showed that the first Presidential battle was lost. November confirmed that verdict. New England, New York, Ohio, Illinois, and the Northwest, had been outweighed by the South and its allies, and Buchanan was the next President. But never was defeat met with better courage or higher hopes for the next encounter. Some unknown poet gave the battle-song:

Beneath thy skies, November,
Thy skies of cloud and rain,
Around our blazing camp-fires
We close our ranks again.
Then sound again the bugle!
Call the battle roll anew!
If months have well nigh won the field
What may not four years do?

FOOTNOTES:

[1] A word should be said as to the frequency with which the *Springfield Republican* is quoted in this work. The author wrote an earlier book, *The Life and Times of Samuel Bowles*, (Century Co.)—the founder of the *Republican*. As the background of his life, a careful study was made of the political events during his years of editorial activity, 1844-77. The original matter for this was largely drawn from the files of the *Republican*. In studying the whole ground afresh for the present history, advantage was taken of this material, and further citations were drawn from the same paper. The interpretation of current events by an independent and sagacious newspaper yields invaluable material for the historian; and my study of the *Republican*, from the repeal of the Missouri compromise in 1854 to the present, has heightened my respect for the breadth, sobriety, and moral insight with which it judged the questions of the day.

CHAPTER XV

THREE TYPICAL SOUTHERNERS

In the group of leaders of public sentiment in the '30s and '40s, as sketched in Chapter V, some of the foremost—Clay, Webster, and Birney—were influential in both sections of the country. But in the next decade the division is clear between the leaders of the South and of the North. Let us glance at two separate groups.

Jefferson Davis was in many ways a typical Southerner. He was a sincere, able, and high-minded man. The guiding aim of his public life was to serve the community as he understood its interests. Personal ambition seemingly influenced him no more than is to be expected in any strong man; and, whatever his faults of judgment or temper, it does not appear that he ever knowingly sacrificed the public good to his own profit or aggrandizement. But he was devoted to a social system and a political theory which bound his final allegiance to his State and his section. After a cadetship at West Point and a brief term of military service, he lived for eight years, 1837-45, on a Mississippi plantation, in joint ownership and control with an older brother. In these early years, and in the seclusion of a plantation, his theories crystallized and his mental habits grew. The circumstances of such life fostered in Southern politicians the tendency to logical and symmetrical theories, to which they tenaciously held, unmodified by the regard for experience which is bred from free and various contact with the large world of affairs. Davis fully accepted the theory of State sovereignty which won general favor in the South. In this view the States were independent powers, which had formed with each other by the Constitution a compact, a business arrangement, a kind of limited partnership. If the compact was broken in any of its articles, or if its working proved at any time to be unsatisfactory and injurious, the partners could withdraw at will. This theory found more or less support among the various utterances and practices of the framers of the Constitution and founders of the government. In truth, they had as a body no consistent and exact theory of the Federal bond. Later circumstances led their descendants to incline to a stronger or a looser tie,

according to their different interests and sentiments. The institution of slavery so strongly differentiated the Southern communities from their Northern neighbors, that they naturally magnified their local rights and favored the view which justified them in the last resort in renouncing the authority of the Union if it should come to be exercised against their industrial system. State sovereignty was the creed, and the slavery interest was the motive.

To a man living like Davis on his own plantation, the relation of master and slave seemed a fundamental condition of the social order. Not only his livelihood rested on it, but through this relation his practical faculties found their field; his conscience was exercised in the right management and care of his slaves; there was a true sentiment of protection on his side and loyalty on theirs. His neighbors and friends were situated like himself. The incidental mischiefs of the system, the abuses by bad masters, the ignorance and low morality of the slaves,—these things they regarded, let us say, as an upright and benevolent manufacturer to-day regards the miseries of sweatshops and the sufferings of unemployed labor. Such things were bad, very bad, but they were the accidents and not the essentials of the industrial system. They resented the strictures of their critics; they were apprehensive of the growing hostility in the North to their institutions; if the national partnership was to last they must have their rights under it; and one of those rights was an equal share in the national domain.

Davis entered into active politics when he was elected to Congress in 1844. Repudiation was then in favor in Mississippi, and he opposed and denounced it. He supported the Mexican War in the most practical way, by taking command of a volunteer regiment from Mississippi. He served with distinguished gallantry, and was severely wounded at Buena Vista. After the war he entered the United States Senate. He supported the compromise of 1850, regarding it as substantially a continuance of the truce between the sections, and not now sympathizing with those who threatened disunion. Later, President Pierce made him Secretary of War; in the Cabinet he was the leading spirit; and this, with a weak President, meant large power and responsibility. He showed the extent of his partisanship by supporting with the full power of the administration the Territorial government imposed on Kansas by a palpably fraudulent vote.

In 1856 he returned to the Senate, and came to be recognized as the foremost champion of the Southern interest. He was not a leader in any such sense as Jefferson or Clay or Calhoun; but he was a representative man, thoroughly trusted by his associates, their most effective spokesman, and going by conviction in the midstream of the dominant tendency. He had that degree of ambition which is natural and normal in a strong man. He was an effective and elegant orator. When secession came he was not its originator, but one of a set of men—on the whole the most considerate and influential men of the Gulf and cotton States—who took the responsibility of leading their section into revolution, in the interest of slavery.

In this typical Southern leader, as in his class, were blended the elements of a disposition and will that would halt before no barrier to its claim of mastery. A slaveholder, accustomed to supremacy over his fellowmen as their natural superior; a planter, habituated to the practical exercise of such supremacy over hundreds of dependents; a member of an aristocracy, the political masters of their section, and long the dominant force in the nation; a theorist, wedded to the dogma of State sovereignty, and convinced of the superiority of Southern civilization; the self-confident and self-asserting temper bred by such conditions—here was a union of forces that would push its cause against all opposition, at the cost if need be of disunion, of war, of all obstacles and all perils.

By a natural exaggeration, at a later time the President of the Confederacy was regarded at the North as the very embodiment of its cause. To the unmeasured hostility on this account was added the opprobrium of deeds in which he had no part. He was charged for a time with complicity in the murder of Lincoln. He was branded with responsibility for the miseries in Andersonville and the other prison-pens in the war,—but without a particle of evidence. Admiration was yielded by the North to Stonewall Jackson even in his life-time; there was early recognition of Lee's magnanimous acceptance of defeat; but the bitterest odium was long visited upon Davis. It was heightened by the tenacity with which his intense nature clung to "the lost cause" as a sentiment, after the reality was hopelessly buried. The South itself gave its highest favor to Lee, its most effective defender, and a man of singularly impressive character; while Davis's mistakes of administration, and his reserved and over-sensitive temper chilled a little the recognition of his disinterested and loyal service. But in the retrospect

of history he stands out as an honorable and pathetic figure. The single warping influence of his whole career was the mistake he shared with millions of his countrymen,—the acceptance and exaltation of slavery. He was faithful to his convictions; he was free from covetousness and meanness; and in his personality there were high and fine elements of manhood. "A very intense man and a very lovable man" was the judgment of one who was his intimate associate through the war.

"Love of power was so much weaker in him than love of his theories that when Congress passed laws enlarging his prerogatives he wrote long messages declining them on constitutional grounds." A friend described him as "a game-cock—with just a little strut." Said one who stood in close relations with him: "He was so sensitive to criticism and even to questioning that I have passed months of intimate official association with him without venturing to ask him a question." Pure in his personal morals, but never having made a religious profession, under the responsibilities of the Presidency he turned for support to religion, and was confirmed in the Episcopal Church. Under imprisonment, indignities, obloquy, long seclusion with the memories of a ruined cause, he bore himself with manly fortitude and dignity. Schooled by inexorable reality, he finally acquiesced in the established order, and his last public words were of fidelity and faith for the new America.

Before the war, Robert Toombs of Georgia played some such part to the Northern imagination as Phillips or Sumner to the Southern. He was regarded as the typical fire-eater and braggart. He was currently reported to have boasted that he would yet call the roll of his slaves at the foot of Bunker Hill monument. But in truth this ogre was made of much the same human clay as the Massachusetts Abolitionists. He is well pictured, together with Alexander H. Stephens of Georgia, in Trent's *Southern Statesmen of the Old Regime*,—a book admirable in its spirit and its historic fidelity. Both Toombs and Stephens represented, as compared with Davis, the more moderate sentiment of the South, until they parted company with each other on the question of secession. Trent prefaces the companion portraits with a sketch of the typical Georgian; his State, like the other Gulf States, less civilized and orderly than Virginia and South Carolina, less critical and more enthusiastic; the Georgian, "the southern Yankee," "loving success, strength, straightforwardness, and the solid virtues generally, neither is he

averse to the showy ones; but above all he loves virtue in action." Among Southerners, says Trent, the Georgian is nearest to a normal American. Toombs inherited property; grew up like other Southern boys of the prosperous class; rode and hunted and studied a little in the interims. As a lawyer, he would not take a case unless satisfied of its justice. He was of robust physique, vigorous intellect, and high spirits; and he was happy in his family life.

Stephens worked his way up from poverty, and never lost an active sympathy with the struggling. He helped more than fifty young men to get an education. He was of a slight and fragile frame, and had much physical suffering, which he bore with indomitable courage. His conscientiousness was almost morbid. His temperament was melancholy, and his life was lonely. In early life he was twice in love, but poverty forbade his marriage. He was a clear and logical thinker, much given to refined exposition of constitutional theories, but deficient in large culture and philosophy. He held the doctrine of State sovereignty, but from first to last he opposed secession as against the true interest of the States. At the beginning of his career he was active in opposing the vigilance committees organized to harry anti-slavery men. He supported the annexation of Texas, though objecting to doing it in the interest of slavery,—slavery, he said, was a domestic matter, which the Federal government had no call to take care of. He and Toombs generally stood together, as Whigs and Unionists. They opposed the Mexican War, on the ground that the Union was not to be extended by force; neither, they both said later, was it to be maintained by force. But they opposed the exclusion of slavery from the Territories by the Wilmot proviso; and in the debate Stephens declared that the morality of slavery stood "upon a basis as firm as the Bible," and as long as Christianity lasted it could never be considered an offense against the divine laws. The two men did yeoman's service in carrying through the 1850 compromise, and afterward in persuading Georgia not to take part in the Nashville convention—a disunionist scheme which proved abortive. They, with Howell Cobb, held Georgia for the compromise and for the Union, and thus fixed the pivotal point of Southern politics for the next decade. They became leaders in the Constitutional Union party, which, in Georgia, succeeded the Whig. They made vigorous and successful fights against the Know-nothing folly. They accepted the gains which came to the South

through Douglas's breaking down of the Missouri compromise, and, a little later, the Dred Scott decision of the Supreme Court; but they diverged from Davis, by not favoring the active intervention of Congress to protect slavery in the Territories. Toombs was accused of abetting Brooks's attack on Sumner, which he disclaimed; but he found nothing to hinder his taking part in a banquet in Brooks's honor a few months later, and on this most ill-omened occasion he joined in the threats of disunion if Fremont should be elected. But still the catastrophe lingered, and seemed improbable. Stephens left Congress in 1858. Two years more, and secession became a burning question; Stephens and Toombs took opposite sides, but, the issue decided, they both made common cause with their State. Toombs served in the Confederate Cabinet and Army. Stephens, vice-president of the Confederacy, seven years after the close of the war again became a member of the House; an attenuated figure, confined to a wheel-chair, but still vital and vigorous; respected by all; his presence a visible symbol of the spanning of "the bloody chasm."

CHAPTER XVI

SOME NORTHERN LEADERS

Turning now to the North, the principal leaders in its political life have already been mentioned, except Lincoln, whose star had not yet risen; but it is worth while to glance at some of those who, apart from Congress and public office, were molding public sentiment. Perhaps the man of the widest influence on public opinion was Horace Greeley. Through his *New York Tribune* he reached an immense audience, to a great part of whom the paper was a kind of political Bible. His words struck home by their common sense, passion, and close sympathy with the common people. A graduate of the farm and printing office, he was in close touch with the free, plain, toiling, American people, and in no man had they a better representative or a more effective advocate. There was in him something of John Bright's sturdy manhood, direct speech and devotion to human rights; something, too, of Franklin's homely shrewdness,—though little of Franklin's large philosophy or serenity. He was at first a Henry Clay Whig, and always a zealous protectionist; then in alliance with the anti-slavery element in the party, and soon the leading Republican editor. He was a lover of peace, in active sympathy with social reforms, sometimes betrayed into extravagances, but generally guarded by his common sense against extremists and impracticables. His limitations were a want of large culture, a very uncertain judgment in estimating men, and a temperament liable to such sudden ebb and flow that he fell sometimes into rashness and sometimes into panic. But he was disinterested and great-hearted. Other men broadened the *Tribune's* scope; its editorial tone was for its audience persuasive and convincing; and the *Tribune* was one of the great educational influences of the country. Beside it stood the *New York Times*, edited by Henry J. Raymond, an advocate of moderate anti-slavery and Republican principles, with less of masterful leadership than the *Tribune*, but sometimes better balanced; and the *Herald*, under the elder James Gordon Bennett, devoted to news and money-making, and pandering to Southern interests.

The clergy at the South were by this time generally united in the defense of slavery. At the North, there was great variety among them. Many ministers ignored slavery as apart from their province. Many spoke of it occasionally as a sin, but regarded it as little concerned with that daily life of their people which was their main concern. A few treated it as a great national wrong, speaking such denunciation as the Hebrew prophets gave to the national sins of their people; and of these some were driven from their pulpits. A few expressed open sympathy or apology for slavery,—such as Dr. Nehemiah Adams, of Boston, and Bishop Hopkins, of Vermont.

The foremost preacher in America was Henry Ward Beecher. He was above all things a preacher,—charged with a great spiritual message; of extraordinary and various eloquence, dramatic, inspiring, thrilling; impelled and sometimes controlled by a wonderful imagination. He was taking a leading part in transforming the popular belief. Theology has radically altered under two influences,—the new view of facts given by science, and a higher ethical and spiritual feeling. It was under the ethical and spiritual impulse that Beecher so altered the emphasis of the traditional theology, so dwelt on the love of God, on Christ's character as the revelation of God, on the opportunities and incitements of daily life, on all the hopeful and joyful aspects of existence,—that in the minds of his hearers the harsher elements, not only of Calvinism, but of the whole traditional orthodoxy, melted as imperceptibly and steadily as icebergs melt when they drift southward. He always avoided any avowed or precipitate break with the old system of dogma,—partly from a personal sentiment associated with the faith of the fathers; partly from an instinctive preference of practical and emotional over intellectual methods; and partly from a studied regard to the most effective results,—a shrewdness which tempered his impetuosity.

In these stirring days Beecher began to take active part in political discussion,—rarely in his pulpit, but as an occasional speaker at political meetings, or as a writer in the New York *Independent*. His ground was that of moderate anti-slavery and Republicanism. Shut off on the political platform from the highest flights of his pulpit oratory, he yet had large scope for his ideality, his common sense, his rich and abounding humor, his marvelous range of illustration from all things in earth and heaven. As the public questions of the day came still closer home to the business and bosoms of men, he dealt with them more freely in his preaching, though

never to the subordination of the personal religious life as the paramount interest. One scene in his church comes vividly to mind; after the sermon, he stated the case of a little slave girl, allowed to come North on the chance of her being ransomed; and after a few moving words, he set her beside him—a beautiful, unconscious child—and money rained into the contribution boxes till in a few minutes the amount was raised, and the great congregation joined in a triumphant closing hymn.

Of a different type was Theodore Parker. He stood in his pulpit, the embodiment of courageous attack on every falsehood and abuse as it appeared to the lofty and luminous mind of the preacher. With his prophecy there mingled no expediency. He spoke the truth as he saw it, and let consequences take care of themselves. For a generation, the Unitarian ministers had denied the doctrine of the Trinity, but they held the founder of Christianity in such reverence that they would scarcely define his divine or semi-divine nature. Parker spoke frankly of Jesus as a man, and a man liable to imperfections and mistakes, while he honored him as the greatest leader of humanity. The Unitarians,—their intellectual radicalism kept well in check by the conservatism natural to their social and ecclesiastical traditions,—had held to a decided supernaturalism. Parker put religion on a purely natural basis, and sent home to men's consciousness the ideas of God and immortal life. His sermons were iconoclastic, but his prayers were full of reverence, aspiration, and tenderness. He was ostracized by most of the Unitarian churches, and dreaded by the orthodox, but he was a power in Boston and in America. He attacked social wrongs as fearlessly as he discussed theology. Against slavery he struck as with a battle ax. He was not greatly concerned with constitutions or tolerant of compromises. When a fugitive slave was seized in Boston, Parker took active part in a project of rescue. He roused the conscience of New England and the North. He died at fifty, just before the Civil War, consumed by his own fire.

The fable of the traveler who clung the closer to his cloak when the wind tried to strip it off but cast it aside when addressed by the sun's genial warmth, had an illustration in the many who surrendered their prejudice and selfishness, not at the bidding of the stormy reformers, but touched by the serene light of Emerson. Emerson's specific influence on slavery or any other social problem is hard to measure, for his power was thrown on the illumination and inspiration of the individual man. But in the large view his

was an incomparable influence in diffusing that temper of mingled courage and sweetness, the idealist's vision and the soldier's valor, which is the world's best help and hope. He spoke out against slavery whenever he saw that his word was needed; he vindicated the right of the Abolitionists to free speech, whether they spoke wisely or not; and in some of his poems, as the "Concord Ode," and "Boston Hymn," he thrillingly invoked the best of the Puritan and Revolutionary temper to right the wrongs of the present. It was said of him that he gave to the war for the Union, "not one son, but a thousand." But he also gave watchwords that will long outlast the issues of the war and our issues of to-day. The homely yet soaring idealism of the true American will always answer to the word, "Hitch your wagon to a star."

The group of writers who gave brilliancy to this period have already been cited as champions of freedom. Most effective in his advocacy was Whittier, who, in early days, took active part in politics as a Free Soiler, and afterward did greater service by the lyrics of freedom, which like his songs of labor and poems of home life and religion, went to the heart of the common people as no other American voice has done. One who reads Whittier to-day may be allowed to wish that he had known the sunny as well as the shady side of Southern life; and that, as in a later poem he softened his fierce criticism on Webster, so he had celebrated the virtues and graces of his white countrymen below the Potomac and the Ohio, as well as the wrongs of his black countrymen. Lowell, usually a scholarly poet, spoke to the common people nobly for peace and freedom in the Biglow Papers. In 1857 the *Atlantic Monthly* was started under his editorship, the organ at once of the highest literary ability of New England, and of pronounced anti-slavery and Republican sentiment. After he gave up the editorship in 1862, he wrote at intervals of a few years the second series of Biglow Papers, and his "Commemoration Ode" was the noblest literary monument of the triumph of Union and freedom.

Longfellow's main vocation was away from the turmoils of the hour. He interpreted to America the art, the culture, the legends of Europe and the Middle Ages; he found the poetry in the early soil of America, as in "Hiawatha" and "Evangeline." He was not deaf to the wrongs of the slave, and gave to them some touching poems. But his finest contribution to the national idea was the apostrophe to the Union which crowns "The Building

of the Ship." It was written in 1849, in the stress of the struggle over California, and it may well last as long as the nation lasts. The poem is an idyl of the ship-building folk and the sea; the consummation is the bridal of the captain and the builder's daughter, and the launching of the ship, christened "The Union"—emblem of the wife's and husband's voyage begun together on the sea of life; then,—

Thou, too, sail on, O Ship of State!
Sail on, O Union, strong and great!
Humanity with all its fears,
With all the hopes of future years,
Is hanging breathless on thy fate!
We know what Master laid thy keel,
What workmen wrought thy ribs of steel,
Who made each mast, and sail, and rope,
What anvils rang, what hammers beat,
In what forge and what a heat
Were shaped the anchors of thy hope!
Fear not each sudden sound and shock,
'Tis of the wave and not the rock;
'Tis but the flapping of the sail,
And not a rent made by the gale!
In spite of rock and tempest's roar,
In spite of false lights on the shore,
Sail on, nor fear to breast the sea!
Our hearts, our hopes, are all with thee.
Our hearts, our hopes, our prayers, our tears,
Our faith triumphant o'er our fears,
Are all with thee,—are all with thee!

CHAPTER XVII

DRED SCOTT AND LECOMPTON

Under Buchanan's administration, 1857-61, three events befell which were like wedges riving farther and farther apart the national unity. They were the Dred Scott decision by the Supreme Court, the Lecompton constitution in Kansas, and John Brown's raid at Harper's Ferry.

President Buchanan declared in his inaugural that the people of a Territory had a right to shape their institutions in their own way, but as to how far that right extended before they organized as a State, the United States Supreme Court was the proper arbiter. Two days after the inaugural, the Supreme Court announced its decision, in a case made up expressly to test the status of slavery in the Territories. Suit was brought before it to obtain freedom for Dred Scott, who being held as a slave in Missouri had been taken by his master to reside for a time in Illinois, and afterward at Fort Snelling in unorganized territory north of 36 degrees 30 minutes, and so free under the Missouri compromise. It was claimed that by being taken upon free soil, in State or Territory, he became free. The court, in an elaborate opinion delivered by Chief-Justice Taney, dismissed the case for want of jurisdiction, on the ground that no person of slave descent or African blood could be a citizen of the United States or be entitled to sue in its courts. The court affirmed that the sweeping language of the Declaration, that "all men are born free," had no application to negroes, because at that time they were generally regarded "as so far inferior that they had no rights which the white man was bound to respect." The case being thus thrown out of court, all further discussion of its merits was superfluous—a mere *obiter dictum*, without legal force. Nevertheless, the court through its chief-justice went on to pronounce upon the plaintiff's claim and declare it baseless; on the ground that inasmuch as a slave was lawful property, and the Constitution decreed that no man should be deprived of his property without due process of law, therefore an act of Congress declaring in effect that when carried beyond a certain line a slave was lost to his master, was unconstitutional and void. Thus the court set aside as invalid the exclusion of slavery from

the Territories by Congress. As to the effect of a slave's residence in a free State by his master's act, followed by a return to a slave State,—the court held that this question belonged properly to the Missouri courts, which had decided against the slave's claim.

Two of the justices, McLean and Curtis (Northern Whigs), dissented emphatically from the decision. Justice Curtis pointed out, as to the alleged incapacity of the negro for citizenship at the era of the Constitution, that at that period free negroes had the right of suffrage in five of the thirteen States. As to the argument against depriving a man of his property, the contention of the Republicans was that slaves were property, not by the common usage of mankind, but only by local law, and that when a slaveholder moved into a Territory he did not carry with him that local law by which alone a man could be held as a chattel. But the authoritative voice of the highest court in the land had proclaimed these amazing propositions,—that the guarantee of freedom to the Northwest, which the nation had accepted for a third of a century, was invalid, and that no person with negro blood had any civil rights as a citizen of the United States.

When, forty years later, a law of Congress establishing an equitable income tax was declared unconstitutional by the Supreme Court, and a Democratic national convention protested against that decision, the Republican papers of the day denounced the protest as hardly less than treason. But the Republicans of an earlier day were not so reverential toward the Supreme Court as an infallible authority. Could the court as a finality outlaw the negro from the common rights of man, and prevent Congress from establishing freedom in the national domain? Not so thought the men who led the Republican party and the sentiment of the North. The New York Legislature, for example, promptly enacted that African descent should not disqualify from State citizenship; that any slave brought into the State by his master became free, and any attempt to hold him was a penal offense. It passed a resolution declaring that the Supreme Court had lost the confidence and respect of the people. Lincoln said in his dry way that the Republican party did not propose to declare Dred Scott a free man (by the way, he was soon manumitted by his former master's daughter)—but neither did they propose to accept the court's decision as a political rule binding the voters, or Congress, or the President; and they intended so to oppose it as to have it reversed if possible, and a new judicial rule established. Seward was

very outspoken. He said a year later, in the Senate, "The people of the United States never can and never will accept principles so unconstitutional, so abhorrent. Never, never! Let the court recede. Whether it recede or not, we shall reorganize the court, and thus reform its political sentiment and practices, and bring them in harmony with the Constitution and the laws of Nature."

The court's decision, *obiter dictum* and all, extended only to the power of Congress over the Territories. What a Territorial Legislature might do by way of excluding slavery had not been passed on; and Douglas thus found room for his doctrine of "popular sovereignty." But as to just what that meant, he was adroitly non-committal, till the more adroit Lincoln in the joint debate in 1858 drew from him the statement that a Territorial Legislature might by "unfriendly legislation" practically exclude slavery—a committal which ended his favor from the South.

But meanwhile attention was focused on a different and more concrete question. Buchanan began his administration with an effort to pacify Kansas, by sending a new governor, Robert J. Walker, of Mississippi, with strong pledges from the President that the people should have fair dealing. But the situation was badly complicated. The Legislature had provided for a convention to frame a State Constitution. This was to be elected on the basis of a census taken by the county officials. But the Free State men having never recognized this Territorial Legislature, and having kept up the form of a State government of their own, there were no officials to take the census and register the votes in fifteen out of the thirty-four counties, and the registration was confined to the part of the Territory lying convenient for invasion from Missouri. Under these circumstances the Free State party resisted all Governor Walker's appeals to take part in the election, and the convention was chosen by a small vote. It met at Lecompton, and drew up a constitution. One article provided for the exclusion of free negroes, and another forbade any amendment for seven years. One section affirmed ownership of slaves as an inviolable right of property, and forbade any adverse legislation; and this section alone of the Constitution was submitted to the popular vote. A vote of the people was ordered, as between "constitution with slavery" and "constitution without slavery." The Free State men scouted the whole proceeding, and refused to vote. So, by the form of a popular election, the "constitution with slavery" was adopted.

The administration now gave its whole strength to the admission by Congress of Kansas with the Lecompton constitution. The same election that made Buchanan President had made the House as well as the Senate Democratic. But it was no longer the disciplined and docile Democracy of old. The proposal to admit a State under a constitution of which only a single article had been submitted to even the form of a popular vote, was too obnoxious for any but the most unflinching partisans. It was impossible to a leader whose watchword was "popular sovereignty."

Douglas broke squarely with the administration, and acted with the Republicans against the bill. He came in close touch with their leaders, and his open accession to their party seemed probable. Meanwhile in the Democratic party he had a small following in Congress and a large following among the people. The struggle in Congress over the Lecompton bill was obstinate. Senator Crittenden of Kentucky,—belonging nominally to the remnant of the American party, which sheltered some of the moderate Southerners, and himself one of their best leaders—proposed a bill submitting the entire Constitution to a direct popular vote. This was defeated in the Senate, but passed by the House, with the support of the Republicans. A committee of conference sought for some agreement, and found a singular one: a bill proposed by and named from Mr. English, a Douglas Democrat from Illinois. It provided that the Constitution should be submitted to a popular vote; if accepted, Kansas was at once to become a State and receive an immense land grant; if rejected, it was to remain a Territory until it had the population requisite for one representative in the House,—93,340,—and get no land grant. The combination of a bribe and a threat gave an almost grotesque air to the proposition. Party lines were broken in the vote; Douglas and a part of his associates joined with the bulk of the Republicans in opposing the bill; but enough of both sides saw in it the best they could get, to win a majority in both houses, and the English bill became law, in April, 1858.

In the previous summer, the assurances of Governor Walker and the advice of sagacious politicians like Henry Wilson had induced the Free State men to give up their separate organization and take part in the election of the Territorial Legislature. They carried the election by two to one. But again fraud was attempted. From a hamlet with eleven houses was sent in a return of 1624 votes,—the names, it was found, copied in alphabetical order from

a Cincinnati directory; and from another district an equally dishonest return was made; and the two would have changed the majority in the Legislature. This catastrophe was averted by the firmness of Walker, who threw out the fraudulent returns. In this he was vainly opposed by the Territorial chief justice, a servile partisan. After this the President turned against Walker and in the following December drove him into resignation. He protested in an indignant letter that the President had betrayed and deserted him, and that his policy had saved the Territory from civil war and brought the entire people together for the first time in a peaceable election.

Indeed the troubles of Kansas were practically ended. The people rejected the Lecompton constitution and its land grant by a heavy majority. They framed and ratified a Constitution of their own at Wyandotte, and came into the Union as a free State when secession had left the Republicans in full control of Congress in the winter of 1860-1.

The accession of Kansas to the Free States was full of significance. It was fresh evidence that in the actual settlement of the new country the inevitable preponderance lay with free labor. Its industrial advantage could not be overborne by a hostile national administration, nor by the inroads of aggressive and lawless neighbors. The management of their affairs by the Free State settlers was a great vindication of the methods of peace. The guerrilla warfare undertaken by Brown and his party had won no real advantage. The decisive triumph came from the habitual self-control of the Free State men, their steady refusal to resist the Federal authority, and the sympathy they thus won from the peaceful North, turning at last the scales of Congressional authority in their favor. Thus far, peace and freedom moved hand in hand.

The tide in the country was running strongly with the Republicans. The alliance with Douglas failed, because his price was the Senatorship from Illinois, and the Republicans of that State were "willing to take him on probation, but not to make him the head of the church." They named Abraham Lincoln as their candidate for the Senatorship, and these two men held a series of joint debates which fixed the attention of the country; with the result that Lincoln won the popular majority, but Douglas the Legislature and the Senatorship. In the country at large, the Republicans made such gains, in this election of 1858, that they won the control of the

National House. The Whigs were defunct, the Americans were a dwindling fraction; the "Constitutional Union" party held a number who sought peace above all things; but the great mass divided between the Republicans and the Democrats. Douglas, the most dextrous of rope-dancers, had regained his place as the foremost man in his old party. The Republicans held firmly to their constitutional principles; but the depth of the antagonism of the two industrial systems grew ever more apparent. Lincoln had declared: "A house divided against itself cannot stand. I believe this government cannot endure permanently half slave and half free. I do not expect the Union to be dissolved, I do not expect the house to fall, but I do expect it will cease to be divided. It will become all one thing or all the other." Seward, too, had said: "The United States must and will, sooner or later, become either entirely a slave-holding or entirely a free-labor nation." Between the two systems there was an "irrepressible conflict." But he added that he desired and expected the triumph of freedom "not otherwise than through the action of the several States, co-operating with the Federal Government, and all acting in conformity with their respective constitutions." Yet over these utterances of Lincoln and Seward some conservatives in the party shook their heads, as liable to be misinterpreted and to needlessly alarm the South. But men more radical than Lincoln and Seward were coming to the front. Sumner was silenced for the time, but among the leaders of Massachusetts now appeared John A. Andrew, her future war Governor, large-brained and large-hearted. In this year, 1858, at the State convention of which he was president, he said, "I believe in the Republican party because I believe that slavery, the servitude of humanity, has no business to exist anywhere; because it has no business to exist and no right to be supported where the sun shines or grass grows or water runs."

One of the sensations of the time was a book, dated 1857, which showed a rift in the solid South. It was *The Impending Crisis*, by Hinton Rowan Helper, a North Carolinian by long descent, birth, and residence; the son of "a merciful slave-holder"; writing at the age of twenty-seven. His standpoint was that of the non-slave-holding Southern white. "Yankee wives"—so he begins—"have written the most popular anti-slavery literature of the day. Against this I have nothing to say; it is all well enough for women to give the pictures of slavery; men should give the facts." His method is largely the comparison of the industrial progress of the two

sections, and his chief arsenal is the United States census. North and South started, he says, with the establishment of the government and the North's abolition of slavery, with advantage in soil, climate, rivers, harbors, minerals, forests, etc., on the side of the South, but in sixty years she has been completely outstripped. He brackets Virginia and New York; at the start, Virginia had twice the population of New York; now New York's population doubles Virginia's. Virginia's exports have been about stationary at \$3,000,000; New York's have risen from \$2,500,000 to \$87,000,000. New York almost trebles Virginia in valuation, even including slaves. So he compares North Carolina and Massachusetts; the empty port of Beaufort and the teeming one of Boston; the northern State with a production from manufactures, mines, and mechanic arts double the whole cotton crop of the South. So he compares South Carolina and Pennsylvania. Again: Sail down the Ohio, and you will find the lands on the right bank worth double and treble those on the left bank,—slavery makes all the difference. The hay crop of the free States is worth more in dollars and cents than all the cotton, tobacco, rice, hay, and hemp, in the slave States. The marble and free-stone quarries in New England yield more wealth than all the subterranean deposits in the slave States. And so for many pages he goes on piling Pelion upon Ossa with his figures. He pictures the South's economic dependence: "In infancy we are swaddled in Northern muslin; in childhood we are humored with Northern gewgaws; in youth, we are instructed out of Northern books; at the age of maturity, we sow our wild oats on Northern soil.... In the decline of life we remedy our sight with Northern spectacles, and support our infirmities with Northern canes; in old age we are drugged with Northern physic; and finally, when we die, our inanimate bodies, shrouded in Northern cambric, are stretched upon the bier, borne to the grave in a Northern carriage, entombed with Northern spade, and memorized with a Northern slab!"

Land in the Northern States averages \$28.07 an acre in value, and in the Southern States it is \$5.34. The difference measures the robbery committed on a community of 10,000,000 by the 350,000 slave-holders. These "chevaliers of the lash" he arraigns with a rhetoric compared to which Sumner's and Phillip's words were pale. The slave-holders are worse, he declares, than thieves, for they steal from all. They are worse than common murderers, for they issue to themselves licenses to murder; the slave who

resists may be killed. He is for no half-measures,—he avows himself a free-soiler, an emancipationist, an abolitionist, a colonizationist. "The liberation of five millions of 'poor white trash,' from the second degree of slavery, and of three millions of miserable kidnapped negroes from the first degree, cannot be accomplished too soon." The process is simple and easy; emancipation will be followed by such an instant rise in all values and in general prosperity that the slave-owners themselves will be recouped. Let each of these, he says, give to each slave his freedom and \$60 in money; half that sum will transport him to Liberia, whither all should go. He foresees the tempest which his book will arouse. "What are you going to do about it? Something dreadful as a matter of course? Perhaps you will dissolve the Union. Do it, if you dare! Our motto, and we would have you understand it, is the abolition of slavery and the perpetuation of the American Union. If by any means you do succeed in your treasonable attempt to take the South out of the Union to-day, we will bring her back to-morrow,—if she goes away with you, she will return without you." In his closing paragraph he predicts the election to the Presidency in 1860 of some anti-slavery Southerner, of the type of Cassius M. Clay, or James G. Birney, and in 1864, of a Northerner like Seward or Sumner. And he thus concludes: "Furthermore, if in these or in any other similar cases the oligarchy do not quietly submit to the will of a constitutional majority of the people, as expressed at the ballot-box, the first battle between freedom and slavery will be fought at home—and may God defend the right!"

The book raised a tempest of denunciation. The more it was denounced the more it was read. It was easily "the best-selling book" of the time. The concrete reply of the party criticised was first to drive Helper out of North Carolina. Next his book was condemned in a resolution proposed at the opening of Congress in 1859-60, and aimed especially at John Sherman, of Ohio, the Republican candidate for speaker, who had signed a qualified recommendation of the book. After a long contest the Republicans dropped Sherman for Pennington, of New Jersey, whom they elected. *The Impending Crisis* was a portent and an impulse of the coming catastrophe.

CHAPTER XVIII

JOHN BROWN

About this time there was a revival of activity in the slave trade between Africa and Cuba. The American Government had always acted half-heartedly in its co-operation with the British Government for the suppression of this traffic. Now it happened that some British cruisers in the West Indies stopped and examined some vessels under the American flag, suspected of being slavers. This was resented by the American Government, which sent war ships to the scene and took the British Government to task. In Congress both parties joined in denunciation of British aggression. The right of search, exercised by England for the reclamation of her seamen from American vessels, had been one of the grounds of war in 1812. It had been left unmentioned in the treaty of peace, but England had silently relinquished the practice. Now, at the demand of the United States, she expressly relinquished the right of search in the case of supposed slave ships under the American flag, unless the result should justify the suspicion. Thus the honor of the Stars and Stripes was vindicated,—and the flag was made a great convenience to slavers. The administration, however, bestirred itself toward doing its own share in the work of sea-police, and several slave ships were captured. The crew of one of these were acquitted, by a Charleston jury, against the clearest evidence. There was some open talk in the Southern papers of legalizing the traffic. But the trade was destined to a discouraging check a year or two later, when President Lincoln signed the first death warrant of the captain of a slaver.

After the Kansas troubles had subsided, John Brown sought some way to make a direct attack on slavery. For many years he had brooded on the matter, in the light of his reading of the Old Testament, and he felt himself called to assail it as the Jewish heroes assailed the enemies of Jehovah and his people. As early as 1847 he had disclosed to Frederick Douglass, during a visit to Brown's home in Springfield, Mass., a plan for freeing the slaves. He did not contemplate a general insurrection and slaughter. But he proposed to establish a fugitive refuge in the chain of mountains stretching

from the border of New York toward the Gulf. "These mountains," he said, "are the basis of my plan. God has given the strength of the hills to freedom; they were placed here for the emancipation of the negro race; they are full of natural forts, where one man for defense will be equal to one hundred for attack; they are full also of good hiding-places, where large numbers of brave men could be concealed, and baffle and elude pursuit for a long time.... The true object to be sought is, first of all, to destroy the money-value of slave property; and that can only be done by rendering such property insecure. My plan, then, is to take at first about twenty-five picked men, and begin on a small scale; supply them arms and ammunition, and post them in squads of five on a line of twenty-five miles. The most persuasive and judicious of them shall then go down to the fields from time to time, as opportunity offers, and induce the slaves to join them, seeking and selecting the most restless and daring."

It was substantially this plan to which Brown now returned, and he sought aid among those men at the East who had backed the Free State cause in Kansas. He was not known to them, as he has been presented to the reader, as the chief actor in the Pottawatomie massacre, but as a bold guerrilla chief, who had lost a son in the Kansas strife. Even so, he was a recognized dissenter from the peace policy which had finally won success for freedom in the Territory. But there were men in the anti-slavery ranks who were impatient of the whole policy of peace, and the impressive personality of Brown won some of these to active support of his project. Among them were Theodore Parker, Gerritt Smith, Dr. S. G. Howe, George L. Stearns, Thomas Wentworth Higginson, and Franklin B. Sanborn, who formed a secret committee to forward this plan. They were not informed of its details, but knew its general scope. To a considerable number Brown was known as a hero of past fights and not averse to fresh ones. He visited Concord, where he spoke at a public meeting, and made a great impression on Emerson, Alcott, and Thoreau. Alcott made a pen-picture of him. "I think him equal to anything he dares,—the man to do the deed, if it must be done, and with the martyr's temper and purpose. Nature obviously was deeply intent in the making of him. He is of imposing appearance personally,—tall, with square shoulders and standing; eyes of deep gray, and couchant, as if ready to spring at the least rustling, dauntless yet kindly; his hair shooting backward from low down on his forehead; nose trenchant and Romanesque;

set lips, his voice suppressed yet metallic, suggesting deep reserves; decided mouth; the countenance and frame charged with power throughout."

Emerson, from his own observation and from hearsay, drew his spiritual portrait: "For himself, Brown is so transparent that all men see him through. He is a man to make friends wherever on earth courage and integrity are esteemed,—the rarest of heroes, a pure idealist, with no by-ends of his own. Many of us have seen him, and everyone who has heard him speak has been impressed alike by his simple, artless goodness and his sublime courage. He joins that perfect Puritan faith which brought his ancestor to Plymouth Rock, with his grandfather's ardor in the Revolution. He believes in two articles—two instruments, shall I say?—the Golden Rule and the Declaration of Independence; and he used this expression in a conversation here concerning them: 'Better that a whole generation of men, women, and children should pass away by a violent death, than that one word of either should be violated in this country.'... He grew up a religious and manly person, in severe poverty; a fair specimen of the best stock of New England, having that force of thought and that sense of right which are the warp and woof of greatness.... Thus was formed a romantic character, absolutely without any vulgar trait; living to ideal ends, without any mixture of self-indulgence or compromise, such as lowers the value of benevolent and thoughtful men we know; abstemious, refusing luxuries, not sourly and reproachfully, but simply as unfit for his habit; quiet and gentle as a child, in the house. And as happens usually to men of romantic character, his fortunes were romantic."

But the romance in this portrait is due quite as much to the imagination of the artist as to the character of the subject. Emerson seems to have entirely overlooked in his estimate of Brown that he had no rational idea of the moral obligations of the citizen to the civil government and to the peace of society; and that his conscience in its apparent simplicity was really in dire confusion. The sentence he quotes from Brown's conversation has its practical commentary in Brown's acts. He was as ready to take the sword, to redress what he considered a breach of the Golden Rule or the Declaration of Independence, as if mankind had not for thousands of years and with infinite cost been building up institutions for the peaceful settlement of difficulties. In Kansas he saw in the political struggle simply an issue to be

tried out by force between good men and bad men; and he made himself executioner of a group of men he considered bad, thereby plunging into a series of murders utterly repugnant to his natural humanity. He afterward justified the deed, without avowing his own part in it, which was not fully known till twenty years later. After Harper's Ferry, the *Springfield Republican* (which judged him very favorably), speaking partly from personal knowledge gained during his residence in Springfield, said: "He is so constituted that when he gets possessed of an idea he carries it out with unflinching fidelity to all its logical consequences, as they seem to him, hesitating at no absurdity and deterred by no unpleasant consequences to himself personally. He is a Presbyterian in his faith, and feels that it is for this very purpose that God has reared him up."

When a man is so possessed by the conviction that he is God's instrument as to set himself outside of ordinary human morality, he is presumably on the verge of shipwreck. The *Republican*, while emphasizing the popular estimate of John Brown as "a hero," coupled with this the characterization of him as "a misguided and insane man."

The project he was now pressing—the establishment of a mountain refuge for fugitive slaves, working toward the depreciation of slave property, and the ultimate extinction of the system—had a certain superficial plausibility; and it seemed to avoid the inhumanity of general insurrection. But it was at the best hardly more than a boy's romance, and at the last moment Brown abandoned it for a still more impracticable plan.

On the morning of October 17, 1859, the little town of Harper's Ferry, on the upper Potomac, awoke to the amazing discovery that in the night the buildings of the United States armory had been seized and held by a company of armed men, white and black; that they had gathered in a number of prisoners, including some prominent citizens; and that their design was to free the slaves. Brown had struck his blow. With eighteen faithful associates, including three of his sons, he had lurked near the town till all was ready; then in the night he had marched in and seized the armory, and brought in as prisoners some of the neighboring planters who were told they were held as hostages. Other citizens were captured almost without resistance in the early morning hours, till the prisoners were twice the number of their captors. But there was no rising of the negroes. Brown,

after his first easy success, stayed still as if paralyzed. Either he had no further plan, or his judgment and will failed him at the crisis. His complete failure to improve his first advantage—whether the weakness lay in his plan or the execution—indicated the radical unsoundness which underlay his impressive exterior. The town rallied its forces, surrounded the armory, and a fight was kept up through the afternoon. At night Colonel Robert E. Lee with a force of troops arrived from Washington, and the next morning they easily stormed the armory, which had lost half its garrison, including two of Brown's sons, and Brown and the rest of his party were made prisoners.

The country was in a state of profound peace; Kansas had fallen out of mind; the Presidential election was a year away; and even political discussion was languid. The news of the raid came as an utter surprise. Brown was unknown to the general public, and beyond the patent fact of an attempted slave insurrection there was at first general bewilderment as to the meaning of the event. Brown's secret committee,—ignorant of his exact plan, most of them having had but little to do with him, and none of them expecting the blow when it fell,—were in no haste to enlighten the public, or acknowledge their responsibility. But Brown became his own interpreter. The ubiquitous *New York Herald* reporter was instantly on the ground, and never were interviews more eagerly read and more impressive in their effect than Brown's replies to his various examiners. A prisoner, wounded, in the shadow of a felon's death, the old man bore himself with perfect courage and composure. Asked on what principle he justified his acts, he replied: "Upon the Golden Rule. I pity the poor in bondage, that have none to help them; that is why I am here; not to gratify any personal animosity, revenge, or vindictive spirit. It is my sympathy with the oppressed and wronged, that are as good as you and as precious in the sight of God." The Virginians recognized his sincerity and integrity. The Governor of the State, Henry A. Wise—an extreme Southerner in his politics—visited Brown, and said publicly: "They are mistaken who take Brown to be a madman. He is a bundle of the best nerves I ever saw,—cut and thrust and bleeding and in bonds. He is a man of clear head, of courage, fortitude, and simple ingenuousness. He is cool, collected, and indomitable, and it is but just to him to say that he was humane to his prisoners, and he inspired me with great trust in his integrity as a man of truth. He is a fanatic, vain and garrulous, but firm, truthful, and intelligent."

For Brown and his associates there could be but one conclusion to the business. They were put on trial for treason and murder. They had a fair trial, and indeed the case admitted of no doubt. They were sentenced to be hanged, and the sentence was carried out, within six weeks of their act.

At the North, Brown was widely honored as a hero and a martyr. No one defended his act,—a slave insurrection, in whatever form, found no public justification. Probably a considerable majority of the community, including all the more conservative political elements, condemned the man and his deed, and perhaps justified his execution. But wherever anti-slavery feeling was strong, and with a multitude who, apart from such feeling, were sensitive to striking qualities of manhood, there was great admiration and sympathy for Brown and sorrow for his fate. John A. Andrew spoke a common feeling when he said: "Whatever may be thought of John Brown's acts, John Brown himself was right." Emerson eulogized him in daring words. If, he said, John Brown is hung, he will glorify the gallows as Jesus glorified the cross. On the day of his death the church bells were tolled in many a Northern town. Said the *Springfield Republican* the next morning: "There need be no tears for him. Few men die so happily, so satisfied with time, place, and circumstance, as did he.... A Christian man hung by Christians for acting upon his convictions of duty,—a brave man hung for a chivalrous and self-sacrificing deed of humanity,—a philanthropist hung for seeking the liberty of oppressed men. No outcry about violated law can cover up the essential enormity of a deed like this."

Never was a man dealt with more generously by posthumous fame. In the Civil War, two lines of verse, fitted to a stirring melody, became the marching song of the Union armies:

John Brown's body lies a-mouldering in the grave
His soul is marching on!

This was the last touch of the apotheosis; John Brown became to the popular imagination the forerunner and martyr of the cause of Union and freedom.

At the North, one immediate and lasting effect of the tragedy was to intensify the conviction of the essential wrong of slavery. However mistaken was Brown's way of attack, it was felt that nothing short of an

organized system of injustice and cruelty could have inspired such a man to such an attempt. The very logic of facts, which compelled Virginia in self-defense to hang him, showed the character of the institution which needed such defense. Yes, it was necessary to hang him,—but what was the system that made necessary the sacrifice of such a life?

But Andrew's words "whatever may be thought of John Brown's acts"—call for further consideration. What were his acts, and what were their consequences? A part of the answer was seen in the bodies of men of Harper's Ferry, lying in the streets, peaceful men with wives and children, slain for resisting an armed invasion of their quiet little village. The first man to fall was a negro porter of a railway train, who, failing to halt when challenged by one of Brown's sentinels, was shot. The second man killed was a citizen standing in his own doorway. The third was a graduate of West Point who, hearing of trouble, came riding into town with his gun, and was shot as he passed the armory.

Among the letters that came to Brown in prison was one from the widow of one of the Pottawatomie victims, with these words: "You can now appreciate my distress in Kansas, when you then and there entered my house at midnight and arrested my husband and two boys, and took them out in the yard, and in cold blood shot them dead in my hearing. You can't say you did it to free our slaves; we had none and never expected to own one; but it only made me a poor disconsolate widow with helpless children."

Brown's first plan, of drawing off the slaves to a mountain fortress,—peaceable only in semblance, and involving inevitable fighting,—he exchanged at last for a form of attack which was an instant challenge to battle. In a conference with Frederick Douglass, on the eve of the event, Douglass vainly urged the earlier plan, but found Brown resolved on "striking a blow which should instantly rouse the country." On the day of his death, Brown penned these sentences and handed them to one of his guards: "I, John Brown, am now quite certain that the crimes of this guilty land will never be purged away but with blood. I had, as I now think vainly, flattered myself that without very much bloodshed it might be done." But no man so directly and deliberately aimed to settle the difficulty by

bloodshed as he. It is thus that men make God responsible for what themselves are doing.

The Civil War when it came brought enough of suffering and horror. But it was mild and merciful compared to what a slave insurrection might have been. And it was essentially a slave insurrection that Brown aimed at. The great mass of the Northern people would have recoiled with abhorrence from a servile revolt. But who could wonder if the Southern people did not believe this, when they saw honors heaped on a man who died for inciting such an insurrection? How could they nicely distinguish between approval of a man's acts and praise for the man himself? If the North had one thinker who set forth its highest ideals, its noblest aims, that man was Emerson. Yet Emerson passed Brown's acts almost unblamed, and named his execution together with that on Calvary. Not all the disclaimers of politicians, the resolves of conventions, could reassure the South, after that day of mourning with which Northern towns solemnized John Brown's death. What wonder that an ardent Southerner like Toombs, speaking to his constituents a few months later, called on them to "meet the enemy at the door-sill." And what wonder that the Southern people were inclined as never before to look upon the Northern people as their foes?

The more deeply we study human life, the more do we realize that as to individual responsibility "to understand is to forgive." Half a century after the event, we may well have forgiveness—not of charity, but of justice—for John Brown, and for the Governor who signed his death-warrant; we can sympathize with those who honored and wept for him, and with those who shuddered at his deed. But, for the truth of history and for the guidance of the future, we must consider not only the intentions of men, but the intrinsic character of their deeds; not only John Brown himself, but John Brown's acts. And in that long series of deeds of violence and wrong which wrought mutual hatred and fratricidal war between the two sections of a people, that midnight attack on the peaceful Virginia village must bear its heavy condemnation. Hitherto aggression had been almost entirely from the South; this was a counter-stroke, and told with dire force against the hope of a peaceable and righteous settlement.

Probably most readers of to-day will wonder at the degree of admiration and praise which Brown received. It must be ascribed in part to some

quality in his personality, which cast a kind of glamour on some of those who met him, and inspired such highly idealized portraiture as Emerson's. But there remains the extraordinary fact that men like Theodore Parker and Gerritt Smith and Dr. S. G. Howe gave countenance and aid to Brown's project. Before history's bar, their responsibility seems heavier than his; they, educated, intelligent, trained in public service; he an untaught, ill-balanced visionary, who at least staked his life on his faith. Their complicity in his plot illustrates how in some moral enthusiasts the hostility to slavery had distorted their perception of reality. Such men saw the Southern communities through the medium of a single institution, itself half-understood. They saw, so to speak, only the suffering slave and his oppressor. They failed to see or forgot the general life of household and neighborhood, with its common, kindly, human traits. They did not recognize that Harper's Ferry was made up of much the same kind of people, at bottom, as Concord. They did not realize that a slave insurrection meant a universal social conflagration. Indeed, Brown's original scheme of a general flight of slaves to a mountain stronghold had a fallacious appearance of avoiding a violent insurrection, and it was with the background of this plan that Brown, a wounded prisoner with death impending, appealed to the Northern imagination as a hero and martyr.

But this glorification of him wrought a momentous effect in the South. It is best described by those who witnessed it. John S. Wise, son of the Governor who signed Brown's death-warrant, writes in his graphic reminiscences, *The End of an Era*: "While these scenes were being enacted"—the trial and execution of Brown and the Northern comments—"a great change of feeling took place in Virginia toward the people of the North and toward the Union itself. Virginians began to look upon the people of the North as hating them, and willing to see them assassinated at midnight by their own slaves, led by Northern emissaries; as flinging away all pretense of regard for laws protecting the slave-owner; as demanding of them the immediate freeing of their slaves, or that they prepare against further attacks like Brown's, backed by the moral and pecuniary support of the North. During the year 1860 the Virginians began to organize and arm themselves against such emergencies."

The spirit of proscription against all anti-slavery men broke out afresh. At Berea, Kentucky, a little group of anti-slavery churches and schools had

been growing for six years, championed by the stalwart Cassius M. Clay, and with the benignant and peaceful John G. Fee as their leader. A month after Brown's foray a band of armed horsemen summoned twelve of their men to leave the State. Governor Magoffin said he could not protect them, and with their families they went into exile—stout-heartedly chanting at their departure the 37th Psalm: "Fret not thyself because of evil-doers."

In the South itself there had been developing recently an antagonism to the slave power. Its strength lay not in the moral opposition to slavery, which indeed always existed, but was quiet and apparently cowed; but rather in the growing class of city residents,—merchants and professional men,—whose interests and feelings were often antagonistic to the large planters. The hostility to slavery on economic grounds, and in the white man's interest, found passionate expression in Helper's *Impending Crisis*, and in a milder form was spreading widely. But at the menace of invasion and servile insurrection all classes drew together. Especially the women of the South became suddenly and intensely interested in the political situation. The suggestion of personal peril appealed to them, and to the men who were their natural defenders. The situation is well described in Prof. J. W. Burgess's *The Civil War and the Constitution*,—a generally impartial book, written with personal appreciation of the Southern standpoint: "No man who is acquainted with the change of feeling which occurred in the South between the 16th of October, 1859, and the 16th of November of the same year can regard the Harper's Ferry villainy as anything other than one of the chiefest crimes of our history. It established and re-established the control of the great radical slaveholders over the non-slaveholders, the little slaveholders, and the more liberal of the larger slaveholders, which had already begun to be loosened. It created anew a solidarity of interest between them all, which was felt by all with an intensity which overbore every other sentiment. It gave thus to the great radical slaveholders the willing physical material for the construction of armies and navies and for the prosecution of war."

CHAPTER XIX

ABRAHAM LINCOLN

Every American may be presumed to be familiar with the external facts of Abraham Lincoln's early life,—the rude cabin, the shiftless father, the dead mother's place filled by the tender step-mother; the brief schooling, the hungry reading of the few books by the fire-light; the hard farm-work, with a turn now of rail-splitting, now of flat-boating; the country sports and rough good-fellowship; the upward steps as store-clerk and lawyer. But the interior qualities that made up his character and built his fortune will bear further study.

He was composed of traits which seemed to contradict each other. In a sense this is true of everyone. Dr. Holmes says (in substance): "The vehicle in which each one of us crosses life's narrow isthmus between two oceans is not a one-seated sulky, but an omnibus." Sometimes, as depicted in that wonderful parable, *Dr. Jekyll and Mr. Hyde*, one inmate ejects the others. But in Lincoln the various elements were wrought as years passed by into harmony.

He was prized among his early companions as a wit and story-teller. The women complained because at their parties all the men were drawn off to hear Abe Lincoln's stories. When he came to be a public speaker, he feathered the shafts of his argument with jest and anecdote. The vein of humor in him was rich and deep; it helped him through the hard places. When as President he announced to his cabinet the Emancipation Proclamation, he first refreshed himself by reading to them a chapter from Artemus Ward.

His early growth was in rough soil, and some of the mud stuck to him,—his jests were sometimes broad. But if coarse in speech he was pure in life, and neither the rancor of political hate nor the research of unsparing biographers ever charged him with an unchaste act.

Along with this rollicking fun he had a vein of deepest melancholy. In part it was temperamental. The malarial country sometimes bred a strain of habitual depression. His mother was the natural daughter of a Virginia planter, and had the sadness sometimes wrought by such pre-natal conditions; it was said she was never seen to smile. Lincoln's early years had hardships and trials, over many of which he triumphed, and triumphed laughing; but there were others for which there was neither victory nor mirth. Some of his early letters of intimate friendship (as given in Hay and Nicolay's biography), show a singular capacity for romantic affection, and gleams of hope of supreme happiness. But death frustrated this hope, and the disappointment brought him to the verge of insanity. In his domestic life,—it was an open secret,—he had some of the experience which disciplined Socrates. Perhaps we go to the root of his sadness if we say that in his deepest heart he was a passionate idealist, and by circumstances he was long shut out from the natural satisfaction of ideality. His partner Herndon said of him, "His melancholy dripped from him as he walked."

Out of these experiences he brought a great power of patience and a great power of sympathy. These armed him for his work. He became invincible against the perversities and follies of men, and the blows of fate. He ripened into a tenderness such as prompted him, when burdened with cares beyond measure, to give a sympathetic hearing to every mother who came to the President with the story of her boy's trouble.

To take another brace of qualities, he was at once a powerful fighter and an habitual peace-maker. His long, gaunt, sinewy frame, and his tough courage, made him a formidable antagonist, but it was hard to provoke him to combat. Lamon,—whose biography is a treasury of good stories, sometimes lacking in discretion, but giving an invaluable realistic picture,—relates an encounter with the village bully, Jack Armstrong. The "boys" at last teased Lincoln into a wrestling match, and when his victory in the good-natured encounter provoked Jack to unfair play, Abe shook him as a terrier shakes a rat. Then he made peace with him, drew out the better quality in him; and the two reigned "like friendly Cæsars" over the village crowd, Abe tempering Jack's playfulness when it got too rough, and winning the boys to kindly ways.

In that day and region, men were very frank about their religious beliefs and disbeliefs. The skepticism or unbelief which lies unspoken in the hearts of a multitude of men,—silent perhaps out of regard to public opinion, perhaps from consideration for mother or wife—found free and frequent utterance in the West, long before Robert Ingersoll gave it eloquent voice. Lincoln, though we have called him an idealist at heart, habitually guided himself by logic, by hard sense, and by such evidence as passes in a court of law. He was one of the class to whom books like Tom Paine's *Age of Reason* appealed strongly. In early life he wrote a treatise against Christianity. A politic friend to whom he showed his manuscript put it in the stove, but the writer was not changed in his opinions. To Christianity as a supernatural revelation he never became a convert, but the belief in "a Power that makes for righteousness" grew with his growth and strengthened with his strength.

With deepening experiences, the awe and mystery of life weighed heavily on him. When travelling on circuit, his days spent in law-cases, diversified with sociability and funny stories, he would sometimes be seen in the early morning brooding by the fire-place with hands outspread, and murmuring his favorite verses,—a soliloquy on the mournfulness and mystery of life: "Oh, why should the spirit of mortal be proud!"

In his early youth he read eagerly and thoroughly such few books as came in his way. Later, his taste for reading seemed to grow less. He had a keen instinct for reality, and perhaps he found little in books that satisfied him. For poetry and philosophy he had small aptitude, and in science he had no training. What books he read he seemed to digest and get the pith of. Once, made suddenly conscious by defeat of his lack of book-culture, he took up Euclid's geometry, and resolutely studied and re-studied it. Doubtless that helped him in the close logic which often characterized his speeches. The strength of his speeches lay in their logic, their close regard to fact, their adaptation to the plain people of whom he was one, their homely illustrations, and, as the years developed him, an appeal to some high principle of duty. His chief library was men and women. From them, and from his own experience, he drew the elements of his politics, history, philosophy.

He had the ambition natural to a man of high powers. With all his genial sociability, he was in a way self-centered. His associates often thought him,

—and Lamon shares the opinion—not only moody and meditative, but unsocial, cold, impassive; bent on his own ends, and using other men as his instruments. Partly we may count this as the judgment of the crowd to whom Lincoln's inner life was unimaginable. He shared their social hours, and then withdrew into thoughts and feelings and purposes which he could share with no one. Doubtless, too, he was in fault for some of that neglect of the small courtesies and kindnesses which besets men whose own thoughts fascinate them too strongly. There is a graphic touch, in the story of his love affairs, of a girl who rejected his advances because she had seen him on a hot day walk up a hill with a woman and never offer to relieve her of the baby she was carrying.

As a lawyer he won more than ordinary success, making good his lack of erudition by shrewdness and knowledge of human nature. It was observed that he always tried a case honestly and fairly; that he was not fond of controversy, and always preferred to settle a case out of court; that he never argued well or strongly unless his conviction was fully on his client's side; that, if unconvinced himself, he simply brought forward the proofs which fairly counted on his side, and left the decision to others; and that he was so little attentive to gain that, although he became one of the leading lawyers of Illinois, he never accumulated much money.

His fairness as a lawyer, and his integrity in politics, won his popular nickname of "Honest Abe." Perhaps honesty, in its fullest sense, was his central quality. He was always true to the truth as he saw it—true in thought and word and deed. One feels in his printed speeches that he is trying to see and to say things as they are. He had not the aid of the mystic's vision, in which the moral universe is revealed in such splendor that to accept and obey it is pure joy. But he saw and felt and practiced the homely obligations of honesty and kindness. His education came largely as at successive epochs there were disclosed to him new heights of moral significance in the life of the nation; and as fast as such disclosures came to him he set himself to obey them with absolute loyalty.

His conscience was not of the self-contemplating and self-voicing kind. He was chary of words about duty. It has been alleged that the typical New Englander is afflicted with "a chronic inflammation of the moral sense." Such a malady does exist, though many a New Englander is bravely free

from it, while it is not unknown in Alaska or Japan. From such an over-conscientious conscience, and from its incidents and its counterfeits, there is bred a redundancy of verbal moralising. That was not a foible of Lincoln. The sense of moral obligation underlies his weightier utterances, as the law of gravitation underlies scientific demonstrations,—not talked of, but assumed.

Lincoln's political career gave high promise at the start. He seemed to have the qualities for success,—ambition, shrewdness in managing men, power as a speaker, integrity which won general confidence, ideals not too high above the crowd. Yet his success was so moderate that in contrasting himself with Senator Douglas, at the outset of their debate in 1858, he declared that, "With me the race of ambition has been a failure,—a flat failure; with him it has been one of splendid success." There were reasons for it: Douglas had given himself without reserve to his personal advancement, and Lincoln had been hampered by regard for other men and for larger ends. After one term in Congress as a Whig, 1847-8, he retired in deference to the fashion of "rotation" between localities. When roused to new activity by the anti-Nebraska campaign in 1854, he was the favorite candidate of his party for the senatorship; but seeing that the knot of men who held the balance of power were gravitating to the other side, he insisted on withdrawing in favor of Lyman Trumbull, as a stronger candidate, who accordingly won the day. Before the revival of the slavery issue, there had been nothing in the old-time Whig and Democratic contests to appeal to the deeper elements in Lincoln's nature, and personal ambition alone was not strong enough to push him to eminence. Though he could handle men skillfully, he had a distaste for the petty arts of the politician's trade. "Politics," he said, "is the combination of individual meannesses for the general good." And he had small relish for the game, until "the general good" loomed clear and large.

His attitude on slavery was typical of the men at the North who were at once humane and regardful of the established order. He gave his general position, in homely and graphic fashion, in a letter to his old friend, Joshua F. Speed, of Kentucky, in 1855. This was at the time he referred to when he wrote: "I was losing interest in politics, when the repeal of the Missouri Compromise roused me again." To Speed he wrote: "I acknowledge your rights and my obligations under the Constitution in regard to your slaves. I

confess I hate to see the poor creatures hunted down and caught, and carried back to their stripes and unrequited toils; but I bite my lips and keep quiet. In 1841, you and I had together a tedious low-water trip in a steamboat from Louisville to St. Louis. You may remember, as well as I do, that from Louisville to the mouth of the Ohio there were on board ten or a dozen slaves shackled together with irons. That sight was a continued torment to me; and I see something like it every time I touch the Ohio or any other slave border. It is not fair for you to assume that I have no interest in a thing which has, and continually exercises, the power of making me miserable. You ought rather to appreciate how much the great body of the Northern people do crucify their feelings, in order to maintain their loyalty to the Constitution and the Union. I do oppose the extension of slavery, because my judgment and feelings so prompt me; and I am under no obligations to the contrary."

It was this strong regard for the established law of the land which set the moderate anti-slavery men apart from the Abolitionists of the extreme type. And up to this time, Lincoln, though hostile to slavery, had not been especially concerned as to the nation's dealing with it. But now came the opportunity and call to resist its extension into the territories, and with the response to that call came the sense that a great contest was impending between right and wrong, between the good of the many and the selfishness of the few.

Lincoln had close at hand a friend to spur him on. His law-partner, William H. Herndon, was an enthusiastic radical in politics and religion. He was an Abolitionist, and a follower of Theodore Parker. He had long plied Lincoln with Parker's sermons and with anti-slavery literature. When in 1856 Herndon and his friends began to organize to support armed resistance in Kansas, Lincoln remonstrated with them successfully. Then came the parting of the ways,—Republican, Democrat, or Know-nothing? The Illinois Abolitionists threw themselves heartily into the Republican movement. At its first State convention, at Bloomington, Lincoln was the great figure. The faithful Herndon, his missionary zeal rewarded at last by such a convert, describes in glowing language the speech of Lincoln,—which so carried him away that after trying for fifteen minutes to take notes as usual, he threw away his pencil. "Heretofore, and up to this moment, he had simply argued the slavery question on grounds of policy,—on what are

called the statesman's grounds,—never reaching the question of the radical and the eternal right. Now he was newly baptized and freshly born; he had the fervor of a new convert; the smothered flame broke out; enthusiasm unusual to him blazed up; his eyes were aglow with an inspiration; he felt justice; his heart was alive to the right; his sympathies, remarkably deep for him, burst forth, and he stood before the throne of the eternal Right, in presence of his God, and then and there unburdened his penitential and fired soul. This speech was fresh, new, genuine, odd, original; filled with fervor not unmixed with a divine enthusiasm; his head breathing out through his tender heart its truths, its sense of right, and its feeling of the good and for the good. If Lincoln was six feet four inches high usually, at Bloomington he was seven feet, and inspired at that."

But the prairie fire was slow to light. Five days after the convention, Herndon and Lincoln got up a ratification meeting in Springfield. There were posters, illuminations, a band of music,—and at the appointed hour, one man in the hall besides Lincoln and Herndon! Lincoln took the platform, began with words half-sad, half-mirthful, and concluded: "All seems dead, dead, dead; but the age is not yet dead; it liveth as sure as our Maker liveth. Under all this seeming want of life and motion, the world does move nevertheless. Be hopeful. And now let us adjourn, and appeal to the people."

The prairie caught fire at last. The Republicans carried Illinois that autumn for Fremont. Two years later, Lincoln and Douglas traversed the State in their famous series of joint debates. The main issue was slavery in the territories; the background was the general attitude of the white man toward the negro. Douglas held that the whole business was a question for white men only. If they wanted slavery in any Territory, let them have it. If they did not want it, let them keep it out—unless the Supreme Court forbade. Lincoln summed up this "popular sovereignty" doctrine: "If one man wants to make another man a slave, a third man has no right to prevent him!" His position was that the nation's duty was to hold the common domain for freedom, and that this was the business of Congress. Douglas constantly twitted Lincoln with belief in negro equality. This Lincoln disclaimed; he did not believe in the negro's equality with the white man; did not believe in making him a voter or a juror; but because an inferior, had a negro no rights? Lincoln's anti-slavery position was very moderate; in reply to

Douglas's challenge, he disclaimed any disposition to agitate against the fugitive slave law; as to practical restriction, he had nothing to urge except exclusion from the territories. Here he was emphatic, and he protested earnestly against Douglas's "not caring whether slavery was voted up or voted down."

The best test which the debate gave of his quality was the memorable passage in which he declared his conviction that "A house divided against itself cannot stand. I believe this government cannot permanently endure half slave and half free." In this he rose above his wonted level, and spoke with a prophet's forecast. He read this passage in advance to a group of the party leaders. Though, after this bold opening, the speech was only a calm and weighty argument that the interest of slavery was being deliberately and systematically promoted by all branches of the Democracy,—yet all, except Herndon, were alarmed at this passage, and besought Lincoln to withhold it. But he answered soberly and half-mournfully that it expressed his full conviction, and he would face defeat rather than suppress it. In the immediate result, it injured his cause; a general comment of Republicans, through the campaign, says Herndon, was "Damn that fool speech!"

Douglas won the Legislature and the senatorship, though Lincoln won the popular majority. When he was asked how he felt about his defeat, he answered: "I feel as the boy did when he stubbed his toe,—he was too big to cry, and it hurt too bad to laugh!" The country at large, which had closely watched the debate, forgot him for two years. Early in 1860 he was invited to lecture in New York. He was not regarded as a Presidential candidate; and when he appeared,—in clothes full of creases from his carpet-bag, with no press copy of his speech and not expecting the newspapers to report it—he was such a figure as to his audience in Cooper Institute seemed to give little promise. But he carried them with him completely, and the next morning the seven-column report in the *Tribune* told the country that in this man there was a new force to reckon with. The speech ranks with the great historical orations of the country. The first part was a careful review of the position which the signers of the Constitution took in their individual capacity as to the right of Congress to regulate or exclude slavery from the territories. He showed by specific proof that of the thirty-nine signers twenty-one voted definitely on various occasions for Congressional Acts which did so exclude or regulate slavery; and that of the remaining eighteen

almost all were known to have held the same opinion. This was a masterly refutation of the claim of Douglas and the Democracy that the fathers of the nation were on their side as to the territorial question. Lincoln then passed to a broader view, and inquired: What can we do that will really satisfy the South? Every word is sober, temperate, well-weighed. The South, he showed, is really taking very little interest now in the Territories. It is excited about the John Brown raid, and accuses the Republican party of responsibility for that. But not a single Republican was implicated in the raid—not one. You, said Lincoln, addressing the South—interpret your constitutional rights in a different way from what we do, and say if we do not admit your interpretation,—if we elect a Republican president,—you will break up the Union. But this is simply the highwayman's plea. What, then, can we Republicans do to satisfy the South? We must not only let them alone, but somehow convince them that we do let them alone. In a word, this and this only will convince them; we must cease to call slavery wrong, and join them in calling it right. And this must be done thoroughly,—done in acts as well as in words. Silence will not be tolerated; we must place ourselves avowedly with them. "Douglas's new sedition law must be enacted and enforced, suppressing all declarations that slavery is wrong, whether made in politics, in presses, in pulpits, or in private. We must arrest and return their fugitive slaves with greedy pleasure. We must pull down our Free-State constitutions. The whole atmosphere must be disinfected from all taint of opposition to slavery, before they will cease to believe that all their troubles proceed from us."

Thus he concludes: "If our sense of duty forbids this, then let us stand by our duty fearlessly and effectively. Let us be diverted by none of those sophistical contrivances wherewith we are so industriously plied and belabored,—contrivances such as groping for some middle ground between the right and the wrong, vain as the search for a man who should be neither a living man nor a dead man,—such as a policy of 'don't care' on a question about which all true men do care,—such as Union appeals beseeching true Union men to yield to disunionists, reversing the divine rule, and calling, not the sinners, but the righteous, to repentance,—such as invocations to Washington, imploring men to unsay what Washington said and undo what Washington did. Neither let us be slandered from our duty by false accusations against us, nor frightened from it by menaces of destruction to

the government, nor of dungeons to ourselves. Let us have faith that right makes might; and in that faith, let us, to the end, dare to do our duty as we understand it."

In behalf of the South, Jefferson Davis, at about this time, presented in the Senate, as their ultimatum, a set of resolutions. These called for the recognition of slave-property as an indefeasible right of territorial settlers, entitled to congressional protection; for the enforcement of the fugitive slave law, and the repeal of the "personal liberty laws" by which it was hindered or nullified in many States; and in general, for the rebuke of all anti-slavery agitation. This was an exact equivalent of Lincoln's interpretation of the South's demand; the North must say that slavery is right, and act accordingly. And this was indeed an ultimatum, with the distinct intimation: "This, or we dissolve the Union."

CHAPTER XX

THE ELECTION OF 1860

Now came on the battle in the Presidential convention. The Democratic convention was dramatic and momentous. It met at Charleston, S. C., in the last days of April, 1860. The struggle was between Douglas and the extreme South. The contest was not over the nomination, but on the resolutions. The Douglas party proposed the reaffirmation of the Cincinnati platform of 1856, of which the kernel lay in the words: "Non-intervention by Congress with slavery in State or Territory"; and to this they would now add only a clause referring doubtful constitutional points to the Supreme Court. But the Southern party would accept nothing short of an affirmation that in the Territories until organized as States, the right of slave-holding was absolute and indefeasible, and Congress was bound to protect it. On this issue the dispute in the convention was obstinate and irreconcilable.

The South had long held unbroken sway in the Democracy and in the nation. It had absolutely controlled the last two administrations, though headed by Northern men. Its hold on the Senate had been unbroken, and temporary successes of the Republicans in the House had borne no fruit. The Supreme Court had gone even beyond the demands of the South. Only in Kansas had its cause been lost, because the attempt to coerce a whole territorial population had at last provoked revolt in the Northern Democracy. The breach had been in some sort healed, but the leader of the revolt was not forgiven or trusted. Meantime the alarm at John Brown's raid had intensified the South's hostility to all opponents or critics. All through the winter there had been constant expulsion of anti-slavery men from that section. And now the Southern forces mustered in the convention of the party they had so long controlled, insistent and imperious, rejecting anything short of the fullest affirmation of their claims in the territories.

Douglas was not on the ground, but through his lieutenants, and still more through the spirit he had infused into his followers, he was a great and decisive power. In the Senate he had been almost isolated among the

Democrats; of late only Senator Pugh of Ohio had stood with him against the administration. But he had appealed to the people, and they had answered the call of the sturdy, audacious leader. However he might at times court the favor of the South, he really stood for a broad and simple principle,—the right of the majority of white men to rule. For the negroes he cared nothing. But, in the territories, the majority of white men should have slavery or not as they pleased. In the Democratic party, the majority should control. And, in the last resort, in the nation itself the majority should rule. Douglas thus stood squarely for the rule of the majority within the white race. The Republicans coupled with the supremacy of the legal majority in the nation the right and obligation of the majority to maintain the personal freedom of the negro, except where the Constitution allowed the States to maintain slavery. The Southern Democracy asserted as its paramount principle the right of slave-holding wherever the flag flew, except where the State constitution forbade. If that right was denied or limited—by a majority in the Democracy, or by a majority in the nation—then beware!

The Douglas men met the threat with a defiance,—not wordy, but resolute. In Charleston, the stronghold and citadel of the South, with their leader absent, with the disruption of the party impending, they stood their ground. The majority should rule, or they would know the reason why! They decisively outvoted their opponents as to the platform. Then the delegates from South Carolina and the Gulf States deliberately and solemnly marched out of the hall, and organized a separate convention. With that act the rift began to open which was to be closed only after four years of war.

With what expectation did the extreme South thus break up the party? Did they believe that their Northern associates would again capitulate, as they had done so often before? Failing that, did they not know that a divided Democracy meant victory for the Republicans? and had they not committed themselves in that event to dissolve the Union? Were they deliberately courting disunion, and wilfully throwing away the large chance of continued dominance within the Union which a united Democracy might have? Did they really attach supreme importance to this dogma about the territories, when Kansas had shown how inevitably the local population must determine the question, even against the efforts of the Federal Government? Did the Southern leaders prefer the election of a Republican,

their open opponent, to Douglas, their friend and half-ally? To such questions as these there can be little more than a conjectural answer. It would be most interesting to know the true thoughts and purposes of the leading delegates. We shall see a little later the interpretation given by one of their defenders. But the strong presumption is that their action was the fruit less of a policy than of a temper. They had long been growing into a disposition which could brook no resistance and no contradiction. The irresponsible power of the master over his slaves; the domination of the slave-holding class over the local communities, and the expulsion of their opponents; the control of the government by a united South over a divided North,—these things had bred a self-confidence and self-assertion which would stop at nothing. The slave-holding principle, in full flower, was a principle which recked nothing of legal majorities or governments. Its basis was force, and it would use whatever force was necessary to maintain itself.

The Douglas Democrats were still patient. Left with the original convention in their hands, they declined to press their advantage. The traditional rule required a two-thirds vote to nominate; and it was agreed that for this purpose the seats left vacant by the seceders must be counted,—which would prevent the nomination of Douglas. Administration men from the North had stayed in the convention when their Southern friends left. The body adjourned, to meet in Baltimore in the last of June. The rival convention met in Richmond only to adjourn to the same time and place. But any hopes of reunion were vain. Neither side would yield. In the regular convention, to some of the vacant seats Douglas delegates had in the interim been chosen. They were admitted, against the protest of the administration minority, who found in this a pretext for withdrawing and joining the seceding convention. With these went a majority of the Massachusetts delegates, including Benjamin F. Butler and Caleb Cushing; Cushing had been president of the Charleston body. The two conventions now made their respective nominations. With Douglas was joined for Vice-President Herschel V. Johnson of Georgia. The seceders nominated John C. Breckinridge of Kentucky and Joseph Lane of Oregon. Breckinridge was Vice-President under Buchanan; a man of character and ability, of fine presence and bearing, a typical Kentuckian, afterward a general in the Confederate service.

Alexander H. Stephens in his *War Between the States*—perhaps the best statement of the Southern side of the whole case that has ever been made,—says that this secession from the party was made (against his own judgment) not recklessly, nor to provoke disunion, but with the expectation of electing Breckinridge. The calculation was that with four Presidential candidates there would be no choice by the people, and, the election being thrown into the House, Breckinridge would be chosen; or, if the House could not choose, Lane would surely be elected by the Senate. This, says Stephens, was the view of President Buchanan, of Breckinridge, Davis and a great majority of the Charleston seceders. Stephens himself considered this a most precarious and hazardous calculation, wholly insufficient for so grave a step. So obviously sound was this judgment, that we inevitably recur to the belief that the Southern secession was inspired not by calculation, but by a temper of self-assertion, which fitted its hopes to its wishes.

The "Constitutional Union" party—legatee of the Whig and American parties—held a convention at Baltimore in May; resolved simply for the maintenance of the Union and Constitution and the enforcement of the laws; and nominated John Bell of Tennessee and Edward Everett of Massachusetts. It was the refuge of those who disliked the whole sectional controversy, and were indifferent to both pro-slavery and anti-slavery claims in comparison with peace and union. It held a middle position, geographically as well as in sentiment, and was strong in the border States.

The Republican convention met in Chicago in May. It was a more sophisticated body than its predecessor of 1856; with less of youthful and spontaneous enthusiasm for a principle, and more of keen maneuvering for the candidates. But it represented a disciplined and powerful party, clear and strong in its essential principles, and looking confidently to a national victory as almost within its grasp. The platform affirmed its familiar doctrines as to slavery, and threw out various inviting propositions as to foreign immigrants, a homestead law, a Pacific railroad, etc. The vote of Pennsylvania being important and doubtful, a bait was thrown out in a high-tariff resolution. When a year or two later the exigencies of the war demanded a large revenue, this was obtained partly by a high tariff. In these circumstances originated the Protectionist character of the Republican

party; a character confirmed by the natural alliance of the favored interests with the favoring power.

The most prominent and in a sense logical candidate was William H. Seward. As Governor and then Senator of New York, as a polished and philosophic orator, as a man whose anti-slavery and constitutional principles were well understood,—he was easily in the popular estimate the foremost man of the party. Lincoln was in comparison obscure; his fame rested mainly on his achievements as a popular debater; he was wholly unversed in executive work and almost equally so in legislation; highly esteemed in his own State, but little known beyond its borders. He had been proposed for the Presidency only a week before in the State convention, with great hurrahing for "the rail-splitter," "honest old Abe." It seemed hardly more than one of the "favorite son" candidacies which every canvass knows in plenty. But he was supported by a group of very skillful Illinois politicians. They worked up the local sentiment in his favor; they filled the galleries of the Wigwam at daylight of the decisive day, and they took quieter and effective measures. Simon Cameron claimed to control the vote of Pennsylvania in the convention, and a bargain was made with him that if Lincoln were elected he should have a seat in the Cabinet. Lincoln was not a party to the compact, but when informed of it afterward he reluctantly made good his part. The same thing was done with the friends of Caleb B. Smith of Indiana, and with a like sequel.

Meantime, Seward met such difficulties as always beset the first favorite in a race. The old alliance between Seward, Weed and Greeley, had been broken, with anger and resentment on Greeley's part, and he was now on the floor of the convention actively opposing his old ally. William M. Evarts led the New York delegation for Seward. Edward Bates of Missouri had some support, as more moderate than Seward in his anti-slavery principles, but he was too colorless a candidate to draw much strength. One of Seward's friends, in seeking to win over the Bates men, declared that Lincoln was just as radical as Seward. A newspaper containing this being shown to Lincoln, he penciled on the margin a reply which was forwarded to his supporters, "Lincoln agrees with Seward in his irrepressible-conflict idea, and in negro equality; but he is opposed to Seward's higher law." The "irrepressible conflict" was the exact counterpart of the "house divided against itself." "Negro equality" marked a distinct advance since the

Douglas debate two years before, and such advance, gradual but steady, was characteristic of Lincoln. It was no less characteristic of him to disclaim the "higher law" doctrine,—an obligation recognized by the individual conscience as paramount to all human enactments. Indeed Seward, though the phrase was his, was as little an idealist of the individual conscience as was Lincoln.

Of the circumstances just mentioned, a part belongs to the undercurrents which few spectators at the time discerned. What the crowd and the world saw was three successive ballots. First, Seward, 173-1/2; Lincoln, 102; Cameron, 50-1/2; Chase and Bates following close. Then Cameron's name was withdrawn, and Lincoln shot up abreast of Seward. A third ballot, and Lincoln went up, up till he touched the line of a clear majority. Then the Wigwam roared; the guns boomed; in the first subsidence of the cheering Evarts gallantly moved that the choice be made unanimous,—and the tall, homely Illinois lawyer was the Republican candidate for the Presidency. If the result was not without its illustrations of his own definition of politics—"the combination of individual meannesses for the general good,"—he at least had sacrificed nothing of his convictions, had not worked for his own elevation, or smirched his hands. And, unproved though he was as to administrative power and seamanship in a cyclone, there was yet a singular and intrinsic fitness in his candidacy. His recognized quality was that which is basal and dear to the common people, honesty; honesty in thought, word and act. In his convictions, he was near to the great mass of the party of freedom as it actually was; frankly opposed to slavery, but reverent and tenacious of the established order, even though it gave slavery a certain standing-ground. He had, too, that intimate sympathy with the common people, that knowledge of their thoughts and ways, that respect for their collective judgment and will as the ultimate arbiter—which are the essential traits in a great leader of democracy.

In the four-sided canvass which followed, the lines were not strictly geographical. The Republican party indeed took its Vice-Presidential candidate from the North—Hannibal Hamlin of Maine; for no Southern man was likely to invite exile or worse by taking the place; and the Republican electoral tickets had no place or only a nominal one south of Mason and Dixon's line, except in Missouri, where the emancipation idea was still alive. But the three other parties contested with each other in all

the States. In Massachusetts, the Breckinridge party had as its candidate for Governor the unscrupulous Butler; and among its supporters was Caleb Cushing, erudite, brilliant, conscienceless, and a pro-slavery bigot. At the South, the Douglas party had considerable strength. The hot-heads who had split the Democracy and were ready to divide the nation had by no means an undisputed ascendancy. Stephens and Toombs parted company; they headed respectively the Douglas and Breckinridge electoral tickets in Georgia. Davis spent part of the summer in privacy at the North; he saw enough to convince him that the North would fight if challenged, but the warning was in vain.

The special interest of the campaign centered in the menace of disunion. The territorial question in itself had grown almost wearisome, and had no immediate application. The fugitive slave law had fallen into the background; renditions were so uncertain and dangerous that they were seldom attempted. John Brown's foray was to the North a bygone affair, with no dream of its repetition. The few promoters of his project had shrunk back at the catastrophe; the mass of the people had always looked on it as a crazy affair; and with personal sympathy or honor for him, the raid was almost forgotten,—but the South could not so easily forget. But the living and burning issue was the threat of secession if Lincoln should be elected,—a threat made openly and constantly at the South. The campaign was full of bitterness. "Black Republicans" was a term in constant use. The violent language was not all at the South. Cushing declared, when in the preceding autumn Massachusetts reëlected Banks as governor, "A band of drunken mutineers have seized hold of the opinion of this commonwealth—the avowed and proclaimed enemies of the Constitution of the United States,"—with further hysteric talk about the ship of state, with the pirate's flag at the masthead, drifting into the gulf of perdition. The *New York Herald* was full of wild and inflammatory words. Papers of a different character—like the *Boston Courier*, representative of the party which included Everett and Winthrop—habitually charged the Republican party with John Brownism and disunionism. The South not unnaturally believed that the North was seriously divided, and could never hold together against its claims. But most Northern people regarded the disunion threats as mere gasconade,—meant only to carry an election, and then to be quietly

dropped. But if they were meant in earnest—well, there would be something to be said, and done too, on the other side.

Douglas, with almost no chance of success, made a bold and active canvass. Through this year he showed a courage far higher than the mere dexterity which had been his chief distinction before. In part, it was an expression of a changing temper in the people. He stood openly and stoutly for the principle of majority rule. While speaking at Wheeling, Va., he was questioned as to whether he held that the election of Lincoln would justify secession. He answered promptly that it would not, and if secession were attempted, he would support a Republican President in putting it down by force. That pledge to the country he redeemed, when at the outbreak of the war he gave his immediate and full adherence to President Lincoln,—representing and leading the "War Democrats" who practically solidified the North, and insured its victory. At Wheeling, he passed on the question answered by him for Breckinridge to answer. But Breckinridge ignored the challenge,—a silence which was what the lawyers call a "pregnant negative."

November brought victory to the Republicans. In the popular vote, Lincoln had about 1,860,000; Douglas, 1,370,000; Breckinridge, 840,000; and Bell, 590,000. The electoral votes stood—or would have stood, if the electoral conventions had all met—Lincoln, 180; Breckinridge, 72; Bell, 39; Douglas, 12. Lincoln carried every Northern State except New Jersey; Douglas, only part of New Jersey and Missouri; Bell, Virginia, Kentucky and Tennessee; Breckinridge, all the rest of the South. The successful candidate was thus in a popular minority,—no new thing. The distinctively Southern candidate was doubly in a minority. The supporters of Lincoln, Douglas and Bell, were all to be counted against the extreme Southern claim, and much more against any assertion of that claim by secession. Unitedly, their support outnumbered that of Breckinridge by more than four to one. If ever a party was fairly and overwhelmingly out-voted, it was the party whose central doctrine was that slavery must be protected in the United States territories.

Now the question was, would that party acquiesce in the decision of the majority? At every previous election in the nation's history the minority had acquiesced promptly and loyally. When Jefferson was elected, New

England looked on the new President as a Jacobin in politics and an infidel in religion. But New England acquiesced without an hour's hesitation. When Jackson was chosen, his opponents saw in him a rude and ignorant demagog. But the anti-Jackson people accepted the new President as they had accepted Monroe and Adams. In the choice of Buchanan, the Republicans saw an assertion of the nationalism of slavery, and a menace of the subjugation of Kansas. But the supporters of Fremont recognized Buchanan as unhesitatingly as if he had been their own choice. What was the meaning of popular government, except that the minority should submit to the legitimate victory of the majority? On what did the nation's existence rest, but the loyalty of its citizens to the nation's self-determination in its elections? And now, would the minority resist the decision of the majority? Would the Southern States attempt to break up the Union? The North could not and would not believe it. But there was a strong party at the South which was fully convinced that the election of Lincoln was the crown of a series of grievances which justified the South in withdrawing from the Union; that such withdrawal was a clear constitutional right; and that the honor and interest of the South demanded that it be made.

CHAPTER XXI

FACE TO FACE

To understand the meaning of secession and the Civil War which followed it, we must fathom the thoughts and feelings of the opposing parties. Let us suppose two representative spokesmen to state their case in turn.

Let the Secessionist speak first. The Secessionists were not at first a majority of the people of the Southern States, but it was their view which prevailed. What that view was we know certainly and from abundant evidence,—the formal acts of secession, the speeches of the leaders in Congress and at home, the histories since written by the President and Vice-President of the Confederacy, and countless similar sources. This, substantially, was the Secessionist's position:—

"This Union is a partnership of States, of which the formal bond is the Constitution; the vital principle is the enjoyment by each section and community of its rights; and the animating spirit is the mutual respect and good-will of all members of the Union. The Northern people have violated the provisions of the Constitution; they have infringed the essential rights of the Southern communities, and threatened to invade them still further; and they have displaced the spirit of mutual good-will by alienation, suspicion, and hostility. The formal bond of the Union being thus impaired, and its vital spirit lost, we propose explicitly and finally to dissolve this partnership of States, and reorganize our Southern communities in a new Confederacy.

"We charge you of the North with explicit violation of the Constitution in the matters of the territories, the Supreme Court and the fugitive slaves.

"You deny our right to carry a part of our property,—our unquestioned property under the Constitution,—into the territories which belong equally to the whole nation, and which have been acquired by our treasure and our blood not less than by yours. You prevent slave-holders from participating in the colonization of this domain, and thus determine in advance that its future States shall exclude our institutions. You thus unfairly build up a

political preponderance, which you use for the discouragement and injury of our industrial system.

"Against this wrong we have appealed to the Supreme Court, and secured its express affirmation of the right to carry slave property, equally with any other property, into the territories. This solemn decree of the highest judicial authority you set at naught and defy. You say you will reorganize the court and reverse the decision. You do not even wait for that; you assume in party convention to reverse the mandate of the Supreme Court. You not only contradict its declaration that slavery in the territories is protected by the Constitution; you go farther, and affirm that Congress has no authority to protect it there.

"The Constitution affirms that fugitives from labor must be returned to their masters. A Federal statute provides for such return. That statute is not only decried by your orators and resisted by your mobs; it is contravened and practically nullified by statutes in all the free States.

"These specific wrongs against us are inspired by a disposition which in itself dissolves the bond of friendship between you and us,—a spirit of open and avowed hostility to our social and industrial system. The Union as our fathers established it, and as alone it has any value, is not a thing of mere legalities,—it must be a true union of hearts and hands, a spirit of mutual confidence and respect among the various communities of one people. But for many years our most characteristic Southern institution has been widely and loudly denounced among you as wicked and inhuman. It has been proclaimed as 'the sum of all villainies.' We have been held up to the reprobation of the world as tyrants and man-stealers. Those at the North who disapproved of such abuse have failed to silence or repress it. This denunciation has spread until apparently it has won the preponderating sentiment of the North. A national household in which we are thus branded as sinners and criminals is no longer a home for us.

"This hostility has borne its natural fruit in open attack. A peaceful Virginia village has been assailed by armed men, its citizens shot down while defending their homes, and the summons given for servile insurrection with all its horrors. The leader in this crime, justly condemned and executed under Virginia's laws, has been widely honored throughout the North as a

hero and martyr. By the light of that applause we must interpret the real feeling of the North, and its probable future course toward us.

"The Presidential election has now been won by a party whose avowed principle is the restriction of slavery, while its animating spirit is active hostility to slavery. We cannot trust the Republican party in its profession of respect for the Constitution. Even in its formal declaration it ignores a Supreme Court decision, and advances a revolutionary doctrine as to slavery in the territories. Its elected candidate has declared that 'this government cannot endure permanently half slave and half free.' The party's only reason for being is opposition to slavery, and there is every probability that this opposition will, with growing power and opportunity, be directed against the system as it now exists in our Southern States.

"The spirit of the American Union is dissolved already, when its chief magistrate has been elected by the votes of one section and by a party animated solely by hostility to the industrial and social system of the other section. The formal bond of the Union can hereafter be only an instrument to harass and destroy our liberties. We therefore propose that that bond be at once and finally cancelled. It is and has been from the beginning the right of any State to withdraw from the national partnership at its own pleasure. We call on our brethren of the South to take prompt action for the deliberate, legal and solemn withdrawal of their States from the Union, and their organization in a new Confederacy."

So in effect spoke the leading spirits of the Gulf and Cotton States as soon as Lincoln was elected in November, 1860. Less promptly, coming only gradually into unison, but with growing clearness and emphasis, spoke the dominant spirit of the North in the months between Lincoln's election and inauguration. This in substance was the Northern reply to the Secessionist:

"We deny that we have violated the Constitution, that we have wronged you, or that we intend to wrong you. We have taken no advantage of you beyond the legitimate victories of political controversy. We are loyal to the Constitution, and to that which is deeper and higher than the Constitution,—the spirit of American nationality.

"Taking up your specific charges,—the status of slavery in the various territories has been debated and battled in Congress and among the people for seventy years, and as now one decision and now another has been reached it has been accepted by all until peaceably changed. For six years past it has been the cardinal question in national politics. Within that period three views have been urged,—that slavery goes by natural and constitutional right into all the territories, that the matter is to be settled in each territory by the local population, and that slavery should be excluded by national authority from all the territories. For this last view we have argued, pleaded, waited, until at last the supreme tribunal of all—the American people in a national election—has given judgment in our favor.

"You cite the Dred Scott decision of the Supreme Court as establishing slavery in the territories. But you wrest from that decision a force which it does not legally carry. The best lawyers are with us as to this. The court at the outset dismissed the case for want of jurisdiction, because Dred Scott, being a negro, could not be an American citizen, and therefore had no standing before the court. This being said, the court by its own decision could go no farther with the case. When a majority of the judges went on to discuss the status of slavery in the territories,—as it might have come up if they had gone on to try the case on its merits—they were uttering a mere *obiter dictum*,—a personal opinion carrying no judicial authority. The attempt to make these side-remarks a decisive pronouncement on the supreme political question of the time is beyond law or reason. It is preposterous that the court's incidental opinion, on a case which it had disclaimed the power to try, should invalidate that exclusion of slavery by national authority which had been affirmed by the great acts of 1787 and 1820, and had been exercised for seventy years.

"As to fugitive slaves, the Personal Liberty laws are designed to safeguard by the State's authority its free black citizens from the kidnapping which the Federal statute, with its refusal of a jury trial, renders easy. If they sometimes make difficulty in the rendition of actual fugitives,—you must not expect a whole-hearted acceptance of the rôle of slave-catchers by the Northern people. You have the Federal statute, and may take what you can under it,—but if under the bond Shylock gets only his pound of flesh, there is no help for him.

"Come now to your broader complaint, that the spirit of the Union has been sacrificed by Northern hostility toward your peculiar institution. True, you have had to put up with harsh words, but we have had to put up with a harsh fact. You have had to tolerate criticism, but we have had to tolerate slavery under our national flag. It is an institution abhorrent to our sense of right. We believe it contrary to the law of God and the spirit of humanity. We consider it unjust in its essential principle, and full of crying abuses in its actual administration. Its existence in one section of the Union is a reproach to us among the nations of the earth, and a blot on the flag. Yet we so thoroughly recognize that our national principle allows each State to shape its own institutions that we have not attempted and shall not attempt to hinder you from cherishing slavery among yourselves as long as you please. If, for the vast and vital interests bound up with the unity of this nation, we can tolerate the presence within it of a system we so disapprove, cannot you on your part tolerate the inevitable criticism which it calls out among us?

"If mutual grievances are to be rehearsed, we have our full share. What has become of the constitutional provision which guarantees to the citizens of every State their rights in all the States? When black seamen, citizens of our commonwealths, enter South Carolina ports, they are thrown into jail or sold into slavery. If we send a lawyer and statesman to remonstrate, he is driven out. Our newspapers are excluded from your mails. You have extinguished free speech among your own citizens. If the Republican party is sectional, it is because any man who supports it, south of the Ohio, is liable to abuse and exile. You have shaped our national policy in lines of dishonor. With your Northern allies you have forced war on a weak neighbor and despoiled her of territory. You have poured thousands of fraudulent voters into Kansas, have supported their usurping government by Federal judges and troops, and have tolerated the ruffians who harried peaceful settlers. One of your congressional leaders has answered a senator's arguments by beating him into insensibility, and you have honored and reelected the assailant. And now, when we have fairly won the day in a national election, and for purposes peaceful, constitutional, and beneficent,—you propose to break up the nation, and reorganize your part of it expressly for the maintenance and promotion of slavery.

"With such complaints on your part, and such complaints on ours, what is the manly, the patriotic, the sufficient recourse? That which we offer is that

you and we, the whole American people, go forward loyally and patiently with the familiar duties of American citizens. Let Time and Providence arbitrate our controversies. Let us trust the institutions under which for seventy years our nation has grown great; let us, now and hereafter, acquiesce in that deliberate voice of the people which our fathers established as the sovereign authority. For thirty years you have had in the Presidency either a Southerner or a Northern man with Southern principles,—and we acquiesced. Now we have chosen a genuine Northerner,—will not you acquiesce? Four years ago the Presidential contest was held on the same lines as this year; you won, and we cheerfully submitted,—now we have won, will not you loyally submit? We disclaim any attack on your domestic institutions. The invasion by John Brown was repudiated by practically the entire North. Honor for a brave, misguided man meant no approval of his criminal act. For the advance of our distinctive principles,—inimical, we own, to your system of slave labor,—we look only to the gradual conversion of individual opinion, and to the ultimate acceptance by your own people of the principles of universal liberty. We believe that civilization and Christianity must steadily work to establish freedom for all men. On that ground, and in that sense, do we believe that 'this government cannot permanently endure half slave and half free.' Pending that advance, we propose only to exclude slavery from the common domain; to tolerate slavery as sectional, while upholding freedom as national. If you are still dissatisfied, yet is it not better to bear the evils that we have than fly to others that we know not of? Nay, do we not too well know, and surely if dimly foresee, the terrific evils which must attend the attempted disruption of this nation?

"A nation it is, and not a partnership. A nation, one and inseparable, we propose that it shall continue. We deny that the founders and fathers ever contemplated a mere temporary alliance dissoluble at the caprice of any member. To the Union, established under the Constitution, just as earnestly as to the cause of independence, they virtually pledged 'their lives, their fortunes, and their sacred honor.' With every year the nation has knitted its texture closer, as its benefits increased and its associations grew. A nation is something other than a pleasure party, or a mutual admiration society,—it includes a principle of rightful authority and necessary submission. The harmony vital to national unity is not merely a mutual complacency of the

members,—at its root is a habitual, disciplined obedience to the central authority, which in a democracy is the orderly expressed will of the majority. You cannot leave us and we cannot let you go. And if you attempt to break the bond, it is at your peril."

CHAPTER XXII

HOW THEY DIFFERED

If the typical Secessionist and the typical Unionist, as just described, could rally a united South and a united North to their respective views, there was no escape from a violent clash. Whether the two sections could be so united each in itself appeared extremely doubtful. But below these special questions of political creed were underlying divergences of sentiment and character between North and South, which fanned the immediate strife as a strong wind fans a starting flame. There was first a long-growing alienation of feeling, a mutual dislike, rooted in the slavery controversy, and fed partly by real and partly by imaginary differences. Different personal and social ideals were fostered by the two industrial systems. The Southerner of the dominant class looked on manual labor as fit only for slaves and low-class whites. His ideal of society was a pyramid, the lower courses representing the physical toilers, the intermediate strata supplying a higher quality of social service, while the crown was a class refined by leisure and cultivation and free to give themselves to generous and hospitable private life, with public affairs for their serious pursuit. He regarded the prominence of the laboring class in Northern communities as marking the inferiority of their society, and in the absorption of the wealthier class in trade he read a further disadvantage. The virtues he most honored were courage, courtesy, magnanimity,—all that he delighted to characterize as "chivalry." He was inclined to consider the North as materialistic and mercenary, and even its virtues as based largely on "honesty is the best policy."

This low opinion was heartily reciprocated by the Northerner. He believed the very foundation of Southern society to be injustice,—the unpaid labor of the slave,—and the superstructure to correspond. He looked on the slaveholders as cruel to their slaves and arrogant toward the world at large, especially toward himself. The popular opinion of slavery fastened on its abuses and ignored its mitigations. On the average reader of *Uncle Tom's Cabin*, Legree made a deeper impression than St. Clare or Mrs. Shelby.

Even the religious and intellectual life of the two sections had grown unsympathetic and often antagonistic. The South held tenaciously to the traditional orthodox theology. In the North there was free discussion and movement of thought. Even the conservative Presbyterian church had its New School and Old School; and in New England the Congregational body was divided by the birth and growth of Unitarianism. At all this turmoil the South looked askance, and was genuinely shocked by the disintegration of the old creed. The North in turn looked with something like suspicion, if not scorn, on a Christianity which used the Bible as an arsenal to fortify slavery. The Northern brood of reforms and isms,—wise, unwise, or fantastic,—moved the South to a hostility which made little discrimination between the idealism of Emerson, the iconoclasm of Parker, and the vagaries of "free love." The group of literary lights,—Bryant, Longfellow, Lowell, Whittier, Holmes, and their compeers,—won Southern dislike by their hostility to slavery. The South itself, singularly barren of original literature,—its prolific new births in our own day are one of the most conspicuous fruits of emancipation,—clung fondly to the classical and feudal traditions, and hardly admitted any literary sovereign later than Scott and Byron.

In a national union, as in marriage, there may be long continuance and even substantial happiness in spite of many differences. So was it with England and Scotland, so is it with Germany and with Italy. But in slavery there was so profound an incompatibility with the fact and idea of personal freedom as held by the American people at large, that the inevitable opposition of the two systems was desperate almost beyond cure. That opposition, and all the attendant circumstances of divergence, were aggravated in their divisive effects by the extreme bitterness of the foremost debaters on both sides. The very nature of the subject tempted to vehement criticism, and defense of equal vehemence. But there was a great aggravation of bitterness when, in the van of the attack on slavery, the temper of Woolman and Lundy, of Jefferson and Franklin and Channing, was replaced by the temper of Garrison and his followers. Their violence inflamed alike the North and the South, and, with the answering violence it provoked, worked the two peoples into a largely false and unjust conception of each other's character. The South's retort was no less passionate in words, while in act it took form in expulsion of citizens and suppression of free speech. Garrison's burning words, and the polished invective of Phillips, live in literature; the wrath

which answered them in Southern orators and newspapers has left less of record; but on both sides the work was effectually done of sowing mutual suspicion and hate.

If only North and South could have known each other's best, as they knew each other's worst! They were kept apart by the want of any stream of migration between them, like that which united East and West, with the resulting network of family connections and friendly intercourse. Sometimes a Northern visitor, or an English traveler like Thackeray, saw and appreciated the cultivated society of Charleston or Richmond, or plantation life at its best,—a hospitable, genial, outdoor life, with masters and mistresses who gave their best thought and toil to the care of their servants. Sometimes a Southerner had a revelation like that of General Zachary Taylor, when, looking from one of the heights in Springfield, "the city of homes," on a landscape thick dotted with the cheerful abodes of an industrial community, he exclaimed: "You can see no such sight as that in a Southern State!" And always there were some men and women who out of wide knowledge or a natural justice recognized and loved the people of the whole land. But too frequently, in those days, the Southerner saw in the North only a mass of plebeian laborers excited by political and religious fanaticism; while the Northerner looked south to a group of tyrannical and arrogant slaveholders lording it over their victims. To the one, the typical figure of the North was John Brown; to the other, the representative of the South was Brooks of South Carolina.

There were two other marked differences between the sections. The first was the greater concentration of interest in the South on national politics, and the leadership conceded to the political class. In the North, the general occupation in laborious and gainful pursuits, and the wide variety of social interests which competed for attention,—education, reform, the debating society, the town-meeting,—all acted to hold men in other fields than those of national politics. The best brains were invited by commerce, the factory, the railroad, the college, the laboratory, the newspaper,—as well as by the Capitol. But to the Southern planter and his social compeer no pursuit compared in attraction with the political field, and above all the public life of the nation. The mass of the people, especially in the country districts, found in the political meeting an interest whose only rival was the camp-meeting. Besides, when the burning political question was slavery, it came

home to the business and bosoms of the South, while to the North it was remote. And thus, when the secession movement broke upon the land, the Southern people grasped it with a concentration, energy, and response to their habitual leaders, in strongest contrast to the surprise, hesitation, and division, which at first characterized the North.

And, as the last distinction to be here noted, one section was far more habituated than the other to methods of physical force in private and public affairs. It was an instance of this that the duel was in common practice at the South up to the Civil War, while at the North it had disappeared sixty years earlier, after the encounter of Burr and Hamilton. At the South the street affray was common. There is a picture of Southern life which ought to have a wide reading, in *Kate Beaumont*, a story of South Carolina, written by J. W. De Forest, a Northerner and a Union soldier. Its tone is sympathetic, and neither the negro nor the sectional question plays a part. It portrays admirable and delightful people; old Judge Kershaw is indeed "the white rose of South Carolina chivalry," and the Beaumonts and McAllisters, with all their foibles, are a strong and lovable group. But the pistol is the ready arbiter of every quarrel; the duelist's code is so established that it can hardly be ignored even by one who disapproves it; and the high-toned gentleman is no whit too high for the street encounter with his opponent. Old-time Southerners know how faithful is that picture. So, too, the Southern people turned readily to public war. They supplied the pioneers who colonized Texas and won by arms its independence of Mexico. They not only supported the Mexican war by their votes, but many of the flower of their youth enlisted for it. From their young men were recruited the "filibusters" who, from time to time, tried to revolutionize or annex Cuba or some Central American State. The soldier figured largely in the Southern imagination. But the North inclined strongly to the ways of peace. That is the natural temper of an industrial democracy. It is the note of a civilization advanced beyond slavery and feudalism. And of the moral leaders of the North, some of the foremost had been strong champions of peace. Channing had pleaded for it as eloquently as he pleaded for freedom. Intemperance, slavery, and war had been the trinity of evil assailed by earnest reformers. Sumner had gone to the length of proclaiming the most unjust peace better than the justest war,—an extreme from which he was destined to be converted. Garrison and Phillips, while their language fanned the passions

whose inevitable tendency is toward war, had in theory declared all warfare to be unchristian. And, apart from sentiment or conviction, the industrial and peaceful habit was so widely diffused that it was questionable how much remained of the militant temper which can and will fight on good occasion. The South rashly believed that such temper was extinct in the North, and the North on its part doubted how far the vaunts of Southern courage had any substance.

CHAPTER XXIII

WHY THEY FOUGHT

Now, when the issue was about to be joined, let it be noted that Secession based itself, in profession and in reality, wholly on the question of slavery. There lay the grievance, and for that alone a remedy was to be had even at the price of sundering the Union. Later, when actual war broke out, other considerations than slavery came into play. To unite and animate the South came the doctrine of State rights, the sympathy of neighborhood, and the primal human impulse of self-defense. But the critical movement, the action which first sundered the Union and so led to war,—was inspired wholly and solely by the defense and maintenance of slavery. The proposition is almost too plain for argument. But it receives illustration from the great debate in the Georgia Legislature, when Toombs advocated Secession and Stephens opposed it. Toombs, evidently unwilling to rest the case wholly on slavery, alleged three other grievances at the hands of the North—the fishery bounties, the navigation laws, and the protective tariff. Stephens easily brushed aside the bounties and navigation laws as bygone or unimportant. As to the tariff, he showed that the last tariff law, enacted in 1857, was supported by every Massachusetts member of Congress and every Georgia member, including Toombs himself. What further he said belongs to a later chapter. But he was unquestionably right, and all rational history confirms it, that the one force impelling the South to Secession was the imperilled interest of slavery.

But the resistance which Secession encountered from the North was from the outset other and wider than hostility to slavery. Anti-slavery feeling was indeed strong in the Northern heart; the restriction of slavery was the supreme principle of the Republican party; the resentment that the national bond should be menaced in the interest of slavery gave force to the opposition which Secession instantly aroused. But, on the one hand, the extreme opponents of slavery, Garrison and his followers, were now, as they had always been, willing and more than willing that the South should go off and take slavery with it. And on the other hand, the anti-secessionists of the

nation included a multitude, North and South, who were either friendly to slavery or indifferent to it. Even of the Republican party the mass were more concerned for the rights of the white man than of the black man. They were impatient of the dominance of the government by the South, and meant to unseat the Southern oligarchy from the place of power at Washington.

They intended that the territories should be kept for the free immigrant, who should not be degraded by slaves at work in the next field. Only a minority of the party,—though a minority likely in the long run to lead it—looked with hope and purpose to ultimate emancipation. And when the question of Secession was at issue by the people's votes and voice, and had not yet come to the clash of arms, the rights and interests of the slave fell into the background. The supreme question of the time was felt to be the unity or the division of the nation.

The Secessionists' plea was in two clauses; that their States were aggrieved by Northern action, and that they had a legal right to leave the Union without let or hindrance. A double answer met them, from their fellow-Southerners that it was impolitic to secede, and from the North that secession was illegal, unpermissible, and to be resisted at all costs.

The Secessionists were fluent in argument that the framers of the Constitution intended only a partnership of States, dissoluble by any at will. However difficult to prove that the original builders purposed only such a temporary edifice, there was at least ground for maintaining that they gave no authority for coercing a State into obedience or submission, and indeed rejected a proposal to give such authority. If there were no legal or rightful authority to keep a State in the Union by force, then for all practical purposes its right to go out of the Union was established. But against that right, as ever contemplated by the fathers, or allowable under the Constitution, there was strong contention on legal and historic grounds.

But deeper than all forensic or academic controversy was the substantial and tremendous fact, that the American people had grown into a nation, organic and vital. That unity was felt in millions of breasts, cherished by countless firesides, recognized among the peoples of the earth.

There had developed that mysterious and mighty sentiment, the love of country. It rested in part on the recognition of material benefits. From the Atlantic to the Pacific, from the Lakes to the Gulf, the tides of commerce flowed free, unvexed by a single custom-house. The Mississippi with its traffic united the Northern prairies and the Louisiana delta like a great artery. Safety to person and property under the laws, protection by an authority strong enough to curb riot or faction at home, and with a shielding arm that reached wherever an American traveler might wander,—these benefits rooted patriotism deep in the soil of homely usefulness. And the tree branched and blossomed in the upper air of generous feeling. Man's sympathy expands in widening spheres, and his being enlarges as he comes into vital union, first with wife and children, then successively with neighborhood, community, country, and at last with humanity. The Russian peasant, in his ignorance and poverty, or facing the foe in war, is sublimated by his devotion to the White Czar and Holy Russia. Still more inspiring and profound is the patriotism of a citizen whose nation is founded on equal brotherhood. Deeper than analysis can probe is this passion of patriotism. Gladstone characterized it well, when, writing in August, 1861, he recognized among the motives sustaining the Union cause, "last and best of all, the strong instinct of national life, and the abhorrence of Nature itself toward all severance of an organized body."

This sentiment, though strained and weakened in the South, was still powerful even in that section. This was especially true of the border States, where slavery was of less account than in the Gulf and Cotton States. The spirit of Clay was still strong in Kentucky, and was represented by the venerable John J. Crittenden in the Senate. Of a like temper was John Bell of Tennessee, Presidential candidate of the Union and Constitutional party in 1860. From the same State Andrew Johnson, in the Senate, stood for the sturdy and fierce Unionism of the white laboring class. Virginia was strongly bound to the Union by her great historical traditions. North Carolina, Missouri, and Arkansas were, until the war broke out, attached to the Union rather than the Southern cause. It was in the belt of States from South Carolina to Texas, in which the planter class was altogether dominant, that the interest of slavery, and the pride of class and of State, had gradually loosened the bonds of affection and allegiance to the national idea. Calhoun himself had been an ardent lover of the Union. The clash

between the national and sectional interests had been to him a tragedy. Nullification was his device for perpetuating the Union while allowing its members relief from possible oppression,—but nullification had failed, in fact as in logic.

Now the Secessionists went further than Calhoun had ever found occasion to go. They proposed to break up the nation, at first by the withdrawal of their separate States, to be followed by the organization of a Southern Confederacy. Their grievance was the restriction of their industrial system, and its threatened destruction, and the failure of the Union to serve its proper ends of justice and fraternity. But they wholly disclaimed any revolutionary action. They maintained that the withdrawal of their States was an exercise of their strictly legal and constitutional right. This is the plea which is insistently and strenuously urged by their defenders. Their foremost actors in the drama, Davis and Stephens, became at a later day its historians, not so much to record its events, as to plead with elaboration and reiteration that Secession was a constitutional right. But all their fine-spun reasoning ran dead against a force which it could no more overcome than King Canute's words could halt the tide,—the fact of American unity, as realized in the hearts of the American people.

The mass of men live not by logic, but by primal instincts and passions. Where one man could explain why the nation was an indestructible organism rather than a partnership dissoluble at will, a thousand men could and would fight to prevent the nation from being dissolved. But here and there on this planet is a man who must think things through to the end, and have a solid reason for what he does. Such a man was Abraham Lincoln. He never could rest contented till he had worked the problem out clearly in his own head, and then had stated the answer in words that the common man could understand. Such an answer to the whole Secessionist argument, quite apart from the slavery question, he gave in one brief paragraph of his inaugural. "There is no alternative for continuing the government but acquiescence on the one side or the other. If the minority in such a case will secede rather than acquiesce, they make a precedent which in turn will ruin and divide them; for a minority of their own will secede from them, whenever a majority refuses to be controlled by such a minority. For instance, why not any portion of a new Confederacy, a year or so hence, arbitrarily secede again, precisely as portions of the present Union now

claim to secede from it? All who cherish disunion sentiments are now being educated to the exact temper of doing this. Is there such perfect identity of interests among the States to compose a new Union as to produce harmony only, and prevent renewed Secession? Plainly, the central idea of Secession is the essence of anarchy." That was the key-word of the situation, in the court of reason and conscience,—"the central idea of Secession is the essence of anarchy."

The system which the Secessionists proposed to break up had a part of its highest value in that very division of authority between State and nation which gave them their pretext for a separation. The Federal plan was the special contribution of America to the evolution of popular self-government. Until that step had been taken, not only did the practical difficulties of democracy increase enormously with the increase of area and population, but a vast centralized democracy was liable to be itself an oppressive despotism, as France has learned at bitter cost. The Federal plan, like most other great advances, came not as the conception of an ingenious brain, but from the growth of social facts. The thirteen colonies started and grew as individual offshoots from Great Britain. Under a common impulse they broke loose from the mother-country; then, by a common necessity, they bound themselves together in a governmental Union, each member retaining jurisdiction in such affairs as were its special concern. The resulting Federal Union was a combination of strength and freedom such as the world had never seen. With this for its organic form, with its spiritual lineage drawn from the Puritan, the Quaker and the Cavalier, with Anglo-Saxon stock for its core, yet with open doors and assimilating power for all races, and with a continent for its field of expansion,—the American people became the leader and the hope of humanity. This was the nation which the Secessionists proposed to rend asunder.

All government implies a principle of authority, and requires the occasional sacrifice of the individual's pleasure. The national bond has one strand in mutual good-will, but another strand is personal sacrifice, and another is stern command. The Union required some sacrifices, not only of material price,—as when a man pays just taxes, or acquiesces in a fiscal system which he considers unjust,—but sacrifices sometimes even of moral sentiment. Lincoln, explaining his position in 1855 to his old friend Speed, of Kentucky, repelled the suggestion that he had no personal interest in

slavery. He says that whenever he crosses the border he sees manacled slaves or some similar sight which is a torment to him. "You ought to appreciate how much the great body of the Northern people do crucify their feelings in order to maintain their loyalty to the Constitution and the Union."

That acquiescence,—a costly sacrifice to the higher good; and the typical attitude of the Republicans and the moderate anti-slavery men,—seemed to Garrison and Phillips and their school a sinful compliance with evil. The extreme Abolitionists, as much as the extremists of the South, were opposed to the Union. They had no comprehension of the interests and principles involved in the preservation of the national life. One of the pleasant traits told of Garrison's private life is this: He was fond of music, especially religious music, but had little cultivation in that direction; and he would sit at the piano and pick out the air of the good old hymn-tunes with one hand, not knowing how to play the bass which makes a harmony. That was typical of his mental attitude,—he knew and loved the melody of freedom, but the harmony blended of freedom and national unity he did not comprehend.

The Southern disunionists finally carried their section, but the Abolition disunionists never made the slightest approach to converting the North. It was not merely that many at the North were indifferent to slavery, while to the whole community its interest was remote compared to what it was to the South. There was another reason for the failure of the Northern disunionists. Among the class to whom the appeal for freedom came closest home, the idealists, the men of moral conviction and enthusiasm, were many to whose ideality and enthusiasm American unity also spoke with powerful voice. Patriotism was more to them than a material interest, more than an enlarged and glowing sentiment of neighborhood and kinship,—it was devotion to moral interests of which the national organism was the symbol and the agent. They saw, as Webster saw, that "America is inseparably connected, fast bound up, in future and by fate, with these great interests,"—of free representative government, entire religious liberty, improved systems of national intercourse, the spirit of free inquiry, and the general diffusion of knowledge. They looked still higher than this,—they saw that America rightly tended toward universal personal liberty, and full opportunity and encouragement to man as man, of whatever race or class. That was what America stood for to those moral enthusiasts whose sanity matched their

ardor. They saw that this ideal was still in the future, and that progress might be slow and difficult, but they were pledged in their souls to pursue it. And, with that purpose at heart, they were ready to maintain the national unity at whatever cost.

This was the composite and mighty force against which the Secessionists unwittingly set themselves,—the love of country, strong alike in the common people and the leaders, a love rooted in material interest and flowering in generous sentiment; and beyond that the moral ideals which, born in prophets and men of genius, had permeated the best part of the nation. With this, too, went the preponderance of physical resources which free labor had been steadily winning for the North. Judging even in the interest of slavery, was it not wise to acquiesce in the election, to remain under the safeguards with which the Constitution surrounded slavery in the States, to have patience, and to make the best terms possible with the forces of nature and society? So urged the wisest counselors, like Stephens of Georgia. But men rarely act on a deliberate and rational calculation of their interests. They are swayed by impulse and passion, and especially by the temper and habit which have become a second nature. The leaders in Secession acted in a spirit generated by the very nature of slavery, and fostered by their long defense of slavery. That genesis of the movement is all the more impressive when we recognize the high personal character of its leaders, and acquit them of conscious motives of personal ambition. Slavery was their undoing. The habit of absolute control over slaves bred the habit of mastery whenever it could be successfully asserted. There grew up a caste, its members equal and cordial among themselves, but self-assertive and haughty to all besides. They brooked no opposition at home, and resented all criticism abroad. They misread history and present facts, misconceived their place in the order of things, and set themselves against both the finest and the strongest forces of the time. When the political party which had been their most effective tool became difficult to handle, they broke it in two. When they could no longer rule the nation, they set out to sunder it.

Thus, after forty-five years, we try to trace the springs of action,—action which at the time moved swiftly, in cloud and storm and seeming chaos. We have endeavored to see a little of how the men of the North and of the South thought and felt. Now let us see what they did.

CHAPTER XXIV

ON NIAGARA'S BRINK—AND OVER

The election of Lincoln in November, 1860, found South Carolina expectant and ready for action. The Legislature was in session, and immediately ordered an election to be held December 6 for a convention to meet December 17, and pass on the question of Secession. The action of the convention was in no doubt.

Governor Pettus of Mississippi summoned a group of leading men to consider the question of immediate Secession. In the conclave the principal opponent of instant action was Jefferson Davis. His grounds were prudential; he knew that the arsenals, foundries, and military supplies were chiefly at the North; he foresaw a long and bloody war; he advised that further efforts be made at compromise, or at least that united action of the South be insured. This counsel prevailed, and the convention was deferred until mid-January.

In the Georgia Legislature it was proposed that the question of Secession be at once submitted to a popular vote. Toombs and Stephens threw each his whole weight respectively for and against Secession. Stephens has preserved his own speech in full. He emphasized the gravity of the South's grievances, and the need of redress from the North if the Union was to permanently endure. But he denied that the danger was so pressing as to justify immediate Secession. He pointed out that Lincoln would be confronted by a hostile majority in the Senate, the House and the Supreme Court, and could not even appoint his Cabinet officers except with the approval of a Senate in which his opponents outnumbered his friends. He urged that it was wise to wait for some overt aggression on the President's part before seceding. He dwelt on the immense advantages the Union had brought to all sections. He showed (as in our last chapter) that Toombs could allege no injuries except such as affected slavery. Georgia's wealth had doubled between 1850 and 1860. "I look upon this country," he said, "with our institutions, as the Eden of the world, the paradise of the universe.

It may be that out of it we may become greater and more prosperous, but I am candid and sincere in telling you that I fear if we yield to passion, and without sufficient cause shall take that step, that instead of becoming greater or more peaceful, prosperous and happy,—instead of becoming gods we will become demons, and at no distant day commence cutting one another's throats."

Stephen's counsel was that the State should hold a convention, that with the other Southern States it should draw up a formal bill of complaint as to the personal liberty laws and the like, and if the North then refused redress, secede. But whatever the State should do, he would accept its decision, since the only alternative was civil war within the State. He succeeded in having the convention deferred till January, and the other Gulf States took similar action, while Virginia called a convention for February 13.

With the tide of secession rising swiftly in the South, and surprise, consternation, and perplexity at the North, Congress met in early December. President Buchanan, in his message, following the advice of his attorney-general, Jeremiah S. Black of Pennsylvania,—both of them honest and patriotic men, but legalists rather than statesmen—argued that Secession was wholly against the Constitution, but its forcible repression was equally against the Constitution. Thus encouraged, the Southern leaders confronted the Republicans in Congress,—how far would they recede, how much would they yield, to avert Secession? Naturally, the Republicans were not willing to undo the victory they had just won, or to concede the very principle for which they had fought. But in both Houses large committees were appointed and the whole situation was earnestly discussed. On all sides violence was deprecated; there was general dread of disruption of the Union, general doubt of the feasibility of maintaining it by force, and the wide wish and effort to find some practicable compromise.

But there was no hesitation on South Carolina's part. Her convention passed, December 20, an Ordinance of Secession; a clear and impressive statement of her complaints and the remedy she adopts. The Federal compact has been broken; the personal liberty laws violate the Constitution; the Northern people have denounced as sinful the institution of slavery; they have elected a man who has declared that "this government cannot permanently endure half slave and half free"; they are about to exclude

Southern institutions from the territories, and to make the Supreme Court sectional. "All hope of redress is rendered vain by the fact that public opinion at the North has invested a great political error with the sanction of a more erroneous religious belief." So, from a partnership of which the letter has been broken and the spirit destroyed, South Carolina withdraws.

The State was, at least on the surface, almost unanimous,—in Charleston only the venerable James L. Petigru ventured to call himself a Unionist,—and was in high heart and hope for its new venture. But, facing the palmetto flags so gayly unfurled to the breeze, still floated the Stars and Stripes over a little garrison in Fort Moultrie, commanded by Major Anderson. His supplies were low; should aid be sent him? No, said Buchanan timidly; and thereat Cass withdrew indignantly from the Cabinet, to be replaced as Secretary of State by Black, while the vigorous Edwin M. Stanton took Black's former place; and Buchanan's courage rose a little. At the request of the South Carolina authorities, Floyd, the Secretary of War, had ordered Anderson to act strictly on the defensive. Finding himself at the mercy of his opponents on the mainland, he quietly withdrew his handful of men, on the night of December 26, to Fort Sumter, whose position on an island gave comparative security. The South Carolinians instantly occupied Fort Moultrie and Castle Pinckney, and took possession of the custom-house and post-office. They cried out against Anderson's maneuver as a breach of good faith, and Secretary Floyd resigned, in sympathy with the Carolinians. The President, heartened by his new counselors, dispatched the steamer *Star of the West* with supplies for Anderson, but she was fired on by the South Carolinians and turned back, January 9. Resenting the President's act, Thompson of Mississippi and Thomas of Maryland left his cabinet. The President brought in General Dix of New York; Joseph Holt, now Secretary of War, was a Southern loyalist, and in its last months Buchanan's Cabinet was thoroughly Unionist. But in him there was no leadership.

Leadership was not wanting to the Secessionists. A movement like theirs, once begun and in a congenial atmosphere, advances like a glacier by its own weight, but with the pace not of the glacier but of the torrent. In the country at large and at Washington there was confusion of counsels. There was manifest disposition among the Republicans to go a long way in conciliation. Of forcible resistance to Secession there was but little talk. But that the Republicans should disown and reverse the entire principles on

which their party was founded was out of the question. On the night of January 5 there met in a room at the Capitol the Senators from Georgia, Florida, Alabama, Mississippi, Louisiana, Arkansas, and Texas. They agreed on a common program, and telegraphed to their homes that Secession was advisable at the January conventions and that a common convention was to be held at Montgomery, Ala., in mid-February, for the organization of the Southern Confederacy. Meantime, all United States officials were to resign, and the Federal forts, arsenals and custom-houses were to be seized.

A last formal presentation of the Southern ultimatum was made by Toombs in the Senate. It was the familiar demand—slavery in the territories; slavery under Federal protection everywhere except in the free States; fugitives to be returned; offenders against State laws to be surrendered to justice in those States; inter-State invasion and insurrection to be prohibited and punished by Congress. No partial concessions would answer: this, or nothing! "Nothing be it then!" was the answer of the Republicans: and Toombs, Davis, and their associates bade a stern and sad farewell to their fellow-congressmen and went home to organize the Confederacy. Congress took up fresh plans for reconciliation and reunion.

Mississippi, through its convention, seceded January 9, 1861. Florida followed, January 10, and Alabama, January 11. Then, in the great "keystone State" of Georgia, came deliberation and momentous debate. Against immediate Secession, the policy of patience, of conference with the other Southern States including the new "independent republics," and a united remonstrance to the North, of which the rejection would justify Secession,—this policy was embodied in a resolution presented by Herschel V. Johnson and supported by all the eloquence and persuasiveness of Stephens. Against him was the strong personal influence of Howell Cobb, and the argument—which Stephens says was decisive,—"we can make better terms out of the Union than in it." The test vote was 164 to 133 for immediate Secession. On the motion of Stephens the action was made unanimous. This accession of Georgia marked the triumph of the Secessionists' cause; and most fitly, in a speech on the evening of the same day, Stephens declared the fundamental idea of that cause. Jefferson, he said, and the leading statesmen of his day, "believed slavery wrong in principle, socially, morally, and politically ... Those ideas, however, were

fundamentally wrong. They rested upon the assumption of the equality of races. This was an error. It was a sandy foundation, and the government built upon it fell when the storm came and the wind blew. Our new government is founded upon exactly the opposite ideas; its foundations are laid, its corner-stone rests upon the great truth that the negro is not equal to the white man; that slavery—subordination to the white race—is his natural and normal condition. This, our new government, is the first in the history of the world based upon this great physical, philosophical, and moral truth."

The Louisiana convention voted to secede January 26, and Texas February 1. The seven seceded States sent delegates to a convention which met at Montgomery, February 4. They quickly organized the Confederate States of America, with a Constitution closely resembling that of the United States. One article forbade the foreign slave trade, except that with "the United States of America," which was left subject to Congress. Davis was elected President, by general agreement. He was clearly marked for the place by ability, by civil and military experience, by unblemished character, and by his record as a firm but not extreme champion of the Secessionist cause. He disclaimed any desire for the office, preferring the position which Mississippi had given him as commander of her forces, but when the summons came to him at his plantation home he promptly accepted. Stephens was chosen Vice-President, in spite of his late and half-hearted adherence, to conciliate Georgia and the old Whigs. In the Cabinet the leading figures were Toombs of Georgia and Benjamin of Louisiana.

With this purposeful, swift, and effective action, Secession seemed to have reached its limit. The other Southern States held back. Among the plain folk, not over-heated about politics, there was wide disinclination to any such extreme measure as disunion. It was well represented by Robert E. Lee, in whom the best blood and worthiest tradition of Virginia found fit exemplar. He wrote to his son, January 23: "Secession is nothing but revolution. The framers of our Constitution never expended so much labor, wisdom and forbearance, in its formation, and surrounded it with so many guards and securities, if it was intended to be broken by every member of the Confederacy at will."

North Carolina voted against a convention by 1,000 majority. Tennessee voted against it by 92,000 to 25,000. Arkansas postponed action till August.

Missouri held a convention which voted not to secede. In Maryland the governor would not convene the Legislature, and an irregular convention took no decisive action. Delaware did nothing. Virginia held a convention, which was not ready for Secession, but remained in session watching the course of events. The Kentucky Legislature refused to call a convention, but pledged assistance to the South in case of invasion.

This last declaration illustrated the second line of defense, behind the Secessionist advance. The sentiment was general throughout the South, even among Unionists, that there must be no armed repression of Secession. It rested partly on the theory of State Sovereignty, and partly on the sympathy of neighborhood and of common institutions. Even at the North there was wide disinclination to the use of force against the Secessionists. The venerable General Scott, chief of the Federal Army, gave it as his personal opinion that the wise course was to say, "Wayward sisters, depart in peace." The New York *Tribune*, foremost of Republican newspapers, declared: "If the cotton States wish to withdraw from the Union, they should be allowed to do so." "Any attempt to compel them to remain by force would be contrary to the principles of the Declaration of Independence, and to the fundamental ideas upon which human liberty is based." And again: "We hope never to live in a Republic whereof one section is pinned to the residue by bayonets." Such expressions were not uncommon among Republicans, and very frequent among Democrats. Garrison and Phillips were loud in welcoming a separation. But there were leaders like Wade of Ohio and Chandler of Michigan, whose temper was very different, and ominous that the West would never consent to a disruption of the nation.

The governor of Virginia invited all the States to send delegates to a Peace congress to find means to save the Union. Almost all sent delegates, and the congress held long sessions, while the Senate and House were essaying the same task. Little result came in either body, because neither party would accept the other's concessions. The favorite measure was that known as the Crittendon compromise, framed by the Kentucky senator, of which the central feature was the extension of the old Missouri compromise line of 36 degrees 30 minutes to the Pacific, with express provision that all territory north of this should be free and all south should be slave. To this the Republicans would not consent, but they went far toward it by agreeing to a

plan proposed by Charles Francis Adams of Massachusetts,—that New Mexico (including all present territory south of 36 degrees 30 minutes except the Indian territory), be admitted as a State with slavery if its people should so vote. They offered also to admit Colorado, Nevada, and Dakota as territories, with no express exclusion of slavery. But neither side would leave to the other the possible future extension to the South—in Mexico and Cuba. Further, the Republicans showed a willingness to amend the Personal Liberty laws, so far as they might be unconstitutional, and to provide for governmental payment for fugitives who were not returned. They expressed entire readiness to unite in a national convention for the revision of the Constitution. And finally there was not only proposed, but actually passed by the Senate and House, by two-thirds majorities, at the very end of the session, a constitutional amendment prohibiting any future amendment that should authorize Congress to interfere with slavery in the States where it existed.

In vain, all,—in vain for the Republicans to hold out the olive branch, to mutilate their own principles, and to bar the door against any ultimate constitutional abolition of slavery. Even the slave States still in the Union were not to be satisfied by all this, and the Confederacy gave it no heed. And now, in the background, was visible a rising force, in which the temper was far other than compromise. The most significant voice came from Massachusetts. After all the old antagonism of Massachusetts and South Carolina,—after the clash of Calhoun and Hayne with Webster, the expulsion of Samuel Hoar, the assault of Brooks on Sumner,—the two commonwealths stood forth, each the leader of its own section. It was a hostility which sprung from no accident, and no remembrance of old feuds, but from the opposition of two types of society, the oligarchic idea most fully developed in South Carolina, the industrial democracy in Massachusetts. The new Governor of the State was John A. Andrew, a man of clear convictions, a great heart, and a magnanimous temper. His New Year's message to the Legislature opened with a businesslike discussion of the State's finances and other materialities. Thence he passed to national affairs; he defended the Personal Liberty law, of which his more conservative predecessor, Governor Banks, had advised the repeal, but which Andrew justified as a legitimate defense against kidnapping; while suggesting that whatever slaves South Carolina had lost from this cause

were offset by Massachusetts black seamen enslaved in her ports. Then he took up the matter of disunion. "The question now is, Shall a reactionary spirit, unfriendly to liberty, be permitted to subvert democratic republican government organized under constitutional forms?... The men who own and till the soil, who drive the mills, and hammer out their own iron and leather on their own anvils and lapstones ... are honest, intelligent, patriotic, independent, and brave. They know that simple defeat in an election is no cause for the disruption of a government. They know that those who declare that they will not live peaceably within the Union do not mean to live peaceably out of it. They know that the people of all sections have a right, which they intend to maintain, of free access from the interior to both oceans, and from Canada to the Gulf of Mexico, and of the free use of all the lakes and rivers and highways of commerce, North, South, East and West. They know that the Union means peace and unfettered commercial intercourse from sea to sea and from shore to shore; that it secures us against the unfriendly presence or possible dictation of any foreign power, and commands respect for our flag and security for our trade. And they do not intend, nor will they ever consent, to be excluded from these rights which they have so long enjoyed, nor to abandon the prospect of the benefits which humanity claims for itself by means of their continued enjoyment in the future. Neither will they consent that the continent shall be overrun by the victims of a remorseless cupidity, and the elements of danger increased by the barbarizing influences which accompany the African slave trade. Inspired by the ideas and emotions which commanded the fraternization of Jackson and Webster on another great occasion of public danger, the people of Massachusetts, confiding in the patriotism of their brethren in other States, accept this issue, and respond in the words of Jackson, 'The Federal Union, it must be preserved.'... We cannot turn aside, and we will not turn back."

The crowded, anxious, hurrying months, brought the 4th of March, and Abraham Lincoln was inaugurated as President. His speeches on his way to the capital,—pacific, reassuring, but firm for national unity and liberty,—had in a degree brought him into touch with the mass of the people. But when his gaunt and homely form rose to deliver the inaugural address, it was as a little-known and untried man that he was heard. That speech gave signal that the man for the hour had come. No words could better describe

its quality than "sweet reasonableness";—that, and unflinching purpose. He began by earnest reassurances as to the fidelity to the Constitution of himself and the party behind him. He suggested the means and temper by which mutual grievances might be approached. Then in his clear, logical fashion, and in the plain speech of the common man, he showed that the Union is in its nature indissoluble, older than the Constitution, unaffected by any attempted Secession. His own official, inevitable duty is to maintain the Union. But there need be no bloodshed or violence. "The power confided to me will be used to hold, occupy, and possess the property and places belonging to the government, and collect the duties and imports; but beyond what may be necessary for these objects there will be no invasion, no using of force against or among the people anywhere." If resident citizens will not hold Federal offices, there is to be no intrusion of obnoxious strangers. The mails will be furnished wherever they are wanted. "So far as possible the people everywhere shall have that sense of perfect security which is most favorable to calm thought and reflection." This will be his course unless events shall compel a change. And then follows a most calm, rational, moving plea against sacrificing a great, popular, orderly self-government, to individual caprice or fancied wrongs; a demonstration, irresistible as mathematics, that "the central idea of Secession is anarchy." "Unanimity is impossible, the rule of a minority, as a permanent arrangement, is wholly inadmissible; so that, rejecting the majority principle, anarchy or despotism in some form is all that is left." In the address there is not one word of heat or bitterness; it is all in the spirit of his words spoken in private, "I shall do nothing maliciously,—the interests I deal with are too vast for malicious dealings."

He does not belittle the complaints of the South, but pleads for mutual forbearance. If there are defects in the organic framework of the nation, let them be discussed and amended if necessary in a constitutional convention. No justice can be done to this inaugural in a condensation; it should be studied line by line; it is one of the great classics of American literature and history. Thus he ended: "I am loth to close. We are not enemies, but friends. We must not be enemies. Though passion may have strained, it must not break our bonds of affection. The mystic chords of memory, stretching from every battlefield and patriot's grave to every living heart and hearthstone all

over this broad land, will yet swell the chorus of the Union when again touched, as surely they will be, by the better angels of our nature."

Through the weeks that followed, Lincoln was plunged in a sea of perplexities, while the nation seemed weltering in chaos, with nothing clear but the steady purpose of the Confederate leaders to maintain their position and achieve complete independence by the shortest road. Lincoln had formed a Cabinet including some very able and some ordinary men, with one—Seward—of highest promise and at first of most disappointing performance. He regarded himself as the real power in the administration; he underrated alike the gravity of the situation and the President's ability to cope with it; he trusted to conciliation and smooth assurance; and he tried to take the reins of control into his own hands—an attempt which Lincoln quietly foiled. The President and his Cabinet were as yet strangers to each other. In the Senate (the House was not in session), Douglas assailed the President's position, and declared three courses to be open: Constitutional redress of the South's grievances; the acceptance of Secession; or its forcible repression,—the first the best, the last the worst. Three commissioners of the Confederacy were in Washington, refused official recognition, but holding some indirect intercourse with Seward, which they apparently misunderstood and exaggerated. A swarm of office-seekers, like Egyptian locusts, beset the President amid his heavy cares. The border States, trembling in the balance, called for the wisest handling. Heaviest and most pressing was the problem what to do with Fort Sumter. Closely beleaguered, with failing supplies, it must soon fall unless relieved. Almost impossible to relieve or save it, said the army officers; easy to slip in supplies, contradicted the naval officers. Leave Sumter to fall and you dishearten the North, urged Chase and Blair in the Cabinet; answered Seward, Reinforce it, and you provoke instant war.

Lincoln answered the question in his own way. He was true to the principle he had laid down in his inaugural,—to maintain the essential rights of the national government, but with the least possible exercise of force. He would "hold, occupy, and possess the property and places belonging to the government, and collect the duties and imports"—that and nothing more. Practically the only "property and places" now left to the government at the South were Forts Sumter and Pickens. To yield them without effort was to renounce the minimum of self-assertion he had reserved to the nation.

As to the means of supply, he had recourse to the best instrument that offered,—a scheme proposed by Captain Fox, an energetic naval officer, who planned a relief expedition of five vessels to be privately dispatched from New York and try to run past the batteries. The expedition was quickly fitted out and sent, in early April. According to promise, in case of any such action, notice was telegraphed to the Governor of South Carolina. He communicated with the Confederate government at Montgomery. That government was bent on maintaining, without further debate, its full sovereignty over the coasts and waters within its jurisdiction. There is no need to impute a deliberate purpose to rouse and unite the South by bloodshed, any more than there is reason to impute to Lincoln a crafty purpose to inveigle the South into striking the first blow. Each acted straight in the line of their open and avowed purpose,—Lincoln, to retain the remaining vestige of national authority at the South; the Confederacy, to make full and prompt assertion of its entire independence.

Orders were telegraphed from Montgomery, and General Beauregard, commanding the Charleston forces, sent to Major Anderson a summons to surrender. It was rejected; and the circle of forts opened fire and Sumter fired back. The roar of those guns flashed by telegraph over the country. In every town and hamlet men watched and waited with a tension which cannot be described. All the accumulated feeling of months and years flashed into a lightning stroke of emotion. All day Friday and Saturday, April 12, 13, men watched the bulletins, and talked in brief phrases, and were conscious of a passion surging through millions of hearts. Saturday evening came the word,—the fort had yielded. After a thirty-four hours' fight, overmatched, the expected relief storm-delayed, his ammunition spent, his works on fire, Anderson had capitulated.

There was a Sunday of intense brooding all over the land. Next morning, April 15, came a proclamation from the President. The laws of the United States, it declared, were opposed and their execution obstructed in seven States, by combinations too powerful to be suppressed by the ordinary course of judicial proceedings; and the militia of the States, to the number of 75,000 were called to arms for three months to suppress the combinations and cause the laws to be duly executed.

The North rose as one man to the call. Party divisions were forgotten. Douglas went to the President and pledged his support. Regiments from Pennsylvania and Massachusetts hurried to the capital. Every Northern State hastened to fill its assigned quota of militia. No less promptly the South rallied to defend the seceding States from invasion. The Virginia convention voted Secession two days after the President's proclamation, and the people's vote ratified it by six to one. North Carolina, Tennessee, and Arkansas joined the Confederacy. Maryland, Kentucky, and Missouri, wavered and were distracted, but as State organizations remained in the Union, while their populations divided.

Constitutional logic, argumentation, distinctions between holding the national property and invasion, all vanished in the fierce breath of war. Between union and disunion, argument was exhausted, and the issue was to be tried out by force. In a day a great peaceful people resolved itself into two hostile armies.

CHAPTER XXV

THE CIVIL WAR

At the outbreak of war, what the Northerner saw confronting him was an organized attempt to overthrow the government and break up the nation in the interest of slavery. This as the essential fact took form in the circle of fire let loose on a beleaguered fort, and the Stars and Stripes lowered before an overwhelming force. Close following came the menace against the national capital, for Washington was believed to be in imminent peril. A Massachusetts regiment marching to its relief was assailed by the populace of Baltimore; communication was cut; and the city which was the centre and symbol of the national life seemed stretching her hands in appeal to the country's faithful sons. To the conscience, the heart, the imagination of the North, it was a war of national self-defense,—a holy war.

What the Southerner saw was an attempt to crush by force a legitimate exercise of the right of sovereign States to an independent existence. The typical Southerner, whether he had thought Secession expedient or not, believed that each State was the rightful judge of its own course, that the citizen's first allegiance was due to his State; and that the attempt at coercion was as tyrannical as the refusal by Great Britain of independence to the American colonies. And, apart from all political theories, there instantly loomed on the horizon the armies of the North, bearing down with fire and sword on the people of the Southern States. The instinct of self-defense, and the irresistible sympathy of neighborhood and community, prompted to resistance. Beyond doubt, the typical Southern volunteer could say in all sincerity, as one of them has expressed it: "With me is right, before me is duty, behind me is home."

So natural and profound was the motive on each side, when the war began. Wholly different from the moral responsibility of those who initiated Secession, is the case of those who afterward fought for what to each side was the cause of home and country. But, driven though both parties felt themselves to war, none the less terrible was the war in itself. There are

difficulties from which the only escape is through disaster. John Morley writes: "It is one of the commonest of all cheap misjudgments in human affairs, to start by assuming that there is always some good way out of a bad case. Alas for us all, this is not so. Situations arise, alike for individuals, for parties, and for States, from which no good way out exists, but only choice between bad way out and worse." For the American people, in the situation into which by sins of commission and omission they had been brought, the only way out was one of the worst ways that human feet can travel.

It does not belong to this work to give a history of the Civil War. But a truthful history might be written in a very different vein from the accepted and popular narratives. These for the most part describe the conflict in terms resembling partly a game of chess and partly a football match. We read of grand strategic combinations, of masterly plans of attack and admirable counter-strokes of defense. On the battlefield we hear of gallant charges, superb rushes of cavalry, indomitable resistance. Our military historians largely give us the impression of man in battle as in the exercise of his highest powers, and war as something glorious in the experience and heart-thrilling in the contemplation.

But a succinct account of the whole business would be to say that for four years the flower of the country's population were engaged in killing each other. All other industries were overshadowed by the occupation of human slaughter. Shop and farm, church and college, school and home, all were subsidiary to the battlefield.

The battlefield itself is not easily conceived by the civilian, even with the aid of poets and story-tellers from Homer to Kipling. The reader, who has perhaps never seen a shot fired in anger, may have chanced to witness a man struck down in the street by a falling beam or trampled by a runaway horse. Or, as a better illustration, he may remember in his own case some hour of sudden and extreme suffering,—a hand caught by a falling window, a foot drenched by scalding water. Intensify that experience, extend it through days, for the home couch and the nursing of mother or wife put the bare ground and the onrush of hostile men,—and you have the nucleus, the constituent atom, of a battle. Multiply it by hundreds or thousands; give to each sufferer the background of waiting parents, wife, children, at home;

give to a part death, swift or agonizing; to another part lifelong infirmity or irritation,—and you begin to get the reality of war.

It was Wellington who said that the worst sight on earth, next to the field of defeat, was the field of victory. It was Lee who wrote from Mexico to his son: "You have no idea what a horrible sight a battle-field is." And he said that the strongest memory left from his first battle was the plaintive tone of a little Mexican girl whom he found leaning over a wounded drummer-boy.

Men not only witness such carnage but inflict it, in the excitement of battle, because animated by feelings of which only a part can rightly be called heroic. Honor indeed is due to the subordination of personal fear to the sense of duty and comradeship,—yes, high honor; and the appeal of the soldier to the imagination, as a type of self-sacrifice and nobility, has its element of truth. But the ordinary courage of the battle-field is largely an excitement half-animal, half-contagious, running often into savagery and insensate fury. In that situation the highest and lowest elements in man come into play. For the most part only the highest is portrayed for us by the historians and romancers,—they keep the wild beast and the devil out of sight. Only in these later days, when mankind begins to scrutinize its boasted glories more closely, do Tolstoi in literature and Verestchagin in art give us glimpses of the grim reality.

An industry which has murder for its main output will have some by-products to match. In the armies of both sides the human stuff was of mixed character and motive. Some enlisted from pure patriotism,—for Union, State, or Confederacy; some from thirst of adventure; others for ambition; others for the bounty or under compulsion of the conscription officer; many from the mere contagious excitement. Army life always brings to many of its participants a great demoralization. Take away the restriction of public opinion in a well-ordered community, take from men the society of good women, and there will be a tendency to barbarism. A civilized army has indeed a code and public opinion of its own, which counts for some sterling qualities, but it is lax and ineffective for much that goes to complete manhood. Just as the war left a host of maimed and crippled, so it left a multitude of moral cripples. At the reunion, around the "camp fire," with the reminiscences of stirring times and the renewal of good comradeship runs a vein of comment which the newspapers do not relate. "What's become of

A.?" "Drank himself to death." "And where is X.?" "Never got back the character he lost in New Orleans,—went to the dogs." It is a chronicle not recorded on the monuments, but remembered in many a blighted household. The financial debt the war left behind it was not the heaviest part of the after-cost.

Nor must there be forgotten the temper which war begets, of mutual hate between whole peoples. Forty years later we bring ourselves,—some of us, and in a measure,—to see that our opponents of either side had some justification or some excuse; that they perhaps were honest as we. But little room was there for such mutual forbearance of judgment while the fight was on. For the average man, for most men, to fight means also to hate. While the contest lasted, Northerners habitually spoke of their foes as "the rebels,"—not in contumely, but as matter-of-fact description. They were "rebels" in common speech, and when one warmed a little they were "traitors." Good men said that now for the first time they saw why the imprecatory Psalms were written,—theirs was the only cursing strong enough for the country's enemies. Quite as hearty was the South's detestation of the Yankee invaders and despots,—the fanatics and their hired minions. The Southern feeling took the keener edge, because sharpened by the bitter fact of invasion and the hardships it brought. With them the home suffered, not only as at the North, by the departure of father or son to danger or death; the Southern homes often saw the foes in their midst, and sometimes suffered ravage and spoil. "How can you expect me to be well reconstructed," asked a Virginian after the war, "When I remember the family vaults in which the silver plates were wrenched from the coffins by your soldiers?" When the fighting was over, the life of the reunited nation had to work its way for a generation,—and the end is not yet,—against the hostilities, the rancors, the misunderstandings, generated in those four years of strife.

The reality of war where it fell heaviest,—in the border States, where neighborhoods and families were divided, and both armies marched and fought,—is touched by the graphic pen of a woman, Mrs. Rebecca Harding Davis, who saw and felt a part of it: "The histories which we have of the great tragedy give no idea of the general wretchedness, the squalid misery, which entered into every individual life in the region given up to the war. Where the armies camped the destruction was absolute. Even on the border,

your farm was a waste, all your horses or cows were seized by one army or the other, or your shop or manufactory was closed, your trade ruined. You had no money; you drank coffee made of roasted parsnips for breakfast, and ate only potatoes for dinner. Your nearest kinsfolk and friends passed you on the street silent and scowling; if you said what you thought you were liable to be dragged to the county jail and left there for months. The subject of the war was never broached in your home where opinions differed; but one morning the boys were missing. No one said a word, but one gray head was bent, and the happy light died out of the old eyes and never came to them again. Below all the squalor and discomfort was the agony of suspense or the certainty of death. But the parsnip coffee and the empty purse certainly did give a sting to the great overwhelming misery, like gnats tormenting a wounded man."

Visiting in war-time the sages of Concord, she saw the difference between war as viewed by visionaries at a distance and the reality: "I remember listening during one long summer morning to Louisa Alcott's father as he chanted pæans to the war, the 'armed angel which was wakening the nation to a lofty life unknown before.' We were in the little parlor of the Wayside, Mr. Hawthorne's house in Concord. Mr. Alcott stood in front of the fireplace, his long gray hair streaming over his collar, his pale eyes turning quickly from one listener to another to hold them quiet, his hands waving to keep time with the orotund sentences which had a stale, familiar ring as if often repeated before. Mr. Emerson stood listening, his head sunk on his breast, with profound submissive attention, but Hawthorne sat astride of a chair, his arms folded on the back, his chin dropped on them, and his laughing, sagacious eyes watching us, full of mockery.

"I had come up from the border where I had seen the actual war; the filthy spewings of it; the political jobbery in Union and Confederate camps; the malignant personal hatreds wearing patriotic masks, and glutted by burning homes and outraged women; the chances in it, well improved on both sides, for brutish men to grow more brutish, and for honorable gentlemen to degenerate into thieves and sots. War may be an armed angel with a mission, but she has the personal habits of the slums. This would-be seer who was talking of it, and the real seer who listened, knew no more of war as it was, than I had done in my cherry-tree time, when I dreamed of bannered legions of crusaders debouching in the misty fields."

The youth who reads may ask in wonder, "And was then the war to which we have been used to look back with exultation and pride,—was it but a horror and a crime?" No; it was something other and more than that; it had its aspects of moral grandeur and of gain for humanity; it was a field for noble self-sacrifice, for utmost striving of men and deepest tenderness of women, it had its heroes and martyrs and saints; it was in the large view the tremendous price of national unity and universal freedom. But in the exaltation of these better aspects, we have as a people too much forgotten the other and awful side. That is what we need now to be reminded of. For among our present dangers none is greater than the false glorification of war. Against such glorifications stands Sherman's word, "War is hell." And on that grand tomb with which our greatest city crowns its proudest height is inscribed, as the one word by which Grant forever speaks to his countrymen, "Let us have peace."

The nobler side of the war is told and will be told in many a history and biography, romance and poem. In the broad view, the grandest fact was that a multitude of men and women felt and acted as never before for a cause greater than any personal gain. Under the discipline of sacrifice and suffering, and with the personal horizon widened to take in nations and races, a multitude on the field and at home grew to loftier stature. The hardships and perils which wrecked some strengthened others. The development of energy and resource was beyond measure. The North created armies and navies; it organized a new system of finance; it transformed a peaceful industrial community into an irresistible military force; and all the while it carried on its productive industries with scarcely visible shrinkage; farm and mill, school and college, kept on with their work. The South made itself into a solid army of resistance; cut off from its accustomed sources of supply, it developed for itself all the essentials of material life; it showed an ingenuity and resourcefulness beyond all expectation; and the fidelity of its slaves supplied its armies with food while keeping its homes secure. In peace haunted always by latent dread of insurrection, in war the South found its servants its best friends. So, in both sections, wonders were wrought and deeds never dreamed of were achieved.

In justly viewing the evil and the good of war, we must compare it with other disturbances and catastrophes. The finest traits and highest efficiency

of men come out under disasters which yet it must be our habitual effort to avert. It is the ship on the rocks, the theater on fire, that shows the hero. But what should we think of one who ran a ship on shore, or set fire to a theater, in order to call out heroism? Exactly so are we to regard those who glorify war as in itself a fine and admirable thing, a proper school and arena of manhood. The refutation of such talk comes not so well from men of the church or closet as from those who have drunk deepest of war's reality. A man of exuberant vitality, whose personal delight in physical strife colors his statesmanship, and who is exhilarated by the memory of a skirmish or two in Cuba, may talk exultantly of "glory enough to go round," and preach soldiering as a splendid manifestation of the strenuous life. But the grim old warrior whose genius and resolution split the Confederacy like a wedge, General Sherman, in the very midst of his task wrote to a friend: "I confess without shame that I am sick and tired of the war. Its glory is all moonshine. Even success, the most brilliant, is over dead and mangled bodies, the anguish and lamentation of distant families appealing to me for missing sons, husbands, and fathers. It is only those who have not heard a shot, nor heard the shrieks and groans of the wounded and lacerated (friend or foe), that cry aloud for more blood, more vengeance, more desolation."

One glance we here may give at the traits which against this dark background shone with the light which redeems humanity. The worst scenes of all were not on the battlefield but in the military prisons. At Andersonville, and other points, thousands of Northern prisoners were crowded together, with insufficient supply of unnutritious food, with scanty and foul water; surrounded by harsh guards, quick to shoot if the "dead line" was crossed by a foot; harassed by petty tyranny; starved, homesick, diseased, dying like infected sheep. It is a black, black page,—but let its blackness be mainly charged to war itself, and what war always breeds. In Northern prisons, the rate of mortality was nearly as high as in Southern; the work of hunger in the one was matched by cold in the other. "All things considered," says J. F. Rhodes in his impartial *History of the United States*, "the statistics show no reason why the North should reproach the South. If we add to one side of the account the refusal to exchange the prisoners"—a refusal based by Grant at one time on the military disadvantage of restoring the Southern prisoners to active service—"and the greater resources, and to the other the distress of the Confederacy; the balance struck will not be far

from even." Enough for our present purpose that the Andersonville prison was a hell. Well, after a time the Union armies were recruited by negroes, and the Confederates in resentment refused to consider these when captured as prisoners of war, and would not include them in the exchanges. Thereupon the Federal Government declared that its negro soldiers must receive equal rights with the whites, and until this was conceded there should be no exchange at all. Then some of the Andersonville prisoners drew up a petition, and signed and sent it to Washington, praying the government to hasten their release, and if necessary to hold the question of negro prisoners for negotiation, while pressing forward the liberation of its faithful and suffering white soldiers. But promptly by others in the prison a counter petition was started, signed, and sent on. It ran in substance thus: "We are in evil case, and we earnestly desire that you hasten our deliverance by every means consistent with right and honor. But—honor first! Let the nation's plighted faith to its black soldiers be kept, at whatever cost to us. We ask you to still refuse all exchange of prisoners, until the same treatment can be secured for black and white." Was ever a braver deed than that?

One picture more. In a military hospital at Washington, Walt Whitman was engaged as a volunteer nurse. In a letter to a friend, he depicted in a few sentences the tragedy of it all, and yet the triumph of the spirit over the body and over death itself. He wrote of a Northern hospital, but the like might be seen on Southern soil, as to-day among Russians or Japanese,—it is the tragedy and triumph of humanity. "These thousands, and tens and twenties of thousands, of American young men, badly wounded ... operated on, pallid with diarrhoea, languishing, dying with fever, pneumonia, etc., open a new world somehow to me, giving closer insights, ... showing our humanity ... tried by terrible, fearful tests, probed deepest, the living souls, the body's tragedies, bursting the petty bonds of art. To these, what are your dreams and poems, even the oldest and the tearfulest?... For here I see, not at intervals, but quite always, how certain man, our American man,—how he holds himself cool and unquestioned master above all pains and bloody mutilation.... This, then, what frightened us all so long! Why, it is put to flight with ignominy—a mere stuffed scarecrow of the fields. Oh, death, where is thy sting? Oh, grave, where is thy victory?"

CHAPTER XXVI

EMANCIPATION BEGUN

When the war began, the absorbing issue at the North was the maintenance of the Union. The supreme, uniting purpose was the restoration of the national authority. Slavery had fallen into the background. But it soon began to come again to the front. Two tendencies existed at the North; one, to seek the restoration of the old state of things unchanged; the other, to seize the opportunity of war to put an end to slavery.

The pressure of events raised special questions which must be met. As soon as Northern armies were on Southern soil, slaves began to take refuge in the camps, and their masters, loyal in fact or in profession, followed with a demand for their return. Law seemed on the master's side; but the use of the army, engaged in such a war, to send slaves back to bondage, was most repugnant. At first some commanders took one course, some another. General Butler, a volunteer from Massachusetts, hit on a happy solution; he declared that slaves, being available to the enemy for hostile purposes, were like arms, gunpowder, etc., "contraband of war," and could not be reclaimed. The stroke was welcomed with cheers and laughter; and "contraband" became a catchword. Congress, in March, 1862, forbade the army and navy to return fugitives.

General Fremont was in command in Missouri. He was ardent and uncompromising, and in August, 1861, he issued a drastic proclamation, declaring the State under martial law, threatening death to all taken with arms in their hands, and giving freedom to the slaves of all rebels. The President remonstrated by letter against this too heroic surgery, and when Fremont declined to modify his order, used his authority to cancel it. The public reception of the incident marked and heightened the growing division of sentiment; the conservatives and especially the border State men, were alarmed and indignant at Fremont's action, while he became at once a favorite of the strong anti-slavery men.

This divergence among his own supporters added another to the complications which beset Lincoln and taxed him to the utmost. He had extraordinary tact and shrewdness in managing men, and in dealing with tangled situations. He showed this power toward his Cabinet officers, who included the most various material,—Seward, accomplished, resourceful, somewhat superficial, but thoroughly loyal to his chief after he knew him, managing the foreign relations with admirable skill, and somewhat conservative in his views; Chase, very able as a financier and jurist, but intensely ambitious of the Presidency, regarded as a radical as to slavery; Stanton, a great war minister but of harsh and intractable temper. These men and their colleagues Lincoln handled so skilfully as to get the best each had to contribute, and keep them and the political elements they represented in working harmony. No less successfully did he deal with Congress, guiding it to a great extent, but acquiescing in occasional defeats and disappointments so patiently that he disarmed hostility. He kept in closest touch with the common people; he was accessible to every one, listened to each man's grievance, remonstrance, or advice; and acquired an instinctive knowledge of what was in the hearts and minds of the millions.

In his own conduct, his guiding principle was fidelity to his official duty as he read it in the Constitution and the laws. He felt the specific, supreme task laid upon him to be the restoration and maintenance of the Union. And to succeed in that, he knew he must rightly interpret and enforce the general sentiment and desire of the loyal people. If he let them become so divided as to no longer act together, the cause was lost. And to follow any personal opinion or conviction of his own, in disregard of his official duty, or in defiance of the popular will, was to betray his trust.

It was under these conditions that Lincoln dealt with slavery. No man more than he detested the institution, or desired its removal. But he felt that he had no right to touch it, except as empowered by the Constitution and the laws, or as guided by the supreme necessity of saving the nation's life. Beyond that he had no authority. Beyond that, his position toward slavery must be like that of a President toward, for example, a system of religion which he believed to be false and injurious. Be he intensely orthodox, believing infidelity to be the road to hell,—yet he must not as President, put a straw across the path of the free-thinker. Be he as heretical as Thomas Jefferson, he must not as President, any more than did Jefferson, lay a

finger on the churches. Just so did Lincoln feel himself restricted as to slavery,—he could not touch it, except as the civil laws brought it within his province, or unless as supreme military commander the laws and necessities of war brought it within his authority.

Congress soon proceeded to discuss questions about slavery. Sumner, the foremost leader of the radicals, proposed resolutions, in February, 1862, declaring that the seceded States had by their acts extinguished their State organizations and relapsed into a territorial condition, subject only to Congress; and that slavery within them, existing only by a local authority now defunct, was thus abolished. Congress would take no such ground as that. But, as within its proper sphere, it abolished slavery in the District of Columbia, in April, 1862, giving compensation to owners at a maximum rate of \$300 for each slave. And in the following June, it abolished slavery in all the national territories,—thus giving full force to the cardinal doctrine of the Republican party up to the war. But the war had inevitably brought a more radical issue to the front,—the question of slavery in the States.

Under the name of a confiscation act, Congress passed a law, July 17, 1862, which declared freedom to all slaves of convicted rebels; to slaves of rebels escaping within the army lines, or captured, or deserted by their masters; and to all slaves of rebels found in places captured and occupied by the Union army. This came near to making the abolition of slavery follow exactly the progress of the Union arms. But, leaving untouched the slave property of loyalists, it spared the institution as a system.

Lincoln, in many ways a man of the people by his convictions and sympathies, in other aspects towered in solitude. He was almost unique in that he could fight—fight if need were to the death,—with no spark of hatred in his heart. In the midst of war he was a devoted peace-lover. To an old friend, though a political opponent, Congressman D. W. Voorhees, of Indiana, who called on him at the White House, he said with a pathetic look of anxious pain: "Voorhees, doesn't it seem strange that I should be here—I, a man who couldn't cut a chicken's head off,—with blood running all around me?" While he was overseeing campaigns, selecting and rejecting generals, learning the business of a commander, keeping touch with all the great matters of administration, besieged by office-seekers, importuned by people in all manner of private troubles,—he found intervals in which to

devise ways out of the horrid business of war, ways that might lead both to peace and freedom.

The key of the situation he thought lay largely with the border States,—Maryland, Missouri and Kentucky,—all of them formally in the Union, but their population divided, sending recruits to both armies, and with hopes in the Confederacy that they might be entirely won over. If they could be bound faster to the Union, if at the same time they could be helped to make themselves free States,—then might the Union cause be mightily helped, and at the same time the work of emancipation be begun. Aiming at this result, Lincoln sent a message to Congress, March 6, 1862, proposing this resolution: "That the United States ought to co-operate with any State which may adopt gradual abolishment of slavery, giving to such State pecuniary aid, to be used by such State, in its discretion, to compensate for the inconveniences, public and private, produced by such change of system." He urged this with special reference to its application in the border States; and, inviting the Congressional members of these States in a body to the White House, he pleaded with them earnestly to support the resolution, and apply the plan. They listened, but were non-committal. Congress received the plan coolly. The Radicals were little in the humor of compensating slaveholders, and the Conservatives apprehended a progressive attack on slavery. But the President's influence triumphed; the resolution passed in mid-April; and the nation pledged itself to assist compensated emancipation in any State that would adopt it.

Nothing came of it. The border States did not move. Three months later, July 12, their delegations were again invited to the White House. The situation was at the gravest; McClellan's army had been baffled in the desperate seven-days' fight; factions at the North were growing hot. Lincoln pleaded reasonably, movingly, that they would bring decisive help to the national cause, by committing their States to emancipation, with help from the nation, gradually if they pleased, with colonization if they desired—peace, union, freedom, all lay that way! Two days they took to make answer, and then of the twenty-nine members only nine were favorable; the rest with one accord began to make excuse,—and that hope failed.

Events were forcing on the question of slavery. In the previous May, General David Hunter, in South Carolina, finding himself with 10,000

fugitives in his camps, whom the laws forbade him to return to their masters and did not permit him to hold as slaves, met the difficulty by a proclamation, declaring that the martial law of the United States was incompatible with slavery, and the slaves in his military district—South Carolina, Georgia and Florida,—were set free. Again the President overruled his subordinate, but in the proclamation he distinctly said that the question of emancipation as a military necessity belonged to himself as commander-in-chief. It was a note of warning. Twenty years before, John Quincy Adams had written,—and the words came from a conservative statesman of the highest standing: "I say that the military authority takes for the time the place of all municipal institutions, and slavery among the rest"; and had elaborated and reiterated the doctrine that in case of war slavery might be abolished by the commander. These statements had lately been recalled; the action of Fremont and Hunter had given life to the idea; and Lincoln now intimated that he might yet assume this authority.

Party divisions had soon reappeared at the North. The Democrats were not harmonious; a part called themselves "War Democrats," and a part were ready to let the South go, or went as near that as they prudently could; now one and now the other faction controlled the party according to time and locality. The Republicans were more united, yet among them was a cleavage between conservatives and radicals; the one taking for their watchword, "the Constitution as it is and the Union as it was"; the other eager to see the war turned against slavery; and both claiming the President, and jealously watching any leaning on his part toward their rivals.

There was developing at the North a profound sentiment for attacking slavery. The war was protracted beyond all early expectation; it was costly, bitter, woeful. What was to be at last the recompense for all this blood and tears? Was there, if victory came at last, to be with it no advance, nothing but the old Union, half slave and half free? For nothing better than this were sons, fathers, brothers, husbands to be sacrificed? Was the nation crossing a Red Sea of anguish only to emerge into the old bondage? Rather, let us fight at once for union and for liberty!

Those who voiced this cry could not always see the difficulties that beset the President. Many of them failed to realize that at heart he was as true to freedom as they. Even Lowell, in the later *Biglow Papers*, which pleaded

with deeper pathos and power than before for freedom—even he could write of "hoisting your captain's heart up with a derrick." Wendell Phillips on one occasion, impatient of Lincoln's attitude toward the fugitive slave law, called him "the slave-hound from Illinois." Beecher,—who did great service, especially by his speeches in England,—wrote in the *Independent* a series of articles, to spur the President to more pronounced action. Some one gave the articles to Lincoln; he sat down and read them all, then rose to his feet exclaiming, "Am I a dog?"

All this time the conservatives were no less urgent that the President must make no move against slavery. Among their spokesmen was General McClellan. On him rested the chief hope of the North for military success during the year following the disaster of Bull Run. He was an admirable organizer and a good theoretical strategist; his care for his men won their affection; and sometimes in the field he struck heavy and effective blows. But he was always prone to overrate the enemy's resources and underrate his own; he was slow to follow up a success; and he lacked the bulldog grip by which Grant won. Right on the heels of his failure in the seven-days' fight in the Peninsula, he wrote a letter to the President, from Harrison's Landing, July 7, 1862, lecturing him severely as to the errors he must avoid. Nothing must be done or said looking to confiscation, forcible abolition, or territorial organization of the States. "Until the principles governing the future conduct of our struggle shall be made known and approved, the effort to obtain requisite forces will be almost hopeless. A declaration of radical views, especially upon slavery, will rapidly disintegrate our armies." This letter was given to the public, and on this platform McClellan began to loom up as an opposition candidate for the Presidency.

So Lincoln was buffeted on the right hand and on the left. In this summer of 1862, Greeley wrote in the *Tribune*, August 20, an open letter to the President, upbraiding him for his slackness against slavery. Lincoln replied, August 22, in a letter which startled many of his friends, and to this day bewilders those who do not understand the man himself or the position in which he stood. He wrote: "I would save the Union, I would save it the shortest way under the Constitution.... My paramount object in this struggle is to save the Union, and is not either to save or to destroy slavery. If I could save the Union without freeing any slave, I would do it; and if I could save it by freeing all the slaves I would do it; and if I could save it by freeing

some and leaving others alone, I would also do that." In fact, the last was the course which he eventually took.

This letter stated with full sincerity Lincoln's basal principle. It was not necessary to add that the purpose was growing within him to save the Union by freeing the slaves in the seceded States. The very growth of that purpose made it necessary for him to freshly bind to himself the conservatives whose only care was for the Union and not for emancipation. Nothing could serve this purpose better than the declaration in this letter to Greeley. In Lincoln, sincerity and shrewdness were thoroughly blended.

At a later day he told the artist Frank Carpenter, when he was to paint "The Signing of the Emancipation Proclamation": "It had got to be mid-summer, 1862. Things had gone on from bad to worse, until I felt that we had reached the end of our rope on the plan we had been pursuing; that we had about played our last card, and must change our tactics or lose the game. I now determined upon the adoption of the emancipation policy; and without consultation with, or the knowledge of, the Cabinet, I prepared the original draft of the proclamation, and after much anxious thought, called a Cabinet meeting upon the subject.... I said to the Cabinet that I had resolved upon this step, and had not called them together to ask their advice, but to lay the subject-matter of a proclamation before them, suggestions as to which would be in order after they had heard it read." This proclamation—the first sketch—set forth that at the next meeting of Congress, four months later, the President designs to again recommend a practical measure for tendering pecuniary aid to any State then recognizing the authority of the United States, which should have adopted, or should thereafter adopt, gradual abolishment of slavery; that the object of this is to promote the restoration of constitutional relations between the general government and all the States; and finally, as commander-in-chief, the President declares that from the first of January next all slaves in States still rejecting the national authority shall then and forever be free.

The Cabinet were amazed—and divided. Only Stanton and Bates were for immediate promulgation. Chase thought it would be better to leave the matter to district commanders, but would support the proclamation as better than inaction. Blair opposed it as likely to be unpopular and lose the Fall election. All this Lincoln had weighed beforehand. But now came a

suggestion from Seward, that the immediate time was inopportune, because just after military reverses (McClellan's Peninsula defeat) it would seem like a desperate cry for help,— "our last shriek on the retreat," as Lincoln phrased it. His judgment welcomed this as a wise suggestion, and he put the draft of the proclamation aside and waited for victory. Among the elements which entered into his decisions was a subtle instinct as to when and how far he could command the support of the various elements on whom success depended. His rare capacity as a listener, and his keen sagacity, enabled him to divine that the hour was at hand when a decisive move against slavery would attract more support than it would repel. Seward's suggestion gave the final shape to his purpose.

This happened July 22, 1862; and when the President made his calm reply to Greeley's onslaught a month later, the unsigned proclamation lay in his desk, and he was still waiting for a victory before he issued it.

CHAPTER XXVII

EMANCIPATION ACHIEVED

Instead of victory came defeat. Pope, taking the command after McClellan's failure, was beaten and driven back in the second battle of Bull Run, and matters were at the worst. McClellan was recalled; his genius for organization rehabilitated the demoralized army; the soldiers' confidence in their old chief gave them new courage. When Lee, after a year on the defensive, took the offensive and entered Maryland, he was beaten and turned back at Antietam.

Then Lincoln summoned his cabinet again, September 22, 1862. Before he spoke the momentous word, he freshened himself in his own way,—he said that Artemus Ward had sent him his book, and he would read them a chapter which he thought very funny; and read it he did, with great enjoyment; the secretaries also laughing as in duty bound—all except Stanton! Then the President became grave enough—he told them that he had been thinking a great deal about the proclamation he had read them two months before; that victory seemed to have brought a favorable occasion; that when the rebel army was at Fredericksburg he determined as soon as it was driven out of Maryland to proclaim emancipation. He went on: "I said nothing to any one, but I made the promise to myself, and,"—hesitating a little—"to my Maker." So now, he tells them, he fulfills that promise. One last word,—some other might do better than he; he would surrender his place to a better man if he saw the way; he believes that he has not so much of the confidence of the people as he once had, but on the whole he does not know that any one has more, and at any rate there is no way for him to give place to any other. "I am here; I must do the best I can, and bear the responsibility of taking the course which I feel I ought to take." It is the counterpart of Luther's "Here stand I; I cannot do otherwise; God help me!"

Discussion in the Cabinet: general approval; slight modification only. The proclamation runs on the original lines; compensated abolition recommended; colonization favored; freedom to be declared next New

Year's day to all slaves in rebellious States: ultimate compensation recommended for all loyal owners. The proclamation is issued, September 23, 1862, and the nation is inexorably committed to emancipation,—compensated if possible; forcible if necessary; partial at first, but moving inevitably, swiftly, toward universal freedom.

The proclamation with its sequence was the best Lincoln found himself able to do. What he wanted to do,—his own ideal which he could not bring his countrymen to accept,—was shown in his message to Congress when it met in December. The main burden of that message was an earnest plea for action on the line of compensated emancipation. The President proposed an amendment to the Constitution, to this effect: every State abolishing slavery before 1900 to receive compensation from the United States, at some fixed rate, in government bonds; meantime, all slaves freed by chances of war to remain free, with compensation to loyal owners; Congress authorized to spend money for colonization of such as wish to go. For the general plan of compensation Lincoln argues as broadly and calmly as if dealing with a purely economic question, and with the restrained fervor of the patriot and statesman. He dwells on the vast growth which the country promises; on the increasing resources which will make light the burden of ransoming the slaves; the safety of a process of gradual liberation; the humane, economic, Christian superiority of this settlement instead of prolonged war. This is the close: "We, even we here, hold the power and bear the responsibility. In giving freedom to the slave we assure freedom to the free—honorable alike in what we give and what we preserve. We shall nobly save or meanly lose the last best hope of earth. Other means may succeed; this could not fail. The way is plain, peaceful, generous, just—a way which, if followed, the world will forever applaud and God must forever bless."

But as for practical effect, he might as well have read Dr. Watts's Cradle-hymn to a couple of fighting bulldogs. The proposition of compensated emancipation was thirty years too late. Now the blood of both sections was up, the fighting animal in man let loose,—and they would go on indefinitely killing and being killed, to free the slaves or to hold them, but they would not lay down their arms and peacefully share the light burden of emancipation.

So came in New Year's day, 1863, and the final word was spoken, declaring freedom to all the slaves in Arkansas, Texas, Mississippi, Alabama, Florida, Georgia, the Carolinas and the greater portion of Virginia and Louisiana; enjoining good order on the freedmen; and opening the army and navy to their enlistment. "And upon this act, sincerely believed to be an act of justice, warranted by the Constitution upon military necessity, I invoke the considerate judgment of mankind, and the gracious favor of Almighty God."

How far, it may be asked, was the military necessity on which the proclamation was based actually met by its results? Immediate gain, in a military sense, did not accrue. Not a slave was freed except as the ground was conquered foot by foot. But by opening the door to the enlistment of negroes, there was soon a substantial advantage won to the Union armies; for, enlisting by many thousands, they proved themselves docile, trustworthy, and not lacking in courage. In the last two years of the war, they added nearly 200,000 men to the Union forces. They were not considered equal to white soldiers, for they succumbed far more easily to wounds and disease; and though their officers were chary of exposing them in battle, their mortality was greater than that of the whites. In a sense broader than the military, the first results of the emancipation policy were adverse. It was said by many that the proclamation would "unite the South and divide the North." The seceded States could hardly be more united than they were before, but a fresh motive was added to their struggle. In the border States, there was a wide alienation of slave owners and their sympathizers. At the North, a similar effect was obvious at first. From the day of the first proclamation, a war now evidently waged in part for emancipation lost favor with many who cared nothing for the slaves. The elections two months later, in November, 1862, were disastrous. New York, Pennsylvania, Ohio, Illinois and Indiana, all went against the administration. Its majority in Congress was greatly reduced.

But the emancipation proclamation had struck deep to the hidden springs of power. For the exigencies of a prolonged and desperate struggle, it had evoked the full power of a great sentiment. It had roused the passion of freedom which nerves men to suffer and die. It was an unselfish passion,—it was for the freedom of other men that the North now fought. The loss of the half-hearted and the materialists was outweighed by the enlistment of

the enthusiasts for humanity. And the sympathies of the nations, which had wavered while the Union cause was declared to be apart from the slavery question, now swung weightily to the side of the North, since it was avowedly the side of freedom.

By his proclamation, Lincoln had,—to use his language to Greeley,—“freed some and left others alone.” He could not go further on the ground of military necessity. But the work, or the promise, could not be left in that imperfect shape. The natural resource was soon found,—universal freedom by a constitutional amendment. This, the Thirteenth Amendment, was brought forward in April, 1864, and received more than the necessary two-thirds vote in the Senate—38 to 6; but in the House (elected in the reaction of 1862) only 95 to 66. The next winter it was brought up again in the same House, but a House enlightened now by the Republican victory in Lincoln's re-election; and strongly urged by him it won the necessary two-thirds vote—119 to 56. The States had still to pass upon it, after the war, but to resist emancipation then was fighting against the stars in their courses; and only Kentucky and Delaware rejected the amendment, while Texas was silent, and Alabama and Mississippi gave a qualified assent. The amendment was declared adopted, December 18, 1865, and on that day slavery in the United States came to an end.

When the issue was finally shaped by the Emancipation Proclamation of January 1, 1863, both sides set themselves anew for the grim struggle—two years more of hard fighting. Since fighting it must be, they bore themselves all, let us say, as brave men and women,—North and South, white and black. The Confederates came often into dire extremities. Men whose lives had been luxurious fared on the plainest and hardest. Delicate women bore privations uncomplainingly, and toiled and nursed and endured. Food, clothing, medicines were scant. Invasion was borne, with its humiliation and suffering, its train of ravage and desolation. The supporting motive was the common defense, the comradeship of danger and of courage. The Confederacy and its flag had won the devotion which sacrifice and suffering breed. Little thought was there of slavery, little calculation of the future, as the siege grew closer and the shadows darkened—but an indomitable purpose to hold on and fight on. The chief hero of the Confederacy was Lee. He was the embodiment and symbol of what the Southern people most believed in and cared for. He was not one of those

who had brought on the trouble; his whole attitude had been defensive. He and his Army of Northern Virginia were the shield of the South. A skilful commander, strong to strike and wary to ward; his personality merged in the cause; gentle as he was strong,—his army trusted and followed him with a faith that grew with every victory, and did not wane under reverses.

Let the negroes in the war-time be judged in the calm retrospect of history. Their fidelity meant the security of the families on every lonely plantation from Virginia to Texas.

Instead of the horror of servile insurrection, women and children were safe in their homes, supported and protected by their servants. It was their labor that made it possible for the whole white population to take the field. It was their fidelity and kindness that kept the social structure sound, even though pierced and plowed by the sword. Their conduct was a practical refutation of the belief that they were in general sufferers from inhuman treatment. It was a proof that slavery had included better influences than its opponents had recognized. But it suggested, too, that a people capable of such things under slavery were fully ready for an upward step, and might be trusted with freedom.

They gave another proof of fitness for freedom when, enlisted in the Union armies, they showed the qualities of good soldiership. They accepted discipline, and developed under it. They were brave in battle, and in victory they were guiltless of excess. It was a wonderful epoch in the race's history,—the transition from servitude to freedom,—and in that ordeal, first as slaves and then as soldiers, they showed themselves worthy of the deliverance that had come at last.

As soldiers, they found leaders in the flower of the North. Such was Robert Gould Shaw, of the best blood and training of Massachusetts; a son of Harvard; serving from the first as private and then as captain; called by Governor Andrew in 1863 to the command of the Fifty-fourth Massachusetts, the first black regiment mustered into service; taking a place which risked not battle peril only but social obloquy; training his recruits into soldiers; leading them in a hopeless onset against the batteries of Fort Wagner; falling at their head; buried in a ditch with his men; honored in an

immortal sculpture which portrays the young, highbred hero in the midst of the humble, faithful men for whom he gave his life.

All the energies of the North were at the highest stretch. In those whose hearts were in the strife, at home or in the field, there was a great glow and elation. The intensity of the time communicated itself to industry and trade. There was an almost feverish activity; with heavy taxation and a fluctuating currency—gold was long at a premium of 250—mills and markets and stores were in full tide of operation. The North matched the South in personal courage and generalship; and greatly outweighed it in numbers, material, and in the productivity engendered in a free, urban, industrial society. The passion of the war touched everything. The churches were strongholds of the national cause. The Sanitary and Christian Commissions kept camp and home in close touch. But under all this stir was the tragedy of wide-spread desolation and bereavement. The multitudinous slaughter of campaigns like the Wilderness had an awful background of woful families.

Arduous achievement, heroism and anguish, suffering and sacrifice for the cause of the nation and humanity—that was the North's story in those years. It is a sublime story as we look back:

The glory dies not, and the grief is past.

Once more the North was called on to solemnly decide, in the election of 1864. Against Lincoln was nominated by the Democrats, General McClellan, himself a stainless soldier and a patriot, but supported by every element of hostility to emancipation, of sympathy with the Southern cause, and of impatience with the long and burdensome struggle. The platform called for an immediate armistice, to be followed by a convention of the States, or other peaceable measures for the restoration of the Union. McClellan's letter of acceptance ignored the platform, and declared strongly for the persistent maintenance of the Union. The result of the election was a majority of 400,000 votes in 4,000,000 for Lincoln, every State supporting him save New Jersey, Kentucky, and Delaware.

It was the greatness of the prize at stake that justified the cost. Lowell sang the true song of the war, when the end was almost reached, in the poem that records the sore loss to his own family,—his three nephews, "likely lads as well could be,"—slain on the battle-field. In that lofty, mournful verse, there

is no drum and trumpet clangor, but the high purpose whose roots are watered by tears:

Come, Peace, not like a mourner bowed
For honor lost an' dear ones wasted,
But proud, to meet a people proud,
With eyes thet tell o' triumph tasted!

Come, with han' grippin' on the hilt,
An' step that proves ye Victory's daughter!
Longin' for you, our sperits wilt
Like shipwrecked men's on raf's for water.

Come, while our country feels the lift
Of a gret instinct shoutin' "Forwards!"
An' knows thet freedom ain't a gift
Thet tarries long in han's o' cowards!
Come, sech ez mothers prayed for, when
They kissed their cross with lips thet quivered,
An' bring fair wages for brave men,
A nation saved, a race delivered.

With Grant and Lee locked in the last desperate struggle at Petersburg, with final victory almost in sight, Lincoln spoke his second inaugural,—too grave for exultation, with the note of humility and faith. He is awed before the course of events since he stood there four years ago. He feels the strangeness of both combatants appealing to the same Bible and the same God. For himself and his people he utters the fond hope, the fervent prayer, that "this awful scourge of war may pass away." He accepts the suffering as the penalty of the nation—the whole nation—for the sin of slavery. Humbly, resolutely, he faces with his people the final effort, the sacred duty: "With malice toward none, with charity for all, with firmness in the right as God gives us to see the right, let us strive on to finish the work we are in, to bind up the nation's wounds, to care for him who shall have borne the battle and for his widow and his orphan, and to all which may achieve and cherish a just and lasting peace among ourselves and with all nations."

CHAPTER XXVIII

RECONSTRUCTION: EXPERIMENTS AND IDEALS

"God uses a good many ugly tools to dig up the stumps and burn off the forests and drain the swamps of a howling wilderness. He has used this old Egyptian plow of slavery to turn over the sod of these fifteen Southern States. Its sin consisted in not dying decently when its work was done. It strove to live and make all the new world like it. Its leaders avowed that their object was to put this belt of the continent under the control of an aristocracy which believes that one-fifth of the race is born booted and spurred and the other four-fifths ready for that fifth to ride. The war was one of freedom and democracy against the institutions that rest on slaves. It will take ten years for the country to shed the scar of such a struggle. The state of society at the South that produced the war will remain and trouble the land until freedom and democracy and the spirit of the nineteenth century takes its place. Only then can we grapple the Union together with hooks of steel, and make it as lasting as the granite that underlies the continent."

These were the brave words of a Southern newspaper, the *Galveston Bulletin*, in January, 1867, in the mid-throes of reconstruction. So it was that the best minds of the reunited nation foresaw and accepted the path on which we still are slowly mounting; often slipping, stumbling, falling, but still getting upward.

When, on January 31, 1865, the vote of the House completed the ratification by Congress of the Thirteenth Amendment, abolishing slavery, a burst of jubilant cheering swept the whole assembly, and a wave of joy went through the North. Universal freedom seemed close at hand. Two months more, and the Confederate capital fell, on April 3, and still higher rose the triumph. Another week, and the North woke at midnight, to forget sleep and rejoice as over the final consummation,—Lee had surrendered! In those days it seemed to ardent souls that all the sacrifices of the past four years were repaid, and freedom and Union were completely won.

But real freedom of men, true union of a nation, are not achieved by votes of Congress alone, or victories of the sword. The first and worst was over, yet the work was only begun. And these first steps had been by a rough and bitter road, of which the next stage could not be smooth or sweet. The plow of slavery had been followed by the harrow of war,—blossoms and fruitage could not instantly follow.

Lincoln practically made his own the motto ascribed to the Jesuits, "The goal of to-day, the starting-point of to-morrow." Even before to-day's goal was reached, his eye was measuring the next stage. While his patient shoulders were still bowed under the weight of war, his hands were reaching out to the work of reconstruction. In December, 1863, a year after the Emancipation Proclamation, he issued another proclamation. In this he offered full amnesty to all who had taken arms against the government, on condition simply of an oath to support the Constitution, and all laws and proclamations concerning slavery until such were legally overruled. From this amnesty were excepted those who had held diplomatic or high military offices in the Confederacy; those who had left Congress or the army or navy to aid the Confederate cause; and those who had maltreated negro prisoners of war. Whether Lincoln in his own mind regarded the official classes as more blameworthy or more dangerous than their followers, we can only surmise; but he doubtless considered that public opinion was not ripe—the war being still flagrant—for a wider offer of pardon.

Further, he invited a return of the seceded States to their former relations, under these conditions: Wherever a number of voters equal to one-tenth of the registered list of 1860, having individually taken the oath of allegiance, shall unite to form a loyal State government, their organization will be recognized by the Federal government. It is desirable to retain as far as practicable the old State boundaries, constitution, and laws. Such a State government may make regulations for the negroes,—if their freedom and education are provided for,—as a "laboring, homeless, and landless class." The admission of representatives and senators must depend on the action of Congress.

Under this plan—regarded by the President as somewhat tentative and provisional, and expressly made dependent on Congress for its consummation by the admission of senators and representatives—within the

next twelve months governments were established in three States where the Union arms were partly in the ascendant, Louisiana, Arkansas, and Tennessee. Congress, in July, 1864, passed a reconstruction bill on more radical lines; assuming that the rebel States were by their own act extinguished as States and were to be created *de novo*; directing that a provisional governor be forthwith appointed for every such State; requiring the new Legislatures to abolish slavery, exclude high Confederate officials from office, and annul the Confederate debt. The President let this bill fail for want of his signature, and in a proclamation explained his objections: He was not ready to accept the "State suicide" theory; he did not want to rest the abolition of slavery on the fiat of Congress (he was looking for the adoption of the Thirteenth Amendment); and he was unwilling to sacrifice the provisional governments already set up in Louisiana and Arkansas. If in any other State a movement on the congressional plan was initiated, that might do well; but for any hard-and-fast, all-round plan the time was not ripe. The radicals, led by Wade and Henry Winter Davis, chafed bitterly, but Lincoln was not an easy man to fix a quarrel on.

In the following winter, 1864-5, the new Louisiana Legislature, recognized and encouraged by the President, elected two senators who applied at Washington for admission. The judiciary committee, headed by Lyman Trumbull, reported in their favor, and the large majority of the Senate took the same view. But Sumner was strongly opposed to beginning the readmission of the rebel States to congressional power until the rights of the freedmen were fully and finally established. Aided by two other radicals, Wade of Ohio and Zachariah Chandler of Michigan, he "talked against time," and defeated action until the end of the session. Under senatorial usage it was legitimate—but it was exasperating. The little world of Washington, always greatly given to tempests in a teapot, looked for a break between the President and the foremost man of his supporters. What it saw instead was, at the inauguration ball, Mr. Sumner entering in company with the President and with Mrs. Lincoln on his arm! No, Lincoln was not going to quarrel with Sumner—nor with any one, if it lay with him.

Richmond was taken, and through its streets moved the gaunt form of the President, his eyes taking grave, kind note of all. Back to Washington, and the supreme word comes at last. Lee has surrendered, the war is over, the victory won! A cheering, exultant crowd beset the White House. Lincoln

came out on the balcony, said a word of response, and invited them to come back two days later for a fuller word. When they came again, he talked to them and to the country. His whole theme was, What is our next duty? Here is the next step, the first of the "erring sisters" to return is to be welcomed back. Louisiana has adopted a constitution abolishing slavery, establishing public schools for black and white alike, and allowing the Legislature at its discretion to extend suffrage to the blacks. Under this constitution 12,000 voters have been enrolled. The Legislature has met and ratified the Thirteenth Amendment. Can we do better than to accept and restore them to the full privileges of statehood? For them would it not also be wise to extend the suffrage to the most intelligent negroes, and to those who have served in the Union army? As to all the seceded States, the question whether they have ever been out of the Union is "a merely pernicious abstraction." The real question is, how to get them again into proper practical relations with the Union. "Concede that the new government of Louisiana is to what it should be only as the egg is to the fowl, we shall sooner have the fowl by hatching the egg than by smashing it." Let us be flexible as to our methods, inflexible as to vital principles.

These were his last words to his countrymen. Three days later, April 14, as he sat in Ford's theatre,—the strain of responsibility lightened by an hour of kindly amusement—there fell on him, from an assassin's hand, the stroke of unconsciousness and speedy death. For himself, how could he have died better! At the summit of achievement, hailed by the world's acclaim, in the prime of manly strength, unweakened by decay, unshadowed by fear; a life of heroic service crowned by a martyr's death; a place won in the nation's heart of such love and gratitude as has been given to no other,—how better could he have died?

But never was heavier bereavement than his death brought to the American people. It was not sorrow only, but lasting loss, beyond estimation and beyond repair. We know not how in the sum of things all seeming evil may find place, but to human eyes seldom was man taken who could so ill be spared. By nature and capacity he was above all else a peace-maker. Called to be captain in a great war, his largest contribution to its success had been in holding united to the common purpose men most widely varying among themselves. He said, toward the end, that he did not know that he had done better than any one else could, except perhaps at one point,—he did think

he had been pretty successful in keeping the North united. And while he did this, while he kept radicals and conservatives, Abolitionists and Unionists, New Englanders and Kentuckians, loyal to the common cause, he also shaped that cause toward the highest aims that his various constituency would admit. He could not bring them to his own highest thought,—they would not be persuaded to try compensated emancipation and peaceful reunion instead of war to the extremity. But he did lift a war for the Union to a war for freedom also, and so direct it that from the strife should emerge not the old, but a nobler nation. And now, the harder half was to be done! Instead of generalship, statesmanship; instead of animal courage, justice and kindness toward former foes; instead of holding the North together, to bring North and South together; that was the gigantic task now to be wrought. Who so fit for it as he? And for want of him, grievous and slow has been the journey.

From the first thrill of passionate grief, men turned to ask anxiously what the new President was to be. He had been selected with that carelessness as to the Vice-Presidency which is a tradition of American politics. Had the convention which renominated Lincoln chosen with care the man best fitted to aid or possibly succeed him in his work—had they for instance chosen John A. Andrew of Massachusetts—history might have been very different. But they took Andrew Johnson of Tennessee, with little scrutiny of his qualities, but desiring to broaden their ticket by including a Southern Unionist. Johnson had been bred as a tailor, with only the meagerest schooling, with no training in the law, going straight from his trade into politics, and by native force rising to the senatorship. He was regarded, and rightly, as a man of honesty, patriotism, courage, and rough energy. He had been conspicuous in denouncing the seceders with the heat of a border-State Unionist, and something of the uncontrolled temper of the "poor white." "Treason must be made odious," had been his cry, "traitors must be punished." In that war-heated time, there were good men who thought they read the purpose of the Almighty in removing the too kindly Lincoln, that the guilty rebels might be more severely scourged.

CHAPTER XXIX

RECONSTRUCTION: THE FIRST PLAN

The new President gave at once the best possible reassurance as to his general course by retaining all the members of Lincoln's Cabinet. They remained, not as a temporary formality, but for a considerable time in full harmony with the President. Chase having left the Cabinet for the chief-justiceship, by far the two strongest secretaries remaining were Seward and Stanton. Seward had been struck down at the same time with Lincoln, and dangerously wounded, but after a few weeks was able to resume his duties. Thus the two foremost men, after Lincoln, of the Republican party, Sumner and Seward, had been murderously assaulted, yet neither of them was embittered or altered in his course. Seward probably had great influence on President Johnson's early measures. The degree of that influence is a disputed point among historians, but the internal evidence points strongly to his having had a large share in the President's original plans, and materially aided their execution, though Johnson's strong will and hot temper marred and thwarted Seward's efforts. One of the secretary's special powers was a genial and persuasive skill in conversation; his historic place as the Republican premier gave him influence with the President; he had been in full sympathy with Lincoln's late course; and his constitutional theories and his optimism appear in the reconstruction scheme which the President soon proposed. Responsibility had steadied and sobered Johnson; his vindictiveness toward the South had disappeared,—one guesses with Seward's aid; and his plan looked to a prompt and early return of the seceded States.

His proclamation of amnesty, indeed, issued May 29, was more numerous in its exceptions than Lincoln's; including almost the entire official class throughout the South, and adding all such as held property in excess of \$20,000,—which in theory was little other than an attempt to behead the political community of all its intelligent or wealthy members. But the added clause providing for a pardon of such by the President on special application proved in practice more significant than the formal exemptions.

Scarcely an application for amnesty was refused, and it is recorded that in less than a twelvemonth 14,000 such applications were made and granted.

On the same day, May 29, President Johnson by proclamation appointed a provisional governor of North Carolina, and ordered an election of delegates to a constitutional convention. By July 13, he had issued similar proclamations for Mississippi, Georgia, Alabama, South Carolina and Florida. Texas's turn came a little later, the last embers of the war lingering there for a while. In Virginia, the President had recognized a shadowy loyal State government which had kept up a nominal existence. The three other seceded States,—Louisiana, Arkansas and Tennessee,—had already the State governments established under Lincoln, though unrepresented in Congress.

These overtures for formal reconstruction came to communities impoverished, forlorn, and chaotic, almost beyond imagination. Property, industry, social order, had been torn up by the plowshare of war. The prolongation of resistance until defeat was complete and overwhelming had ended all power and all wish to contend with the inevitable. The people, groping back toward even a bare livelihood,—toward some settled order, some way of public and private life,—met eagerly the advances of the President. Constitutional conventions were elected and met, within the remaining months of 1865; they were chosen on the old basis of suffrage, conditioned by the exceptions to amnesty and by the oaths of allegiance; these conventions based the new constitutions largely on the old; they affirmed the ordinances of secession to be null and void; they repudiated the Confederate debt, and they declared that slavery no longer existed. Legislatures were duly elected, and proceeded to enact laws. They all ratified the Thirteenth Amendment, though Mississippi and Alabama affixed some qualifications to their assent, while Texas was still unreconstructed and could not act; and Kentucky and Delaware gave a negative. The President and Secretary of State, December 18, declared the adoption of the amendment by the vote of 31 States out of 36. Slavery was finally and forever abolished.

President Johnson used his influence to have the new constitutions open the door to a qualified negro suffrage. He telegraphed to the Mississippi convention, urging that the suffrage be extended to all negroes who could

read and write, or who possessed \$250 worth of real estate. Well would it have been if that appeal had been heeded.

Thus far, reconstruction had moved with singular swiftness and ease. Too swift and easy was the recovery to be trusted—so thought some—where the disease had been so desperate. But the Cabinet, including the grim and jealous Stanton, held with the President. More, the autumn Republican conventions throughout the North passed resolutions cordially approving the President's course and its results—all, with the ominous exceptions of Pennsylvania and Massachusetts, controlled respectively by Thaddeus Stevens and Sumner, the leader of the House and the foremost man in the Senate.

Thus was initiated and begun the first of the three successive plans of reconstruction. Before seeing its fate, it is opportune to consider the general ideal of the situation, as presented by two of the greatest men of the North, the two, we may say, who best comprehended the whole case; the one standing in the Church and the other in the State, but alike in breadth of mind and loftiness of spirit—Henry Ward Beecher and John A. Andrew.

During the war, the Northern churches had been centers of inspiration to the national cause, and Plymouth church among the foremost. Beecher had made a series of speeches in England in 1862, which did much to turn the tide of English opinion. The disclaimers by the Federal Government of a crusade against slavery had perplexed and divided the anti-slavery sentiment of Great Britain; the issues at stake were little understood; the stoppage of the cotton supply aroused a commercial opposition to the war; there was some degree of aristocratic sympathy with the Southern oligarchy; and a wider sympathy with the weaker of the two combatants that was fighting pluckily against odds. The North had few strong friends, except a group of radical leaders—Mill, Bright, Cobden and their allies,—and a host of working people, including even the suffering cotton operatives, who instinctively recognized and supported the cause of the common people. Beecher's eloquent and lucid orations went far to convince that the Union cause was the cause of liberty; and no less effect was produced by the splendid courage and self-possession with which he faced and mastered one audience after another where the mob tried to howl him down. After the close of the war, when a company went down to raise the

Stars and Stripes once more over Fort Sumter, Beecher was the chosen orator, and his speech was inspired by the spirit of fraternity and reconciliation. In a sermon in his church, October 29, 1865, he outlined with a master's hand the principles of reconstruction. The South should be restored at the earliest possible moment to a share in the general government. Idle to ask them to repent of secession; enough if they recognize that it is forever disallowed. The best guarantee for the future is the utter destruction of slavery. Let there be no further humbling: "I think it to be the great need of this nation to save the self-respect of the South." What then are the necessary conditions of reconstruction? The Southern States should accede to the abolition of slavery by the Constitution. They should establish the freedman's "right to labor as he pleases, where he pleases, and for whom he pleases," with full control of his own earnings; he should be the equal of all men before the courts. What about suffrage? It is the natural right of all men, says Beecher; but, tempering as usual his intellectual radicalism with practical conservatism, he goes on: It will be useless to enforce negro suffrage on the South against the opposition of the whites. As to the general treatment of the freedmen, "the best intentions of the government will be defeated, if the laws that are made touching this matter are such as are calculated to excite the animosity and hatred of the white people in the South toward the black people there. I except the single decree of emancipation. That must stand, though men dislike it." But beyond that, all measures instituted under the act of emancipation for the blacks in order to be permanently useful must have the cordial consent of the wise and good citizens of the South. "These men (the negroes) are scattered in fifteen States; they are living contiguous to their old masters; the kindness of the white man in the South is more important to them than all the policies of the nation put together." As to suffrage, whatever the colored man's theoretical right, "you will never be able to secure it and maintain it for him, except by making him so intelligent that men cannot deny it to him. You cannot long, in this country, deny to a man any civil right for which he is manifestly qualified." It will be a sufficient beginning if the vote is given to such as can read and write and have acquired a certain amount of property. As a beginning, a stepping-stone to larger things, it might suffice even to give the suffrage to black men who have borne arms for the Union. And, emphatically, the negroes should be given such education as will make them worthy of citizenship. "You may pass laws

declaring that black men are men, and that they are our equals in social position; but unless you can make them thoughtful, industrious, self-respecting, and intelligent; unless, in short, you can make them what you say they have a right to be, those laws will be in vain." The work of education should be done for black and white alike; the South is not to be treated as a pagan land to which missionaries are to be sent, but as part of our common country, to which the richer and more prosperous section ought to give aid. "I do not think it would be wise for the North to pour ministers, colporteurs and schoolmasters into the South, making a too marked distinction between the black people and the white. We ought to carry the gospel and education to the whites and blacks alike. Our heart should be set toward our country and all its people, without distinction of caste, class, or color."

Governor Andrew had been the fit leader of Massachusetts through the war period. He was strong as an administrator; he inspired and voiced the patriotism of the people; he supported the forward policy without harassing the President; and he was the first governor to organize negro troops. Now, on his retirement to private life, he gave a valedictory address, January 4, 1866, which was a worthy sequel to his inaugural of five years before. He specially emphasized the need of a generous and inclusive policy toward the Southern people and their recent leaders. "I am confident we cannot reorganize political society with any security: 1. Unless we let in the people to a co-operation, and not merely an arbitrarily selected portion of them. 2. Unless we give those who are by intelligence and character the natural leaders of the people, and who surely will lead them by-and-by, an opportunity to lead them now.... The truth is, the public opinion of the white race in the South was in favor of the rebellion." The loyalists were not in general the strongest minds and characters, and when the revolution came they were swept off their feet. For present purposes, there should be no discrimination. "The capacity of leadership is a gift, not a device. They whose courage, talents, and will, entitle them to lead, will lead.... Why not try them? They are the most hopeful subjects to deal with in the very nature of the case. They have the brain and experience and the education to enable them to understand the exigences of the present situation."

The ideals thus presented by Beecher and Andrew,—as practical, we see now after forty years, as they were lofty,—were at the time somewhat like

what Catholic theologians call "counsels of perfection"—precepts of conduct too high to be practiced except by the saintly. They fell on the ears of a people whose two sections had long been struggling in deadly opposition, and who still surveyed each other through eyes inflamed by the bitter struggle. Could it be hoped that the North would invite co-operation as of fellow-patriots from those whom they had been denouncing as arch-traitors? And was it to be expected that the South, which had seceded and battled on the ground that the negro was fit only for slavery, should at once begin heartily and practically to establish and elevate him as a freeman?

CHAPTER XXX

CONGRESS AND THE "BLACK CODES"

Congress assembled at the beginning of December, 1865, and at the very outset declared that the work of reconstruction must pass under its hands. Before the President's message was read, Thaddeus Stevens, the leader of the House, moved that a joint committee of fifteen on reconstruction, be appointed by the House and Senate; and that until that committee had reported no senator or representative from the lately seceded States should be admitted. This action was taken at once, by a large majority in both houses, and the committee was promptly appointed, with Senator Fessenden at its head. Then the President's message was read,—a very able paper, broad and statesmanlike in tone, recounting the President's action and the choice of conventions and Legislatures in the seceded States; their repudiation of secession and slavery; the inauguration of loyal State governments;—this, with an invitation to Congress to accept and co-operate in this policy, and a hopeful view of the general situation. The message was favorably received, and for a moment it looked as if the President and Congress might work in harmony.

But the claim of Congress to a paramount voice in the settlement was well based, not only in constitutional theory, but in the immediate facts. Congress came fresh from the people; its members knew how the currents of popular thought and feeling ran. The President was comparatively out of touch with the nation; he had, so to speak, no personal constituency; he was a Southern loyalist, apart from the mass of both South and North. Further, this Congress was personally a strong body of men. They represented in an unusual degree not merely the average sentiment but the better sentiment of the North. To glance at a few of their leaders: Thaddeus Stevens was a Pennsylvanian, a leader at the bar, active in anti-slavery politics, conspicuous by his successful defense of the State's public school system; a man of strong convictions and strong passions, a natural fighter; skillful in parliamentary management; vigorous and often bitter in debate; not scrupulous in political methods; loyal to his cause and his friends, and

vindictive to his enemies; an efficient party leader, but in no high sense a statesman. Up to his death in 1868 he exercised such a mastery over the Republican majority in the House as no man since has approached. He is sometimes spoken of as if he had been the ruling spirit in reconstruction, but this seems a mistake. He was a leader in it, so far as his convictions coincided with the strong popular current; but his favorite ideas were often set aside. He was an early advocate of a wide confiscation, but that policy found no support; and at the crucial points of the reconstruction proceedings he was often thwarted and superseded by more moderate men.

Charles Sumner was a high-minded idealist and a scholar, devoted to noble ends, but not well versed in human nature. He was a lover of Man, but with men he was not much acquainted. His oratory was elaborate and ornate, and he unduly estimated the power of words. Sometimes, says Senator Hoar, he seemed to think the war was to be settled by speech-making, and was impatient of its battles as an interruption—like a fire-engine rumbling past while he was orating. But he had large influence, partly from his thoroughly disinterested character, and partly because beyond any other man in public life he represented the elements of moral enthusiasm among the people. His counterpart was Henry Wilson, his colleague in the Senate. Wilson had risen from the shoe-maker's bench, and knew the common people as a cobbler knows his tools. He was genial in temperament; public-spirited and generous in his aims; a most skilful tactician, and not over-scrupulous. He joined the Know-nothings, with no sympathy for their proscriptive creed, but in the break-up of parties using them for the anti-slavery cause,—and to secure his own election to the United States Senate. He was a good fighter, but without rancor; and he was an admirable interpreter of the real democracy. Senator Hoar, in his autobiography, graphically describes how at some crisis Wilson would travel swiftly over the State, from Boston to Berkshire, visit forty shops and factories in a day, talk with politicians all night, study the main currents and the local eddies; and after a week or two of this—seeming meanwhile to be backing and filling in his own mind—would "strike a blow which had in it not only the vigor of his own arm, but the whole vigor and strength of the public sentiment which he had gathered and which he represented."

Prominent in the Senate was "bluff Ben Wade" of Ohio, an old-time anti-slavery man, radical, vigorous, a stout friend and foe. Another conspicuous

radical was Zachariah Chandler of Michigan. He was born in New Hampshire, went West early in life, and was a chief organizer and leader of the Republican party in Michigan. He was a mixture of Yankee shrewdness and Western energy; patriotic, masterful, somewhat coarse-grained and materialistic; and, like many of his associates, better suited for controversy and war than for conciliation and construction. Of a higher type were three men who stood near the head in the Senate,—John Sherman of Ohio, Lyman Trumbull of Illinois, and William P. Fessenden of Maine. In the qualities for solid work, few men of his time surpassed Sherman. He was wise in framing legislation, and a good administrator,—an upright, moderate, serviceable man. Trumbull, of Connecticut birth, was well trained in the law and eminent as a constitutional lawyer. He made his serious entrance into public life along with Lincoln, and was his near friend and adviser. He was an able though not a brilliant debater; a man of independent convictions and thorough courage. Fessenden, like Trumbull, was entitled to rank as a real statesman. Like Trumbull he had no popular arts, and where Trumbull was reticent and withdrawn in manner, Fessenden was austere and sometimes irascible. In private character both were above reproach. Fessenden had a finely-trained and richly-equipped mind. In an emergency, after Chase's retirement, he accepted the secretaryship of an almost bankrupt treasury, and handled it well. His devotion to duty was unreserved; he was an admirable debater; and he had the high power of framing legislation. His was the most important work of the reconstruction committee, and Trumbull, as chairman of the judiciary committee, had a chief hand in the other leading measures. The Democrats were few and not strong in leadership; their ablest man was Reverdy Johnson of Maryland,—highly educated and large-minded. With these were other senators of repute; and in the House there were abundant men of mark,—Colfax, Blaine, Banks, Boutwell, Dawes, Conkling, Henry J. Raymond, Randall, Hayes, Garfield, Bingham, Shellabarger, Voorhees, Elihu B. Washburn;—space is wanting to name others, or to individually characterize these.

In estimating the work of reconstruction we must take account of the character of the men who shaped it. Taking these leaders as a body, they fall into groups,—Sumner for the uncompromising idealists; the radicals by temperament, like Stevens, Wade, and Chandler; the men of higher training, minds of the statesman's type, and a certain austerity of temper, such as

Fessenden, Trumbull, and Sherman. Among them all there was a deficiency of that blending of large view, close insight, and genial humanity, which marked Lincoln. Small discredit to them that they were not his peers,—but the work in hand demanded just such a combination.

It is to be remembered that all of these, like the mass of the Northern people, had been for many years contending with all their might for certain ends, and in keenest hostility to the Southern whites. They had fought for the Union and freedom; the South had fought for the Confederacy and slavery. By sheer overpowering physical force the Southern armies had been beaten down, and peace restored, and in name at least the national authority re-established. But by conviction, habit, instinct, these opponents yet hot from the battle-field would scrutinize with jealous care the real success of their principles and the disposition of their late foes.

The President's policy, as laid down in his message, was at once challenged in Congress. Stevens opened the debate in the House, and, without directly assailing the President, antagonized his theory that the States, like the Union, were indestructible, that secession had only temporarily suspended their relation, and that they now by right recurred at once to their normal position. Against this Stevens maintained that by their rebellion these States had, as organizations, committed suicide, that they now were in the position of conquered territory, and that out of this territory Congress was to create new States on whatever terms it judged most expedient. The President's theory found an able supporter in Henry J. Raymond, who had just exchanged the editorship of the *New York Times* for a seat in Congress. But he had only a single ally among his Republican colleagues, and the lonely couple, with four Republican senators, proved to be the only habitual supporters of the President in the party that had elected him. But the Democrats came to his side with an alacrity that strengthened the Republican opposition. Their party had as a whole leaned toward the South during the war, and they now welcomed the easy terms held out by the President to their old associates. The Republican doctrine was best formulated by Shellabarger of Ohio, who, without going to the full length of Stevens's theory, maintained the essential right of Congress to lay down the conditions on which the seceded States could resume their old relation with the Federal Government. That seemed the just and inevitable logic of the

situation; and it was expressed in as much conformity with the Constitution as was practicable after the rude jostle of a four years' war.

Meantime, Republican leaders in the Senate—Sumner, Wilson and Fessenden—were announcing the same doctrine, and were earnestly declaring that the actual conditions of the South called for stronger remedies than the President had provided. A joint resolution brought before Congress a report which had been made to the President by Carl Schurz, after a tour of several months for which he had been specially commissioned. With this report, the President sent also one from General Grant, whom he had asked, during an official trip of a few days, to observe the general disposition and temper of the Southern people. Grant stated his conclusion to be that "the mass of thinking men of the South accept the present situation of affairs in good faith"; and that they cordially acquiesce in the restoration of the national sovereignty and the abolition of slavery; and Grant's name carried great weight.

But Mr. Schurz's much longer and more careful study had brought him to very different conclusions. He was a trained observer and thinker; a German refugee after the disturbances of 1848; a leader among the emancipationists in Missouri before the war, a general in the Union army, and a political radical. Mr. Schurz recapitulated his observations and conclusions, as he then reported them, in an article in *McClure's Magazine* for January, 1904; and they come now with increased weight after a life-time of disinterested and sagacious public service. That he found the Southern whites acquiescing in their defeat only as of necessity, conquered but not convinced—is no matter of surprise; though Mr. Schurz seems somewhat to have shared the Northern expectation that their late foes should take the attitude of repentant sinners. But as to their practical attitude toward the negro, his testimony is important. He relates that he found the general assertion to be "You cannot make the negro work without compulsion." This conviction he encountered everywhere; all facts to the contrary were brushed aside, and every instance of idleness or vagabondage was cited as proof positive of the negro's unwillingness to labor. The planter who seriously maintained in Mr. Schurz's presence that one of his negroes was unfit for freedom because he refused to submit to a whipping, went only a little further than his neighbors.

As to actual behavior of the negroes, under this sudden and tremendous change of condition, certain facts were noted; not a single act of vengeance was charged against them; a great part, probably the large majority, remained or soon went back to work for their old employers; but a considerable part began an aimless roaming to enjoy their new liberty, or huddle around the stations where the agents of the Freedmen's Bureau doled out some relief. As to their education, popular opinion was no less unfavorable than as to their labor. The common expressions were "learning will spoil the negro for work," "negro education would be the ruin of the South," and even "the elevation of the blacks would be the degradation of the whites." In practical application of these views, negro schools were frequently broken up and the school-houses burned; and in many places they were only safe under the immediate protection of the Federal troops. After many further particulars, especially as to the oppressive laws passed by the new governments, Mr. Schurz sums up: "To recapitulate; the white people of the South were harassed by pressing necessities, and most of them in a troubled and greatly excited state of mind. The emancipation of the slaves had destroyed the traditional labor system upon which they had depended. Free negro labor was still inconceivable to them. There were exceptions, but, as a rule, their ardent, and in a certain sense not unnatural, desire was to resist its introduction, and to save or restore as much of the slave labor system as possible."

It was the character of the laws and ordinances passed under these circumstances which was to the better sentiment of the North the most concrete and convincing argument against restoring the Southern States by the short and easy road proposed by President Johnson. It is to those laws, and the condition underlying them, that we must ascribe the refusal of Congress—backed by Northern conviction—to confirm the early restoration which at first seemed so promising. So those laws deserve careful consideration, as well as the situation which led to them.

The Southern people, blacks and whites, were in a position of almost unexampled difficulty. To the ravages of war and invasion, of impoverishment and bereavement—and, as it fell out, to two successive seasons of disastrous weather for crops,—was added at the outset a complete disarrangement of the principal supply of labor. The mental overturning was as great as the material. To the negroes "freedom" brought

a vague promise of life without toil or trouble. The hard facts soon undeceived them. But for the indulgent Providence they at first hoped for, some occasional and partial substitute appeared in the offices of the Freedmen's Bureau. This had been established by Congress, in March, 1865, with the laudable design of helping to adjust the freedmen to their new condition; to make temporary provision for the extreme physical wants of some; to aid them in arrangements for labor and education; and, as was at first contemplated, to lease to them abandoned or confiscated lands, in plots of forty acres, for three years. This land provision was soon abandoned, there being no confiscation to provide the necessary land; but it started the expectation of "forty acres and a mule," which misled many a freedman. As chief of the Bureau was appointed General O. O. Howard, a distinguished Union commander, of the highest personal character, and entirely devoted to his new work; and under him was a commissioner with a working force in each of the States. The Bureau accomplished considerable good; but its administration on the whole was not of the highest class; among its subordinates were some unfit men; and a good deal of offense and irritation attended its operations. At most, it touched only the circumference of the problem. Three and a half millions of newly enfranchised, ignorant men, women and children! What should provide for the helpless among them, especially for the children, whom the master's care had supported? How should order be maintained in the lower mass, half-brutalized, whom slavery had at least restrained from vagabondage, rapine, and crime? And how should the whole body be induced to furnish the dynamic, driving power of industry essential to the community's needs? These questions the South essayed to answer in part by a system of laws, of which we may take as a fair specimen the legislation of Mississippi—the only State which had enacted this class of laws before Congress met,—as they are summarized in the thorough and impartial book of Professor J. W. Burgess, *Reconstruction and the Constitution*.

The law of apprenticeship ran thus: Negro children under eighteen, orphans or receiving no support from their parents, to be apprenticed, by clerk of probate court, to some suitable person,—by preference the former master or mistress; the court to fix the terms, having the interest of the minor particularly in view; males to be apprenticed till end of twenty-first year, females to end of eighteenth. No other punishment to be permitted than the

common law permits to a parent or guardian. If the apprentice runs away, he is to be apprehended and returned, or, if he refuses to return, to be confined or put under bonds till the next term of the court, which shall then decide as to the cause of his desertion, and if it appears groundless compel his return, or if he has been ill-treated fine the master not more than \$100 for the benefit of his apprentice. This statute seems not oppressive but beneficent.

The law of vagrancy provided that all freedmen having no lawful employment or business, or who are found unlawfully assembling, and all white persons so assembling in company with freedmen, or "usually associating with freedmen, free negroes, or mulattoes, on terms of equality," are to be deemed vagrants, and fined, a white man not more than \$200, a negro not more than \$50, and imprisoned, a white man not more than six months, a negro not more than ten days. If the negro does not pay his fine within five days, he is to be hired out by the sheriff to the person who will pay his fine and costs for the shortest term of service. The same treatment is to be applied to any negro who fails to pay his tax. This statute meant legal servitude for any negro not finding employment, and the same penalty for a white man who merely consorted with negroes on equal terms.

The law of civil rights provided that all negroes are to have the same rights with whites as to personal property, as to suing and being sued, but they must not rent or lease lands or tenements except in incorporated towns and cities, and under the control of the corporate authorities. Provision is made for the intermarriage of negroes, and the legalization of previous connections; but intermarriage between whites and negroes is to be punished with imprisonment for life. Negroes may be witnesses in all civil cases in which negroes are parties, and in criminal cases where the alleged crime is by a white person against a negro. Every negro shall have a lawful home and employment, and hold either a public license to do job-work or a written contract for labor. If a laborer quits his employment before the time specified in the contract, he is to forfeit his wages for the year up to the time of quitting. Any one enticing a laborer to desert his work, or selling or giving food or raiment or any other thing knowingly to a deserter from contract labor, may be punished by fine or imprisonment. No negro is to carry arms without a public license. Any negro guilty of riot, affray, trespass, seditious speeches, insulting gestures, language or acts, or committing any other misdemeanor, to be fined and imprisoned, or if the

fine is not paid in five days to be hired out to whoever will pay fine and costs. All penal and criminal laws against offenses by slaves or free negroes to continue in force except as specially repealed.

Many of these clauses speak eloquently for themselves, and as to the law in general Professor Burgess, who certainly has no anti-Southern bias, comments: "Almost every act, word or gesture of the negro, not consonant with good taste and good manners as well as good morals, was made a crime or misdemeanor, for which he could first be fined by the magistrates and then be consigned to a condition of almost slavery for an indefinite time, if he could not pay the bill." And Professor Burgess adds, "This is a fair sample of the legislation subsequently passed by all the States reconstructed under President Johnson's plan."

The case against this class of laws may be left—in the necessary limits of space—with this careful and moderate statement, though the temptation is strong to quote from Mr. Schurz and other authorities further specimens of the great body of harassing legislation, both state and local;—the establishment of pillory and whipping-post; the imposition of unjust taxes, with heavy license fees for the practice of mechanic arts; requirements of certified employment under some white man; prohibition of preaching or religious meetings without a special license; sale into indefinite servitude for slight occasion; and so on—a long, grim chapter. Whatever excuses may be pleaded for these laws, under the circumstances of the South, all have this implication,—that the negro was unfit for freedom. He was to be kept as near to slavery as possible; to be made, "if no longer the slave of an individual master, the slave of society." And further, as to the broad conditions of the time, two things are to be noted. The physical violence was almost wholly practiced by the whites against the negroes. Bands of armed white men, says Mr. Schurz, patrolled the highways (as in the days of slavery) to drive back wanderers; murder and mutilation of colored men and women were common,—"a number of such cases I had occasion to examine myself." In some districts there was a reign of terror among the freedmen. And finally, the anticipation of failure of voluntary labor speedily proved groundless. A law was at work more efficient than any on the statute-books,—Nature's primal law, "Work or starve!" Many, probably a majority of the freedmen, worked on for their old masters, for wages. The others, after some brief experience of idleness and starvation, found work as

best they could. No tropical paradise of laziness was open to the Southern negro. The first Christmas holidays, looked forward to with vague hope by the freedmen and vague fear by the whites, passed without any visitation of angels or insurrection of fiends. In a word, the most apparent justifications for the reactionary legislation,—danger of rapine and outrage from emancipated barbarians, and a failure of the essential supply of labor—proved alike groundless.

As the facts of the situation became known, not only by Mr. Schurz's report, but by news from the Southern capitals and by various evidence—it was very clear that Congress could not and would not set the seal of national authority on any such settlement as this. Granted, and freely, that no millennium was to be expected, that a long and painful adjustment was necessary,—yet it was out of the question that any political theory or any optimistic hopes should induce acquiescence in the legal establishment of semi-slavery throughout the South. It was not Stevens's rancor, nor Sumner's unpracticability, but the serious conviction of the North, educated and tempered by long debate and bitter sacrifice, which ordained that the work of freedom must not be thrown into ruins.

CHAPTER XXXI

RECONSTRUCTION: THE SECOND PLAN

Congress addressed itself, in the first instance, to extending and prolonging that provision for the freedmen which it had already made through the Freedmen's Bureau. A bill was reported, having the weighty sanction of Senator Trumbull and the judiciary committee, greatly increasing the force of officials under the Bureau; putting it under the military administration of the President and so with the direct support of the army; and broadening its functions to include the building of school-houses and asylums for the freedmen, and a wide jurisdiction over all civil and criminal cases in which local laws made an unjust discrimination between the races. The bill passed the Senate and House, by the full party majority. It was sent to the President, February 10, 1866, and nine days later he returned it with a veto message, calmly and ably argued. He objected to the bill as a war measure after peace had been proclaimed. He took exception to the intrusion of military authority upon the sphere of the civil courts, and to the extension of Federal authority in behalf of black men beyond what had ever been exercised in behalf of white men. The message was strong enough to win a few of the orthodox Republicans, including ex-Governor Morgan of New York, and the two-thirds vote necessary to carry the bill over the veto could not be gained.

Up to this time there seems reason to believe that while the Republicans in Congress were firm in claiming for that body a decisive voice in reconstruction, yet a majority of them were more favorable to the policy of President Johnson than to that of Sumner and Stevens. But now, upon the necessity of safeguarding the freedmen by exceptional measures in a wholly exceptional time, the preponderance of conviction turned against him in Congress and in the country. His own acts quickly converted that first opposition into hostility and alarm.

Until now President Johnson, whatever dissent he might provoke, had appeared as a dignified statesman. But three days after his veto, on

February 22—Washington's birthday—a cheering crowd called the President to the balcony of the White House. They heard a speech,—how different from what Lincoln had spoken in the same place in the previous April. Johnson was exhilarated by his success, forgetful that he still faced a hostile majority in Congress, exasperated by opposition, and roused by the shouts of the crowd,—and his native passion and coarseness came out. Sumner had been severe in his language; he had likened President Johnson to President Pierce in the Kansas days, and hinted a family resemblance to Pharaoh of Egypt. Wendell Phillips was in his native element of denunciation. Now the President declared to his applauding hearers that he had against him men as much opposed to the fundamental principles of the government, and he believed as much laboring to pervert or destroy them, as had been the leaders of the rebellion,—Davis, Toombs, and their associates. To the responsive cheers, and the cry for names, he answered by naming Stevens, Sumner and Phillips. He rehearsed his rise from tailor to President, and declared that a ground swell, an earthquake of popular support, was coming to him. His speech brought surprise and dismay to the country. It fanned into hot flame the opposition between President and Congress. In vain did John Sherman,—who had conferred with the President in the summer, and thought highly of his patriotism—now hold out the olive branch in the Senate. A keen observer at Washington, Samuel Bowles,—who had held a friendly attitude toward both the President and the party leaders,—now wrote, February 26, "Distrust, suspicion, the conceit of power, the infirmities of temper on both sides, have brought affairs to the very verge of disorder and ruin." He dissuaded from taking sides in the quarrel; there was too much right and too much wrong on both sides. He urged, March 3,—and no doubt he represented the best sentiment of the country: "The great point is to secure protection and justice for the freedmen.... For the present the Freedmen's Bureau, military occupancy, and United States courts, must be our reliance.... We want the President firm and resolute on this point, and we want to arouse the better class of the Southern people to do their duty in the same regard."

The weakness of the veto message on the Freedmen's Bureau bill had been the absence of any solicitude for the welfare of the freedmen; constitutional theory seemed to wholly supersede the practical necessity of the case. Now Congress again approached the matter in the Civil Rights bill, carefully

formulated in the judiciary committee, thoroughly debated and amended, and passed by both houses late in March. It affirmed United States citizenship for all persons born in the country and not subject to any foreign power; it declared for all citizens an equal right to make and enforce contracts, sue, give evidence, hold and sell property, etc.; full equality as to security of person and property, as to pains and penalties,—in short, complete civil equality. Original jurisdiction was given to United States courts, and to these could be transferred any case involving these subjects begun in a State court. The bill empowered the President to use the army for its enforcement. All this was under authority of the Thirteenth Amendment.

This, too, the President vetoed, as unnecessary, as employing the military arm too freely, as extending unwisely the power of the Federal Government, and as especially unwise legislation while eleven States out of thirty-six were unrepresented in Congress. But the President was now going in the face not only of the congressional majority but of the North at large, which was unmistakably opposed to leaving the freedmen with no protection against their old masters. The veto was overridden, and became a law April 9. The Freedmen's Bureau bill, somewhat amended, was again passed, this time over a veto, and became a law July 16.

It was after the decisive victory over the President on the Civil Rights bill that Congress took up the comprehensive measure which embodied its own plan of reconstruction as a substitute for the President's. That measure was the Fourteenth Amendment. It was drawn up by the reconstruction committee, of which Senator Fessenden was chairman, and probably his was the leading part in framing its provisions. The first proposition was only to make the basis of congressional representation dependent on the extension or denial of suffrage to the freedmen. This was proposed January 22, 1866, and after some weeks' discussion passed the House but failed in the Senate. It was replaced by a broader measure, which was reported April 30, debated and amended for six weeks, and finally in mid-June took the form in which it now stands in the Constitution, and was approved by Congress. It then went before the States for their action, with a tacit but strong implication that upon its acceptance and adoption the lately seceded States would be fully restored. It was in effect the plan of reconstruction first offered by Congress, as a substitute for the President's.

The first article of the amendment declares that all persons born or naturalized in the United States are citizens of the United States, and of the State wherein they reside; and that all are entitled to the equal protection of the laws. Another section guarantees the validity of the public debt, and forbids payment of the Confederate debt or payment for the emancipation of slaves. Both these articles appear at this distance of time to be beyond question or criticism. Another article apportions representation in Congress, as heretofore, according to population; but further provides that any State which denies the suffrage to any part of its adult male population, except for rebellion or other crime, shall have its congressional representation reduced in the same proportion. It will be remembered that under the old Constitution the basis of representation was fixed by adding to the total of the free population a number equal to three-fifths of the slaves. Now that the slaves had become freedmen, the representation of the old slave States would to that extent be increased. But it seemed neither just nor expedient to permit such an increase of power, unless the class on whose enumeration it was based were made *bona fide* citizens, and sharers in this power. If under this amendment the Southern States should choose to give the vote to the freedmen, their total representation in Congress would be raised from sixty-one to seventy. If they did not give it, their representation would fall to forty-five. There was thus offered them a strong inducement to establish impartial suffrage; while yet they were at full liberty to withhold it at the price of some diminution of power compared with communities adopting the broader principle. The reconstruction committee had listened to prominent Southerners as to the probable reception of this provision. Stephens thought his people would consider it less than their due and would not ratify it. But Lee thought that Virginia would accept it, and then decide the question of suffrage according to her preponderating interest; that at present she would prefer the smaller representation, but would hold herself ready to extend the suffrage if at any time the freedmen should show a capacity to vote properly and understandingly.

So far, the Fourteenth Amendment seems now to embody a sound statesmanship. But the remaining article must be judged by itself. It excludes from all State and national offices all those, who, having taken an official oath to support the Constitution, have afterward taken part in insurrection and rebellion. This was ingeniously framed with an appearance

of justice, as if debarring from office only those who to rebellion had added perjury. But, as a matter of ethics, the breaking of official oaths is an inevitable incident of every revolution; and just as war is held to suspend in a measure the command "thou shalt not kill," so revolution must be held to cancel the obligation of official oaths. The opposite view would affix the full guilt of perjury to many leaders in the American Revolution, perhaps to Washington himself. It was not really as perjurers that the excluded class were debarred from office, but as prominent leaders in the rebellion, so marked by having previously held office. It shut out, and was so intended, a class not only very large in numbers but including the best intelligence and social leadership of the South. To exclude these men from all political leadership in the new régime was in flat defiance of that statesmanship, as wise as magnanimous, which Andrew and Beecher had voiced. As one New England observer put the matter, it would help matters greatly if no man favored a government for others that he would not like to live under himself; now how would it work in Massachusetts to exclude from the government the whole Republican party? Yet the Democrats in the State have ten times the knowledge, character and ability, that are possessed in the South by the elements free from stain of rebellion.

The disqualification, to be sure, was removable in each case by a two-thirds vote of Congress. But it could not be foreseen how Congress would be disposed; and in fact, the President's pardon, so freely given, had been by Congress expressly deprived of any political value; being held to exempt only from legal pains and penalties. The new exclusion, if adopted, could hardly work other than disastrously. And, being offered, as the entire amendment necessarily was, for acceptance or rejection by all the States, this provision was as well suited to repel the South as if it had been designed for that purpose. It offended that loyalty to their tried leaders in stress and storm which is one of the best traits in a people's character. Compare it with Beecher's saying of a few months earlier, "I think it to be the great need of this nation to save the self-respect of the South." The difference measures the degree of the mistake under which the mass of the North were still laboring. They looked upon the rebellion as a moral and personal crime. They had no comprehension of the Southern standpoint; and, sure that their own cause was just, they believed that their opponents were not only mistaken but morally guilty. As it was hardly possible to

suppose the 8,000,000 to have all gone wrong out of individual perversity, the current view at the North was that Secession sprang from a conspiracy; that its leaders had secretly plotted, like Aaron Burr, and thus misled their followers. The impulse to inflict death or imprisonment or confiscation on anybody was infrequent or short-lived; the desire for such punishment lingered only in an irrational wish for vengeance on Jefferson Davis. But, if the leading class in the society and public life of the South were morally responsible for a great treason and rebellion, it might seem not only just but wise to exclude them from the new political order.

The critics of the reconstruction policy are often challenged by its defenders with the question, "But what better course can you suggest, even now?" And the immense difficulty of the problem, even as calmly viewed to-day by the closet student, may well make us charitable toward the men who, for the most part, did the best they knew under the immediate besetment of measureless perplexities and contradictions. But while we may approve of their work in the rest of the Fourteenth Amendment, with equal emphasis we may say: The mistake was great, in the amendment and later, of shutting out the very men who should have been included. Better by far would it have been to take their counsel and co-operation even beforehand in planning the work of reconstruction. Even as to that crucial point, the legislation oppressive to the freedmen, and the deeper difficulty underlying it, the ingrained Southern attitude toward the negro as an inferior being,—even as to this, something might have been accomplished had the Southern men, who went to Washington in the vain hope of immediate admission to Congress, been met by a President of Lincoln's or Andrew's calibre. Even as it was, there were signs of promise in Georgia,—so says Rhodes in his excellent *History of the United States*. The newly elected Governor, Judge Jenkins, a man of "universally acknowledged probity and uprightness of character" made in his inaugural address (December 14, 1865) a strong plea for the negroes who had so faithfully cared for the lands and homes and families of the soldiers in the field: "As the governing class individually and collectively we owe them unbounded kindness and thorough protection.... Their rights of person and property should be made perfectly secure." To like effect spoke Alexander H. Stephens, revered by all Georgians, February 22, 1866; recalling the fidelity of the slaves during the war and the debt of gratitude it created; the obligation of honor to the poor, untutored,

uninformed; asking for the negroes ample and full protection, with equality before the law as to all rights of person, liberty and property. And such equality the Georgia Legislature speedily ordained. Tennessee did the like. Rhodes expresses confidence that by gentle pressure from the President and Congress, Virginia, North Carolina and Alabama could have been persuaded to similar legislation within a twelve month, and the other States would have followed.

The excluding article in the amendment was probably made as a concession by the moderate Republicans to the radicals. It replaced an article originally reported by the committee, excluding not only from office but from the suffrage all who had taken part in the Rebellion, until July 4, 1870. The article as adopted was disliked by Sherman and Wilson, the latter especially declaring his willingness to remove the disqualifications as soon as possible after a settlement had been made. In point of fact they were removed piecemeal by Congress almost as freely as President Johnson had done the like, and were ended except for a few hundred by a sweeping amnesty in 1872.

Grant said to A. H. Stephens in April, 1866, "The true policy should be to make friends of enemies." If these men, with a few others of like temper in North and South, could have settled the terms of the new order, a different foundation might have been laid. But in default of any such happy, unlikely conjuncture of the right men in the right place, it is the deep and wide tides of public opinion that largely shape events. The average Southern view of the negro, and the average Northern view of the "rebel," were the Scylla and Charybdis between which the ship of state steered its troubled voyage.

Returning now to the course of events,—Congress made it plain that the acceptance of the Fourteenth Amendment would bring the restoration of the South, not by a formal declaration, but by its action in promptly admitting Tennessee when within a month it ratified the amendment. So before the South and the country were now the two policies,—of Congress and the President,—and the summer and autumn saw a general and eager discussion. The South waited events, hoping for the President's success. In the North there was at first a marked effort to rally conservative men of both parties to his side. A great convention was held at Philadelphia, promoted by the President, Seward, Weed and Henry J. Raymond; with

delegates from every State; the first day's procession led by Massachusetts and South Carolina representatives arm-in-arm; Southern governors and judges heartily assenting to the declaration that not only is slavery dead, but nobody wants it revived; and with cordial indorsement of the President's reconstruction policy.

There was a counter-convention at Pittsburg; there were "soldiers' and sailors' conventions" on both sides. From the Cabinet three members, Speed, Denison and Harlan, resigned because their convictions were with Congress; but Stanton remained as Secretary of War, though he was now a bitter opponent of the President,—a safeguard over the army, as the radical leaders considered him, and by his attitude and natural temper a constant exasperation to his nominal chief. A fierce and bloody riot in New Orleans, of which the precise causes were obscure, but in which the negroes were the sufferers, heightened the Northern anxiety as to the general situation.

The popular tide evidently ran with Congress, yet Johnson had the promise of very respectable support until he threw it away. His extempore expressions suggested an overweening view of his own position. To the committee reporting to him the Philadelphia convention, he said, "We have seen hanging upon the verge of the government, as it were, a body called, or which assumes to be, the Congress of the United States—but in fact a Congress of only a part of the States." In September he made a tour of the Northern States, taking in his train Secretaries Seward and Welles, with Grant and Farragut;—"swinging round the circle," he called his trip. He made addresses in the principal cities, in which he denounced his opponents, sometimes with vulgar abuse, bragged of his own rise from tailor to President, and bandied words with the mob. He shamed many of the men of character—Beecher among them—who had viewed him with favor. The tide turned overwhelmingly against him. The November election returned a Congress consisting in the House of 143 Republicans to 49 Democrats, with a Senate of 42 Republicans to 11 Democrats.

It was like the hand of Nemesis that the South, led to crushing defeat by its slave-holding aristocracy, should now have its interests sacrificed through the characteristic faults of one of its poor whites,—his virtues overborne by his narrow judgment, uncontrolled temper and coarse speech.

Warned by the election, the South might well have accepted the Fourteenth Amendment as the price of its restoration. But it failed to read the handwriting on the wall. It could not yet brook acquiescence in the exclusion of its old leaders, and the alternative of negro suffrage or reduced power in Congress. The pride of race, the unquenched spirit of the "lost cause," prompted it to stand out for better terms. During the autumn and winter of 1866-7 the lately seceded States, except Tennessee, rejected the amendment. So failed the first congressional plan of reconstruction, as the President's earlier plan had failed. And now there was small hesitation or delay in framing and enforcing the final plan.

CHAPTER XXXII

RECONSTRUCTION: THE FINAL PLAN

The Congress which met in December, 1866, was the same body as in the previous winter; but the prolonged contest, the President's misbehavior, the South's rejection of the offered terms, and the popular verdict at the November election, had strengthened the hands of the Republicans and intensified their temper. Thaddeus Stevens brought in, February 6, 1867, a bill which was trenchant indeed. It superseded the governments of the ten unreconstructed States, divided their territory into five military districts, placed their commanders under the orders, not of the President, but of the general of the army, and suspended the habeas corpus. It was military rule in its barest form, and for an indefinite period. Blaine moved an amendment, specifying the terms on which the States might be released from this military control and restored to their normal status. But Stevens's despotic sway shut out the amendment and carried the bill through the House. In the Senate, Sherman successfully carried a substitute, much the same as the Blaine amendment. This went back to the House, where a majority of Republicans favored the change, but Stevens still opposed it, and had enough followers to make together with the Democrats a majority that threw out the whole measure. But success by such allies was undesired by the radicals and alarming to the moderate Republicans. There was reconsideration, minor concessions to Stevens, and the bill finally passed February 20, not at all as he had designed it, but in a form due either to Blaine or Sherman. It is singular that so important a measure should be of doubtful paternity. It seems more like a production of Sherman, who in constructive ability was far ahead of Blaine and of most of his congressional colleagues. In its substance it represents apparently the judgment and purpose of the great majority of the Republicans in Congress.

It is remarkable that so vital and momentous a law should have been enacted with so little discussion. It was hurried through, in order that its passage twelve days before the close of the session might prevent the President from "pocketing" it—letting it fail for want of his signature,

without risking a veto. The debate, as Blaine reports it in his *Twenty Years of Congress*, seems to have been mainly for the scheme, and against the far more drastic proposal of Stevens and Boutwell,—in opposing which Blaine himself seems to have done service certainly as creditable as any in his checkered career. But the radical character of the bill as passed, its great advance on all earlier proposals, seems to have called forth hardly any challenge among the Republicans.

In a word, the law put the whole unreconstructed South,—all of the old Confederacy except Tennessee,—under temporary military government, subject to the President; and the commanders were at once to initiate measures for new State organizations. They were to enroll all adult males, white and black, as voters, except only such as the Fourteenth Amendment would shut out from office; these voters were then to elect delegates in each State to a convention; this body was to frame a constitution incorporating permanently the same conditions of suffrage; this constitution was then to be submitted to popular vote; and if a majority ratified it,—if Congress approved it,—if the Legislature elected under it ratified the Fourteenth Amendment,—and if and when that amendment received enough ratifications to enact it,—then, at last, each State was to be fully restored to the Union.

On this plan the States were rapidly and finally reconstructed. Its central feature was the enforcement of suffrage for the negroes throughout the South. Of this tremendous measure, but small discussion appears in the debate over the bill. But it seems to have had behind it the prevailing sentiment of the North. A good witness on this point is the *Springfield Republican*. That paper had strongly advocated the adoption of the Massachusetts plan, a reading and writing qualification for suffrage—the State's only good legacy from the Know-nothing period. Of such a provision it said January 9: "It would be a most potent stimulus to education, and once made the national rule there would be such a studying of spelling books as never was seen before.... There can be no sure reliance on the votes of blacks any more than of whites who cannot read their ballots." But this plan found little popular favor. The objection to it which we now recognize,—that the Southern States might probably have forborne to educate the freedmen, and so left them disfranchised,—was not then prominent. But there had not come to be a general recognition at the North

of the danger of ignorant suffrage. Of the actual drift of opinion the *Republican* said, March 3, that equal suffrage is "the sole condition about which there is any approach to unanimity among our people."

To understand this opinion we must look back a little. The belief in universal male suffrage was part of the Democratic movement that swept almost unchallenged from Jefferson's time till Lincoln's. The mass of ignorant immigrants gave some alarm, but they seemed to be successfully digested by the body politic. Beecher, we have seen, thought suffrage a "natural right," and that was a common doctrine. Besides, it was assumed at the North that the negroes were naturally the friends of the national government and of the party that had given them freedom. There were politicians in plenty who looked to the negro vote to keep the Republicans in control of the national government. Many of these doubtless valued the party organization mainly as a means of self-advancement; while others like Sumner devoutly believed that in the Republican party lay the sole hope of justice and freedom. To the North generally, the convincing argument for negro suffrage was that the ballot would give the black man the necessary weapon for self-protection. On this ground Mr. Schurz favored it in his report of 1865, and in reviewing the situation in 1904 he holds the same opinion. The assumption in this view was that the freedmen and the former master class were, and were to remain, natural enemies. Looking back to slavery, which really combined an element of oppression with an element of protection, the North saw only the oppression. Viewing the present, it was not merely the State laws, but the frequent personal abuse of the negroes which confirmed the idea that they must have the ballot for self-protection.

On broader grounds, the question was reasoned thus: "The logical, the necessary ultimate step in the negro's elevation to full manhood is his possession of the vote. By far the most desirable road to this consummation would be a gradual and educational introduction of the body of freedmen to the franchise. But toward such a course the South shows no inclination. The alternative remains—in the brief period during which the national authority can be applied to organic reconstruction—of establishing universal manhood suffrage; with the drawback of a present admixture of a large ignorant and unfit element; with the great disadvantage, too, of further alienating the two races for the present; but with the possibility and hope that the exercise of the ballot will in itself prove educational, and that the

Southern white man and Southern negro will ultimately fare better than if the one is allowed to permanently disfranchise the other." Something like this, apparently, whether wise or unwise, was the predominant judgment of the better class at the North.

With others the argument was simpler. Blaine in his *Twenty Years* gives a common sentiment, himself in 1884 still concurring in it: "The North believed, and believed wisely, that a poor man, an ignorant man, and a black man, who was thoroughly loyal, was a safer and better voter than a rich man, an educated man, and a white man, who in his heart was disloyal to the Union." The *Republican*, on the contrary, expressed the opinion: "It is better to be governed by ex-rebels than by fools."

The Fourteenth Amendment had been put forward virtually as an invitation. It was rejected by the South, and the new plan—military government, to give place to new constitutions with universal suffrage—was issued as a mandate. It was promptly carried out. In little more than a twelvemonth, the Carolinas, Georgia, Florida, Alabama, Louisiana, and Arkansas had been reconstructed; their State organizations were provisionally accepted by Congress in June, 1868; and as their Legislatures at once ratified the Fourteenth Amendment and secured its adoption, they were fully restored and their senators and representatives admitted in July. Virginia and Mississippi managed to stave off final action, hoping to escape the excluding clauses, until after Grant's election to the Presidency in 1868; and their hopes were justified when Grant gave his influence successfully with Congress against the excluding clauses; so that these two States, with belated Texas, were reorganized in the following year and admitted early in 1870. Georgia had troubles of her own, and a suspension by Congress from full statehood for half a year; and her final admission, on July 15, 1870, marked definitely the end of the reconstruction process. The registration of voters in the ten States had shown that in Alabama, Florida, Louisiana, Mississippi, and South Carolina, the colored voters were in a majority; in Georgia, the two races were about equal; and in Virginia, North Carolina, Arkansas and Texas, one-third or more were colored. The preponderance of voting power had been given to a people just out of slavery. The practical working of the plan, and the six further years of Federal supervision over the South, belong to another chapter.

An episode in this story, though an important feature in a general history, must be the impeachment of President Johnson in the spring of 1868. Though the main questions at issue were definitely settled, the bitterness between the President and Congress lasted and increased. At the same time with the final reconstruction measure, there was passed the "Tenure of Office bill," which took away from the President the power of removing his subordinates which all his predecessors had enjoyed, and required the Senate's concurrence in removals as in appointments. Some exception was made as to Cabinet officers; and the President, exasperated beyond endurance by Stanton, after vainly, though reasonably, asking the Senate to relieve him of his hostile secretary, assumed the right to remove him by his own authority, and appointed Gen. Lorenzo Thomas in his place, February 21, 1868. The House, in which the radical temper had grown stronger than ever, in a blaze of excitement voted the President's impeachment. He was tried before the Senate, the House prosecutors being led by Stevens, Boutwell, and Benjamin F. Butler, whose vindictive and unscrupulous personality had come to the front. The President was defended by a group of the foremost lawyers in the country, including Benjamin R. Curtis, Jeremiah S. Black, and William M. Evarts. The only weighty article in the charge was that concerning Stanton's removal, and upon this a legal defense was made which now seems conclusive. But it has been justly said that the President was on trial nominally for one class of offenses, but practically for another—namely, his persistent opposition to the policy of Congress. Party loyalty was invoked for his condemnation; the general temper of the North was hot against him; wrath and tribulation were predicted for any Republican senator who should vote for his acquittal. In face of the storm, there were a few who quietly let it be known or surmised that they should vote in their capacity as judges sworn to follow the law and the facts, whatever the political consequences. The decisive hour came, May 16, and the result no one could predict; the Democratic senators and the four administration Republicans all would sustain the President; seven additional votes would prevent the decisive two-thirds condemnation. Man after man, Fessenden, Fowler, Grimes, Henderson, Ross, Van Winkle, and Trumbull—Republicans all—voted "Not guilty"; and, by nineteen to thirty-five, President Johnson escaped deposition—to get rid of Stanton finally, and finish his term; to return to the Senate from Tennessee; to take his place in history as an honest and patriotic man, beyond his proper sphere, whose

limitations worked a part in the partial failure of reconstruction. The country escaped a dangerous dislocation of the relation of Congress and the executive, and the triumph of an exaggerated radicalism. The seven independent senators sacrificed their future careers, and deserve the perpetual gratitude of their country.

And now it remained for the nation, through a Presidential election, to pass upon the completed work. In the Democratic convention at New York, in July, 1868, the reactionary and the progressive elements strove. A new Democracy was growing, intent on administrative reform and moderate Constitutionalism; Samuel J. Tilden of New York and his allies were among the leaders; their candidate was Chief Justice Chase. Only the incongruity with his judicial position marred the fitness of Chase's candidacy. Lincoln, though he had his own troubles in dealing with him, said, "Of all the great men I have known, Chase is equal to about one and a half of the best of them." He had proved eminent on the bench as in the Cabinet, and under his lead the Supreme Court gave a series of conservative decisions on reconstruction questions which were a most valuable contribution to the national stability and security—a vital, though not to the popular eye a conspicuous service in the reconstruction period. Against him, the candidacy of George H. Pendleton of Ohio represented the element historically unfriendly to the war for the Union, and intensely opposed to the reconstruction measures. He had the support of the Southern delegates, present in full force, and lending to the cheering the dominant note of the well-known "rebel yell." The reactionists got their own way with the resolutions, which declared the reconstruction acts to be "unconstitutional, revolutionary, and void." On the new question which was looming up, of shirking the national debt by payment in promises, the platform leaned strongly toward repudiation. Pendleton's supporters, seeing their candidate could not win, and determined that the other Ohio man, Chase, should not win, thwarted their New York opponents by a clever trick, and successfully rushed through the convention the nomination of its presiding officer, Horatio Seymour of New York, against his protest and to the discomfiture of his associates. An able, accomplished man, but reckoned half-hearted in the war, and not rising to statesmanlike proportions, he could not outweigh the mischievous platform and the Vice-Presidential candidate, the hot-headed Gen. Francis P. Blair of Missouri, who had just proposed measures

nothing short of revolutionary to override Congress. Against this combination the Republicans advanced securely to victory. Meeting in Chicago in May, they showed a temper more moderate than that of Congress; they of course condemned the President, but they refused to censure the seven independent senators; and upon Carl Schurz's motion passed a resolution welcoming back all former enemies now become loyal, and favoring the early and rapid removal of disabilities. As to the Presidential nomination, there was no division,—it was given unhesitatingly, unanimously, heartily, to General Grant. His steadfastness and success in war had been matched by his magnanimity in victory and his prudence in the troubled times that followed. Of manly simplicity and solid worth, sagacious and successful wherever he had been tried, he seemed at once an embodiment of past victory and an assurance of future safety. Of the thirty-four States that voted, all but eight were for Grant and Colfax. Seymour had New York, New Jersey, Delaware, Maryland, Kentucky, Oregon, Georgia, and Louisiana. The popular vote was 3,012,000 for Grant and Colfax to 2,703,000 for Seymour and Blair.

The Republican convention had shirked the question of negro suffrage at the North by referring it to the individual States. Its refusal in many of the Northern States was felt as a discredit after it had been enforced throughout the South. The Republicans in Congress took courage from the election. The Fifteenth Amendment, forbidding the States to deny the right to vote "on account of race, color or previous condition of servitude," was brought forward in Congress in December, and passed February 28, 1869. It was ratified in rapid succession by thirty States out of thirty-seven,—Tennessee not acting, and negative votes being given by California, Delaware, Kentucky, Maryland, New Jersey, and Oregon,—and proclaimed as adopted, March 30, 1870.

With Grant's election, and the last touches of reconstruction sure to follow close, the North, as it were, drew a deep breath of relief. It felt that the fundamental issues were settled. The war had preserved the Union and destroyed slavery. The consummation had been fitly rounded out by the changes in the Constitution. The Southern States were restored to their places. Vast tides of material advance were setting in. New questions were rising, new ideas were fermenting. Good-bye to the past,—so felt the North,

—to its injustice and its strife. As the nation's chieftain had said, in accepting the call to the nation's Presidency, "Let us have peace."

CHAPTER XXXIII

RECONSTRUCTION: THE WORKING OUT

So the North turned cheerfully to its own affairs—and very engrossing affairs they were—and the South faced its new conditions. It was still struggling with the economic wreckage left by four years of battle, invasion and defeat. It had borne the loss of its separate nationality and the flag endeared by countless sacrifices. It had accepted the sudden emancipation of its servile class by the conqueror's hand. It had been encouraged by President Johnson to resume with little change its old ways of government. For two years it had gone along precariously with State organizations of the earlier pattern, subject to occasional interruption by military authority or officials of the Freedmen's Bureau. Then, in 1867, all State governments were set aside, and military rule pure and simple held the field,—in most States for about fifteen months; in Mississippi, Texas and Virginia, by their own choice, for as much longer. Though as it was generally administered the military government was just, as well as economical, yet its maintenance was a bitter ordeal for a people with the American political habit; a people, too, who had fought gallantly for four years; who had, upon accepting their defeat, been assured that the object of their conqueror was attained in restoring them to their old position, except for emancipation of the slaves; and who now for a year or two longer were held under martial law.

At last—for most of them in mid-summer of 1868—they were again restored to self-government of the American pattern. Self-government for all, thought the North complacently; whites and blacks were equal, not only as subjects of the law but as makers of the law; and so freedom and democracy were established. But the Southern whites asked in dismay, What kind of fellow-lawmakers have we got? The question answered itself. The million or so of new voters were most of them ignorant in a sense of which illiteracy gives but a hint. They were unversed even in genuine family life; skilled only in manual industry; unpracticed in citizenship; utterly untaught in the principles, the facts of history, the theory and art of

self-government, which make up the proper equipment of the voter. A great part of them, field hands on the great cotton and sugar plantations, were rude and degraded, trained to live solely under close and constant control.

How were the whites to deal with these new-made voters? From the standpoint of expediency, three courses offered,—to conciliate and educate them; to outvote them by massing the whites together; or to suppress them by force or fraud. From the standpoint of unregenerate human nature, the whites as a body at first took none of these courses,—they stood apart from the whole business of politics, in wrath and scorn. Unregenerate perhaps, but most natural, most human! At first, some crude policy mingled with the sentiment that kept them aloof; there was the hope that if the whites generally abstained from voting, at the elections held in November, 1867, to pass on the question whether to hold constitutional conventions, the proposal might fail for want of the requisite majority of the registered voters. It was a fallacious hope; suppose the conventions were to fail, what better terms were now to be expected from Congress? But the conventions were all held; and as in the same spirit most of the whites refused to vote for delegates, these were chosen from the negroes, their friends from the North, and the few Southern whites who accepted the inevitable.

Is it not the wisest, the manliest course, to accept the inevitable? So asked General Longstreet, in a letter to a friend, June 3, 1867. He had just listened to Senator Wilson, and had been surprised by his fairness and frankness. For himself he says, "I will be happy to work in any harness that promises relief to our discomfited people, whether bearing the mantle of Mr. Davis or Mr. Sumner." Negro suffrage is for the present an established fact; if after a fair trial it works disastrously, we will appeal to Congress to repeal it. "If every one will meet the crisis with proper appreciation of our condition and obligations, the sun will rise to-morrow on a happy people." But his words fell on deaf ears, and when he acted with the Republicans he was visited with ostracism, denunciation, and attack upon his war record. The typical attitude, at first, was that of the planter who, after listening to a discussion of the final reconstruction act, inquired, "Does it say anything about raising cotton?" "No." "Then, damn Congress and its laws! I'm going to raise cotton." So he and a good many others gave themselves to raising cotton, and for a while left the choice of State officers and legislators to "niggers," "carpet-baggers," and "scalawags." A "scalawag" was any Southern white

who allied himself politically with the negroes, and a "carpet-bagger" was a Northern adventurer, for whose worldly goods a gripsack sufficed,—or, in general, any Northerner whatever.

For the blacks, the sudden opening of political power and preferment, however designed, was in effect a very doubtful benefit. It turned their hopes and aspirations in a way which was really "no thoroughfare." To the more promising and ambitious it offered sudden and brilliant prizes, instead of the patient apprenticeship which they needed. Of those who quickly rose to office, a few were by character and attainments really fit for their position; many won favor by shallow arts; and others were thrown up like driftwood by the tide. The negroes as a body could follow only a personal leadership,—how many whites, North or South, really follow any other?—could be organized in bodies, attached to a party name and watchwords, and voted in mass by the men who had their confidence. They understood that their freedom and their right to vote had been given them by the North and by the Republican party, and to that party they naturally turned. Their old masters—in many cases their best friends—frankly told them they were unfit to vote, and wanted no dealings with them in political affairs. So they found leadership principally in the men who had come from the North.

There was a Northern immigration which may be classified as business men, teachers and adventurers. A considerable number sought an opportunity in reviving and developing industry,—substantial men and good citizens. Sometimes a patriotic motive mingled with the industrial. Governor Andrew, on retiring to private life as a lawyer, tried for some time to advance a company for bringing into conjunction Southern lands and Northern enterprise and capital. There were various projects of this kind, but they met with little success. Private individuals, however, added something to the industrial and civic forces of the South. A larger class were the teachers. Men and women by hundreds went to the South, some sent by missionary organizations, some independently, to organize schools and to teach the children of the freedmen. Many of them were of the highest character, devoted, self-sacrificing, going to the blacks simply because they supposed their need was greatest. But Beecher's warning proved sound—because as a whole this movement took the negroes as a distinct field, ignoring the needs of the whites, it incurred odium as an alien and half-hostile work. The barbaric element among the whites—and slavery had left

a deep taint of barbarism—came out at its worst in insults to the "nigger teachers," with occasional burning of a school-house. The better social elements looked askance at those whose presence was a reminder of conquest and humiliation.

From the business and the educational immigration, a few Northern men were drawn into public affairs, less by choice than by necessity of the situation. With these mingled a different class, men who had been disreputable hangers-on of the army or the Freedmen's Bureau, or who had come for the sole purpose of plunder. It was a very mixed company of whites and blacks that made up the conventions and then filled the legislative halls and the public offices. The constitutions were not badly framed, except as they, for the most part, continued the exclusive clauses. The general legislation was various in its character. There were some excellent features, above all the institution in every State of a genuine public school system, where before there had been only makeshifts or make-believes. Some other good constructive work was done, toward establishing society on the new basis. Certainly nothing was enacted so bad as the "black codes" of a few years earlier, not to speak of the legislation under slavery. There were some unsuccessful attempts at engrafting institutions, like the township system, which had worked well in their native soil but could not be created out of hand. In general the white leadership of the dominant party averted much that might have been expected from the ignorance of its legislators as a mass. But plenty of waste and mischief was wrought. Place a crowd of hungry and untaught men next the public treasury with the lid off, and some results are sure. The men will not be safer guardians of the treasure for having had for most of their lives no property rights of their own, not even the ownership of their own souls and bodies. Yet most of the plunder seems to have gone into the pockets of knaves of the superior race. There was a degree of extravagance, waste and corruption, varying greatly with localities and times, but sufficient to leave a permanent discredit on the Southern Republican governments as a class. To judge accurately of the merits and demerits of these governments is perhaps as difficult a task as historian ever undertook. So fierce is the passion which invests these events in the memory of the present generation, that it is almost hopeless to sift and adjudicate the sober facts. Time has softened much; even the Civil War begins to stand forth in some firmness of

outline and clarity of atmosphere. But when we come to reconstruction—grave historians grow almost hysterical, romancers pass the bounds of possibilities, and even official figures contradict one another with sublime effrontery.

Yet this very passion of remembrance, which in one way obscures, in another way illuminates the historical situation. The grievance most profoundly felt in the reconstruction period was not unwise laws nor waste of public money nor oppressive taxes. It was the consciousness by the master class of political subjection to the servile class. It was the spectacle of rude blacks, yesterday picking cotton or driving mules, sitting in the legislators' seats and executive offices of Richmond and Columbia, holding places of power among the people of Lee and Calhoun. Fancy the people of Massachusetts, were the state-house on Beacon hill suddenly occupied by Italian, Polish and Russian laborers,—placed and kept there by a foreign conqueror. Add to the comparison the prouder height of the slaveholder, and the lower depth of his serf. Put this as the case of a people high-strung and sensitive, still fresh from the passion of war, still smarting from defeat. They had fought to exhaustion, and their banner had fallen without disgrace. Now the victors who had won by superiority of force had placed their late bondmen as their rulers. The offices from which their own captains and chiefs were shut out were filled by plantation field-hands.

It was not likely that the first attitude of scornful passivity would long continue, and it did not. The warnings vainly uttered beforehand,—that the natural leaders would surely lead, and had best be won as allies, were proved right when it was too late. Said the *Republican*, August 10, 1868, in protesting against the plan of the party managers in organizing the Southern wing to consist mainly of the blacks: "The Republican party cannot long maintain its supremacy at the South by negro votes alone. The instincts of submission and dependence in them and of domination in the whites, are too strong to permit such a reversal of the familiar relations and the natural order. The slave-holding element has learned to combine, conspire and command, in the best school on earth, and they will certainly come to the top. Nor is it desirable that such a state of things should continue."

The old official class being excluded—to the number, it was estimated, of 160,000,—and the stand-aloo policy, or drift rather, prevailing in the

political field, it was the more lawless element that first began to conspicuously assert the white supremacy. There grew up an organization called "the Ku-Klux Klan," designed at first partly as a rough sport and masquerade, partly to overawe the negroes. There were midnight ridings in spectral disguises, warnings, alarms and presently whippings and even murders. The society, or imitations of it, spread over most of the South. It was at its height in 1868-70, and in the latter year it gradually gave way, partly owing to vigorous measures ordered from Washington, and partly perhaps as legitimate political combinations again occupied the whites. But it is to be noted that throughout the decade of reconstruction, though the present fashion is to lay exclusive stress on the wrong-doing of the negroes and their friends, yet the physical violence, frequent and widespread, was almost wholly practiced by the whites.

From the political torpor, due to discouragement and resentment, there was an early recovery. When it was found that cotton-planting pure and simple, with ignoring of politics, resulted in heavy taxes for the planter; when to the first numbness there succeeded the active smart,—the whites betook themselves to the resource which in most States soon proved adequate,—the ballot, and political combination. In several States the whites were easily in the majority, and where they were slightly outnumbered their superior intelligence soon gave them the advantage. In Georgia, finally readmitted at the end of 1869, the Democrats—constituting the great body of the whites—carried the election in the next year, and remained in control of the State. Virginia, which had advisedly kept under military rule until, with President Grant's aid, she came in without the excluding clauses, early in 1870, passed at once under Democratic rule. In the same year North Carolina became Democratic. Texas and Arkansas remained under Republican sway until the majority shifted to the Democrats in 1874. In Alabama, the Democrats gained the Governorship and the lower House as early as 1870; two years later the result was disputed, the Democrats conceding the Governor but claiming the Legislature, while the Republicans organized a rival Legislature; the Republican Governor-elect called for United States troops, which were promptly dispatched, and with their backing a Republican Legislature was secured. In 1874 a Democratic Governor and Legislature were chosen and installed without dispute. The Federal interference in Alabama, and the experience of others of the

reconstructed States,—South Carolina, Mississippi, and Louisiana,—recalls us to that phase of the history which deals with Washington and the national government.

Through the eight years of Grant's administration, the public life of the nation was concerned mainly with clearing away the wreckage left by the war. There was an enormous debt to be handled and an inflated currency to be reduced; there was to be curbed administrative extravagance and corruption, bred of profuse expenditure; a bitter quarrel with England was to be guided toward war or peace; and the disordered South was to be composed. These tasks were encountered by men whose habits and sentiments had been formed in a long and desperate contest, and in an atmosphere slowly cooling from the fiery glow of battle. The soldier had to beat his sword into a plowshare, and small wonder if the blacksmithing was sometimes clumsy.

Grant was too completely a soldier to be changed into a statesman. He could deal with a definite, limited, though gigantic business,—the overcoming of the armies of the Confederacy. But it was beyond his power to comprehend and master the manifold and intricate problems that center in the Presidency. Given a specific, well-defined question, within the reach of his sturdy sense and loyal purpose, and he could deal with it to good effect, as he did with the English arbitration and the Inflation bill. But he was incapable of far-reaching and constructive plans carefully laid and patiently pursued. When he communicated to Congress the adoption of the Fifteenth Amendment, he urged in wise and forcible language that the new electorate could only be qualified through education, and that to provide such education was a pressing duty of Congress so far as its power extended, and of the people through all the agencies it could command. But having once said this, he let the subject drop. National education for the freedmen was left unnoticed, save by an occasional lonely advocate like Sumner. Nor did President Grant take any personal and positive measures to win and hold the old South to the new order; he failed to invite and consult its representative men, he made no journeys among the people.

In most matters of public policy, save in emergencies, Grant let matters be shaped by the men whom he had taken into his counsel—in his official Cabinet or the "kitchen cabinet"—and by the Republican leaders in

Congress, of whom the controlling group, especially in the Senate, were in close touch with the White House. His affiliations were with men of material power, men who had strongly administered civil or military affairs, stout partisans, faithful friends and vigorous haters. His tastes did not draw him to the idealists, the scholars, the reformers. He was accessible to good fellowship, he was easily imposed on by men who were seeking their own ends, and he was very slow to abandon any one whom he had once trusted. Absolutely honest, the thieves stole all round him. Magnanimous at heart, the bitter partisans often made him their tool. Of the great questions of the time, the English quarrel was brought to an admirable healing, under the management of the Secretary of State, Hamilton Fish, in 1871, by the joint high commission, the treaty of Washington, and the Geneva award. In the long contest for a sound currency, the inflation policy received its death-blow by the President's veto in 1874, and resumption was undertaken when Sherman carried his bill through Congress in 1875. As to honesty of administration, the president's good intentions were constantly baffled through his misplaced and tenacious confidences. The vast expenditures of the war, the cheating incident to its great contracts, the speculation favored by a fluctuating currency, the huge enterprises invited by the return of peace,—had infected private and public life with a kind of fever; the treasury was an easy mark; and while the people held to Grant for his personal honesty, and re-elected him, an army of rogues thrived under his lax administration.

The let-alone policy toward the South, to which Grant was prompted both by his virtues and his limitations, would not on the whole have been unacceptable to the mass of the Southern whites. Left wholly to themselves, those States would soon have righted themselves from the unstable equilibrium in which they had been placed by the imposition of an ignorant electorate. Natural forces,—just or unjust, benignant or cruel,—would soon have reversed the order. But the nation at large would not at once abandon its protectorate over its recent wards, the freedmen. For their greatest need, education, it assumed no responsibility. But when stories were rife of abuse and terrorism under the masquerade of the Ku-Klux, Congress interfered, even if by some stretch of its constitutional power, to bring the raiders under the arm of Federal law. When elections were reported to be controlled by fraud and intimidation, it seemed incumbent on the national government

to protect the ballot-box by which its own members were chosen. When rival bodies claimed each to be the legitimate government of a State, it was necessary for the Washington authorities to decide which they would recognize, and it was a natural sequence to back their decision by the military force. And in all of these cases, the maintenance of law and order easily became confused with the support of factions allied politically with the party in power at Washington. As the Southern Republicans were gradually outvoted or overpowered at home, their appeals for help from the general government became more urgent, while the continuance of such interference became more questionable to thoughtful men.

Before this state of things, there was a gradual division of opinion among Republicans at the North, and especially among their leaders. Against the call to protect the freedmen and bridle the slave-holding spirit in its new forms, rose the call to return to the old respect for local rights, and let each Southern State manage its own affairs, as did each Northern State. To this changed attitude came some of the staunchest of the old anti-slavery leaders, and many of the younger generation. During the early years of Grant's administration, the question did not present itself in acute forms. The Ku-Klux law of 1870, though it might strain the Constitution a little, received general acquiescence because the abuse it aimed at was so flagrant. But the ostracism of the entire official class of the old South was growingly recognized as a grievance and a wrong. It was the spirit of proscription that brought on the political crisis of 1872. That proscriptive spirit broke up the Republican party in Missouri; the liberal element, led by Carl Schurz and B. Gratz Brown, held a State convention. Their movement fell in with a strong rising tide of opposition to Grant's administration within the Republican party. Its grounds were various,—chiefly, a protest against wide and gross maladministration, a demand for a reformed and scientific civil-service, opposition to the high tariff, and the desire for a more generous and reconciling policy toward the South. The movement was especially prompted by a group of leading independent journals conducted by very able men,—the *New York Evening Post*, under William Cullen Bryant; the *Nation*, edited by E. L. Godkin; the *Cincinnati Commercial* of Murat Halstead; the *Louisville Courier-Journal* of Henry Watterson; the *Springfield Republican* of Samuel Bowles. Sympathetic in the main was Horace Greeley's *New York Tribune*. In more or less close alliance were a

few of the congressional leaders, notably Sumner, who had quarreled bitterly with Grant over the proposed annexation of San Domingo; Trumbull, who was never in close touch with his old party after the impeachment trial; and Carl Schurz, who was now in the Senate.

A national convention was held at Cincinnati, in May, 1872. The Democrats had so little hope of separate success that they stood ready to fall in with the new departure, and this gave greater importance to its action. For its Presidential candidate, the foremost name had been that of the elder Charles Francis Adams. Of the most distinguished family in the country's political annals; one of the founders of the Free Soil party; a conservative but resolute Republican; minister to England through the war, and most serviceable there by his firmness and wisdom; eminent by character, experience, and mental equipment; so indifferent to office that he almost openly scorned the proffered honor,—he seemed to the reformers a nearly ideal candidate, however much his reserved and distant manners might handicap him before a popular constituency.

But the spite of a disappointed aspirant, B. Gratz Brown, and the caprice of the convention, turned its choice by a sudden impulse to Horace Greeley. It was a choice that from the first moment not only defeated but almost stultified the liberal movement. It mattered not much what principles the convention set forth. Tariff reform it had already set aside, and Greeley was a zealous protectionist. For scientific civil-service reform he cared nothing, and to mistakes in his personal choices he was at least as liable as Grant. His revolt against Grant was due partly to a dispute about State patronage. Only in generous sentiment toward the South did he fitly represent the original and best element of the convention. He was dropped at once by the *Evening Post*, the *Nation*, and a large part of the liberals. The Democrats, despairing of any other way to success, indorsed his nomination. But the acceptance of a candidate who for thirty years had been showering hard words on the Democracy was almost grotesque. The South was halfhearted in his support. A few of the faithful nominated Charles O'Connor on an independent Democrat ticket. The question was only of the size of the majority against Greeley.

His wisest supporters avowed as the best significance of his candidacy: "It means that the war is really over." Greeley had proved the sincerity of his

friendliness toward the South at a heavy cost. President Johnson held Jefferson Davis in long imprisonment, with the aggravation not only of close confinement and even a temporary manacling, but of a public accusation of complicity in the murder of Lincoln. It was treatment wholly unfit for a prisoner of state and a man of Davis's character. Its effect on the South may be judged by imagining how the North would have felt had Lincoln fallen into Southern hands and been kept in shackles and under the charge of assassination. The imprisonment of Davis and the avowed purpose to try him as a traitor were utterly out of keeping with the general recognition that secession and its sequel were to be dealt with as a political wrong and not a personal crime.

Greeley, who on the very morning after Lee's surrender had called for a universal amnesty, showed his faith by his works when at the opportunity in May, 1867, he offered himself, in company with Gerrit Smith, as bondsmen for Davis, thus obtaining his release, and incurring for himself a storm of obloquy. The storm was short-lived, but revived in greater fury when Greeley became a Presidential candidate against Grant, with the support of the Democracy and the South. The campaign was full of bitterness and abuse. In *Harper's Weekly*, of which the editorial page was conducted by the high-spirited and gentle George William Curtis, Nast assailed the liberals in savage cartoons; in one Sumner was depicted as scattering flowers on the grave of Preston Brooks, and another showed Greeley shaking hands with the shade of Wilkes Booth over the grave of Lincoln. From the other side Grant was attacked with equal ferocity.

Greeley went down in overwhelming defeat, and died of exhaustion and a broken heart before the electoral votes were counted. But something had been gained. There had been a breaking of old lines. And one of the South's main grievances had been almost removed. Within a month after the Cincinnati convention, its call for amnesty was vindicated by a bill passed in Congress removing the disabilities of almost all the excluded class. Out of some 160,000, only about 700 were left on the proscribed list.

CHAPTER XXXIV

THREE TROUBLED STATES

In Grant's second term, the divergence between the Republicans on Southern questions, though never taking permanent form, often found marked and effective expression. In the Senate, the controlling group, who were also the special friends and allies of Grant, were radicals, and generally of a more materialistic class than the earlier leaders. Fessenden had died in 1869; Sumner was alienated, and died in 1874; Wilson had passed into the insignificance of the Vice-Presidency; Trumbull was in opposition. At the front were Chandler, of Michigan; Oliver P. Morton, War Governor of Illinois, powerful and partisan; Roscoe Conkling, of New York, showy and arrogant. In the House the foremost man was James G. Blaine, Speaker until with the Democratic majority he became leader of the opposition; brilliant in speech, fascinating and "magnetic" in personal intercourse, always prominent and popular, but almost never closely identified with any great principle or constructive measure. Very prominent on the floor was General Butler, a foremost radical toward the South; always a storm-center; an advocate of inflation, an ally of most bad causes, an effective mischief-maker; followed, feared, and hated with equal ardor. The membership of the House was notable for able men,—the Hoar brothers, Henry L. Pierce, Eugene Hale, Dawes, Hawley, Poland, Garfield, Kasson, and others of almost equal mark. The death of Thaddeus Stevens, in 1868, had left the House without a master. The Greeley campaign, disastrous though it was, had started a contagious spirit of independence. During Grant's second administration, 1873-7, there was shown in the House, on important questions, a degree of independence rare in American politics. It was the growing Republican opposition to Federal interference in the South that hastened its end, and prepared the way for the consummation of that result under President Hayes.

We now return to the individual cases of three Southern States. To South Carolina fell the bitterest experience of misgovernment. Its black majority was organized and led by a group of white men of the worst character, who

were resisted for a time without success by a better element in the party. Under four years' administration of Governor R. K. Scott, a Northerner, and two of F. J. Moses, Jr., a South Carolinian—who later disappeared from public view in a penitentiary,—money was lavished in profligate expenditure; hundreds of thousands spent for legislative furniture and luxuries; franchises were corruptly sold; bogus enterprises enriched; debt piled up by millions, and thrown off by millions. (Repudiation, be it said, always came easily to the South,—before the war and after; during reconstruction and after; whether the borrowed money had been spent for railroads or squandered by thieves; and the ghost of an unpaid \$300,000,000 still scares Southern Senators when a general arbitration treaty is discussed.) South Carolina went from bad to worse for six years.

When, in 1872, the honest Republicans bolted, under an unimpeachable candidate, Reuben Tomlinson, a Philadelphia Quaker, and gave him 35,000 votes, the Democrats stood scornfully aloof—"better a native thief than an honest Yankee!" But in 1874 came a revolution in the Republican ranks. Honesty triumphed, under the lead of the elected governor, Daniel H. Chamberlain, of Massachusetts birth and education,—a remarkable man; shrewd, long-headed, a past master in political management; with high aims; by no means indifferent to personal success, but generally succeeding in combining personal and public service. With a Legislature in which two-thirds were Republicans, and whites and blacks were about equal in number, he achieved a surprising reversal of the evil tendencies that had prevailed. In the Legislature the best of the Democrats backed him, together with the best of the Republicans, and overmatched the corruptionists. Stealing was stopped; the abuses of the pardoning power were ended; the tax laws were amended so as to secure uniformity and equality of assessment; expenditure was reduced and regulated. These were the statements of the *Charleston News and Courier*, the leading paper of the State, in July, 1876, when another election was coming on. Most of the Democratic papers had praised and supported Governor Chamberlain. It was now very seriously contemplated, and advocated by the *News and Courier*, to let him be re-elected without opposition. But the old-time pride of race and party was too strong, and the Democrats nominated Wade Hampton. They supported him with little scruple as to means,—with free use of intimidation and proscription, with frequent threats and often the

reality of violence. There was a shocking massacre at Hamburg. Governor Chamberlain called on the President for aid, and a thousand troops were sent into the State. When the election came, there was claimed a majority for Chamberlain and for the Republican Presidential ticket. The claim was instantly and fiercely challenged by Hampton's supporters. And here the story pauses, until it joins the main current of national affairs.

Mississippi was under Republican control until 1875. If one attempts to judge of the character of that control, he plunges into a sea of contradictions almost enough to submerge the hope of truth. Whether we turn to standard historians, to the 1000 pages of sworn testimony before a Congressional committee, or to individual witnesses, the perplexity is the same. Thus, we consult Woodrow Wilson's *History of the American People*,—and this book invites a word of comment. Its author has woven together the immense material of the national history for three centuries, in the main with admirable judgment and skill. He has produced a comprehensive, well-proportioned, graphic narrative, which closely holds the reader's attention, and gives in general the spirit as well as the substance of the people's story. But upon the main theme of the crowning century, he misses some of the vital elements. Of the wrong and mischief of slavery he has hardly a word, waving the subject aside as if beyond his province. He gives with admirable sympathy and intelligence the attitude of the well-meaning Southerner before and after the war; and this feature has special value for those familiar only with the Northern standpoint. But he has not the least appreciation of the anti-slavery spirit in its heroic phase. On the wrongs of the slave he is silent, while upon the sins of the carpet-bagger he is eloquent. This one-sidedness robs of its significance what should be the American epic of the nineteenth century.

Of the misgovernment of Mississippi, Dr. Wilson instances that "before the work of the carpet-baggers was done, 640,000 acres of land had been forfeited for taxes, twenty per cent. of the total acreage of the State." The nearest atlas or gazetteer is enough to check this statement. The total acreage of the State is 29,640,000,—of which 640,000 is not twenty per cent., but a trifle over two per cent. Dr. Wilson goes on to say that the State tax levy in 1874 was fourteen times as great as in 1869. This is apparently taken from the "Taxpayers' petition" of 1875, but from whatever source, it gives an utterly exaggerated impression. Before the Congressional

committee Judge H. R. Ware, chairman of the State Republican committee,—a Kentuckian by birth, and a life-long resident of Mississippi,—gave his testimony; and it included documents showing that the total State expense during the last two years of Democratic rule, 1864 and '65, was \$1,410,250 and \$1,860,809; for twenty years of Democratic administration, throwing out the extra expenses of the war period, the average cost was \$699,200; under military government (always the cheapest) in 1869 it was \$563,219; while under the Republicans in 1875 it was \$618,259; and the average for six Republican years had been \$992,920. When the Republicans came in, they had to make payments in warrants worth only sixty-five cents on the dollar, with proportionate increase of expense; they had to provide for a free population doubled by the emancipation of the slaves, and for the last four years they had made an annual reduction.

Yet the "Taxpayers' petition"—addressed to the Legislature early in 1875, and without effect,—must be taken as evidence of at least a considerable extravagance and waste. A reading of it gives the impression of a needless multiplication of offices and excessive salaries. The public printing seems clearly a scandal, running above \$73,000 a year, as against a cost in the sister State of Georgia of only \$10,000. The general charge seems to be of laxness and needlessly high salaries rather than any wholesale corruption. Some question as to the justice of the general charge occurs when a point is encountered as to the payment of teachers in the public schools. The petitioners claim that this should be reduced to \$25 a month for second-class schools, and \$50 a month for first-class schools. In fact, when the Democrats came into power, they reduced the rate to \$40 a month,—which, for a school year of four months only, seems like penny-wise economy. The petition makes perhaps the strongest impression in its statement that the boards of supervisors, controlling local taxation, are, as a general rule, "wholly unfit to discharge their duties, and without respectability or even accountability"; that the public works under their care are recklessly and carelessly managed, and the county taxes are grievous. It would seem that in these local bodies, especially in the "black counties," lay the worst of the taxpayers' grievance.

Judge Story makes a vigorous retort, testifying after a year of Democratic administration, 1875-6, as to the question of comparative expense. He shows that the State tax had indeed been reduced from 9-1/4 mills to 6-1/2

mills, but this only by cutting off outright the school tax of two mills. Not to follow further the labyrinth of figures, it is interesting to note, as to the favorite term "carpet-bagger," that of the six Republican candidates for Congress in Mississippi, in 1876, only one was of Northern birth, and he had married and lived in the South since the war; one had been an old Southern Democrat and a circuit judge; two had been Confederate officers; and one, John R. Lynch, was a colored man of high intelligence and excellent character. He, as Speaker of the House, and B. K. Bruce, United States Senator, were among the colored men who showed capacity and character worthy of the high positions they attained. Among the Republican leaders of Northern birth were some who were honored and trusted in their old homes; such men as General Eggleston, president of the Constitutional convention; Colonel Warner, afterward State Treasurer of Connecticut, and Henry W. Warren, of Massachusetts. The first Republican governor, J. M. Alcorn, was a Southern man, very able, but apparently not of the highest moral standards. His successor, Adelbert Ames, was from Massachusetts, conceded now to have been "honest and brave, but narrow and puritanical," and with the mysterious trait of "hating the Aryan race of the South."

These last words are quoted from the story of an old friend of the reader's, —Thomas Dabney, the "Southern planter," whose noble character was sketched in chapter XII. He had fought a brave fight with poverty and hardship since the war, and as we come again into his company for a moment, it is with a sense of confidence which even official documents do not inspire. He had no doubt of the oppressiveness of Republican rule, and the need of shaking it off by vigorous measures. It is related that the taxes on his plantation for 1873 were over \$900, while the income was less than \$800. Yet one letter tells that he is in "a laughing humor" because he has just paid his taxes for 1875—only \$375,—a reduction of more than half—and this was still under Republican rule.

One other witness may be heard, the writer's life-long friend, Henry W. Warren, now of Holden, Mass. To those who know him his name is a synonym for integrity, efficiency and modesty; he is one of the men who never seek a public honor and never decline a public service. From his own words some statements are here condensed. "After graduating at Yale in 1865, I was called to a position as public school teacher at Nashville, Tenn.; and from there, seeing a promising opportunity, I went with two friends to

work a cotton plantation in one of the 'white' counties of Mississippi. We bought it from its old owner, who had kept his slaves in his employ as paid laborers, and they continued to work for us. As slaves they had not been badly treated, except by the overseer during the master's absence. Many of the whites of the county, owning no slaves, had been indifferent to the Confederate cause, and many of them had served in its army only when hunted by the conscription officer, sometimes with bloodhounds. More than a few of them were Republicans. I was asked to serve as registrar of voters for the Constitutional convention, being one of the few who could take the 'iron-clad oath' (that is, that he had never aided the Confederacy) and this led to my going to the convention, and afterward to the Legislature. The Speaker dying, I was chosen to his place for the rest of the term. Our county going Democratic, I was not re-elected; but I was chosen chief clerk of the House, and served for four years, after my two years as a member. All the Democrats united in signing a paper, asking me to be always present in the House,—this was after I had induced the Speaker to change a mistaken ruling. So I was in a position to know pretty well what was going on. From the first there were plenty of Confederate generals and colonels in the Legislature." (The excluding clauses were struck out of the Mississippi constitution at the start.) "The manner of the blacks to the whites was habitually civil, and something of the slave's deference to the white man remained. I think the legislation was generally of reasonably good character. I knew positively of but little corruption. That there was some corruption and more extravagance, I have no doubt. But I have served since in the Massachusetts Legislature, and I think the Southern State was but little worse than the Northern. The negro members, though with some able and honest leaders of their own, like Bruce and Lynch, followed largely the prominent white men. Of the Northerners whom I knew, almost all were men of substance and had come to stay. Six out of ten owned plantations. A 'carpet-bagger' I hardly ever met, though no doubt there were some,—but the name was given to all Northerners. As to expense, you must remember that the State had to be completely rehabilitated. The war had ruined everything; public buildings were destroyed or dilapidated; and under military rule things had simply been kept going. Everything had to be reconstructed. The slaves had become citizens, and that doubled the number to be provided for. There had been practically no public schools, and they were set up throughout the State. Taxes had fallen largely on slave property,

now they came on land. So it was inevitable that there should be an increase of taxation. About county taxes I have no special knowledge, though in our locality they certainly were not burdensome. In some of the black counties it may have been worse. The Republicans, both blacks and whites, were drilled in the 'Loyal League of America,'—it was a purely political organization, often meeting in the woods at night. In those years there was immense progress on the part of the negroes,—political discussion was educational. I think if the Federal government had provided better school education, and had protected the voters at the polls, all might have gone well. That there was more or less of extravagance on the part of the Legislature is not to be denied. So there is in Massachusetts. That there was anything to justify the means resorted to in 1875 and 1876 to get complete control of the State government, might safely be questioned."

What those means were, there is no serious question. The Democrats organized a campaign of clubs, processions, enthusiasm, and—intimidation. The better part would have disclaimed the last feature, but they did not prevent it. Thomas Dabney was among the leaders. He relates that the best men were brought out for the nominations, often against their own desire. He, in his old age, was made president of the local club, and kept busy with marchings, meetings, and barbecues. He quotes sympathetically the response of a friend to his remark that the uprising was wonderful: "Uprising? It is no uprising. It is an insurrection." He relates that at Clinton the Republicans got up a riot, that they might have a pretext for asking President Grant for troops. "They succeeded in getting up their riot, which was put down by our own people after so sanguinary a fashion as to strike them with a terror not easily described." There can be no doubt as to the "sanguinary fashion" and the "terror." Testimony abounds of the invasion of Republican meetings, enforced demands on the Republican speakers to "divide the time," with threats and occasional violence. Sometimes the meetings were prevented, sometimes they were broken up. There was a great deal of terrorizing and now and then a murder. In some cases the officers at the polls interposed so many hindrances that many of the negroes were unable to vote. There was but a handful of Federal troops in the State, and the President declined to send more at Governor Ames's request. The reign of terror was effective. Once again we quote Mr. Warren: "In our part of the country there were constant parades of the 'red-shirted cavalry,' and

the negroes were thoroughly frightened. Two rough fellows once assailed me with threats and abuse, but drew off when I stood my ground. When the election came on, to get our ballots printed I had to go to New Orleans; spies dogged me in going and coming; and as with a friend I rode toward home, we were beset and besieged in a planter's house, that they might get possession of the ballots. Finally we rode away on an unguarded road, pistol in hand, and escaped. But they afterward captured and destroyed a part of the ballots, and by such means they carried the local election. By such means and more violent measures they carried the State."

The Democratic Legislature now proceeded to impeach Governor Ames, on frivolous charges, but agreed to drop the proceedings if he would resign, which he did, and left the State, knowing that his trial would be a farce. In 1876 the campaign was of the same character as in 1875, and so Mississippi was "redeemed."

The case of Louisiana was widely different. In that State the corruption of the Republican managers was flagrant; it extended to the manipulation of election returns; and the Federal Government interfered freely, and with notable results. A knot of knavish adventurers were in control,—Henry C. Warmoth, William P. Kellogg, F. F. Casey, and United States Marshal S. B. Packard. Casey was the President's brother-in-law, and General Grant was almost as incapable of believing a relative of his to be a bad man as he was incapable of knowingly supporting a bad man. Casey was made collector of New Orleans, and was allowed to hold the Republican convention in the custom-house, with United States soldiers guarding the doors and regulating the admissions. As he and his crew were wrecking the finances of the State, there was in 1872 a general combination against them of the better elements,—they preferred the name "Conservatives" to "Democrats,"—and they claimed to have elected their candidate, John McEnery, as governor. Warmoth, who had been governor for a four years' term, had quarreled with his confederates over the division of plunder, and gone over to the Conservatives. He controlled the State returning-board, to which the laws intrusted a very elastic and dangerous power of throwing out returns from districts where intimidation was proved, and undertook to declare McEnery elected. But there was a split in the board; then two rival boards, one awarding the governorship to Kellogg and the other to McEnery.

The imbroglio was suddenly ended by the intervention of a United States judge, E. H. Durell, who issued a writ at midnight, directing the United States marshal, S. B. Packard, to occupy and hold the capitol, and ordering a detachment of United States troops to support the Kellogg government. This fixed the character of the State for the next four years, by perhaps the most lawless act done under the name of law in this whole troubled period. It was perhaps only the overshadowing interest of the Presidential campaign that prevented its reversal by Congress,—that, and the lingering disposition of the North to pin faith on whatever wore the label "Republican."

McEnery kept up a shadowy claim to the governorship, with the countenance of the "respectable" element. But Kellogg and his pals had the actual administration, and used it to such effect that in two years the State bonds had fallen from seventy or eighty to twenty-five, and New Orleans city bonds from eighty or ninety to thirty or forty. In 1874 the Conservatives made a determined effort to carry the Legislature. There was an organization called "The White League,"—a legitimate political society, said one side;—a revival of the Ku-Klux spirit and methods in a more guarded form, said the other side. Beyond question, there was in Louisiana, at all stages of reconstruction, some degree of terrorism, and occasional acts of cruelty and outrage. There was knavery among the Radicals, and there was violence among the Conservatives. At the 1874 election the Conservatives were successful at the polls; but the State returning-board at once began to juggle with the returns so palpably that the Conservative member protested and resigned. The remainder of the board, after a month of diligent work, threw out a number of districts, on the pretext of intimidation, and as to five seats referred the question to the House itself. That body met, organized in a hasty and irregular fashion, and awarded the five seats to the Democratic claimants. But Governor Kellogg had the United States troops at his disposal, and by his command General De Trobriand with a file of soldiers entered the House and ejected the five Democrats,—whereupon the Republicans organized the House anew.

But now the whole country took alarm. The President sent General Sheridan in haste to New Orleans, and his first dispatch sustained Kellogg, and threw the blame on the White League, to which Secretary of War Belknap telegraphed his full approval. But the affair transcended ordinary politics in its importance. New York spoke through Cooper Institute, and Boston by

Faneuil Hall. Such citizens as Bryant, Evarts, and George T. Curtis led the protest. Congress rose above partisanship. A committee of the House, including such Republicans as George F. Hoar, William A. Wheeler, Charles Foster, William W. Phelps and William P. Frye, with Clarkson N. Potter and Samuel S. Marshall for the Democrats, visited New Orleans, and after full inquiry agreed that the returning-board had "wrongfully applied an erroneous rule of law"; that the five Democrats had been defrauded of their seats; and that the Louisiana House should be advised—the national House having no compulsory power—to "repair this great injustice." The two Democrats went further, and declared that Governor Kellogg himself held by no rightful tenure. But the Republicans backed a compromise offered by Wheeler, which the Louisianians accepted,—the Democrats took the Legislature, while the Republicans kept the governorship. The returning board survived, to put in its deadly work two years later.

CHAPTER XXXV

RECONSTRUCTION: THE LAST ACT

We turn back to the course of national politics. The Republican triumph of 1872 was followed by an overwhelming reverse at the Congressional election of 1874. There was a growing impression of maladministration at Washington. The Credit Mobilier scandal—the easy acceptance by Congressmen of financial favors from the managers of the Union Pacific Railway, followed by disingenuous denials—had especially discredited the party in power. There had been a great financial reverse in 1873, such as is always charged in the popular mind against the ruling powers. The South had increased its Democratic vote. So from various causes, in the new House the Republicans passed from a majority of one hundred to a minority of forty; with New York, Pennsylvania, Ohio, and even Massachusetts, in the Democratic column.

But the clique of bitter partisans and radicals, with whom President Grant had become closely associated, if they took warning from the election, drew the inference that they must make good use of the brief time left them in the final term of the old Congress. While the Louisiana imbroglio was still seething, the President sent a message, in February, 1875, recommending that the State government of Arkansas be declared illegal. It had held an unquestioned tenure for two years, and the proposal to oust it was simply in the interest of its two Senators, Powell Clayton and Stephen W. Dorsey, who belonged to the Grant faction. At the same time there was brought forward a comprehensive measure, popularly known as the "Force bill," bringing every form of violence or intimidation of the blacks within the jurisdiction of the United States courts; putting elections under supervision and control of the Federal officials, and giving the President large power for the supervision of the *habeas corpus*. Another long debated measure aimed at the fuller enforcement of civil rights—a bill good in itself, said the moderate Republicans; better if a part of a general pacification; but with its present accompaniment it is "civil rights prodded in with bayonets." In the Republican press of the country, and in the party in Congress as well as the

opposition, the battle over these measures was hot. The administration organ in Washington gave big type and prominent display to the paragraph: "The passage of the bill"—the Force bill—"is required to preserve to the Republican party the electoral vote of the Southern States." The President's personal influence was used to its limits. Butler's unscrupulous tactics were all employed. But the weight, if not the numbers, of the House Republicans, rose in opposition. Forty of them, including Garfield, Dawes, the Hoars, Hawley, Hale, Pierce, Poland, and Kasson, joined with the Democrats under the able leadership of Samuel J. Randall. In the House, brains and conscience were beaten by patronage; the bill went through. But it went no further,—in spite of Morton and Conkling the Senate served again the useful function of obstruction. The Arkansas bill was beaten in the House. Only the Civil Rights bill became a law. Independence among Republicans had saved the party from its most dangerous leadership.

It was perhaps this result, following the reverse of 1874, that disinclined Grant to further interference in the South, and held his hand when Governor Ames asked aid in Mississippi. The Louisiana business had so shown the risks of Federal intervention in local affairs, that even the best friends of the freedmen began to recognize that the States were most safely left to themselves. But the sectional fires were not left to die unfanned. When the new Congress met, 1875-6, the Democrats showed themselves conservative enough. They chose two excellent Northern men as speakers: Michael C. Kerr, of Indiana, and upon his death Randall, of Pennsylvania; and they showed themselves chiefly concerned to probe administrative abuses, which, in truth, needed heroic surgery. But for these prosaic matters Blaine, now leader of the opposition, substituted a far more lively tune, when a bill for universal amnesty at the South was brought before the House. There was no serious Republican opposition, but Blaine saw his opportunity,—he moved that sole exception be made of Jefferson Davis, and on that text he roused Northern passion by the story of Andersonville, goaded to exasperation the "Confederate brigadiers" among his listeners, and made himself most conspicuous for the time among the Republican leaders. He eclipsed the foremost of the Grant clique, Morton and Conkling, who after a little fruitless third-term talk were both hoping to be legatees of the Grant influence in the approaching Presidential convention. But at the eleventh hour a cloud swept over Blaine's prospects, in charges of discreditable

receipt of favors from railroads looking for political aid. The testimony was conflicting, but Blaine's palpable seizure of his own letters from a hostile witness was hardly outweighed even by his spectacular vindication of his acts before the House. A sudden illness stopped the investigation; and later his transference to the Senate postponed its renewal until it frustrated his ambition in 1884. The convention in 1876 met at Cincinnati, with Blaine the favorite, and Morton and Conkling dividing the Grant strength. The reform element, led by George William Curtis, supported Benjamin F. Bristow, of Kentucky, who had made an honorable record as Secretary of the Treasury, by attacking powerful rings, which through their connection with the President's friends succeeded in driving Bristow out of office. The choice of the convention fell on Rutherford B. Hayes, Union general, governor of Ohio, leader of a State campaign in 1875 which had been a decisive victory for sound money, and a man highly acceptable to the reformers. Against him the Democrats nominated Samuel J. Tilden, of New York, a statesman in his aims and the craftiest of politicians in his means; tolerant of Tammany Hall while it was a necessary factor in the party, but leader in the fierce and skilful assault which drove the Tweed ring from power. As Governor he had attacked and routed a formidable gang of plunderers connected with the canal management. On the issues which to thoughtful men were becoming paramount,—administrative reform and sound finance,—he offered as good promise as did Governor Hayes.

The two men, and the elements supporting them, stood for the new politics instead of the old,—the replacement of the war issues and their sequels by the matters of clean administration, sound currency, and interests common alike to the whole nation. But the Republican leaders found their best campaign material in what the slang of the time called "waving the bloody shirt,"—reviving the cry of abuse of the freedmen, suppression of the negro vote, and the need of national protection for the nation's wards. It was out of keeping with Hayes's record, and with his later performances,—but he let the campaign take its way, and the sectional temper that was roused provided the atmosphere in which the next act of the drama was played.

Election day came: the returns indicated the election of Tilden; Democrats went to bed jubilant and Republicans regretful. Then, just before the night-editor of the *New York Times* put his paper to press at 3 A.M., he noticed that the returns from South Carolina, Louisiana, and Florida were hardly

more than conjectural, and, on the chance of making his tables more complete, he sent a neighborly inquiry to the Republican headquarters as to whether they had definite returns from those States. The inquiry came to the ears of a little knot of the party managers, among them Zachariah Chandler, chairman of the national committee. He caught at it,—“the Democrats are not sure of those States,—we have a chance.” Instantly—so the story goes—he sent dispatches to the party managers in the three States, “Claim everything.” So they did—and so did he. Next morning, following the first announcement of Tilden's election, came the assertion that the Republicans had carried South Carolina, Louisiana and Florida—which would give Hayes a majority of one vote in the electoral college. All hung on the vote in those three States,—no, on the counting of the votes! The returning-board of Louisiana, which had before been so useful, was in full working order; Florida was similarly equipped; South Carolina was in much the same case. The boards had authority to throw out the entire vote of districts where there was proof that intimidation had tainted the election. The business of merely counting the votes might be supplemented by the operation of throwing out enough districts to leave the prize with the party that did the counting. It soon appeared that the returning boards could be trusted by their friends. With all reasonable speed, they threw out enough votes to give all the doubtful States to Hayes. In each of these States an indignant and protesting opposition sent in a counter set of returns giving the electoral vote to Tilden. And any one of the three States would be enough to insure Tilden's election.

The controversy extended to the state governments—in South Carolina, both Wade Hampton and Chamberlain claimed the Governorship, and each had a Legislature organized to support him. The case was the same in Louisiana, with Nichols and Packard. President Grant refused recognition or active support to either party; but United States troops kept the peace, and their presence prevented the Democratic claimants from summarily ousting their opponents.

The whole country was in a storm of excitement. The returning-boards had done their counting,—but who was to judge the judges? Who was to decide which of the returns of Presidential electors were the valid ones? They were to be passed on by the two Houses of Congress in joint session. But the Senate was Republican, the Representatives were Democratic,—what if

they disagreed as to the returns? The President of the Senate is to decide, claimed the Republicans,—on very slender grounds, it must be said. The House of Representatives, said the Democrats,—with more plausible yet doubtful argument. The deadlock was alarming. Then the emergency was met with a self-control, a resourcefulness and efficiency, worthy of the best that is claimed for the American character. By general agreement of the moderate men of both parties, a special tribunal was constituted for the occasion. It consisted of five Senators, five Representatives, and five Justices of the Supreme Court. The Congressmen were evenly divided between the two parties. The justices were two and two, with the fifth place assigned to David Davis, an independent. It was an ideal division. But at the critical moment, Davis was chosen by the Illinois Legislature to the Senate, so that he could not act. As a substitute, Justice Joseph Bradley, was put on the commission. He was a Republican, but in the generous temper which had risen to meet the emergency, there was a general feeling that party lines would be forgotten by the tribunal. The commission consisted of Justices Bradley, Miller, Strong, Field and Clifford; Senators Edmunds, Morton, Frelinghuysen, Bayard and Sherman; Representatives G. F. Hoar, Garfield, Payne, Hunton and Abbott.

The two Houses proceeded to count the electoral votes in the usual form, and whenever the return was contested the case was referred to the commission and debated before it. Each side had its ablest lawyers to plead; for the one party, Evarts, Kasson, McCrary, Stoughton and Matthews; for the other, O'Connor, Black, Field and Tucker. The commission then made its decision; and the result was reported to the two Houses for their acceptance. In the pleading, the Republicans took their stand on legality and the Democrats on equity. The Democrats claimed as the question at issue, For whom did the majority of the people of the State give their votes? The Republicans made it, Whom does the official authority of the State certify as elected? When the commission came to vote, on the preliminary questions, it was apparent that the party line was just as rigid among its members as between the advocates who pled. And it was clear that the Republicans stood upon the narrowest possible construction of the case before them. For example, in the case of Louisiana, it was moved, first, that evidence be admitted that the returning body was an unconstitutional body and its acts void. No, said the Republican eight. Moved, next, that evidence

be admitted that the board was illegal because its acting members were all of one party,—No. Moved, that evidence be admitted that the board threw out votes dishonestly and fraudulently,—No. In each case, the Republican eight refused to look a hair's breadth beyond the governor's seal to the returning board's certificate. In the same way they dealt with Florida and South Carolina.

Tilden's friends had contrived an ingenious scheme to put the commission in a dilemma. They had managed that there should be two returns from Oregon,—a Republican State where one of the three electors chosen was claimed to be disqualified,—the return bearing the Governor's seal naming one Democrat along with two Republican electors. They argued, Sauce for the goose is sauce for the gander; if the Governor's seal is taken as settling everything, we gain the one electoral vote we need; if, confronted by the Oregon case, the commission decide that they may go back of the governor's seal,—that opens the three Southern States to our rightful challenge. But the commission, or its Republican members, were not to be so easily posed; in the case of Oregon, they accepted the seal of the Secretary of State, certifying the three Republicans. As the *Springfield Republican* bluntly put it, "The electoral commission decided that there was no way of recovering the stolen goods in the Louisiana case; it has found a way of restoring the Oregon vote to its rightful owner."

That the goods were stolen, at least in Louisiana, there can scarcely at this day be any doubt. Whether the commission did its duty in declining to investigate and right the wrong may be debated, but the judgment of history will probably say that neither equity nor statesmanship, but partisanship guided the decision. Undoubtedly in Louisiana, and probably in Florida, the returning board deliberately threw out some thousands of votes for no other reason than to change the State's vote, and the Presidency. The commission refused to correct or even investigate the wrong, on the plea of scrupulous respect for State rights. A great victory for the principle of local rights, argues Senator Hoar in his autobiography. Possibly. But it is also open to say, that the general government having tolerated and supported an iniquitous local oligarchy, a special and supreme tribunal of the nation allowed that oligarchy to decide the Presidency by a fraud.

The popular judgment of the matter at the North was largely affected by the belief that the frauds of the Republicans were offset by intimidation on the part of the Democrats. In various parts of the South, notably in Mississippi and South Carolina, and probably in Louisiana, there was a wide terrorizing of the negro Republicans. "One side was about as bad as the other," was a common feeling. A year or two later, the New York *Tribune* unearthed and translated a number of cipher telegrams, which disclosed that while the dispute over the result was going on, agents high in the confidence of the Democratic leaders made efforts to buy up a returning board or a presidential elector. So both parties were badly smirched, and the election and its sequel furnished one of the most desperate and disreputable passages in American politics.

Yet the better sentiment of the country, triumphant in the creation of the commission, but baffled by its partisan action, shone clear again when the decision was deliberately and calmly accepted by the beaten party. Congress had reserved to itself the power to reverse by a concurrent vote of both Houses the commission's decision upon any State. But each decision was accepted by a party vote, except that in the case of Louisiana two Massachusetts Republicans, Julius H. Seelye and Henry L. Pierce, spoke and voted against their party. But when the final count gave a majority to Hayes, the formal declaration of the result was supported by all save about eighty irreconcilables, chiefly Northern Democrats, who were overborne in a stormy night session. It had become simply a question between order and anarchy, and the party of order, by a strange chance, was led for the occasion by Fernando Wood, the "copperhead" of earlier days. For the body of the Southern Democrats, Henry Watterson spoke manly words, accepting the inevitable with resolution and dignity. But among the influences that weighed with the Southern Congressmen was the assurance from Hayes's friends that as President he would make an end of military interference in the South. In the giving of the assurance there was nothing unworthy, for the withdrawal of the troops was dictated by the whole logic of recent events, and was in keeping with Hayes's convictions.

So, quickly following the inauguration of President Hayes came the withdrawal of the blue-coats from South Carolina and Louisiana and the Republican State governments tumbled like card houses. Nicholls took the governorship in New Orleans and Hampton in Columbia. But it was not by

this act alone that the new President inaugurated a new régime. He called to his Cabinet as postmaster-general, David M. Key, of Tennessee, who had fought for the Confederacy. Schurz, liberal and reformer of the first rank, was given the department of the interior. Evarts in the State department; Devens, of Massachusetts, as attorney-general; Sherman in the treasury, to complete the work of resumption; McCrary, of Iowa, and Thompson, of Indiana, for the war and navy; and Blaine, Morton, Conkling, Chandler,—nowhere. The administration went steadily on its way, little loved by the old party chiefs; under some shadow from the character of its title; but doing good work, achieving resumption of specie payments; ending the administrative scandals which had grown worse to the end of Grant's term; reforming the civil service. It was a peaceful and beneficent revolution, and in its quiet years the Southern turmoils subsided, and for better or for worse South Carolina and Mississippi worked out their own way as New York and Ohio worked out theirs.

CHAPTER XXXVI

REGENERATION

"Evil is good in the making," says the optimist philosopher. Even the more sober view of life reveals

That men may rise on stepping-stones
Of their dead selves to higher things.

Out of the calamities and horrors of war came to the nation a larger life. Communities had been lifted out of pettiness, churches had half forgotten their sectarianism, to millions of souls a sublimer meaning in life had been disclosed. Lowell said it in two lines:

Earth's biggest country's got her soul,
And risen up earth's greatest nation.

The South had suffered far more than the North, and the South reaped the larger profit. The fallacy of the old Southern civilization had been the idea that labor is a curse and is to be shirked on to somebody else. Overthrow and impoverishment brought labor as a necessity to every one, and slowly it was revealed as a blessing.

When General Lee, stately in figure and bearing and splendid in dress, met in surrender the sturdy Grant, in worn and homely service uniform, it was emblematic of the yielding of the aristocratic order to the industrial democracy. There was significance in the victor's kindly words,—“Let your soldiers keep their horses; they will need them when they get home for the spring plowing.” That was it,—they turned from chargers to plow-horses, and much to their safety and gain. Their masters, too, from fighters became toilers, and if it seemed a fall it proved a rise.

Before long on the street cars of Charleston and New Orleans were seen young men of good family as drivers and conductors. Anything for an honest living! Our fine old friend, Thomas Dabney, had been ruined along

with everybody else. He and his family undauntedly set themselves to do their own household work. General Sherman was reported to have said, "It would be a good thing if this sent every Southern woman to the wash-tub." "Did Sherman say that?" said Dabney; "he shall not send my daughters to the wash-tub!" and the old hero turned laundry-man for the family as long as the need lasted. But the educated class soon found fitter work than as laundry-men or car conductors. The more exacting places called for occupants. There was a great enlistment in the ranks of teachers. Lee took the presidency of Washington university and gave to its duties the same whole-hearted service, the same punctilious care, that he had given to the command of the army of Northern Virginia. In peace as in war he was an exemplar to his countrymen,—and his countrymen now were spread from Maine to California.

But what was to be the fate of the emancipated negro? Jefferson had believed that he must be sent back to Africa. "Colonization" had been the watchword of Southern emancipators, so long as there were any. Even Lincoln apparently looked to that. But wholesale colonization was clearly impossible. The freedmen neither could nor would be transported in a body to Africa. And had it been possible it would have stripped the land of laborers and left it a waste.

The South's assumption was that the negro was intrinsically an inferior and must be kept subordinate to the white man. The North, in its management of political reconstruction, had practically assumed that the negro was the equal of the white man and was so to be treated. There was a third view of the matter,—that the negro was at an inferior stage of manhood, and the necessary task was to develop him. He is a man, but an imperfect man,—make him a whole man. To that end some of the finest forces of the nation were now directed. But the invigorating and commanding spirit, who conceived the saving idea, put it into practice, and gave guidance and inspiration to both races,—the man who found the way out was Samuel Chapman Armstrong.

He came of Scotch-Irish blood, and of sturdy farming stock, bred in the fertile fields of Pennsylvania and in the best traditions of Christianity. His father and mother gave themselves to the missionary work, in that lofty enthusiasm whose wave swept through the country early in the nineteenth

century. The boy was born in 1839 in the Hawaiian Islands, and grew up in the joy-giving climate, with a happy boy-life, swimming the sea and climbing the mountains; trained firmly and kindly in obedience and service; impressed by the constant presence in the home of unselfish and consecrated lives. As he grew older, his bright eyes studied the native character, emotional, genial, unstable; he saw the wholesale conversions to Christianity, speedy, happy, and well-nigh barren of fruit. Going to America for his education, he completed it at Williams College under the presidency of Mark Hopkins. Garfield said that his conception of a university was a pine bench with Mark Hopkins at one end and a student at the other. He gave a stimulus alike intellectual and moral; his special teaching was in philosophy, broadly reasoned, nobly aimed, closely applied to the daily need. Armstrong spoke of him in later years as his spiritual father. Graduating in 1862, he enlisted in the Union army, took his share in Gettysburg and other fights, became an officer of negro troops, and rose to a brigadier-generalship. He said that to him, born abroad, the cause of Union made no strong appeal,—what he was fighting for was the freedom of the slaves. The war finished, he left the army, entered the service of the Freedmen's Bureau under General Oliver O. Howard, and was assigned to the Jamestown peninsula in Virginia. There were huddled together thousands of the freedmen,—the unconscious cause of the war, the problem of the future,—simple, half-dazed, a mixture of good and bad, of physical strength, kindly temper, crude morals and childish ignorance. For a time the officials of the Bureau, as best they could, kept order, found work, settled quarrels, and promoted schools. But what was to be the large outcome?

Armstrong had been known to his associates as a man of splendid and many-sided vitality. A college classmate, Dr. John Denison, graphically describes him, "A sort of cataclysm of health, like other cyclones from the South seas"; what the Tennessee mountaineers call "plumb survigrous"; an islander, with the high courage and jollity of the tar; "a kind of mental as well as physical amphibiousness." Extraordinary in his training and versatility; able to "manage a boat in a storm, teach a school, edit a newspaper, assist in carrying on a government, take up a mechanical industry at will, understand the natives, sympathize with the missionaries, talk with profound theorists, recite well in Greek or mathematics, conduct an advanced class in geometry, and make no end of fun for little children."

He had had the training of a missionary station in a Robinson Crusoe-like variety of functions. A knight-errant to the core, the atmosphere of Williams under Hopkins gave him his consecration. His comrades recognized him as an intellectual leader, essentially religious but often startlingly unconventional, "under great terrestrial headway," "the most strenuous man I ever saw." He said of himself: "missionary or pirate."

Now after the sobering of three years of campaigning his immediate duties brought him face to face with the tremendous problem of the negro, and the elements of the solution already lay in his own character, experience, personality.

What were the assets of the negro? He had, by inheritance and training, the capacity and instinct of labor. What an advantage that is appears by the contrast with the Indian, who is perishing for want of just that. But the negro knew labor only as the hard necessity of his lot,—it had to him no higher significance. "Education," was the watchword of the generous spirits of another race who were coming to his help. They found at first great promise in the freedman's eagerness to learn reading and writing. But it soon appeared that this was an outreaching toward some vague social advantage, and that the actual acquisition through speller and copybook carried him and his children but a little way up. It was a pressing necessity to provide teachers, and of his own race; so, rightly and naturally, were founded the normal school and the college. He needed his own educated preachers, physicians, lawyers; for these, too, there must be training. So, rightly and naturally, were planted universities,—Atlanta, Fisk, Howard. It was an unquestioned creed that the white man's training as preacher, lawyer, physician, teacher, must begin with years of Latin and Greek; so what other way for the negro? So, as almost inevitable, the early education of the race began as a copy of the white man's methods. But sadly inadequate, alas, as we begin to see, is a classical education for the typical white man of our time; and immense was the gap between the teaching of which that was the core and crown, and the wants of the black field-hands and their children.

Labor, education,—and what of religion? The slave had found in Christianity, often in rude, half-barbaric forms, a consolation, a refuge, a tenderness and hope, to which we can scarcely do justice. Perhaps its most eloquent expression to our imagination is those wonderful old-time

melodies, the negro "spirituals," as they have been made familiar by the singers of the negro colleges. Their words are mystic, Scriptural, grotesque; the melodies have a pathos, a charm, a moving power, born out of the heart's depths through centuries of sorrow dimly lighted by glimmerings of a divine love and hope. The typical African temperament, the tragedy of bondage, the tenderness and triumph of religion, find voice in those psalms.

Religion is not to be despised because it is not altogether or even largely ethical. The heart depressed by drudgery, hardship, forlornness, craves not merely moral guidance but exhilaration and ecstasy. Small wonder if it seeks it in whisky; better surely if it finds it in hymns and prayers and transports partly of the flesh yet touched by the spirit. Further, by faithful masters and mistresses there was given to the slave's religion, in many cases, a clear and strong sense of moral obligation. Uncle Tom in his saintliness may be an idealization, but the elements were drawn from life.

Yet the slave's and so the freedman's religion was very one-sided and out of all proportion emotional. Its habitual aim was occasional transport on earth and rapture in heaven. Of the day's task, of homely fidelities and services, of marriage and parenthood and neighborhood and citizenship, it made almost no account.

Face to face with these impoverished and groping souls, what had Armstrong, in his experience, knowledge, personality, with which to meet them? "He was filled through and through"—the quotation is from the admirable biographical sketch by his daughter—"with a deep sense that by hard work alone can any of us be saved—a sense based on many obscure foundations of observation and deduction. Away back in the corners of his mind were recollections of sundry wood-choppings and milkings carried on under protest by himself and his companions; and knowledge, too, of how his father and mother had spent their ambitious youth in work, the mother spinning by the fireside, the father doing chores at his home in Pennsylvania. It was the boys who faced and conquered hard physical jobs that became the men of endurance later." He had seen and shared the devotion of the missionary spirit, and had seen, too, how largely it failed of fruit by being spent on supernatural conversion and mystical emotion. He knew the tropical temperament, common to Hawaiian and negro,—how accessible to transient fervor, how deficient in persistence and continuity.

He had watched his father's operations, as minister of public instruction under the Hawaiian king; his experiments in more practical and prosaic education and religion, half frowned on by the ecclesiastics of America, but rich in suggestion. He knew that the Hilo manual labor school, where the boys paid their expenses by labor, slightly trained, was a marked success. His intensely active nature had caught from Hopkins the philosophic outlook, and the human materials were before him in rich abundance. Above all, while unspeculative in religion, and content to employ its traditional forms,—“they're imperfect enough,” he said, “but they're the best we've got”—the instincts of his great and disciplined nature sent him straight to the central realities of character, which are the true foundations of society.

His ideal crystallized by that swift and sudden process in which the long subconscious growth of the mind sometimes comes to fruition. He said in later years that before he entered the Bureau's service, while sailing on a troop-ship to Texas, he saw as in a dream his school much as it afterward became. Twice afterward the vision came to him. Stationed at Hampton in 1866, while he was bringing order out of the chaos around him, his mind was reaching forward surely and swiftly to his larger project.

This was the germ thought: Character is to get its direction and energy in the day's work. Just as man's physical needs drive him to toil, his spiritual necessities find their best field and cultivation in the same toil. The freedmen's first need is to earn a living; then to acquire such a margin as will allow some little ease and comfort and refinement; and along with these goes the need of good habits, high aims, disciplined character. Teach the industrial lesson and the moral lesson together. Train them to work intelligently and cheerfully; teach them at the same time whatever of book knowledge best fits their need; and constantly inspire them with the spirit of service to their kind. Provide in this way for some hundreds of young men and women, who shall go out as teachers to educate and train their people along these lines.

That was the ideal,—the germ of Hampton, of Tuskegee, of the new education of the negro; the suggestion and stimulant of the new education as it is coming to be for the white.

CHAPTER XXXVII

ARMSTRONG

Armstrong was a man of action, and of words only as far as they helped action. He reached the starting of his school in 1868, within two years after he was assigned to duty at Hampton. For external help he had first the countenance and support of the Freedmen's Bureau. He was in its service and pay until 1872. He had the warm and practical friendship of General Howard, who, after inviting him to take charge of the new university in Washington bearing his own name, skilfully gained for his Hampton enterprise a moderate appropriation from Congress. If the Freedmen's Bureau had accomplished nothing else,—and it did accomplish much, especially in education—it would have been justified merely by giving Armstrong his opportunity. Next he turned to private benevolence. Of the various organizations, church and secular, that were devising and doing for the freedmen, perhaps the most efficient was the American Missionary Association. From its officers Armstrong won response, sympathy, contributions. He had to face the difficulties of a pioneer. There were precedents against him. Experiments somewhat similar had been tried and failed. At Mount Holyoke seminary for women, created by the genius and devotion of Mary Lyon, and at Oberlin college, where the best New England tradition had been transplanted—there had been long and earnest trial of giving the students work by which to partially pay their expenses. But it had been given up,—the women students were taxed beyond their strength; the farmers complained that the boys were thinking of their books, and the teachers said their pupils came with half strength to their lessons. But Armstrong knew the material he was dealing with, and how different from the nervous, high-strung pupils of Oberlin and Mount Holyoke was the vigorous, sensuous material he was to mold.

He began in April, 1868, with small things,—a matron, a teacher, fifteen pupils and buildings worth \$15,000. In a month there were thirty pupils. Things moved straight on,—they were moved by the assiduity, the enthusiasm, the inspiration, of Armstrong, and the answering temper which

he woke in pupils, teachers, contributors, observers. Presently a special effort, an appeal to friends, solicitude, students zealously making bricks and laying them, help from General Howard—and so, in 1870, a noble building, Academic Hall, and presently again, Virginia Hall,—and the school kept growing.

Its moral success was promptly won. The subject answered to the experiment,—those dark-skinned boys and girls came eager to learn. No one had believed in them, and they had not believed in themselves, but they speedily learned self-respect and gained the respect of others. They did what was asked of them, earned most of their support, showed good workmanship and scholarship, were blameless in morals, caught the spirit of the place, and went out to carry light into the dark places. No holiday task was set them. There was a working day of twelve hours, between the class-room, the work-shop, the drill-ground and the field, with rare and brief snatches of recreation. They met the demand with a resource inherited from their ancestors' long years of patient labor. The hard toil was a moral safeguard. The African race is sensuous, and co-education might seem perilous. The danger was completely averted by the influence of labor, strenuous and constant, but diversified and interesting. The essentials of character,—industry, chastity, truth and honesty, serviceable good-will,—were the aim and result of the Hampton training; and all ran back to the homely root that man should be trained to earn intelligently and faithfully his daily bread.

The story of Hampton is a theme not for a chapter but for a volume. How its founder won favor and friendship by his tact and large-mindedness; how he established good relations with the Virginians; how the Institute became the parent of other schools; how Booker Washington was there fitted for the founding of Tuskegee and the leadership of his race; how the work was extended to the Indians; how Armstrong's spirit and example gathered and inspired a company of teachers perhaps unsurpassed,—mostly women, whose refining influence on the pupils he specially valued; how he dreamed of what he never reached, some day to give industrial education at Hampton to the whites; how a worthy successor took his place, efficient and self-effacing; how deeply the Hampton idea has permeated the education of the Southern negro, and is coming to influence white education North and South,—all this can here be recalled but by a word.

But on the personality of its leader we must for a moment linger, to note one or two of its traits. His splendid vitality overflowed at times in frolic and extravagance. He never lost the spirit of the boy. He would come into a group of his serious-minded teachers and say, "Oh! what's the good of saving souls if you can't have any fun?" and start a frolic or organize an all-day picnic. In his home he introduced "puss in the corner" and "the Presbyterian waldance" among the very elect. He delighted his children with romances. "Like Dr. Hopkins, he believed that the class-room should be a jolly place, and used to say that no recitation was complete without at least one good laugh. 'Laughter makes sport of work,' he said." His teaching sometimes came in a droll story. "Once there was a woodchuck.... Now, woodchucks can't climb trees. Well, this woodchuck was chased by a dog and came to a tree. He knew that if he could get up this tree the dog could not catch him. Now, woodchucks can't climb trees, but he had to, so he did."

His devotion to his work was so whole-souled that it was joyous and seemed unconscious of cost. In the touching pages he wrote when death impended, he said, "I never gave up or sacrificed anything in my life." Yet he constantly made what most men count heavy sacrifices. His work involved frequent and laborious trips to the North to arouse interest and raise money. He did it in as gallant a fashion as he had led a charge, or as he made appeal to the students hanging reverently on his words. A glimpse of him on one of these begging tours is given by Professor Francis G. Peabody:

"I suppose that every lover of General Armstrong recalls some special incident which seems most entirely typical of the man's life and heart. For my part, I think oftenest of one of those scenes in his many begging journeys to the North. It was at a little suburban church far down a side street on a winter night in the midst of a driving storm of sleet. There was, as nearly as possible, no congregation present; a score or so of humble people, showing no sign of any means to contribute, were scattered through the empty spaces, and a dozen restless boys kicked their heels in the front pew. Then in the midst of this emptiness and hopelessness up rose the worn, gaunt soldier, as bravely and gladly as if a multitude were hanging upon his words, and his deep-sunk eyes looked out beyond the bleakness of the scene into the world of his ideals, and the cold little place was aglow with the fire

that was in him, and it was like the scene on the Mount, that was not any less wonderful and glistening because only three undiscerning followers were permitted to see the glory."

Those frequent and long journeys went far to break up the happy home life in which he delighted, with the wife whose congenial and intimate companionship was his for nine years and the little girls to whom he was the most delightful of fathers. Then for twelve years, until his second marriage, he was almost a homeless man. He wore out his wonderful constitution; he suffered from dyspepsia and sleeplessness; a paralytic stroke crippled him; but for a year and a half he struggled on, cheerful, self-forgetful,—then the end.

His countrymen scarcely yet realize all that he was. He was the successful leader in that real emancipation of the American negro to which the legal emancipation was but a prelude. Beyond that, it would hardly be too much to say that he did more than any other man in either hemisphere to rationalize and Christianize our still half-medieval system of education. The working ideals of Hampton are to-day higher than those of Yale and Harvard. It may be questioned whether any professed preacher has done so much to develop the best modern type of religion; centered in daily work, reaching out into all human service, and consciously inspired by the divine life. It would not be extravagant to say that in the little group—perhaps half a dozen in all—whom America has contributed to the world's first rank of great men, not one stands higher in heroic manhood and far-reaching service than Samuel Armstrong.

But any comparison seems almost unworthy of his lofty spirit. There is no rivalry among the saints. Would that Armstrong could here be portrayed as he appeared in life. The outer man spoke well the inner. To look upon, he was a thoroughbred; of soldierly bearing, alert, vivid, noble; with the twinkle of mirth, the flash of resistless purpose,—a man to love, to revere, to follow. As a sort of mental portrait-sketch, we may glean a few of his sayings. It was as true of him as of Luther that his words were half-battles. They were flashed out like sparks struck from action. As to his special work, these:

"The North thinks that the great thing is to free the negro from his former owner; the real thing is to save him from himself."

On the dissolution of the American Anti-slavery Society, (because nothing remained for it to do): "It failed to see that everything remained. Their work was just beginning when slavery was abolished."

"I cannot understand the prevailing views of the war among pious and intelligent Americans. It is simply barbaric—to whip the South and go home rejoicing, to build monuments of victory, leaving one-third of their countrymen in the depths of distress."

"The reconstruction measures were a bridge of wood over a river of fire."

(In 1878): "Hereafter it will be seen that negro suffrage was a boon to the race, not so much for a defense, but as a tremendous fact that compelled its education. There is nothing to do but attempt its education in every possible way. In their pinching poverty the Southern States have seized the question of negro education with a vigor that is the outcome of danger."

(In 1887): "The political experience of the negro has been a great education to him. In spite of his many blunders and unintentional crimes against civilization, he is to-day more of a man than he could have been had he not been a voter."

"The war was the saving of the South. Defeat and ruin brought more material prosperity to the South than to the North, and the future has untold advantages in store. Education is part of it, but capital and enterprise, which make men work, are the greater part. The negro and poor white, and, more than all, the old aristocrat, are being saved by hard work, which, next to the grace of God, saves our souls."

"We hew from the raw material, men who have come out of deep darkness and wrong, without inheritance but of savage nature, the best product we can, and care as much to infuse it with a spiritual life and divine energy as with knowledge of the saw, plane, and hoe."

And, of his broader outlook on life, these: "I am convinced of the necessity of organizing pleasure as well as religion in order to sustain Christian morality."

"The chief comfort in life is babies."

"Politics and philanthropy are a grind; only when one is at the post of duty and knows it, there is a sensation of being lifted and lifting (*et teneo et teneor*) which sometimes comes gradually over one. Detail is grinding, the whole inspiring. God's kings and priests must drudge in seedy clothes before they can wear the purple."

"From the deep human heart to the infinite heart there is a line along which will pass the real cry and the sympathetic answer—a double flash from the moral magnetism that fills the universe. Its conditions are not found in theological belief, but in the spirit of a little child. We can no more understand our human brother than our Father in heaven without bringing faith—the evidence of things unseen, the substance of things hoped for—to our aid."

"All progress of strong hearts is by action and reaction. Human life is too weak to be an incessant eagle flight toward the Sun of Righteousness. Wings will be sometimes folded because they are wings.... The earthly struggle must be enduring—that is all. There must be no surrenders; we can't expect much of victory here."

"The longer I live, the less I think and fear about what the world calls success; the more I tremble for true success, for the purity and sanctity of the soul, which is as a temple."

"Doing what can't be done is the glory of living."

"What are Christians put into the world for but to do the impossible in the strength of God?"

In the contemplation of such a spirit we rest for a little from the turmoils of politics, the mixture of motives, the half-successes. Here is what glorified the whole business,—the development of souls like this; and in such is the promise of the future. Fitly to Armstrong belongs what Matthew Arnold has written of his father, a kindred soul:—

Servants of God!—or sons
Shall I not call you? because
Not as servants ye knew

Your Father's innermost mind,
His, who unwillingly sees
One of his little ones lost—
Yours is the praise, if mankind
Hath not as yet in its march
Fainted, and fallen, and died!

See! In the rocks of the world
Marches the host of mankind
A feeble, wavering line.
Where are they tending?—A God
Marshal'd them, gave them their goal—
Ah, but the way is so long!

Years they have been in the wild!
Sore thirst plagues them, the rocks,
Rising all round, overawe;
Factions divide them, their host
Threatens to break, to dissolve—
Ah, keep, keep them combined!
Else, of the myriads who fill
That army, not one shall arrive;
Sole they shall stray; on the rocks
Batter forever in vain,
Die one by one in the waste.

Then, in such hour of need
Of your fainting, dispirited race,
Ye, like angels, appear,
Radiant with ardor divine.
Beacons of hope, ye appear!
Languor is not in your heart,
Weakness is not in your word,
Weariness not on your brow.
Ye alight in our van! at your voice,
Panic, despair, flee away.
Ye move through the ranks, recall

The stragglers, refresh the outworn,
Praise, re-inspire the brave.
Order, courage, return;
Eyes rekindling, and prayers,
Follow your steps as ye go.
Ye fill up the gaps in our files,
Strengthen the wavering line,
Stablish, continue our march,
On, to the bound of the waste,
On, to the City of God!

CHAPTER XXXVIII

EVOLUTION

The story of slavery merges in the stories of the white man and the black man, to which there is no end. As the main period to the present study we have taken the beginning of President Hayes's administration in 1877, when the withdrawal of Federal troops from the South marked the return of the States of the Union to their normal relations, and also marked the disappearance of the negro problem as the central feature in national politics. From that time to the present we shall take but a bird's-eye view of the fortunes and the mutual relation of the two races.

The people of the Southern States realized gradually but at last fully that the conduct of their affairs was left in their own hands. From this time there was no important Federal legislation directed specially at the South. The restrictive laws left over from the reconstruction period were in some cases set aside by the Supreme Court and in general passed into abeyance. There was rare and brief discussion of a renewal of Federal supervision of elections. But the Northern people, partly from rational conviction and partly from absorption in new issues, were wholly indisposed to any further interference. Without such interference there was no slightest chance of any restoration of political preponderance of the negroes over the whites. The specter of "negro domination" haunted the Southern imagination long after it had become an impossibility. Then it was used as a bogey by small politicians. But the only serious attempt at national legislation for the South has been of a wholly different character. It was the plan of Senator Blair of New Hampshire, long urged upon Congress, and sometimes with good hope of success, for national assistance to local education, on the basis of existing illiteracy, for a term of ten years, to a total amount of \$100,000,000. That is the only kind of special legislation for the South that has had any chance of enactment for almost thirty years.

Through the twelve years of political reconstruction, 1865-77, the Southern people were gradually adapting themselves to the new industrial and social

conditions. Then the body of the whites, finding themselves fully restored to political mastery, grasped the entire situation with new clearness and vigor. They thrust the freedmen not only out of legislative majorities and the State offices, but out of all and any effective exercise of the suffrage. The means were various, consisting largely of indirect and technical hindrances, "tissue-paper ballots" and the like. The intelligent class massed against the ignorant found no serious difficulty in having their own way at all points. A considerable number of negroes still voted, and had their votes counted, but their party was always somehow put in the minority; almost all offices passed out of their hands; their representatives speedily disappeared from Congress, and before long from the Legislatures. Negro suffrage was almost nullified, and that, too, before the legislation of the last decade.

But, in asserting their complete political superiority, the whites also recognized a large responsibility for the race they controlled. A degree of civil rights was secured to them, short of a perfect equality with the whites, but far beyond the status intended by the "black codes" of 1865-6. The fundamental rights, of liberty to dispose of their labor and earnings in their own way, and protection of person and property by the law and the courts, were substantially secured. And, very notably, the common school education of blacks as well as whites was undertaken with fidelity, energy and new success. This great and vital advance, inaugurated by the Southern Republican governments, was accepted and carried on, loyally and at heavy cost, by the succeeding Democratic governments. The figures show a great advance from 1875 to 1880 in the number of schools and scholars of both races throughout the South. Political inferiority for the negroes, but civil rights, industrial freedom, and rudimentary education,—that was the theory and largely the practice of their white neighbors.

One clause they added with emphatic affirmation: "I will buy with you, sell with you, talk with you, walk with you, and so following; but I will not eat with you, drink with you, nor pray with you." Social superiority, indicated by separation in all the familiar and courteous intercourse of daily life, was asserted by the whites with a rigor beyond that of the days of slavery. When humiliated and stung by the political ascendancy of their former bondmen, they wrapped themselves in their social superiority with a new haughtiness. The pride of race, of color, of the owner above the serf, stripped of its old power and insignia, but no whit weakened in root and core, set an

adamantine wall along the line of social familiarity. Let the black man have his own place—in school and church, in street and market and hotel; but the same place, never! Separate schools, churches, cars. And as in a hospitable country the social meal is the special occasion and symbol of good fellowship and equal comradeship, right there let the line be fixed,—no black man or woman shall sit at table with whites.

The usage came down by tradition, and became only a little more rigid under the new conditions. At the North the general practice had always been much the same; but there it was occasionally and growingly superseded, when people of the two races found a common level of education and manners. The Southern whites for a while took their own practice as a matter of course. But then, especially as by degrees some black men and women acquired mental cultivation and social polish,—then came question and challenge from the world without and from conscience within; why this rigid separation? An answer must be found or made,—and presently the answer appeared: If white and black men and women eat and drink together, play and work together,—then they will intermarry, and the white race will become mixed and degenerate. So that became the conviction, the creed, the shibboleth, of the Southern whites,—race purity, to be safeguarded by complete prohibition of all social intimacy, especially as symbolized by the common meal. And the prohibition was enforced among the whites by the penalty of sure and stern ostracism.

Under these conditions, then, the two sections of the Southern people have been working their way, for almost thirty years. How first have the negroes fared? Of the prophecies for their future, made when they were in bondage and in view of possible emancipation, one was that they would die out,—but in less than half a century they have doubled. Another was that if freed they would refuse to work,—but the industrial product of the South has never fallen off, but has steadily and vastly increased, with the negro still as the chief laborer. Another prediction was that they would lapse into barbarism. The Southern negroes as a mass have a fringe of barbarism—a heavy fringe. So has every community, white, black or yellow, the world over. Have the Southern blacks, as a body, moved toward barbarism or toward civilization since they were set free?

The comparative tests between civilization and barbarism are, broadly speaking, productive industry, intelligence and morality. If we gauge industry by results, we find that the class which forty years ago entered into freedom with empty hands now owns more than \$300,000,000 of property by the tax-gatherers' lists. Another estimate—cited by Prof. Albert Bushnell Hart—puts their entire property holdings at \$500,000,000. Though most of them are tenants or hired laborers, yet there are more than 173,000 who own their farms. The total number of farms worked by them in the South—owned, leased, or rented on shares—is figured at 700,000. The census of 1900 shows that in almost every profession, trade and handicraft the black race has numerous representatives—their range of occupation and industrial opportunity being far wider in the South than in the North. Taking the whole country, the percentage of adults in gainful pursuits is a trifle higher among blacks than among whites. Allow for the more frequent employment in toil of the black woman; allow, too, for the more intermittent character of black labor,—yet the relative showing is not unfavorable to the enfranchised race. And this comparison touches, too, the more difficult problem of morality,—for industry is itself a chief safeguard of morality.

As to intelligence, the statistics show that, roughly speaking, about half the blacks over ten years old can read and write. That is not much below the status of the people of England half a century ago. In the higher fields of intelligence, the American negroes,—there are 9,000,000 of them,—supply to-day a large part of their own teachers, ministers, lawyers and doctors, and in all these professions the standard is steadily rising.

In regard to morality, generalization is difficult. There is undoubtedly a much larger criminal element among the blacks than among the whites. There are proportionately more crimes against property, crimes of sensuality, crimes of violence. Materials are wanting for exact comparison, either with the whites, or among the blacks at different periods. Yet there are few or no sections at the South, even in the worst parts of the Black Belt, as to which the public gets the impression of any general lawlessness. And in any comparison of the present with the time of slavery, we must remember what Carlyle says in speaking of the cruelties of the French Revolution as compared with those of the tyranny which preceded it,—when the high-born suffer the world hears of it, but the woes of the inarticulate are unheard. Wrongs at the South which shock us to-day,—or

wrongs as great—were commonplace, were unnoted and unchronicled, under slavery. It is offenses against women that rouse the hottest resentment. But for centuries the black woman's chastity had absolutely no protection under the law, and her woes were pitiful beyond telling. For the Southern negro, true family life was impossible until within fifty years. With so brief experience in the best school of character, there is no ground for doubting that he has won a vast moral advance, and the promise of greater.

Of the negroes, as of every race or community, we may consider the lowest stratum, the great mass, and the leaders. Regarding not morality only, but general conditions, there is a considerable element of the Southern blacks whose condition is most pitiable. Such especially are many of the peasants of the Black Belt; barely able to support themselves, often plundered with more or less of legality by landlord and storekeeper, shut up to heavy, dull, almost hopeless lives. Inheritance weighs on them as well as environment; when these plantations were recruited from Virginia, it was only the worst of the slaves whom their masters would sell, and the bad elements propagated their like. The case of these people to-day presents one of the open sores, the unanswered questions,—we might say the impossible tasks, did we not remember Armstrong's attitude toward things "impossible." Yet, even as to these,—are they not better off than when enslaved? A part of their trouble is the burden of responsibility—for themselves, their wives and children. In slavery they had no responsibility beyond the day's task; the whip and the full stomach were the two extremes of their possibilities. Now at least they are men—with manhood's burdens, but with its possibilities, too.

Of the great middle class, something has already been said, as to industry, property and education. But statistics are cold and dead, could we but see the living human realities which they vainly try to express. The growth of a slave, or a slave's child, into a free man or woman,—the birth and development of true family life,—could we see this in its millions of instances, or even distinctly in one typical instance, with all its phases of struggle, mistake, disappointment, success, the growth of character, the blossoming of manhood and womanhood,—it would be a more moving spectacle than any that Shakespeare has given. Here, again, it is mostly the inarticulate class, and their story is not told to the world. We especially fail

to learn it, because of the wall of caste by which the white man shuts himself out from the finest sights and the most brotherly opportunities. More than farming or carpentry, more than school or church, and taking in the best fruits of all these, is family life, in its fullest and best. That is where the negro is coming to highest manhood.

A necessary test of a race is its power to furnish its own leaders. The negro race in America is developing a leadership of its own,—small as yet, but choice and growing. It was part of Armstrong's central idea to create and supply such a leadership. Hampton has gone steadily on in the work, and the sisters and the children of Hampton are multiplying their fruits. It was by an ideal fitness of things that Armstrong attracted, inspired and started as his worthy successor one of the negro race. At Tuskegee the black man is doing for himself what at Hampton the white man is doing for him. Booker Washington is the pupil and successor of Armstrong, but he has his own distinct individuality, his own word and work. His constant precept and practice has been that the black man should make himself so serviceable and valuable to the community that every door will open as fast as he is fit to enter it. It is the gospel of wisdom and of peace. Toward all the opportunities denied to the race, its attitude is one of patience but of untiring persistence. Its constant word is, Make yourself fit for any function, any place, and sooner or later it will be yours. Against political exclusion Mr. Washington on due occasion speaks his calm word, but he does not beat against the closed gate; he knows that when the black man shows his full capacity for citizenship it cannot long be denied him. The social exclusion he accepts with quiet self-respect; let time see to that, let us only do our full work, learn our full lesson. His teaching goes far beyond the schoolroom; he gathers in conference the heads of families, the fathers and mothers; he sets them to study and practice the curriculum of the family and the neighborhood. In his intense practicality he lacks something of the spiritual inspiration which Armstrong had and gave. But his teaching is in no wise narrow or selfish, for always it is animated by the spirit of brotherhood and service. His personal story, *Up from Slavery*, is one of the most moving of human documents; in itself it is an answer to all pessimism. It is a typical story; even as these sheets are written there comes to hand another like unto it, the story of another boy, William Holtzclaw, who groped his way up from a negro cabin, caught the sacred fire at Tuskegee,

did battle with misfortune and adversity, and now in his turn is carrying on the good work. And for every such story that gets told there are a hundred that are acted.

The wider leadership of the negroes by their own men is exemplified,—it is not measured or exhausted,—by a pregnant little volume of essays entitled *The Negro Problem*. Seven of its phases are discussed by Booker Washington, Professor DuBois, Charles W. Chestnutt, Wilfred H. Smith, H. T. Kealing, Paul Lawrence Dunbar, and T. Thomas Fortune. As a collection, these essays are noteworthy for their cogency and clearness, for their earnest and self-respectful plea for full justice and opportunity, and their calmness and candor. The race that can speak for itself in such tones has an assured future,—if democracy, evolution, Christianity, are the ruling powers.

This story is concerned mainly with the slave and the freedman, but it must also touch on his former master, now his neighbor and fellow-citizen. The new South is far too ample a theme for a paragraph or a chapter. But it must be said in a word that its main trait is the substitution, for a territorial and slave-owning aristocracy, of an industrial democracy. It is the coming of the new man,—laborious, enterprising, pushing his way. His development began when the whole community was set to work its way up from the impoverishment left by the war. It was accelerated when new resources were found, when coal and iron mines were started, when cotton manufacturing began where the cotton is grown. New types of character and society are developing, yet blending with the remnant of the old.

Politics, in all its forms, plays a smaller part in to-day's society than in that of fifty years ago. Not only has the South never regained its old ascendancy at Washington, but it has not stood, and does not stand, for any distinct set of ideas or principles in the national life. It has clung closely together, under the influence of old sentiments and lingering apprehensions. In its fear of a recurrence of "negro domination," it has lost touch with the living questions of to-day and to-morrow. "The Solid South" has meant a secure contingent of electoral votes for the Democratic Presidential candidate,—whether he stood for a gold or a silver currency, for revenue reform or its opposite, for radicalism or conservatism,—and a solid array of members in Senate and House equally without pilotage on living issues. Until the South breaks

away from its fetish of past fears and prejudices, it cannot rise to its proper opportunities of statesmanship.

Yet better than the old-time absorption in Federal politics and the prizes of the Capitol is the more diversified life of the South to-day. It is being swept into the current of industrialism—with its energies, its prizes, its perils. In other directions, too, the new life of the South flows free and strong. It is creating a literature,—a branch of American literature,—incomparably beyond any product of its earlier days. After what may be called a literature of statesmanship,—the work of Washington, Jefferson, Madison, Marshall,—the old South was almost wholly barren of original scholarship and creative genius. Now it bears a harvest so rich that one cannot here begin to classify or to name. The war-time is bearing an aftermath, of less importance in its romances, but admirable and delightful in its biographies and reminiscences. Of these the most notable feature, full as they are of vivid human interest and striking personal characteristics,—is the freedom from rancor, the generosity toward old foes which seems even unconscious of any necessity to forgive. And in these personal sketches there are disclosed certain broad yet distinct types of manhood and womanhood, the special Southern contributions to the composite American. In general literature, too, the South is doing its full share. In its histories, the note of provincialism still lingers,—inevitably, and not blamably. The Southern essayist or historian naturally gravitates to the past of his own section,—and naturally he seeks to vindicate his comrades or his ancestors, and to interpret the past from their standpoint. But, compared with the provincialism of the South of 1860, he is a cosmopolitan.

The new South is doing perhaps its best work in education. Its leaders are both raising and widening their standards,—they are reaching out toward modern and progressive ways, while they are trying to amplify their systems so as to include the whole youthful population. Their intelligence and enthusiasm are seen alike in the ancient universities like that of Virginia, in the younger colleges such as Roanoke and Berea, and in the leaders of the public schools. Intelligence, enthusiasm, devotion,—all are needed, and all will be tasked to the utmost. For the education of the people's children, everywhere the most pressing of common concerns, and the most perplexing in the transition from old to new ideas and methods—bears with especial weight and importunity upon the South. Its thinly-

spread population, its still limited resources of finance, the presence of the two races with their separate and common needs,—all set a gigantic task to the South, and one that calls for sympathy and aid from the nation at large.

CHAPTER XXXIX

EBB AND FLOW

Thus, in broadest outline, have the two races at the South been faring on their way. And now in recent years, under their separate development and with their close intermingling, have come new complications and difficulties. The tendency has been in some ways to a wider separation. The old relations between the household servants and their employers, often most kindly, and long continuing to link the two races at numberless points, have passed away with the old generation. Once the inmates of mansion and cabin knew well each other's ways. Now they are almost unacquainted. The aristocracy and its dependents had their mutual relations of protection and loyalty, and gracious and helpful they often were. Now comes democracy,—vigorous, jostling, self-assertive,—its true social ideal of brotherly comradeship being yet far from realization. The negro is in a doubly hard position; under democratic competition the weaker is thrust to the wall, yet he has not even the equality which democracy asserts, but is held in the lower place by caste. And so there is a new or a newly apparent aggression upon the weaker race.

Its most obvious form is the legal limitation of suffrage. The irregular and indirect suppression of the negro vote which had prevailed since the close of the Reconstruction period, was not thorough and sure enough to satisfy the white politicians. And the lawless habit which it fostered, and whose effects could by no means be confined to one race, alarmed the better classes. So from two directions there was a pressure toward some restriction of the negro vote which should be both legal and effective. The movement became active about the year 1895, and accomplished its end in the States of Virginia, the Carolinas, Alabama, Mississippi, and Louisiana, by constitutional amendments. The qualifications thus prescribed are so various and so variously combined that a full statement here is forbidden by limits of space, but their general characteristics are these: The requirement (in Virginia, South Carolina, Alabama, Louisiana) of \$300 worth of property; the payment of a poll tax (in Virginia, North and South Carolina,

Mississippi, Louisiana); the ability to read and write (in North Carolina, Alabama, Louisiana); the ability, if not to read, to understand and explain any section of the Constitution (in Virginia, Mississippi); regular employment in some lawful occupation, good character, and an understanding of the citizen's duties and obligations (Alabama).^[2]

These restrictions apply in theory alike to both races. But exemption from them is allowed, and the suffrage is given, to certain classes: To all who served in the Civil War (Virginia, Alabama); to all who were entitled to vote on January 1, 1867, also to the sons (or descendants) of these two classes (Virginia, North Carolina, Alabama, Louisiana).

In these States, if these requirements are impartially enforced, the effect is to impose on the negroes a moderate property or intelligence qualification, or the two combined; and to give practically universal suffrage to the whites. This last feature, while essentially unfair, is a practical grievance to the negroes so long and only so long as the two races stand as directly opposed forces in politics. Otherwise it is questionable whether the class who are called on to earn the suffrage by intelligence or productive industry are not really as well off as the class to whom it is given regardless of merit.

But in its practical operation the system is so elastic—and unquestionably was so designed—that it can be easily applied for the exclusion of a great part of those who nominally are admitted to the suffrage. The "character" and "understanding" tests leave virtually full power with the registration officers. There can be no reasonable doubt that in these six States the suffrage is virtually denied to negroes to an extent utterly beyond any fair construction of the law. Mr. Charles W. Chestnutt, in his paper on *Disfranchisement*, cites the case of Alabama, where the census of 1900 gave the negro males of voting age as 181,471, while in 1903 less than 3000 were registered as voters. And even in States like Georgia, where suffrage is by law universal, ways of practical nullification are often applied,—as for example by exclusion from the nominating primaries, in which the results are principally determined.

Without the need of legal forms, there is a practically universal exclusion of all negroes from public offices, filled by local election or appointment,

throughout most of the South. Their appointment to Federal offices in that region, though very rare, is always made the occasion of vehement protest.

The theory generally avowed among Southern whites, that the two races must be carefully kept separate, is apt to mean in practice that the black man must everywhere take the lower place. At various points that disposition encounters the natural and cultivated sentiments of justice, benevolence, and the common good, and now one and now the other prevails. Thus, there have been efforts to restrict the common school education of the blacks. It has been proposed, and by prominent politicians, to spend for this purpose only the amount raised by taxation of the blacks themselves. There has appeared a disposition to confine their education to the rudimentary branches and to a narrow type of industrialism. Strong opposition has developed to the opening either by public or private aid of what is known as "liberal education" in the college or university sense. A flagrant instance of injustice is the enactment in Kentucky of a law prohibiting all co-education of the races—a law especially designed to cripple the admirable work of Berea College.

But the most serious obstacle to the black man, the country over, is the threatened narrowing of his industrial opportunities. Here has been his vantage-ground at the South, because his productive power was so great—by numbers and by his inherited and traditional skill,—that there was no choice but to employ him. At the North, where he is in so small a minority as to be unimportant, he has been crowded into an ever narrowing circle of employments. Precisely the same sentiment, though not so ingeniously formulated, which makes the white gentleman refuse to receive the black gentleman in his drawing-room, inclines the white carpenter or mason to refuse to work alongside of his negro fellow-laborer. Yet against this we have the accomplished fact, in the South, of black and white laborers actually working together, harmoniously and successfully, in most industries. We see the divided and wavering attitude of the trade-unions; some branches taking whites and blacks into the same society; others allying white societies and black societies on an equal footing; others refusing all affiliation; the earlier declarations of the national leaders for the broadest human fellowship challenged and often giving way before the imperious assertions of the caste spirit.

A race closely intermixed with another superior to it in numbers, wealth, and intelligence,—a self-conscious and self-assertive race,—suffers at many points. There are abuses tolerated by law; infractions and evasions of law; semi-slavery under the name of peonage; impositions by the landlord and the creditor. There are unpunished outrages,—let one typical case suffice: a negro farmer and produce dealer, respected and esteemed by all, in place of a rude shanty puts up a good building for his wares; the word goes round among the roughs, "that nigger is getting too biggity," and his store is burned,—nobody surprised and nobody punished. Then there is the chapter of lynchings: First, the gross crime of some human brute, then a sudden passionate vengeance by the community; the custom spreads; it runs into hideous torture and public exultation in it; it extends to other crimes; it knows no geographical boundaries but spreads like an evil infection over the country—but most of its victims are of the despised race.

Against the worst outrages the best men of all sections are arrayed in condemnation and resistance. But of its own essential and final social superiority the white South brooks no question. It expects its social code to be observed by the nation's representatives. It forgets that the nation's representatives are cognizant of the general code of the civilized world,—that breeding, manners, and intelligence, constitute the gentleman. So when President Roosevelt entertains as his guest the foremost man of the negro race,—easily one of the foremost half-dozen men in the country,—the white South indulges in a mood which to the rest of the world can only appear as prolonged hysteria.

Before this whole wide range of the unjust treatment of the black race in America, the observer is sometimes moved to profound discouragement. "Was it all for nothing?" he asks, "have all the struggle and sacrifice, the army of heroes and martyrs, brought us to nothing better than this?" But such discouragement overlooks the background of history, and the vital undergrowth of to-day. We see the present evils, but we forget the worse evils that preceded. Turn back sixty years,—read, not *Uncle Tom's Cabin* if you distrust fiction, but Fanny Kemble's *Life on a Georgia Plantation*, or Frederick Law Olmsted's volumes of travels. Glean from the shelves of history a few such grim facts, and let imagination reconstruct the nether world of the cotton and sugar plantations, the slave market, and the calaboose; the degradation of women; the hopeless lot to which "peared

like there warn't no to-morrow",—and see how far our world has moved into the light since those days. A race is not developed in an hour or a decade or a generation.

In the present are facts of solid reassurance, in that the best spirit of the South is facing the besetting ills, is combating them, and being thus aroused must eventually master and expel the evil spirit. The South has a burden to carry which the North does not easily realize. There the negro is not a remote problem of philanthropy; he is not represented by a few stray individuals; it is a great mass, everywhere present, in its surface manifestations often futile, childish, exasperating; shading off into sodden degradation; as a whole, a century or several centuries behind its white neighbors. To get on with it peaceably, to rightly apportion with it the opportunities and the burdens of the community, to keep the common movement directed upward,—this demands measureless patience, forbearance, wisdom, and persistence. Against the more flagrant abuses, the leaders of Southern society are making strong head. Governor Vardaman of Mississippi, though a reactionary as to negro education, has struck terror to the hearts of the lynchers. The attitude of the official class in certain peonage cases is thus described by Carl Schurz: "These crimes were disclosed by Southern officers of the law, the indictments were found by Southern grand juries, verdicts of guilty were pronounced by Southern petty juries, and sentence was passed by a Southern judge in language the dignity and moral feeling of which could hardly have been more elevated." As to disfranchisement on grounds of race, representative Southerners are anxious to demonstrate that the only real disqualification is for ignorance and unfitness; and we must look to them to give practical effect to their professions, which can be done if the existing statutes are applied in a spirit of justice. It is especially as to education that the better sentiment and purpose of the South is apparent. The heavy cost of maintaining public schools for the blacks has been steadily met. It is estimated by the United States Commission of Education that for this purpose since the beginning \$132,000,000 has been spent. The reactionaries in education, like Governor Vardaman, seem to be overborne by the progressives like Governor Aycock of North Carolina. There is a notable growth of the higher order of industrial schools, mainly as yet by private support, but with a general outreaching of educational leaders toward more practical and efficient

training for the common body at the common expense. In the general discussion of race matters, in periodicals and books, the old passionate advocacy is in a degree giving place to broader and saner views. Such writers are coming to the front as John S. Wise, with his frank criticism of the political Bourbons and his forward look; and Edgar Gardner Murphy, whose book *The Present South* is full of the modern spirit. There are others, especially among educators, not less pronounced and serviceable in the forward movement. It is in these quarters, and not among politicians or party newspapers, that we must look for the brightening day.

But it is to be recognized that a right solution of the South's difficulties will not be reached without a sharp and prolonged antagonism between the good and the evil tendencies. Mr. Schurz states the case none too strongly: "Here is the crucial point: There will be a movement either in the direction of reducing the negroes to a permanent condition of serfdom—the condition of the mere plantation hand, 'alongside of the mule,' practically without any rights of citizenship—or a movement in the direction of recognizing him as a citizen in the true sense of the term. One or the other will prevail." And he adds, "No doubt the most essential work will have to be done in and by the South itself. And it can be."

When President Hayes withdrew the Federal troops from the South, it marked the formal restoration of that local self-government which is a vital principle of the American Union. Of slower, deeper growth, has been the spirit of mutual good-will and confidence, with the free concession to each member of its individual life. Numberless delicate cords have been reuniting the severed sections. Railways, commerce, literature, the tides of business and pleasure travel, the pressure of common problems, the glory of common achievements, the comradeship of the blue and the gray on Cuban battlefields, the expositions of industry, the throb of human feeling as the telegraph tells its daily story of heroism or tragedy—all have done their part. It is by their nobler interests that the sections are most closely united. Beyond the squabbles of politicians is the power of such conferences as those of the Southern Education Commission where meet the best brains and consciences, the gifts of the liberal, the plans of the wise, and the energy of the stout-hearted.

The education of a slave into a man, the harmonizing of two races, the common achievement of a great national life,—it is a long work, but it moves on.

"Say not, The struggle naught availeth,
The labor and the wounds are vain,
The enemy faints not nor faileth,
And as things have been they remain.

"For while the tired waves vainly breaking,
Seem here no painful inch to gain,
Far back, through creeks and inlets making,
Comes silent, flooding in, the main.

"And not through eastern windows only,
When daylight comes, comes in the light,
In front the sun climbs slow, how slowly,
But westward, look, the land is bright!"

FOOTNOTES:

[2] In Maryland, an amendment prescribing a series of elaborate and vexing inquiries, investing the registration officers with judicial powers, and avowedly aiming at the elimination of the negro vote, was passed by the Legislature, at the instigation of Senator Gorman and against the opposition of a Democratic governor, and decisively rejected by the popular vote in November, 1905.

CHAPTER XL

LOOKING FORWARD

It is difficult to write history, but it is impossible to write prophecy. We can no more tell what lies before us than the Fathers of the Republic could foresee the future a century ago. They little guessed that slavery, which seemed hastening to its end, would take new vigor from an increase of its profits,—that, stimulated by the material gain, a propaganda of religious and political defense would spring up,—that a passionate denunciation and a passionate defense would gradually inflame the whole country,—that meanwhile the absorption of the mass of citizens in private pursuits would blind them to the evil and peril, and prevent that disinterested, comprehensive statesmanship which ought to have assumed as a common burden the emancipation of the slaves,—that the situation would be exasperated by hostility of the sections and complicated by clashing theories of the national Union,—that only by the bitter and costly way of war would a settlement be reached,—and that emancipation, being wrought by force and not by persuasion, would leave the master class "convinced against its will," and a deep gulf between the races, whose spanning is still an uncertain matter,—all this was hidden from the eyes of the wisest, a century ago. So is hidden from our eyes the outworking of the century to come.

But the essential principles of the situation, the true ideals, the perils,—these were seen of old. Jefferson wrote, "I tremble for my country when I reflect that God is a God of justice." And Washington said, "I can already foresee that nothing but the rooting out of slavery can perpetuate the existence of our Union, by consolidating it in a common bond of principle." Just so clearly can we read the basal principles on which depends our national safety. We look forward to-day, not to predict what will be, but to see what ought to be, and what we purpose shall be.

We, the people of the United States, are to face and deal with this matter. We are all in it together. Secession has failed, colonization is impossible.

Southerner and Northerner, white man and black man, we must work out our common salvation. It is up to us,—it is up to us all!

The saving principle is as simple as the multiplication table or the Golden Rule. Each man must do his best, each must be allowed to do his best, and each must be helped to do his best. Opportunity for every one, according to his capacity and his merit,—that is democracy. Help for the weaker, as the strong is able to give it,—that is Christianity. Start from this center, and the way opens out through each special difficulty. The situation is less a puzzle for the intellect than a challenge to the will and heart.

First of all, it is up to the black man himself. His freedom, won at such cost, means only opportunity, and it is for him to improve the opportunity. As he shows himself laborious, honest, chaste, loyal to his family and to the community, so only can he win to his full manhood. The decisive settlement of the whole matter is being worked out in cotton fields and cabins, for the most part with an unconsciousness of the ultimate issues that is at once pathetic and sublime,—by the upward pressure of human need and aspiration, by family affection, by hunger for higher things.

On the leaders of the negroes rests a great responsibility. Their ordeal is severe, their possibilities are heroic. The hardship of a rigid race severance acts cruelly on those whose intelligence and refinement fit them for a companionship with the best of the whites, which they needs must crave, which would be for the good of both races, but which is withheld or yielded in scanty measure. Self-abnegation, patience, power alike to wait and to do,—these are the price they are called to pay. But the prize set before them is worth it all,—the deliverance of their people, and the harmonizing of the long alienated races. They need to beware of jealousies and rivalries of leadership such as have made shipwreck of many a good cause. There is room and need for various contributions. They have a common bond in that ideal which is the most precious possession of the American negro. It is the old simple idea of goodness, set in close relation to this age of productive activity. It requires that a man be not only good but good for something, and sets faithful and efficient service as the gateway to all advance.

But for the right adjustment of the working relations of the two races, the heavier responsibility rests with the whites, because theirs is the greater

power. They can prescribe what the blacks can hardly do other than accept.

What we are now facing is not slavery,—an institution that may be abolished by statute—but its offspring, Caste—a spirit pervasive, subtle, sophisticated, tyrannic. It can be overcome only by a spirit more pervasive, persistent and powerful—the spirit of brotherhood.

Puzzling as the situation is at some points, its essential elements are far simpler and easier to deal with than slavery presented. There is no longer a vast property interest at stake,—on the contrary, material interest points the same way with moral considerations. There are complexities of the social structure, but nothing half so formidable as the aristocratic system based on slavery. The gravest difficulty now is a race prejudice, deep-rooted and stubborn, yet at bottom so irrational that civilization and Christianity and human progress should be steadily wearing it away. Let us take heart of grace. If our wills are true, it should be no great puzzle for our heads to find the way in this business. Let us test the practical application of our principle—namely, that each man should do his best, each should be allowed to do his best, and helped to do his best—let us see how this should work in industry, education, politics, and social relations.

First in importance is the industrial situation. Broadly, the negro in this country shows himself able and willing to work. The sharp spur of necessity urges him, and his inherited habit carries him on. But he needs a training in youth that shall fit him to work more effectively. For that matter, his white brother needs it, too. But here is the inequality of their situations,—whatever the white worker is qualified to do he is allowed to do, but how is it with the black worker? Let the Northern reader of these pages see at his door the palpable instance of a limitation more cruel than can be found at the South. Let him note, as the children stream out from the public school, the dark-skinned boy, playing good-naturedly with his white mates, at marbles or ball or wrestling,—just as he has been studying on the same bench with them,—he is as clean, as well-dressed, as well-behaved, as they. Now, five years hence, to what occupation can that colored boy turn? He can be a bootblack, a servant, a barber, perhaps a teamster. He may be a locomotive fireman, but when he is fit to be an engineer, he is turned back. Carpentry, masonry, painting, plumbing, the hundred mechanical trades,—these, for the most part, are shut to him; so are clerkships; so are nineteen-

twentieths of the ways by which the white boys he plays and studies with to-day can win competence and comfort and serve the community. It is a wrong to whose acuteness we are blunted by familiarity. It can be changed only as sentiment is changed; and for that there must be white laboring men who will bravely go ahead and break the cruel rule by welcoming the black laborer to their side.

In the South the negro as yet enjoys industrial freedom, in the choice of an occupation—or a near approach to it—because his labor is so necessary that he cannot be shut out. But the walls are beginning to narrow. White immigration is coming in. The industrial training of the old plantation is no longer given, and industrial schools are yet very imperfectly developed. Some trades are being lost to the negroes; they have fewer carpenters, masons, and the like; they find no employment in cotton mills, and are engaged only in the least skilful parts of iron manufacture. The trade unions, gradually spreading through the South, begin to draw back from their early professions of the equality and brotherhood of all toilers. An instance comes to hand as these pages are being written—one instance out of a plenty. "The convention at Detroit, Mich., of the amalgamated association of steel and iron workers has postponed for a year consideration of a proposition to organize the colored iron, steel and tin workers of the South. The white employes of the Southern mills led the opposition. They objected to seeing the negroes placed on an equality, and it was further argued that once a colored man obtained a standing in the association, there was nothing to prevent his coming North. President Shaffer urged that all men who are competent workers should be members of the association." Now for next year it is up to President Shaffer, and those of like mind! On this question, of comradeship between black and white laborers, there is a call to the leaders of labor organizations to lead right. These chiefs of labor hold a place of the highest possibilities and obligations. In their hands largely lies the advance or retrogression of the industrial community—and that means our entire community. It is one of the most hopeful signs of the times that stress of necessity is bringing to labor's front rank men of a higher type, men often of large brain, high purpose, and strong will. Brains, purpose, will,—all are needed by these unofficial statesmen. They must look many ways at once, but this way they ought not to fail to look,—to the industrial harmonizing and equality of the two races.

Exclude the colored men from the unions, and what can be expected but that they serve as a vast reserve for the employers when strikes arise between the capitalists and the employees? We read now and then of the introduction of negroes as "strike-breakers," and the bitterness it causes. But will not this be repeated on the largest scale if the millions of negroes are to be systematically excluded from the unions? There may be difficulties in including them,—difficulties partly running back into other injustices, such as the practice of different wage-rates for whites and blacks. But it would seem to be the larger wisdom, in point of strategy, to enroll the two great wings of the host of labor into a united army. And apart from strategy, that character of the labor movement which most deeply appeals to the conscience and judgment of mankind,—the uplift of the great multitude to better and happier things,—that should rise above the barrier of race-prejudice as above all other conventional and foolish divisions. Will the labor leaders see and seize their opportunity at once to strengthen and to ennoble their cause?

The education of the negroes presents a hundred special questions, but its basal principles are not difficult to discern. Here, fortunately, we have in the main an admirable loyalty and good-will on the part of the white South. It is proved by deeds more than by words. The sum spent by the Southern States in the last thirty years for the schooling of the blacks—it is reckoned at \$132,000,000, most of it, of course, from white taxpayers—is the best evidence of its disposition. The occasional complaints and protests seem no more significant than the occasional grumbling at the North against its best-rooted institutions,—everywhere and always the children of light must keep up some warfare with the Philistines. The main difficulties at the South are two; limited means for so great a task,—three or four months of schooling burdens Mississippi more than ten months burdens Massachusetts; and the grave puzzle as to what kind of elementary education best fits the negro child.

This puzzle applies almost equally to the white child; throughout the country and the world a reconstruction of education is struggling forward, through great uncertainties but under strong pressure of necessity. It is felt that the old-time book-education, and even its modern revision—all as yet come vastly short of rightly fitting the child for manhood or womanhood. We have advanced, but we have still far to go. To rightly educate "the hand,

head and heart," (the watchword of Tuskegee)—to develop strong, symmetrical character and intelligence, the sound mind in the sound body,—to train the bread-winner and the citizen, as well as to open the gates of intellectual freedom and spiritual power,—this is what we have not quite learned. Socrates and More and Rousseau and Pestalozzi and Froebel and Armstrong have done much, but they have left abundant room for their successors. The millionaire's child, as well as the field-hand's, must wait awhile yet. So it is small wonder if the Southern public school is still a challenge to the best wits.

The combined industrial and educational need of the South is excellently summed up by a sympathetic observer, Ernest Hamlin Abbott:

"The chief industrial problem of the South is, therefore, that of transforming an indolent peasantry accustomed to dependence into an active, independent people. This involves an educational problem. Industrial education is something very different from training a few hundred girls to cook and sew for others; it is something, even, very different from supplying a few hundreds of young men with a trade. Industrial training is this larger undertaking, namely, to train hundreds of thousands of young people in habits of industry, in alertness of mind, and in strength of will that shall enable them to turn to the nearest opportunity for gaining the self-respect that comes with being of use to the community."

One thing is clear. More than the system is the teacher. Now and always the first requisite must be instructors of devotion, intelligence, sympathy, inspiration. To train such, and train them in multitudes, there must be institutions, ample in intellectual resource and high in their standards. There can be no fit common schools for the blacks unless there are worthy normal schools and colleges. Atlanta and its class are necessary as well as Tuskegee and its class,—and Atlanta reinforces Tuskegee with a large proportion of its teachers. On broader grounds, too, the need of the higher education for the black man is imperative. It can hardly be better stated than in the words of Professor DuBois, in his book of irresistible appeal, *The Souls of Black Folk*:

"That the present social separation and acute race-sensitiveness must eventually yield to the influence of culture, as the South grows civilized, is

clear. But such transformation calls for singular wisdom and patience. If, while the healing of this vast sore is progressing, the races are to live for many years side by side, united in economic effort, obeying a common government, sensitive to mutual thought and feeling, yet subtly and silently separate in many matters of deeper human intimacy,—if this unusual and dangerous development is to progress amid peace and order, mutual respect and growing intelligence, it will call for social surgery, at once the delicatest and nicest in modern history. It will demand broad-minded, upright men, both white and black, and in its final accomplishment American civilization will triumph. So far as white men are concerned, this fact is to-day being recognized in the South, and a happy renaissance of university education seems imminent. But the very voices that cry hail to this good work are, strange to relate, largely silent or antagonistic to the higher education of the negro."

It must be remembered that in the growth of a tree the upper boughs must have space and air and sunlight, as much as the roots must have earth and water,—and so with a race. There is need of scholars and idealists, as well as toilers; and for these there should be their natural atmosphere. Again let us hear the moving words of Professor DuBois: "I sit with Shakespeare, and he does not wince. Across the color line I move arm in arm with Balzac and Dumas, where smiling men and welcoming women glide in gilded halls. From out the caves of evening that swing between the strong-limbed earth and the tracery of the stars, I summon Aristotle and Aurelius and what soul I will, and they come all graciously with no scorn nor condescension. So, wed with Truth, I dwell above the veil. Is this the life you grudge us, O knightly America? Is this the life you long to change into the dull red hideousness of Georgia? Are you so afraid lest, peering from this high Pisgah, between Philistine and Amalekite, we sight the Promised Land?"

Yet it is not for himself or the cultured few that he makes the strongest plea:

"Human education is not simply a matter of schools, it is much more a matter of family and group life, the training of one's home, of one's daily companions, of one's social class. Now the black boy of the South moves in a black world—a world with its own leaders, its own thoughts, its own ideals. His teachers here are the group leaders of the negro people—the physicians, clergymen, the trained fathers and mothers, the influential and

forceful men about him of all kinds—here it is, if anywhere, that the culture of the surrounding world trickles through, and is handed on by the graduates of the higher schools. Can such culture training of group leaders be neglected? Can we afford to ignore it? Do you think that if the leaders of thought among negroes are not trained and educated themselves, they will have no leaders? On the contrary, a hundred half-trained demagogues will still hold the places they so largely occupy now, and hundreds of vociferous busy-bodies will multiply. We have no choice; either we must help furnish this race from within its own ranks with thoughtful men, of trained leadership, or suffer the consequences of a headless misguided rabble."

Turning now to the political status of the negro, it may be said that the most pressing need will be substantially met if the South will carry out in good faith the provisions of her statute-books. By some of those statute-books, suffrage is still equal and universal. In others, the negro is required to own \$300 worth of property, or to be able to read and write, or to understand the Constitution when read to him. That the white man is practically exempt from these tests, by the "soldier" or "grandfather" clause, whatever be its theoretic injustice or unwisdom, would be no great practical grievance to the negro if only he were fairly allowed to cast his own vote when he can meet the statutory tests. At present, throughout the greater part of the South, the practical attitude of the election officials, and the social sentiment enforced in subtle, effectual ways, debars the negro vote almost as thoroughly as if it were disallowed by law. That this should be so may be satisfactory enough for those to whom the matter ends with "This is a white man's country," or "Damn the niggers anyhow." But will the intelligent, large-minded Southerners,—the men of light and leading—always allow the theory of their own statute-books to be nullified? Will they forever maintain a suffrage-test of race rather than of property and intelligence?

It is said, no doubt truly enough, that a large part of the negroes are indifferent to the suffrage, and do not care to vote. But is this a desirable state of things? Taking the class to whom the law awards the suffrage,—the men of some modest property qualification and intelligence,—is it well for the community that they should be indifferent to questions of taxation, of law-making, of courts and schools and roads and bridges? Is it not in every sense desirable that they should be encouraged to take an intelligent and active interest in such matters? John Graham Brooks tells of his recent

observations in Gloucester county, Virginia, where whites and blacks have been co-operating for good local government, and the curse of liquor-selling has been restrained by the votes of a black majority. Surely we should all like to see that precedent widely followed. That is a very crude idea of politics which sees in it only a scramble for public offices. That is an obsolete idea which construes Southern politics as a struggle for power between whites and blacks. Politics, in a large sense, is the common housekeeping of the community. It is the administration of the broadest and highest common interests. The importance to the Southern negro of the political function was greatly overrated when he emerged from chattelhood. But is there any wiser course now than to educate and train and encourage him to a living membership in the body politic?

In this connection we naturally recur to the relation of the national government to the negro problem. In general, the let-alone policy of the last twenty-eight years is likely to continue, and there is every reason why it should. The termination of Federal interference in 1877 was not due to criminal indifference or lassitude on the part of the North, or to political accident. It was essentially the gravitation of the nation to its normal position, after the shock of war and the adjustment of the vital changes involved in the abolition of slavery. Those changes recognized in the national Constitution, and the new order set on its feet, it was natural, inevitable, and right, that the States should resume the control of their local affairs. The division of governmental functions between State and nation was one of the most fortunate circumstances of our birth-period; it was the ripening of our historical antecedents, felicitously grasped and molded by a group of great men. It rests on the fitness of each local community to handle its own affairs, while only the most general and fundamental interests are intrusted to the central authority. When the Southern States were left to themselves, they did some unwise and unjust things,—and there had been something of unwisdom and injustice in the time of Federal supervision—but on the whole it was the re-establishment of the normal order. The policy which naturally followed on the part of the general government was the avoidance of special legislation, especially of the restrictive kind.

But within its own sphere, the national government should follow those principles which are in the best sense American. Thus the executive, in its appointments to office, ought to recognize an equality of race, like that

which the Constitution affirm as to civil rights and the suffrage. It is of vital moment that the American nation,—whatever local communities may do,—should not bar competent men from office because of race. Here as elsewhere,—the tools to him who can use them, the career open to the fit talent. This should hold good wherever the national executive acts, South as well as North. The principle should be applied with reasonable regard to the sentiments of the local community,—reasonable but not servile regard. In a city by character and tradition a stronghold of the white race, it seems unwise to give a principal office to a black man. But in a community where the black element is strong in numbers and in character, and where the dark race offers fit incumbents for office, there should be a fair number of such appointments. If it is said "This is offensive to the Southern people," the answer is, Who are the Southern people? Not the white people only, but the black people also.

As to legislation, a measure was recently proposed and somewhat discussed, which has perhaps passed like other bubbles, but the proposal of which caused natural agitation and apprehension at the South. This was a scheme for applying the Fourteenth Amendment to the reduction of Congressional representation in the South in proportion to the negroes excluded from suffrage by the new State Constitutions. Some such reduction may be permissible under the amendments,—for the later Fifteenth Amendment only forbids the States to limit suffrage by "color, race, or previous condition of servitude." Limitation by a property or educational test is not forbidden; but under the Fourteenth Amendment it might be made the ground for reducing a State's representation in Congress. But when it has been said that the proposed measure of reduction is permissible under the Constitution, there is nothing more in its favor. From the standpoint of its proposers, it would be only half-effective, for it could reach only those debarred by actual want of property or education; the larger exclusion by the unfair administration of election officers is an individual matter, beyond the cognizance of statute-books. But the weighty objection is that it would recognize, accept and confirm that very exclusion of the negro vote against which it professes to be aimed. It would only enforce a penalty, from which the gain would accrue solely to the Republican majority in Congress and the electoral college. The Republican party, it is safe to say, has too much virtue and intelligence in its rank and

file to accept such a gain at such a cost. For the cost would be a bitter intensifying of race and sectional hostility. The Southern negro, his disfranchisement accepted and ratified by the North, would be freshly odious to his white neighbors on whom he had unconsciously brought this humiliation. The fast closing breach between the North and South would have a sharp and heavy wedge of division driven in. The peaceful forward movement of the nation—for forward it is, spite of some lurches and staggers—would be set back by a return to the old methods of sectional conflict. But indeed the proposal hardly merits so much space as has here been given it. It is a scheme of politicians and not of the people, unhopeful even as a political scheme, unsupported by the sober thought of the North, utterly unlikely to be realized or seriously attempted.

There is another kind of legislative action which may well be seriously considered. Would it not be wise, just, and statesmanlike, for the nation to give financial aid to the tremendous work of public education with which the South is struggling? The Blair bill for this purpose,—in a word, an appropriation of \$100,000,000, running through ten years, on the basis of illiteracy,—came very near success in Congress. It was defeated by an ardent championship in the North of local independence and self-reliance. It is questionable whether that championship was not misdirected. Here are States burdening themselves beyond their Northern neighbors, to give schooling for only a third of a year, and necessarily sometimes of inferior quality. The deficiency, compared with the standards of wealthier States, results in a widespread ignorance detrimental not only to the community but to the nation. The interests at stake are common to us all. The backlying cause of the trouble,—slavery and its accompaniments—was in a sense our common responsibility; we all ought to have united to get rid of it peaceably, and the North ought to have paid its share. For the dereliction the South has paid a terrible price. The North, too, suffered wofully, yet in far less measure. Would it not be the part of patriotism and statesmanship—of wisdom and good-will—that all should now take some share in lifting the load which weighs heaviest on the South, but hurts us all?

We are spending a hundred millions a year for a navy. Would not some of that money be put to better use in training our own citizens, who will otherwise go untaught? Someone has said: "The cost of one battleship

would endow the higher education of the Southern negro for half a century to come."

It is not the negro only, it is his white neighbor also, for whom we are to provide. So to plan the provision that the money be honestly and wisely spent; to do it with just consideration of local feeling, yet on firm lines of American democracy—this would take study and sagacity. But could study and sagacity be better applied than to make this idea practical? The project seems prompted by wise self-interest and by justice. The South is carrying more than its share of national expense, and without complaint. Our tariff system presses far heavier on the agricultural South than on the manufacturing North. Of our payment of pensions,—running up to \$130,000,000 a year,—the South bears its proportion, though it is paid to men for fighting against her, and the South makes no remonstrance. Is it not simple justice, is it not a matter of national conscience and honor, that the whole nation should help her in educating the future citizens of the republic?

From this national aspect, we return to the more personal phases of our theme. Shall we touch on that subject whose very name seems to prohibit discussion?—what is called "social equality," or as others would prefer "social intimacy." Either phrase seems to evoke a phantom before which consideration and composure flee. But we may, as Epictetus suggests, say, "Appearances, wait for me a little; let me see who you are and what you are about, and put you to the test." Social equality—in what sense does it exist among white men? People find their associates according to fitness and congeniality. Clean people prefer the society of clean people, and the dirty must go by themselves or change their habits. Men and women of refinement and good manners welcome the company of the refined and well-mannered. They do so no less if these pleasing traits are found in a Japanese, a Chinese, or, a Hindu. This is the custom of the civilized world. At the North, as already in Christendom at large, the same usage is coming to extend to the African. A gentleman, a lady, by breeding and education and behavior, is admitted to the society of other ladies and gentlemen, whether in the business office, the committee-room, or the home. When the Grand Army of the Republic in Massachusetts this year chose their district commander, the almost unanimous choice fell on a soldier, a lawyer, and a gentleman, of African blood. When last fall the students of the Amherst

agricultural college elected the captain of their football team, they took as their leader a young man of the dark race. A few years since a class in Harvard awarded their highest honor, the class oratorship, to Mr. Bruce of Mississippi, of negro blood. When a Springfield lawyer, meeting in Philadelphia an old classmate in the law school, accepted his invitation to dinner at his boarding-house, and there found himself among a score of ladies and gentlemen, all dark-skinned, elegant in dress and manners, agreeable in conversation, and meeting their guest with entire ease and composure,—he did not feel that the meeting had injured either him or them, or shaken the foundations of the social order. Such is the growing, if not the general, practice in the Northern States; such is the well-established custom of Christendom. If the white people of the Southern States, for reasons peculiar to their section, follow a different rule, they have still no occasion for wonder and dismay at the practice in other sections, or for indignation when the highest official in the American capital follows the general usage of the civilized world.

The reasons given by the Southern whites for their own course in the matter call no less for respectful consideration. They say: "We are encompassed and intermingled with a people of negro and mixed blood. If we associate with them familiarly, the natural result will be intermarriage. There is no drawing the line short of that. Meet at the dining-table and in the drawing-room,—visit, study, play, associate familiarly and intimately,—and the young people of the two races, in many instances, will pass through acquaintance and friendship to love and marriage. Then springs a mixed and degenerate race; then the white race, with its proud tradition, its high ideals, its grand power, shades off into an inferior, mongrel breed. Our inheritance, our civilization, our honor, bid us shut out and forbid that degeneracy at the very threshold."

Let it be assumed that for the present the white South resolutely maintains its attitude of social separation. But let its defenders consider some of the consequences it involves, and make account with them as best they may. Does not this social code strongly confirm, and indeed carry as a necessary implication, that industrial separation which must work injuriously not only to the negro but to the community? If the white gentleman will not associate with a black gentleman in a committee on school or public affairs, if he will not admit him to his pew or his drawing-room, is it not to be expected that

the white carpenter or mill-hand will refuse to work side by side with the black? What that means where the black man is in a small minority, we see here at the North,—it shuts him out. Where he is in stronger force, as at the South, the refusal of industrial fellowship means growing bitterness, and the complication and aggravation of labor difficulties. It all goes along together,—the social separation and the industrial.

Further, this means that each race is to be ignorant and aloof from the other, on its best side. The best side of every civilized people is seen in its homes. The white and the black homes of the South are strangers to each other. Edgar Gardner Murphy in his admirable book, *The Present South*, while he does not for a moment question the necessity of the social barrier, laments that ignorance of each other's best which it involves. He dwells hopefully on that development of the family life which marks the negro's best advance,—but what, he asks, can the white people really see or know of it? Surely it is a very grave matter to keep two intermingled peoples thus mutually ignorant of each other's best.

If it be asked, "What course can reasonably be considered as a possible alternative to the jealous safeguarding of our race integrity?" the answer might suggest itself: "Simply deal with every man according to his fitness, his merits, and his needs, regardless of the color of his skin. Decide to-day's questions on the broad principles of justice and humanity. Leave the ultimate relation of the races to those sovereign powers working through Nature and mankind, which we dimly understand, but with which we best co-operate by doing the right deed here and now."

Some things we say—and think, too,—when we are in debate with our opponents, and some other things we think when we quietly commune with ourselves. Any social ordinance or usage finds its final test when we bring it into the companionship of our highest ideal. We may here borrow an apologue:

"The other night I fell asleep when soothed by vivid memories of a visit to Charleston soon after the war. The place was then new to me, and the warmth of old friends from whom I had long been parted and the cordial hospitality of those now first met seemed to blend with the delicious atmosphere which soothed and charmed my senses. The memory prompted

a dream, in which I sat again at that hospitable board, where my host had summoned a company to meet a special guest. The stranger delighted us all, partly by his suggestive comments, but still more by some subtle sympathy which moved us all to free and even intimate speech. Gradually the company enlarged; presently entered a man, and my host whispered to me, 'That fellow tried to ruin me, but I can't shut him out now'—and place was made. Then came in one with marked Jewish features, and the company drew their chairs together and made room for him. More intimate and sympathetic grew the talk,—strangely we all felt ourselves in a region of thought and feeling above our wont, and brought close together in it. It dawned on me 'this Presence among us is the same that once walked in Jerusalem and Galilee.' At that moment there appeared at the door a newcomer of dark hue. A frost fell on the company; they seemed to stiffen and close their ranks; the host's face turned in trouble and uncertainty from the newcomer to the guest of honor. The Guest arose and spoke to the stranger,—'Take my place!' he said."

Each of us dreams his own dream, and thinks his own thought. Differ as we may, let us unite wherever we can in purpose and action. The perfect social ideal will be slow in realization, but it is to-day's straightforward step along some plain path that is bringing us nearer to it. The black workman who every day does his best work; the white workman who welcomes him to his side; the trade-union that opens its doors alike to both colors; the teacher spending heart and brain for her pupils; the statesman planning justice and opportunity for all; the sheriff setting his life between his prisoner and the mob; the dark-skinned guest cheerfully accepting a lower place than his due at life's feast; the white-skinned host saying, Friend, come up higher,—it is these who are solving the race problem.

Slowly but surely we are coming together. We confront our difficulties as a people, however we may differ among ourselves, with a oneness of spirit which is a help and pledge of final victory. We are one by our most sacred memories, by our dearest possessions, and by our most solemn tasks. Our discords are on the lower plane; when the rich, full voices speak, in whatever latitude and longitude, they chord with one another. When Uncle Remus tells Miss Sally's little boy about Brer Rabbit and Brer Fox, the children from the Gulf to the Lakes gather about his knees. Tom Sawyer and Huck Finn are claimed as comrades by all the boys between the

Penobscot and the Rio Grande. Lanier's verse rests on the shelf with Longfellow's. The seer of Concord gives inspiration in Europe and India and Japan. Frances Willard stands for the womanhood of the continent. When Fitzhugh Lee died, it was not Virginia only but America that mourned a son. When Mary Livermore passed away, we all did honor to her heroic spirit. When Dunbar sings his songs, or DuBois speaks in the tones of scholar and poet, we all listen. The great emancipators of the successive generations,—Woolman, Lundy, Channing, Mrs. Stowe, Lincoln, Armstrong, Booker Washington—do we not all claim a share in them? Just as all Englishmen feel themselves heirs alike of the Puritan Hampden and the Royalist Falkland, so we Americans all pay our love and reverence to the heroes of our war,—Grant and Lee, Jackson and Sheridan, Johnston and Thomas, and all their peers.

And we are one by the common tasks that confront us. This problem of the races,—it is a challenge to do our best. "Impossible? What are we put into the world for, but to do the impossible in the strength of God?" The rich man and the poor man, the employer and the laborer, must find some common ground of justice and harmony. The nation must be steered away from commercial greed and military glory, toward international arbitration, toward peace, toward universal brotherhood. Knowledge and faith are to join hands, and the human spirit is to reach nobler heights. These are the tasks which we Americans are to meet and master—together.

The hope of Lincoln is finding its late fulfillment: "The mystic chords of memory, stretching from every battle-field and patriot grave"—Northern and Southern graves alike—"to every living heart and hearth-stone all over this broad land, will yet swell the chorus of the Union, when again touched, as surely they will be, by the better angels of our nature." The pathetic melody of the negro spirituals, the brave and rollicking strains of "Dixie," and the triumphant harmony of "The Star Spangled Banner," blend and interweave in the Symphony of America.

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